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PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

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House of Representatives

This being the day fixed by Public Law 113–201, pursuant to the 20th amendment to the Constitution of the United States, for the meeting of the 114th Congress of the United States, the Representatives-elect met in their Hall, and at noon were called to order by the Clerk of the House of Representatives, Hon. Karen L. Haas.

The Chaplain, the Reverend Patrick J. Conroy, offered the following prayer:

Loving God, we give You thanks for giving us another day.

We gather on this most significant day when, once again, we celebrate the peaceful transition of democratic government. Though many return from the 113th Congress, this people's House is a new legislative assembly.

May the service of all the Members here gathered give You glory and acquit well the charge entrusted to them by their fellow citizens.

Give each Member an abundance of wisdom, knowledge, and understanding, that they might know best how to proceed in the work they have been given to do, as well as the courage to act once they have discerned where Your Spirit might lead them.

And may all that is done this day and all the days of the 114th Congress be for Your greater honor and glory.

Amen.

PLEDGE OF ALLEGIANCE

The CLERK. The Representatives-elect and their guests will please remain standing and join in the Pledge of Allegiance.

The Clerk led the Pledge of Allegiance as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

The CLERK. As directed by law, the Clerk of the House has prepared the official roll of the Representatives-elect.

Certificates of election covering 435 seats in the 114th Congress have been received by the Clerk of the House, and the names of those persons whose credentials show that they were regularly elected as Representatives in accordance with the laws of their respective States or of the United States will be called.

The Representatives-elect will record their presence by electronic device and their names will be reported in alphabetical order by State, beginning with the State of Alabama, to determine whether a quorum is present.

Representatives-elect will have a minimum of 15 minutes to record their presence by electronic device.

Representatives-elect who have not obtained their voting ID cards may do so now in the Speaker's lobby.

The call was taken by electronic device, and the following Representatives-elect responded to their names:

[Roll No. 1]

ANSWERED ''PRESENT''—401

ALABAMA

Aderholt	Palmer	Sewell
Brooks	Roby	
Byrne	Rogers	

ARIZONA

Franks	Grijalva	Salmon
Gallego	Kirkpatrick	Schweikert
Gosar	McSally	Sinema

ARKANSAS

Crawford	Westerman
Hill	Womack

CALIFORNIA

Aguilar	Huffman	Roybal-Allard
Bass	Hunter	Royce
Becerra	Issa	Ruiz
Bera	Knight	Sánchez, Linda T.
Brownley	LaMalfa	Sanchez, Loretta
Calvert	Lee	Schiff
Capps	Lieu	Sherman
Cárdenas	Lofgren	Speier
Chu	Lowenthal	Swalwell
Cook	Matsui	Takano
Davis	McCarthy	Thompson
Denham	McClintock	Torres
DeSaulnier	McNerney	Valadao
Eshoo	Napolitano	Vargas
Farr	Nunes	Walters, Mimi
Garamendi	Pelosi	
Hahn	Peters	
Honda	Rohrabacher	

COLORADO

Buck	Lamborn	Tipton
Coffman	Perlmutter	
DeGette	Polis	

CONNECTICUT

Courtney	Esty	Larson
DeLauro	Himes	

DELAWARE

Carney

FLORIDA

Bilirakis	Frankel	Ros-Lehtinen
Brown	Graham	Ross
Buchanan	Hastings	Wasserman Schultz
Castor	Jolly	Webster
Clawson	Miller	Wilson
Curbelo	Murphy	Yoho
DeSantis	Nugent	
Deutch	Posey	
Diaz-Balart	Rooney	

GEORGIA

Allen	Hice	Scott, Austin
Bishop	Johnson	Westmoreland
Carter	Lewis	Woodall
Collins	Loudermilk	
Graves	Price	

HAWAII

Gabbard	Takai

IDAHO

Labrador	Simpson

ILLINOIS

Bost	Hultgren	Rush
Bustos	Kelly	Schakowsky
Davis, Danny	Kinzinger	Schock
Davis, Rodney	Lipinski	Shimkus
Dold	Quigley	
Foster	Roskam	

INDIANA

Brooks	Messer	Visclosky
Bucshon	Rokita	Walorski
Carson	Stutzman	Young

IOWA

Blum	King
Loebsack	Young

KANSAS

Huelskamp	Pompeo
Jenkins	Yoder

KENTUCKY

Barr	Massie	Whitfield
Guthrie	Rogers	Yarmuth

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LOUISIANA

Abraham	Fleming	Richmond
Boustany	Graves	Scalise

MAINE

Pingree	Poliquin	

MARYLAND

Cummings	Harris	Sarbanes
Delaney	Hoyer	Van Hollen
Edwards	Ruppersberger	

MASSACHUSETTS

Capuano	Kennedy	Moulton
Clark	Lynch	Neal
Keating	McGovern	Tsongas

MICHIGAN

Amash	Huizenga	Moolenaar
Benishek	Kildee	Trott
Bishop	Lawrence	Upton
Conyers	Levin	Walberg
Dingell	Miller	

MINNESOTA

Emmer	McCollum	Peterson
Kline	Paulsen	Walz

MISSISSIPPI

Harper	Palazzo	Thompson

MISSOURI

Clay	Hartzler	Smith
Cleaver	Long	Wagner
Graves	Luetkemeyer	

MONTANA

Zinke

NEBRASKA

Ashford	Fortenberry	Smith

NEVADA

Amodei	Heck	
Hardy	Titus	

NEW HAMPSHIRE

Guinta	Kuster	

NEW JERSEY

Frelinghuysen	MacArthur	Payne
Garrett	Norcross	Sires
Lance	Pallone	Smith
LoBiondo	Pascrell	Watson Coleman

NEW MEXICO

Lujan Grisham	Luján, Ben Ray	Pearce

NEW YORK

Collins	King	Slaughter
Gibson	Reed	Stefanik
Jeffries	Rice	Zeldin
Katko	Serrano	

NORTH CAROLINA

Adams	Holding	Meadows
Butterfield	Hudson	Pittenger
Ellmers	Jones	Rouzer
Foxx	McHenry	Walker

NORTH DAKOTA

Cramer

OHIO

Beatty	Jordan	Stivers
Boehner	Joyce	Tiberi
Chabot	Kaptur	Turner
Fudge	Latta	Wenstrup
Gibbs	Renacci	
Johnson	Ryan	

OKLAHOMA

Bridenstine	Lucas	Russell
Cole	Mullin	

OREGON

Blumenauer	DeFazio	Walden
Bonamici	Schrader	

PENNSYLVANIA

Barletta	Doyle	Murphy
Boyle	Fattah	Perry
Brady	Fitzpatrick	Pitts
Cartwright	Kelly	Rothfus
Costello	Marino	Shuster
Dent	Meehan	Thompson

RHODE ISLAND

Langevin

SOUTH CAROLINA

Clyburn	Mulvaney	Wilson
Duncan	Rice	

SOUTH DAKOTA

Noem

TENNESSEE

Black	Cooper	Fincher
Blackburn	DesJarlais	Fleischmann
Cohen	Duncan	Roe

TEXAS

Babin	Granger	Olson
Barton	Green, Al	O'Rourke
Brady	Green, Gene	Poe
Burgess	Hensarling	Ratcliffe
Castro	Hinojosa	Sessions
Conaway	Hurd	Smith
Cuellar	Jackson Lee	Thornberry
Culberson	Johnson, E. B.	Veasey
Doggett	Johnson, Sam	Vela
Farenthold	Marchant	Weber
Flores	McCaul	Williams
Gohmert	Neugebauer	

UTAH

Bishop	Love	
Chaffetz	Stewart	

VIRGINIA

Beyer	Forbes	Rigell
Brat	Goodlatte	Scott
Comstock	Griffith	Wittman
Connolly	Hurt	

WASHINGTON

DelBene	Larsen	Newhouse
Heck	McDermott	Reichert
Herrera Beutler	McMorris Rodgers	Smith
Kilmer		

WEST VIRGINIA

Jenkins	McKinley	Mooney

WISCONSIN

Duffy	Moore	Ryan
Grothman	Pocan	Sensenbrenner
Kind	Ribble	

WYOMING

Lummis

□ 1236

The CLERK. Four hundred and one Representatives-elect have recorded their presence. A quorum is present.

ANNOUNCEMENT BY THE CLERK

The CLERK. Credentials, regular in form, have been received showing the election of:

The Honorable PEDRO R. PIERLUISI as Resident Commissioner from the Commonwealth of Puerto Rico for a term of 4 years beginning January 3, 2013;

The Honorable ELEANOR HOLMES NORTON as Delegate from the District of Columbia;

The Honorable MADELEINE Z. BORDALLO as Delegate from Guam;

The Honorable STACEY E. PLASKETT as Delegate from the Virgin Islands;

The Honorable AMATA COLEMAN RADEWAGEN as Delegate from American Samoa; and

The Honorable GREGORIO SABLAN as Delegate from the Commonwealth of the Northern Mariana Islands.

RESIGNATION FROM THE HOUSE OF REPRESENTATIVES

The CLERK. The Clerk is in receipt of a letter from the Honorable MICHAEL G. GRIMM of New York indicating that he will not serve in the House in the 114th Congress.

Without objection, the letters relating to his resignation will be printed in the RECORD.

There was no objection.

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, January 2, 2015.

Hon. JOHN BOEHNER,
Speaker, House of Representatives, The Capitol, Washington, DC.

DEAR SPEAKER BOEHNER: I am writing to inform you that I have notified Cesar Perales, Secretary of State of the State of New York of my resignation from the U.S. House of Representatives effective January 5, 2015. A copy of that letter is attached.

I do not intend to take the oath of office of Representative for the Eleventh District of New York in the 114th Congress.

It has been a tremendous honor to represent the Eleventh Congressional District of New York. This decision is made with a heavy heart, as I have enjoyed a very special relationship and closeness with my constituents, whom I care about deeply, it is now time for me to start the next chapter of my life.

It has been an honor and a privilege to serve the hardworking families of Staten Island and Brooklyn, and I am sincerely grateful for the love and support that I have received from so many over the past few difficult months. I have seen first-hand how extraordinary the people of this District are—their values, their love of community, and their care for each other in the best and worst of times—it is humbling. I am grateful, and I will always keep them in my prayers.

Sincerely,

MICHAEL GRIMM,
Member of Congress,
Eleventh District of New York.

CONGRESS OF THE UNITED STATES,
HOUSE OF REPRESENTATIVES,
Washington, DC, January 2, 2015.

CESAR PERALES,
Secretary of State, State of New York, Albany, NY.

DEAR SECRETARY PERALES: I am writing to resign my position as United States Representative from the Eleventh Congressional District of New York, effective January 5, 2015. It has been a tremendous honor to represent the Eleventh Congressional District.

This decision is made with a heavy heart, as I have enjoyed a very special relationship and closeness with my constituents, whom I care about deeply, it is now time for me to start the next chapter of my life.

It has been an honor and a privilege to serve the hardworking families of Staten Island and Brooklyn, and I am sincerely grateful for the love and support that I have received from so many over the past few difficult months. I have seen first-hand how extraordinary the people of this District are—their values, their love of community, and their care for each other in the best and worst of times—it is humbling. I am grateful, and I will always keep them in my prayers.

Sincerely,

MICHAEL GRIMM,
Member of Congress,
Eleventh District of New York.

ELECTION OF SPEAKER

The CLERK. Pursuant to law and precedent, the next order of business is the election of the Speaker of the

House of Representatives for the 114th Congress.

Nominations are now in order.

The Clerk recognizes the gentlewoman from Washington (Mrs. MCMORRIS RODGERS).

Mrs. MCMORRIS RODGERS. Madam Clerk, it is an honor to address the House at the start of the 114th Congress. If there is one thing I have learned as a legislator, it is that we cannot achieve great things alone. It takes a willingness to come together, find common ground, and advance solutions that make people's lives better. In that spirit, I welcome America's new Congress, one that will chart the path towards a government that is more open, transparent, and trustworthy.

To lead us on this path, the Republican Conference has nominated a man of great character and conviction. The second oldest of 12 children, he grew up mopping floors and waiting tables at his family's tavern. He ran a successful small business. He was elected to the Ohio State House and then this House, where he served as committee chairman, Republican Conference chairman, minority leader, majority leader, and Speaker. He is a reformer who works every day to make government more accountable to the people. For all of this, he calls himself a regular guy with a big job; and that job, he says, is to listen, because if we listen to the people, listen to one another, there is no telling what we can accomplish together for the future of this great country.

Madam Clerk, as chair of the Republican Conference and by unanimous vote of that conference, I present for election to the office of Speaker of the House of Representatives for the 114th Congress the name of the Honorable JOHN A. BOEHNER, our dear friend and colleague, a Representative-elect from the State of Ohio.

The CLERK. The Clerk now recognizes the gentleman from California (Mr. BECERRA).

Mr. BECERRA. Madam Clerk, first I would like to recognize each and every Member who has taken to this floor to represent the people of the United States and say congratulations to them and to all of their loved ones who are here witnessing this solemn event where we will have an opportunity to lead our country. We say congratulations to them as well.

Madam Clerk, I have the distinct pleasure of nominating someone who is a proven leader, someone who already will go down in history as one of the most effective Speakers the House of Representatives has ever seen, someone who has shown that it doesn't take a man to get the job done, that it can be done by an American who is devoted to this country, someone who knows her heritage, someone who has worked tirelessly for the American people, but someone who understands first and foremost that the job of this House is to get things done.

I have been empowered, Madam Clerk, to nominate on behalf of all working Americans, those Americans who still believe in the American Dream, to put the name of the gentlewoman from San Francisco who will serve again in the House of Representatives, put her name forward for the office of the Speaker of the House of Representatives for the 114th Congress. I, therefore, at this point put before you the name of NANCY PELOSI to serve as the Speaker of the House of Representatives.

The CLERK. The names of the Honorable JOHN A. BOEHNER, a Representative-elect from the State of Ohio, and the Honorable NANCY PELOSI, a Representative-elect from the State of California, have been placed in nomination.

Are there further nominations?

Mr. MASSIE. Madam Clerk, I present for election to the office of Speaker of the House of Representatives for the 114th Congress the name of the Honorable TED YOHO, a great defender of the Constitution and Representative-elect from the great State of Florida.

The CLERK. Are there further nominations?

Mr. BRIDENSTINE. Madam Clerk, I present for the election of the office of Speaker of the House of Representatives for the 114th Congress the name of Judge LOUIE GOHMERT, a Representative-elect from the great State of Texas.

Madam Clerk, Judge GOHMERT proudly serves the First District of Texas. He is serving his fifth term in the House of Representatives. Prior to being elected to serve in Congress, he was elected to three terms as district judge in Smith County and was appointed by Governor Rick Perry to be the chief justice of the 12th Court of Appeals.

Madam Clerk, this is not about Judge GOHMERT; it is about establishing a strong check on the executive branch. I think a quote applies to my friend LOUIE GOHMERT. It is from Mark Twain. He said:

> In the beginning of a change, the patriot is a scarce man, and he is brave and hated and scorned. When his cause succeeds, the timid join him, for then it costs nothing to be a patriot.

My constituents from the First District of Oklahoma are looking for this kind of patriot.

The CLERK. Are there further nominations?

□ 1245

Mr. KING of Iowa. Madam Clerk, I rise to place in a nomination for election to the constitutional office of Speaker of the United States House of Representatives a man who has served as speaker of the statehouse, a man who respects this institution, a man who understands that power and principle cannot coexist without recognizing the sanctity of each Member's vote in this House of Representatives, a man who will restore this institution of the House of Representatives. I place in nomination the name of DANIEL WEBSTER, a Representative-elect from the great State of Florida.

The CLERK. Are there further nominations?

The names of the Honorable JOHN A. BOEHNER, a Representative-elect from the State of Ohio; the Honorable NANCY PELOSI, a Representative-elect from the State of California; the Honorable TED YOHO, a Representative-elect from the State of Florida; the Honorable LOUIE GOHMERT, a Representative-elect from the State of Texas; and the Honorable DANIEL WEBSTER, a Representative-elect from the State of Florida, have been placed in nomination.

Are there further nominations?

There being no further nominations, the Clerk appoints the following tellers:

The gentlewoman from Michigan (Mrs. MILLER);

The gentleman from Pennsylvania (Mr. BRADY);

The gentlewoman from Ohio (Ms. KAPTUR); and

The gentlewoman from Florida (Ms. ROS-LEHTINEN).

The tellers will come forward and take their seats at the desk in front of the Speaker's rostrum.

The roll will now be called, and those responding to their names will indicate by surname the nominee of their choosing.

The Reading Clerk will now call the roll.

The tellers having taken their places, the House proceeded to vote for the Speaker.

The following is the result of the vote:

[Roll No. 2]

BOEHNER—216

Abraham	Dent	Hultgren
Aderholt	DeSantis	Hunter
Allen	Diaz-Balart	Hurd (TX)
Amodei	Dold	Hurt (VA)
Barletta	Duffy	Issa
Barr	Duncan (TN)	Jenkins (KS)
Barton	Ellmers	Jenkins (WV)
Benishek	Emmer	Johnson (OH)
Bilirakis	Farenthold	Johnson, Sam
Bishop (MI)	Fincher	Jolly
Bishop (UT)	Fitzpatrick	Jordan
Black	Fleischmann	Joyce
Blackburn	Fleming	Katko
Bost	Flores	Kelly (PA)
Boustany	Forbes	King (NY)
Brady (TX)	Fortenberry	Kinzinger (IL)
Brooks (AL)	Foxx	Kline
Brooks (IN)	Franks (AZ)	Knight
Buchanan	Frelinghuysen	Labrador
Buck	Gibbs	LaMalfa
Bucshon	Goodlatte	Lamborn
Burgess	Granger	Lance
Byrne	Graves (GA)	Latta
Calvert	Graves (LA)	LoBiondo
Carter (GA)	Graves (MO)	Long
Chabot	Griffith	Loudermilk
Chaffetz	Grothman	Love
Coffman	Guinta	Lucas
Cole	Guthrie	Luetkemeyer
Collins (GA)	Hanna	Lummis
Collins (NY)	Hardy	MacArthur
Comstock	Harper	Marchant
Conaway	Harris	Marino
Cook	Hartzler	McCarthy
Costello (PA)	Heck (NV)	McCaul
Cramer	Hensarling	McClintock
Crawford	Herrera Beutler	McHenry
Crenshaw	Hice (GA)	McKinley
Culberson	Hill	McMorris Rodgers
Curbelo (FL)	Holding	McSally
Davis, Rodney	Hudson	Meehan
Denham	Huizenga (MI)	

Messer	Roe (TN)	Stivers
Mica	Rogers (AL)	Thompson (PA)
Miller (FL)	Rogers (KY)	Thornberry
Miller (MI)	Rohrabacher	Tiberi
Moolenaar	Rokita	Tipton
Mooney (WV)	Rooney (FL)	Trott
Mullin	Ros-Lehtinen	Turner
Mulvaney	Roskam	Upton
Murphy (PA)	Ross	Valadao
Neugebauer	Rothfus	Wagner
Newhouse	Rouzer	Walberg
Noem	Royce	Walden
Nunes	Russell	Walker
Olson	Ryan (WI)	Walorski
Palazzo	Salmon	Walters, Mimi
Paulsen	Sanford	Wenstrup
Pearce	Scalise	Westerman
Perry	Schock	Westmoreland
Pittenger	Schweikert	Whitfield
Pitts	Scott, Austin	Williams
Poe (TX)	Sensenbrenner	Wilson (SC)
Poliquin	Sessions	Wittman
Pompeo	Shimkus	Womack
Price (GA)	Shuster	Woodall
Ratcliffe	Simpson	Yoder
Reed	Smith (MO)	Young (IA)
Reichert	Smith (NE)	Young (IN)
Renacci	Smith (NJ)	Zeldin
Ribble	Smith (TX)	Zinke
Rice (SC)	Stefanik	
Roby	Stewart	

PELOSI—164

Adams	Fudge	Neal
Aguilar	Gabbard	Norcross
Ashford	Gallego	O'Rourke
Bass	Garamendi	Pallone
Beatty	Grayson	Pascrell
Becerra	Green, Al	Payne
Bera	Green, Gene	Pelosi
Beyer	Grijalva	Perlmutter
Bishop (GA)	Gutiérrez	Peters
Blumenauer	Hahn	Peterson
Bonamici	Hastings	Pingree
Boyle (PA)	Heck (WA)	Pocan
Brady (PA)	Himes	Polis
Brown (FL)	Hinojosa	Quigley
Brownley (CA)	Honda	Rice (NY)
Bustos	Hoyer	Richmond
Butterfield	Huffman	Roybal-Allard
Capps	Israel	Ruiz
Capuano	Jackson Lee	Ruppersberger
Cárdenas	Jeffries	Rush
Carney	Johnson (GA)	Ryan (OH)
Carson (IN)	Johnson, E. B.	Sánchez, Linda T.
Cartwright	Kaptur	
Castor (FL)	Keating	Sanchez, Loretta
Castro (TX)	Kelly (IL)	Sarbanes
Chu (CA)	Kennedy	Schakowsky
Clark (MA)	Kildee	Schiff
Clay	Kilmer	Schrader
Cleaver	Kind	Scott (VA)
Clyburn	Kirkpatrick	Scott, David
Cohen	Kuster	Serrano
Connolly	Langevin	Sewell (AL)
Conyers	Larsen (WA)	Sherman
Courtney	Larson (CT)	Sires
Cuellar	Lawrence	Slaughter
Cummings	Lee	Smith (WA)
Davis (CA)	Levin	Speier
Davis, Danny	Lewis	Swalwell (CA)
DeFazio	Lieu (CA)	Takai
DeGette	Loebsack	Takano
Delaney	Lofgren	Thompson (CA)
DeLauro	Lowenthal	Thompson (MS)
DelBene	Lujan Grisham (NM)	Titus
DeSaulnier		Torres
Deutch	Luján, Ben Ray (NM)	Tsongas
Dingell		Van Hollen
Doggett	Lynch	Vargas
Doyle (PA)	Matsui	Veasey
Edwards	McCollum	Vela
Ellison	McDermott	Visclosky
Eshoo	McGovern	Walz
Esty	McNerney	Wasserman Schultz
Farr	Moore	
Fattah	Moulton	Watson Coleman
Foster	Murphy (FL)	Wilson (FL)
Frankel (FL)	Napolitano	Yarmuth

WEBSTER (FL)—12

Blum	Jones	Posey
Garrett	King (IA)	Rigell
Gosar	Meadows	Stutzman
Huelskamp	Nugent	Webster (FL)

GOHMERT—3

Bridenstine	Gohmert	Weber (TX)

YOHO—2

Massie	Yoho

JORDAN—2

Amash	DesJarlais

DUNCAN (SC)—1

Brat

HON. RAND PAUL—1

Clawson (FL)

COLIN POWELL—1

Cooper

GOWDY—1

Duncan (SC)

MCCARTHY—1

Gibson

COOPER—1

Graham

DEFAZIO—1

Lipinski

HON. JEFF SESSIONS—1

Palmer

LEWIS—1

Sinema

PRESENT—1

Babin

NOT VOTING—25

Boehner	Higgins	Price (NC)
Carter (TX)	Lowey	Rangel
Cicilline	Maloney Carolyn	Tonko
Clarke (NY)	Maloney, Sean	Velázquez
Costa	Meeks	Waters, Maxine
Crowley	Meng	Welch
Duckworth	Nadler	Young (AK)
Engel	Nolan	
Gowdy	Nunnelee	

□ 1402

The CLERK. The tellers agree in their tallies that the total number of votes cast is 408, of which the Honorable JOHN A. BOEHNER of the State of Ohio has received 216, the Honorable NANCY PELOSI of the State of California has received 164, the Honorable DANIEL WEBSTER of the State of Florida has received 12, the Honorable LOUIE GOHMERT of the State of Texas has received 3, the Honorable TED S. YOHO of the State of Florida has received 2, the Honorable JIM JORDAN of the State of Ohio has received 2, the Honorable JIM COOPER of the State of Tennessee has received 1, the Honorable PETER A. DEFAZIO of the State of Oregon has received 1, the Honorable JEFF DUNCAN of the State of South Carolina has received 1, the Honorable TREY GOWDY of the State of South Carolina has received 1, the Honorable JOHN LEWIS of the State of Georgia has received 1, the Honorable KEVIN MCCARTHY of the State of California has received 1, the Honorable RAND PAUL of the Commonwealth of Kentucky has received 1, the Honorable JEFF SESSIONS of the State of Alabama has received 1, and the Honorable Colin Powell has received 1, with 1 recorded as ''present.''

Therefore, the Honorable JOHN A. BOEHNER of the State of Ohio, having received a majority of the votes cast, is duly elected Speaker of the House of Representatives for the 114th Congress.

The Clerk appoints the following committee to escort the Speaker-elect to the chair:

The gentleman from California (Mr. MCCARTHY)

The gentlewoman from California (Ms. PELOSI)

The gentleman from Louisiana (Mr. SCALISE)

The gentleman from Maryland (Mr. HOYER)

The gentlewoman from Washington (Mrs. MCMORRIS RODGERS)

The gentleman from South Carolina (Mr. CLYBURN)

The gentleman from Oregon (Mr. WALDEN)

The gentleman from California (Mr. BECERRA)

The gentleman from Indiana (Mr. MESSER)

The gentleman from New York (Mr. ISRAEL)

The gentlewoman from Kansas (Ms. JENKINS)

The gentlewoman from Connecticut (Ms. DELAURO)

The gentlewoman from North Carolina (Ms. FOXX)

The gentlewoman from Maryland (Ms. EDWARDS)

The gentlewoman from California (Mrs. MIMI WALTERS)

The gentleman from Maryland (Mr. VAN HOLLEN)

The gentleman from Texas (Mr. SESSIONS)

The gentleman from New Mexico (Mr. BEN RAY LUJÁN)

The gentleman from North Carolina (Mr. MCHENRY)

The gentlewoman from North Carolina (Ms. ADAMS)

And the Members of the Ohio delegation:

Ms. KAPTUR
Mr. CHABOT
Mr. TIBERI
Mr. RYAN
Mr. TURNER
Mr. JORDAN
Mr. LATTA
Ms. FUDGE
Mr. GIBBS
Mr. JOHNSON
Mr. RENACCI
Mr. STIVERS
Mrs. BEATTY
Mr. JOYCE, and
Mr. WENSTRUP

The committee will retire from the Chamber to escort the Speaker-elect to the chair.

The Sergeant at Arms announced the Speaker-elect of the House of Representatives of the 114th Congress, who was escorted to the chair by the Committee of Escort.

Ms. PELOSI. My colleagues of the United States House of Representatives, it is a high honor to welcome you and your families to the 114th Congress.

To our newest Members, this is a special pleasure to give you an exceptional welcome and congratulations. Welcome to our newest Members.

As was indicated by the vote, many of our colleagues from the State of New York are not with us because they are attending the funeral of Governor

Mario Cuomo. I extend condolences to our colleagues from the State of New York and have extended the sympathies of many in this body to Governor Cuomo's widow, Matilda, and to his family. As an Italian American, I am especially proud of his leadership and extend sympathies to his family. Thank you, Cuomo family. Thank you, New York delegation.

None of us would be standing here without the support and the strength of our families. Today, I am going to thank my dear husband of 51 years, Paul Pelosi, and my five children and nine grandchildren, all the Pelosis and D'Alesandros. Let all of us applaud all of our families.

To my Democratic colleagues and to my constituents in San Francisco, I thank you for the privilege of serving in the House, but to my colleagues, I thank you for the honor of serving as leader, but all of us should applaud all of our constituents for sending us here. So let us, again, applaud our constituents.

Each one of us, Mr. Speaker, as you know, represents Republicans, represents Democrats, Independents, and others, and we should always pay tribute to the American people. The American people have called upon each of us to serve them. They have entrusted us with their hopes, their dreams, and they have asked us to address their challenges.

The financial stability of a strong middle class and those who aspire to it is the bedrock of our economy and the backbone of our American democracy. We have a moral imperative to ensure that working men and women enjoy the bounty of their unprecedented productivity and to expand the purchasing power of families.

To that end, today, Democrats will put forward a legislative package to put Americans back to work building our roads and bridges and meeting the needs of the American people, paid for by bringing our tax dollars back home and to increase the paycheck of America's working families.

We invite our Republican colleagues to join us in supporting the Stop Corporate Expatriation and Invest in America's Infrastructure Act. It is time to stop rewarding companies to move overseas and instead use those dollars to create good-paying jobs here at home.

We ask for Republican support and action on the CEO-Employee Pay Fairness Act, legislation to ensure that workers share in the fruit of their productivity, denying CEOs the ability to claim tax deductions on annual income over $1 million unless they give their employees a well-deserved raise.

We must have an economy that works for everyone, not just the privileged few, and we hope Republicans will join us to achieve a better infrastructure and bigger paychecks for the working people of our country—better infrastructure, bigger paychecks.

We open this 114th Congress in the year we celebrate the 50th anniversary of the Voting Rights Act, one of the most consequential pieces of legislation in our history. President Lyndon Johnson and Congress passed it. The President signed it. Reverend Martin Luther King, Jr., and others, along with our own JOHN LEWIS, fought for it and inspired it. We must continue to inspire the engagement of every American. It is the vote that preserves our democracy, ends injustice, advances dreams, and sustains our freedom.

In terms of protecting our freedom, let us recognize, salute, and thank all of those brave Americans who protect our rights—indeed, protect all of our liberty—our men and women in uniform, our veterans, and our military families.

Mr. Speaker, today, we are at the start of a new year and a new Congress, with fresh opportunity for the American people. Today is the Feast of the Epiphany, the visit of the magi; so let us have our own epiphany, for this moment, on this day, we are not just Republicans and Democrats, we are Americans not just in name, but in spirit, standing on higher ground than the last election.

My hope is that in the inevitable exchanges and clashes that may happen in the months ahead, we will not lose sight of the truth that is as fresh as this ceremony is today and as historic as our Republic that the ideals that unite us are stronger than the issues that divide us in this House.

That does not mean that we are dispensing with all disagreements in this debate. Our democracy is robust precisely because we have beliefs and we stand proudly, even persistently, for them; and our democracy endures and prevails because in the end, we are humble enough to find a way forward together.

My fellow colleagues of the 114th Congress, let us uphold our deep and different convictions, but let us honor our common obligation to our country. In this Congress, we will do so under the leadership of Speaker JOHN BOEHNER.

□ 1415

This House will continue to be led by a proud son of Ohio and a happy fan of the Ohio State football team. A man of abiding faith, great heart, and deep dedication, JOHN BOEHNER is truly a gentleman from Ohio.

Congratulations to you, JOHN, to Mr. Speaker, to Debbie, to your daughters, Lindsay and Tricia, and the entire Boehner family. Thank you for sharing JOHN BOEHNER with us. God bless you and your family, Mr. Speaker.

May God continue to bless the Members of the House of Representatives. This is the people's House. This is the people's gavel. In the people's name, it is my privilege to hand it to the Speaker of the House for the 114th Congress, the Honorable JOHN BOEHNER.

God bless you, Mr. Speaker, and God bless America.

Mr. BOEHNER. Thank you.

Friends, colleagues, countrymen, and especially the people of Ohio's Eighth Congressional District, thank you for sending me here. Let us today welcome all of the new Members and all of their families to what we all know to be a truly historic day.

As we welcome all of the Members back who were reelected, we want to welcome your families as well, and I want to thank my family. I was doing pretty well on the walk over here from my ceremonial office until I ran into DEVIN NUNES' three little girls—my three biggest fans—and one of them came running over and gave me a kiss, and I was a mess.

This is the day the Lord has made. Let us rejoice and be glad. We rejoice that our new Members and families are here. We welcome them. We are glad and humbled to begin anew as servants of the people's House. Here, it is our duty and our privilege to lend a willing ear to the people, to make laws in tune with their priorities and within the limits of their Constitution.

In recent months, our economy has shown signs of improvement, and after difficult years, it may be a temptation to accept what I will call the new normal. But America did not become exceptional by ease. Far too many Americans remain out of work, and too many are working harder only to lose ground to stagnant wages and rising costs. We can do better. We can build an economy that furthers better-paying jobs, more growth, and more opportunity for the Nation's middle class. This is our vital task.

We will begin this endeavor on common ground, both in letter and in spirit. It was actually my predecessor, Nicholas Longworth of Cincinnati, who changed the order of things so that all Members now take the oath of office at the same time. He called this innovation a timesaving device. He sounds like my kind of guy. But this shared ritual is no passing formality. It is a frontier where words end and where deeds begin.

The pessimists don't see us crossing this channel. They say nothing is going to be accomplished here, that division is wider than ever and so gridlock will be even greater. Frankly, fair enough. Skepticism of our government is healthy and, in our time, quite understandable. But one problem with saying it can't be done is that it already has been done—or at least started.

In the last Congress, this House passed a number of jobs bills with broad support from the majority and the minority, and we will begin our work on this common ground, taking up measures to develop North American energy, restore the hours of middle class workers, and help small businesses hire more of our veterans. We invite the President to support and sign these bipartisan initiatives into law. It will be a good start; and more, it will be a sign that the logjam is breaking, and it will be a foundation on which to address the bigger challenges in the pursuit of freedom and security.

No, this won't be done in a tidy way. The battle of ideas never ends and, frankly, never should. As Speaker, all I ask—and, frankly, expect—is that we disagree without being disagreeable. In return, I pledge to help each of you carry out your duties. My door, of course, is always open. Now don't get carried away with it—all right?—but it is always open.

My colleagues, some things we do here will be characterized as shadowboxing and show business, but let me tell you and the American people, it is real work. It is a grind, as it should be, in striving to preserve the things that we all hold dear.

Every day, you and I come out here, try to plant good seeds, cultivate the ground, and take care of the pests; and then, with patience and some sacrifice and God's grace, there will be a harvest. Along the way, we may falter, but we Americans do not fall away from the task. We do not quit.

So let's stand tall and prove the skeptics wrong. Let's make this a time of harvest, and may the fruits of our labors be ladders our children can use to climb the stairs to the stars.

Thank you all, and God bless the United States of America.

I am now ready to take the oath of office.

I ask the Dean of the House of Representatives, the Honorable JOHN CONYERS of Michigan, to administer the oath of office.

Mr. CONYERS then administered the oath of office to Mr. BOEHNER of Ohio, as follows:

Do you solemnly swear or affirm that you will support and defend the Constitution of the United States against all enemies, foreign and domestic; that you will bear true faith and allegiance to the same; that you take this obligation freely, without any mental reservation or purpose of evasion; and that you will well and faithfully discharge the duties of the office on which you are about to enter, so help you God.

(Applause, the Members rising.)

Mr. CONYERS. Congratulations, Mr. Speaker.

SWEARING IN OF MEMBERS

The SPEAKER. According to precedent, the Chair will swear in the Members-elect en masse.

The Members-elect will rise and raise their right hands.

The Members-elect rose, and the Speaker administered the oath of office to them as follows:

Do you solemnly swear or affirm that you will support and defend the Constitution of the United States against all enemies, foreign and domestic; that you will bear true faith and allegiance to the same; that you take this obligation freely, without any mental reservation or purpose of evasion; and that you will well and faithfully discharge the duties of the office on which you are about to enter, so help you God.

The SPEAKER. Congratulations. You are now Members of the 114th Congress.

MAJORITY LEADER

Mrs. MCMORRIS RODGERS. Mr. Speaker, as chair of the Republican Conference, I am directed by that conference to notify the House officially that the Republican Members have selected as majority leader the gentleman from California, the Honorable KEVIN MCCARTHY.

MINORITY LEADER

Mr. BECERRA. Mr. Speaker, as chairman of the Democratic Caucus, I have been directed to report to the House that the Democratic Members have selected as minority leader the gentlewoman from California, the Honorable NANCY PELOSI.

MAJORITY WHIP

Mrs. MCMORRIS RODGERS. Mr. Speaker, as chair of the Republican Conference, I am directed by that conference to notify the House officially that the Republican Members have selected as majority whip the gentleman from Louisiana, the Honorable STEVE SCALISE.

MINORITY WHIP AND ASSISTANT DEMOCRATIC LEADER

Mr. BECERRA. Mr. Speaker, as chairman of the Democratic Caucus, I have been directed to report to the House that the Democratic Members have selected as minority whip the gentleman from Maryland, the Honorable STENY HOYER, and as assistant Democratic leader, the gentleman from South Carolina, the Honorable JAMES CLYBURN.

ELECTING OFFICERS OF THE HOUSE OF REPRESENTATIVES

Mrs. MCMORRIS RODGERS. Mr. Speaker, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 1

Resolved, That Karen L. Haas of the State of Maryland, be, and is hereby, chosen Clerk of the House of Representatives;

That Paul D. Irving of the State of Florida be, and is hereby, chosen Sergeant-at-Arms of the House of Representatives;

That Ed Cassidy of the State of Connecticut be, and is hereby, chosen Chief Administrative Officer of the House of Representatives; and

That Father Patrick J. Conroy of the State of Oregon, be, and is hereby, chosen Chaplain of the House of Representatives.

□ 1430

Mrs. MCMORRIS RODGERS. Mr. Speaker, I yield to the gentleman from California (Mr. BECERRA) for the purpose of offering an amendment.

Mr. BECERRA. Mr. Speaker, I have an amendment to the resolution, but before offering the amendment, I request that there be a division of the question on the resolution so that we may have a separate vote on the Chaplain.

The SPEAKER. The question will be divided.

The question is on agreeing to that portion of the resolution providing for the election of the Chaplain.

That portion of the resolution was agreed to.

A motion to reconsider was laid on the table.

AMENDMENT OFFERED BY MR. BECERRA

Mr. BECERRA. Mr. Speaker, I offer an amendment to the remainder of the resolution.

The SPEAKER. The Clerk will report the amendment.

The Clerk read as follows:

Amendment offered by Mr. BECERRA:

That Drew Hammill of the District of Columbia be, and is hereby, chosen Clerk of the House of Representatives;

That Wendell Primus of the Commonwealth of Virginia be, and is hereby, chosen Sergeant-at-Arms of the House of Representatives; and

That Nadeam Elshami of the Commonwealth of Virginia be, and is hereby, chosen Chief Administrative Officer of the House of Representatives.

The SPEAKER. The question is on the amendment offered by the gentleman from California.

The amendment was rejected.

The SPEAKER. The question is on the remainder of the resolution offered by the gentlewoman from Washington.

The remainder of the resolution was agreed to.

A motion to reconsider was laid on the table.

The SPEAKER. The Chair will now swear in the officers of the House.

The officers presented themselves in the well of the House and took the oath of office as follows:

Do you solemnly swear that you will support and defend the Constitution of the United States against all enemies, foreign and domestic; that you will bear true faith and allegiance to the same; that you take this obligation freely, without any mental reservation or purpose of evasion; and that you will well and faithfully discharge the duties of the office on which you are about to enter, so help you God.

The SPEAKER. Congratulations.

TO INFORM THE SENATE THAT A QUORUM OF THE HOUSE HAS ASSEMBLED AND OF THE ELECTION OF THE SPEAKER AND THE CLERK

Mr. MCCARTHY. Mr. Speaker, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 2

Resolved, That the Senate be informed that a quorum of the House of Representatives has assembled; that John A. Boehner, a Representative from the State of Ohio, has been elected Speaker; and that Karen L. Haas, a citizen of the State of Maryland, has been elected Clerk of the House of Representatives of the One Hundred Fourteenth Congress.

The resolution was agreed to.

A motion to reconsider was laid on the table.

AUTHORIZING THE SPEAKER TO APPOINT A COMMITTEE TO NOTIFY THE PRESIDENT OF THE ASSEMBLY OF THE CONGRESS

Mr. MCCARTHY. Mr. Speaker, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 3

Resolved, That a committee of two Members be appointed by the Speaker on the part of the House of Representatives to join with a committee on the part of the Senate to notify the President of the United States that a quorum of each House has assembled and Congress is ready to receive any communication that he may be pleased to make.

The resolution was agreed to.

A motion to reconsider was laid on the table.

APPOINTMENT AS MEMBERS OF COMMITTEE TO NOTIFY THE PRESIDENT, PURSUANT TO HOUSE RESOLUTION 3

The SPEAKER pro tempore. Pursuant to House Resolution 3, the Chair announces the Speaker's appointment of the following Members to the committee on the part of the House to join a committee on the part of the Senate to notify the President of the United States that a quorum of each House has assembled and that Congress is ready to receive any communication that he may be pleased to make:

The gentleman from California (Mr. MCCARTHY) and

The gentlewoman from California (Ms. PELOSI).

AUTHORIZING THE CLERK TO INFORM THE PRESIDENT OF THE ELECTION OF THE SPEAKER AND THE CLERK

Mr. LEWIS. Mr. Speaker, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 4

Resolved, That the Clerk be instructed to inform the President of the United States that the House of Representatives has elected John A. Boehner, a Representative from the State of Ohio as Speaker, and Karen L. Haas, a citizen of the State of Maryland as Clerk, of the House of Representatives of the One Hundred Fourteenth Congress.

The resolution was agreed to.

A motion to reconsider was laid on the table.

RULES OF THE HOUSE

Mr. MCCARTHY. Mr. Speaker, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 5

Resolved, That the Rules of the House of Representatives of the One Hundred Thirteenth Congress, including applicable provisions of law or concurrent resolution that constituted rules of the House at the end of the One Hundred Thirteenth Congress, are adopted as the Rules of the House of Representatives of the One Hundred Fourteenth Congress, with amendments to the standing rules as provided in section 2, and with other orders as provided in sections 3, 4, and 5.

SEC. 2. CHANGES TO THE STANDING RULES.

(a) COMMITTEES.—

(1) DISCLOSURE OF FOREIGN PAYMENTS TO WITNESSES.—Amend clause 2(g)(5) of rule XI to read as follows:

''(5)(A) Each committee shall, to the greatest extent practicable, require witnesses who appear before it to submit in advance written statements of proposed testimony and to limit their initial presentations to the committee to brief summaries thereof.

''(B) In the case of a witness appearing in a nongovernmental capacity, a written statement of proposed testimony shall include a curriculum vitae and a disclosure of any Federal grants or contracts, or contracts or payments originating with a foreign government, received during the current calendar year or either of the two previous calendar years by the witness or by an entity represented by the witness and related to the subject matter of the hearing.

''(C) The disclosure referred to in subdivision (B) shall include—

''(i) the amount and source of each Federal grant (or subgrant thereof) or contract (or subcontract thereof) related to the subject matter of the hearing; and

''(ii) the amount and country of origin of any payment or contract related to the subject matter of the hearing originating with a foreign government.

''(D) Such statements, with appropriate redactions to protect the privacy or security of the witness, shall be made publicly available in electronic form not later than one day after the witness appears.''.

(2) JURISDICTIONAL CHANGES.—

(A) COMMITTEE ON THE JUDICIARY.—In clause 1(l)(7) of rule X, insert before the period ''and criminalization''.

(B) COMMITTEE ON APPROPRIATIONS.—In clause 1(b) of rule X, add the following:

''(5) Bills and joint resolutions that provide new budget authority, limitation on the use of funds, or other authority relating to new direct loan obligations and new loan guarantee commitments referencing section 504(b) of the Congressional Budget Act of 1974.''.

(3) CLARIFYING THE JURISDICTION OF THE COMMITTEE ON HOUSE ADMINISTRATION.—

(A) Clause 4(d)(1)(A) of rule X is amended by striking ''for the'' and inserting ''for the Chief Administrative Officer and the''.

(B) Clause 4(a) of rule II is amended by striking ''the oversight'' and inserting ''the policy direction and oversight''.

(4) COMMITTEE ACTIVITY REPORTS.—In clause 1(d) of rule XI—

(A) in subparagraph (1), insert ''odd-numbered'' after ''each'';

(B) in subparagraph (2)(A), strike ''applicable period'' and insert ''Congress'';

(C) in subparagraph (2)(B), strike ''in the case of the first such report in each Congress,''; and

(D) in subparagraph (3), strike ''a regular session of Congress, or after December 15'' and insert ''the last regular session of a Congress, or after December 15 of an even-numbered year''.

(5) DISSENTING VIEWS.—In the standing rules, strike ''supplemental, minority, or additional'' each place it appears and insert (in each instance) ''supplemental, minority, additional, or dissenting''.

(6) CONSOLIDATING REQUIREMENTS FOR WRITTEN RULES.—

(A) In clause 2(a)(1) of rule XI—

(i) in subdivision (B) after the semicolon, strike ''and'';

(ii) in subdivision (C), strike the period and insert ''; and''; and

(iii) add the following new subdivision:

''(D) shall include provisions to govern the implementation of clause 4 as provided in paragraph (f) of such clause.''.

(B) In clause 4(f) of rule XI, strike ''Each committee shall adopt written rules to govern its implementation of this clause. Such rules shall contain provisions to the following effect'' and insert ''Written rules adopted by each committee pursuant to clause 2(a)(1)(D) shall contain provisions to the following effect''.

(7) CONFORMING COMMITTEE AND HOUSE BROADCAST STANDARDS.—In clause 4(b) of rule XI, strike ''used, or made available for use, as partisan political campaign material to promote or oppose the candidacy of any person for elective public office'' and insert ''used for any partisan political campaign purpose or be made available for such use''.

(8) ELIMINATING THE POINT OF ORDER AGAINST CONSIDERING APPROPRIATIONS MEASURES WITHOUT PRINTED HEARINGS.—In clause 4 of rule XIII, strike paragraph (c).

(9) PERMANENT SELECT COMMITTEE ON INTELLIGENCE.—In clause 11(a)(1) of rule X, strike ''20'' and insert ''22'' and strike ''12'' and insert ''13''.

(10) COMMITTEE ON ETHICS.—Clause 3 of rule XI of the Rules of the House of Representatives is amended by adding at the end the following new paragraph:

''(s) The committee may not take any action that would deny any person any right or protection provided under the Constitution of the United States.''.

(b) BIPARTISAN LEGAL ADVISORY GROUP.—Amend clause 8 of rule II to read as follows:

''8.(a) There is established an Office of General Counsel for the purpose of providing legal assistance and representation to the House. Legal assistance and representation shall be provided without regard to political affiliation. The Speaker shall appoint and set the annual rate of pay for employees of the Office of General Counsel. The Office of General Counsel shall function pursuant to the direction of the Speaker, who shall consult with the Bipartisan Legal Advisory Group.

''(b) There is established a Bipartisan Legal Advisory Group composed of the Speaker and the majority and minority leaderships. Unless otherwise provided by the House, the Bipartisan Legal Advisory Group speaks for, and articulates the institutional position of, the House in all litigation matters.''.

(c) COST ESTIMATES FOR MAJOR LEGISLATION TO INCORPORATE MACROECONOMIC EFFECTS.—

(1) Amend rule XIII by adding the following:

''Estimates of major legislation

''8.(a) An estimate provided by the Congressional Budget Office under section 402 of the Congressional Budget Act of 1974 for any major legislation shall, to the extent practicable, incorporate the budgetary effects of changes in economic output, employment, capital stock, and other macroeconomic variables resulting from such legislation.

''(b) An estimate provided by the Joint Committee on Taxation to the Director of the Congressional Budget Office under section 201(f) of the Congressional Budget Act of 1974 for any major legislation shall, to the extent practicable, incorporate the budgetary effects of changes in economic output,

employment, capital stock, and other macroeconomic variables resulting from such legislation.

''(c) An estimate referred to in this clause shall, to the extent practicable, include—

''(1) a qualitative assessment of the budgetary effects (including macroeconomic variables described in paragraphs (a) and (b)) of such legislation in the 20-fiscal year period beginning after the last fiscal year of the most recently agreed to concurrent resolution on the budget that set forth appropriate levels required by section 301 of the Congressional Budget Act of 1974; and

''(2) an identification of the critical assumptions and the source of data underlying that estimate.

''(d) As used in this clause—

''(1) the term 'major legislation' means any bill or joint resolution—

''(A) for which an estimate is required to be prepared pursuant to section 402 of the Congressional Budget Act of 1974 and that causes a gross budgetary effect (before incorporating macroeconomic effects) in any fiscal year over the years of the most recently agreed to concurrent resolution on the budget equal to or greater than 0.25 percent of the current projected gross domestic product of the United States for that fiscal year; or

''(B) designated as such by the chair of the Committee on the Budget for all direct spending legislation other than revenue legislation or the Member who is chair or vice chair, as applicable, of the Joint Committee on Taxation for revenue legislation; and

''(2) the term 'budgetary effects' means changes in revenues, outlays, and deficits.''.

(2) Amend clause 3(h) of rule XIII—

(A) by striking ''(1)'', by striking ''(A)'' and inserting ''(1)'', and by striking ''(B)'' and inserting ''(2)''; and

(B) by striking subparagraph (2).

(d) PROVIDING FOR RECONVENING AUTHORITY FOR THE HOUSE OF REPRESENTATIVES.—In clause 12 of rule I, add the following:

''(e) During any recess or adjournment of not more than three days, if in the opinion of the Speaker the public interest so warrants, then the Speaker, after consultation with the Minority Leader, may reconvene the House at a time other than that previously appointed, within the limits of clause 4, section 5, article I of the Constitution, and notify Members accordingly.

''(f) The Speaker may name a designee for purposes of paragraphs (c), (d), and (e).''.

(e) PROVIDING CONFERENCE COMMITTEES WITH TIME TO REACH AGREEMENT.—In clause 7(c)(1) of rule XXII, strike ''20'' and insert ''45'' and strike ''10'' and insert ''25''.

(f) CONTENTS OF COMMITTEE REPORTS SHOWING CHANGES TO EXISTING LAW.—Clause 3(e)(1) of rule XIII is amended by striking ''accompanying document—'' and all that follows and inserting ''accompanying document—

''(A) the entire text of each section of a statute that is proposed to be repealed or amended; and

''(B) a comparative print of each amendment to a section of a statute that the bill or joint resolution proposes to make, showing by appropriate typographical devices the omissions and insertions proposed.''.

(g) MANDATORY ETHICS TRAINING FOR NEW MEMBERS.—Clause 3(a)(6)(B)(i) of rule XI is amended by striking ''new officer or employee'' and inserting ''new Member, Delegate, Resident Commissioner, officer, or employee''.

(h) TECHNICAL AND CONFORMING CHANGES.—

(1) UPDATING REFERENCES TO THE JOINT COMMITTEE ON TAXATION.—

(A) In clause 3(h) of rule XIII, strike ''Joint Committee on Internal Revenue Taxation'' each place it appears and insert (in each instance) ''Joint Committee on Taxation''; and

(B) In clause 11(a) of rule XXII, strike ''Joint Committee on Internal Revenue Taxation'' and insert ''Joint Committee on Taxation''.

(2) UPDATING CROSS-REFERENCES.—

(A) In clause 2(i)(2) of rule II, strike ''31b-5'' and insert ''5128''.

(B) In clause 3 of rule XXVI, strike ''pursuant to clause 1'' and insert ''by August 1 of each year''.

SEC. 3. SEPARATE ORDERS.

(a) INDEPENDENT PAYMENT ADVISORY BOARD.—Section 1899A(d) of the Social Security Act shall not apply in the One Hundred Fourteenth Congress.

(b) STAFF DEPOSITION AUTHORITY FOR CERTAIN COMMITTEES.—

(1) During the first session of the One Hundred Fourteenth Congress, the chair of a committee designated in paragraph (3), upon consultation with the ranking minority member of such committee, may order the taking of depositions, including pursuant to subpoena, by a member or counsel of such committee.

(2) Depositions taken under the authority prescribed in this subsection shall be subject to regulations issued by the chair of the Committee on Rules and printed in the Congressional Record.

(3) The committees referred to in paragraph (1) are as follows: the Committee on Energy and Commerce, the Committee on Financial Services, the Committee on Science, Space, and Technology, and the Committee on Ways and Means.

(c) PROVIDING FOR TRANSPARENCY WITH RESPECT TO MEMORIALS SUBMITTED PURSUANT TO ARTICLE V OF THE CONSTITUTION OF THE UNITED STATES.—With respect to any memorial presented under clause 3 of rule XII purporting to be an application of the legislature of a State calling for a convention for proposing amendments to the Constitution of the United States pursuant to Article V, or a rescission of any such prior application—

(1) the chair of the Committee on the Judiciary shall, in the case of such a memorial presented in the One Hundred Fourteenth Congress, and may, in the case of such a memorial presented prior to the One Hundred Fourteenth Congress, designate any such memorial for public availability by the Clerk; and

(2) the Clerk shall make such memorials as are designated pursuant to paragraph (1) publicly available in electronic form, organized by State of origin and year of receipt.

(d) SPENDING REDUCTION AMENDMENTS IN APPROPRIATIONS BILLS.—

(1) During the reading of a general appropriation bill for amendment in the Committee of the Whole House on the state of the Union, it shall be in order to consider en bloc amendments proposing only to transfer appropriations from an object or objects in the bill to a spending reduction account. When considered en bloc under this paragraph, such amendments may amend portions of the bill not yet read for amendment (following disposition of any points of order against such portions) and are not subject to a demand for division of the question in the House or in the Committee of the Whole.

(2) Except as provided in paragraph (1), it shall not be in order to consider an amendment to a spending reduction account in the House or in the Committee of the Whole House on the state of the Union.

(3) It shall not be in order to consider an amendment to a general appropriation bill proposing a net increase in budget authority in the bill (unless considered en bloc with another amendment or amendments proposing an equal or greater decrease in such budget authority pursuant to clause 2(f) of rule XXI).

(4) A point of order under clause 2(b) of rule XXI shall not apply to a spending reduction account.

(5) A general appropriation bill may not be considered in the Committee of the Whole House on the state of the Union unless it includes a spending reduction account as the last section of the bill. An order to report a general appropriation bill to the House shall constitute authority for the chair of the Committee on Appropriations to add such a section to the bill or modify the figure contained therein.

(6) For purposes of this subsection, the term ''spending reduction account'' means an account in a general appropriation bill that bears that caption and contains only a recitation of the amount by which an applicable allocation of new budget authority under section 302(b) of the Congressional Budget Act of 1974 exceeds the amount of new budget authority proposed by the bill.

(e) BUDGET MATTERS.—

(1)(A) During the first session of the One Hundred Fourteenth Congress, pending the adoption of a concurrent resolution on the budget for fiscal year 2015—

(i) the provisions of titles III, IV, and VI of House Concurrent Resolution 25, One Hundred Thirteenth Congress, as adopted by the House, shall have force and effect in the House as though Congress has adopted such concurrent resolution;

(ii) the allocations, aggregates, and other appropriate levels as contained in the statement of the chair of the Committee on the Budget of the House of Representatives in the Congressional Record of April 29, 2014, as adjusted in the One Hundred Thirteenth Congress, shall be considered for all purposes in the House to be the allocations, aggregates, and other appropriate levels under titles III and IV of the Congressional Budget Act of 1974;

(iii) all references in titles IV and VI of House Concurrent Resolution 25, One Hundred Thirteenth Congress, to a fiscal year shall be considered for all purposes in the House to be references to the succeeding fiscal year; and

(iv) all references in titles IV and VI of House Concurrent Resolution 25, One Hundred Thirteenth Congress, to allocations, aggregates, or other appropriate levels in ''this concurrent resolution'' (or, in the case of section 408 of such concurrent resolution, ''this resolution'') shall be considered for all purposes in the House to be references to the allocations, aggregates, or other appropriate levels contained in the statement of the chair of the Committee on the Budget of the House of Representatives printed in the Congressional Record of April 29, 2014, as adjusted in the One Hundred Thirteenth Congress.

(B) The chair of the Committee on the Budget may revise the allocations, aggregates, and other appropriate levels provided for in subparagraph (A)(ii) for any bill or joint resolution, or amendment thereto or conference report thereon, if such measure maintains the solvency of the Highway Trust Fund, but only if such measure would not increase the deficit over the period of fiscal years 2015 through 2025.

(C) The chair of the Committee on the Budget may revise the allocations, aggregates, and other appropriate levels provided for in subparagraph (A)(ii) to take into account the most recent baseline published by the Congressional Budget Office.

(2)(A) During the One Hundred Fourteenth Congress, except as provided in subparagraph (C), a motion that the Committee of the Whole rise and report a bill to the House shall not be in order if the bill, as amended,

exceeds an applicable allocation of new budget authority under section 302(b) of the Congressional Budget Act of 1974, as estimated by the Committee on the Budget.

(B) If a point of order under subparagraph (A) is sustained, the Chair shall put the question: ''Shall the Committee of the Whole rise and report the bill to the House with such amendments as may have been adopted notwithstanding that the bill exceeds its allocation of new budget authority under section 302(b) of the Congressional Budget Act of 1974?''. Such question shall be debatable for 10 minutes equally divided and controlled by a proponent of the question and an opponent but shall be decided without intervening motion.

(C) Subparagraph (A) shall not apply—

(i) to a motion offered under clause 2(d) of rule XXI; or

(ii) after disposition of a question under subparagraph (B) on a given bill.

(D) If a question under subparagraph (B) is decided in the negative, no further amendment shall be in order except—

(i) one proper amendment, which shall be debatable for 10 minutes equally divided and controlled by the proponent and an opponent, shall not be subject to amendment, and shall not be subject to a demand for division of the question in the House or in the Committee of the Whole; and

(ii) pro forma amendments, if offered by the chair or ranking minority member of the Committee on Appropriations or their designees, for the purpose of debate.

(f) CONTINUING LITIGATION AUTHORITIES.—

(1) OVERSIGHT AND GOVERNMENT REFORM AND THE OFFICE OF GENERAL COUNSEL.—

(A) The House authorizes—

(i) the Committee on Oversight and Government Reform of the One Hundred Fourteenth Congress to act as the successor in interest to the Committee on Oversight and Government Reform of the One Hundred Thirteenth Congress and the One Hundred Twelfth Congress with respect to the civil action Committee on Oversight and Government Reform, United States House of Representatives v. Eric H. Holder, Jr., in his official capacity as Attorney General of the United States, filed by the Committee on Oversight and Government Reform in the One Hundred Twelfth Congress pursuant to House Resolution 706; and

(ii) the chair of the Committee on Oversight and Government Reform (when elected), on behalf of the Committee on Oversight and Government Reform, and the Office of General Counsel to take such steps as may be appropriate to ensure continuation of such civil action, including amending the complaint as circumstances may warrant.

(B) The House authorizes the chair of the Committee on Oversight and Government Reform (when elected), on behalf of the Committee on Oversight and Government Reform and until such committee has adopted rules pursuant to clause 2(a) of rule XI, to issue subpoenas related to the investigation into the United States Department of Justice operation known as ''Fast and Furious'' and related matters.

(C) The House authorizes the chair of the Committee on Oversight and Government Reform (when elected), on behalf of the Committee on Oversight and Government Reform, and the Office of General Counsel to petition to join as a party to the civil action referenced in paragraph (1) any individual subpoenaed by the Committee on Oversight and Government Reform of the One Hundred Thirteenth Congress or the One Hundred Twelfth Congress as part of its investigation into the United States Department of Justice operation known as ''Fast and Furious'' and related matters who failed to comply with such subpoena, or any successor to such individual.

(D) The House authorizes the chair of the Committee on Oversight and Government Reform (when elected), on behalf of the Committee on Oversight and Government Reform, and the Office of General Counsel, at the authorization of the Speaker after consultation with the Bipartisan Legal Advisory Group, to initiate judicial proceedings concerning the enforcement of subpoenas issued to such individuals.

(2) THE HOUSE OF REPRESENTATIVES AND THE OFFICE OF GENERAL COUNSEL.—

(A) The House of Representatives of the One Hundred Fourteenth Congress is authorized to act as the successor in interest to the House of Representatives of the One Hundred Thirteenth Congress with respect to the civil action United States House of Representatives v. Sylvia Mathews Burwell, in her official capacity as the Secretary of the United States Department of Health and Human Services, et al., filed by the House of Representatives in the One Hundred Thirteenth Congress pursuant to House Resolution 676; and

(B) The House authorizes the Speaker, on behalf of the House of Representatives, and the Office of General Counsel to take such steps as may be appropriate to ensure continuation of such civil action, including amending the complaint as circumstances may warrant.

(C) The authorities provided by House Resolution 676 of the One Hundred Thirteenth Congress remain in full force and effect in the One Hundred Fourteenth Congress.

(3) AUTHORITY TO PROVIDE TESTIMONY.—The House authorizes Michael W. Sheehy to provide testimony in the criminal action United States v. Jeffrey Sterling in accordance with the authorizations provided to Mr. Sheehy by the Permanent Select Committee on Intelligence of the One Hundred Thirteenth Congress and the One Hundred Twelfth Congress.

(g) DUPLICATION OF FEDERAL PROGRAMS.—

(1) The chair of a committee may request that the Government Accountability Office perform a duplication analysis of any bill or joint resolution referred to that committee. Any such analysis shall assess whether, and the extent to which, the bill or joint resolution creates a new Federal program, office, or initiative that duplicates or overlaps with any existing Federal program, office, or initiative.

(2) The report of a committee on a bill or joint resolution that establishes or reauthorizes a program of the Federal Government shall include a statement, as though under clause 3(c) of rule XIII, indicating whether any such program is known to be duplicative of another such program. The statement shall at a minimum explain whether—

(A) any such program was included in any report from the Government Accountability Office to Congress pursuant to section 21 of Public Law 111-139; or

(B) the most recent Catalog of Federal Domestic Assistance, published pursuant to the Federal Program Information Act (Public Law 95-220, as amended by Public Law 98-169), identified other programs related to the program established or reauthorized by the measure.

(h) ESTIMATES OF DIRECT SPENDING.—

(1) It shall not be in order to consider any concurrent resolution on the budget, or amendment thereto or conference report thereon, unless it contains a separate heading entitled ''Direct Spending'', which shall include a category for ''Means-Tested Direct Spending'' and a category for ''Nonmeans-Tested Direct Spending'' and sets forth—

(A) the average rate of growth for each category in the total amount of outlays during the 10-year period preceding the budget year;

(B) estimates for each such category under current law for the period covered by the concurrent resolution; and

(C) information on proposed reforms in such categories.

(2) Before the consideration of a concurrent resolution on the budget by the Committee on the Budget for a fiscal year, the chair of the Committee on the Budget shall submit for printing in the Congressional Record a description of programs which shall be considered means-tested direct spending and nonmeans-tested direct spending for purposes of this subsection.

(i) DISCLOSURE OF DIRECTED RULEMAKINGS.—

(1) The report of a committee on a bill or joint resolution shall include a statement, as though under clause 3(c) of rule XIII, estimating the number of directed rule makings required by the measure.

(2) For purposes of this subparagraph, the term ''directed rule making'' means a specific rule making within the meaning of section 551 of title 5, United States Code, specifically directed to be completed by a provision in the measure, but does not include a grant of discretionary rule making authority.

(j) SUBCOMMITTEES.—Notwithstanding clause 5(d) of rule X, during the One Hundred Fourteenth Congress—

(1) the Committee on Agriculture may have not more than six subcommittees;

(2) the Committee on Armed Services may have not more than seven subcommittees;

(3) the Committee on Foreign Affairs may have not more than seven subcommittees; and

(4) the Committee on Transportation and Infrastructure may have not more than six subcommittees.

(k) EXERCISE FACILITIES FOR FORMER MEMBERS.—During the One Hundred Fourteenth Congress—

(1) The House of Representatives may not provide access to any exercise facility which is made available exclusively to Members and former Members, officers and former officers of the House of Representatives, and their spouses to any former Member, former officer, or spouse who is a lobbyist registered under the Lobbying Disclosure Act of 1995 or any successor statute or agent of a foreign principal as defined in clause 5 of rule XXV. For purposes of this section, the term ''Member'' includes a Delegate or Resident Commissioner to the Congress.

(2) The Committee on House Administration shall promulgate regulations to carry out this subsection.

(l) NUMBERING OF BILLS.—In the One Hundred Fourteenth Congress, the first 10 numbers for bills (H.R. 1 through H.R. 10) shall be reserved for assignment by the Speaker and the second 10 numbers for bills (H.R. 11 through H.R. 20) shall be reserved for assignment by the Minority Leader.

(m) INCLUSION OF CITATIONS FOR PROPOSED REPEALS AND AMENDMENTS.—To the maximum extent practicable and consistent with established drafting conventions, an instruction in a bill or joint resolution proposing to repeal or amend any law or part thereof not contained in a codified title of the United States Code shall include, in parentheses immediately following the designation of the matter proposed to be repealed or amended, the applicable United States Code citation (which may be a note in the United States Code), or, if no such citation is available, an appropriate alternative citation to the applicable law or part.

(n) BROADENING AVAILABILITY OF LEGISLATIVE DOCUMENTS IN MACHINE READABLE FORMATS.—The Committee on House Administration, the Clerk, and other officers and officials of the House shall continue efforts to broaden the availability of legislative documents in machine readable formats in the One Hundred Fourteenth Congress in furtherance of the institutional priority of improving public availability and use of legislative information produced by the House and its committees.

(o) TEMPORARY DESIGNATION.—Pending the designation of a location by the Committee on House Administration pursuant to clause 3 of rule XXIX, documents may be made publicly available in electronic form at an electronic document repository operated by the Clerk.

(p) CONGRESSIONAL MEMBER ORGANIZATION TRANSPARENCY REFORM.—

(1) PAYMENT OF SALARIES AND EXPENSES THROUGH ACCOUNT OF ORGANIZATION.—A Member of the House of Representatives and an eligible Congressional Member Organization may enter into an agreement under which—

(A) an employee of the Member's office may carry out official and representational duties of the Member by assignment to the Organization; and

(B) to the extent that the employee carries out such duties under the agreement, the Member shall transfer the portion of the Members' Representation Allowance of the Member which would otherwise be used for the salary and related expenses of the employee to a dedicated account in the House of Representatives which is administered by the Organization, in accordance with the regulations promulgated by the Committee on House Administration under paragraph (2).

(2) REGULATIONS.—The Committee on House Administration (hereafter referred to as the ''Committee'') shall promulgate regulations as follows:

(A) USE OF MRA.—Pursuant to the authority of section 101(d) of the House of Representatives Administrative Reform Technical Corrections Act (2 U.S.C. 5341(d)), the Committee shall prescribe regulations to provide that an eligible Congressional Member Organization may use the amounts transferred to the Organization's dedicated account under paragraph (1)(B) for the same purposes for which a Member of the House of Representatives may use the Members' Representational Allowance, except that the Organization may not use such amounts for franked mail, official travel, or leases of space or vehicles.

(B) MAINTENANCE OF LIMITATIONS ON NUMBER OF SHARED EMPLOYEES.—Pursuant to the authority of section 104(d) of the House of Representatives Administrative Reform Technical Corrections Act (2 U.S.C. 5321(d)), the Committee shall prescribe regulations to provide that an employee of the office of a Member of the House of Representatives who is covered by an agreement entered into under paragraph (1) between the Member and an eligible Congressional Member Organization shall be considered a shared employee of the Member's office and the Organization for purposes of such section, and shall include in such regulations appropriate accounting standards to ensure that a Member of the House of Representatives who enters into an agreement with such an Organization under paragraph (1) does not employ more employees than the Member is authorized to employ under such section.

(C) PARTICIPATION IN STUDENT LOAN REPAYMENT PROGRAM.—Pursuant to the authority of section 105(b) of the Legislative Branch Appropriations Act, 2003 (2 U.S.C. 4536(b)), relating to the student loan repayment program for employees of the House, the Committee shall promulgate regulations to provide that, in the case of an employee who is covered by an agreement entered into under paragraph (1) between a Member of the House of Representatives and an eligible Congressional Member Organization and who participates in such program while carrying out duties under the agreement—

(i) any funds made available for making payments under the program with respect to the employee shall be transferred to the Organization's dedicated account under paragraph (1)(B); and

(ii) the Organization shall use the funds to repay a student loan taken out by the employee, under the same terms and conditions which would apply under the program if the Organization were the employing office of the employee.

(D) ACCESS TO HOUSE SERVICES.—The Committee shall prescribe regulations to ensure that an eligible Congressional Member Organization has appropriate access to services of the House.

(E) OTHER REGULATIONS.—The Committee shall promulgate such other regulations as may be appropriate to carry out this subsection.

(3) ELIGIBLE CONGRESSIONAL MEMBER ORGANIZATION DEFINED.—In this subsection, the term ''eligible Congressional Member Organization'' means, with respect to the One Hundred Fourteenth Congress, an organization meeting each of the following requirements:

(A) The organization is registered as a Congressional Member Organization with the Committee on House Administration.

(B) The organization designates a single Member of the House of Representatives to be responsible for the administration of the organization, including the administration of the account administered under paragraph (1)(B), and includes the identification of such Member with the statement of organization that the organization files and maintains with the Committee on House Administration.

(C) At least 3 employees of the House are assigned to work for the organization.

(D) During the One Hundred Thirteenth Congress, at least 30 Members of the House of Representatives used a portion of the Members' Representational Allowance of the Member for the salary and related expenses of an employee who was a shared employee of the Member's office and the organization.

(E) The organization files a statement with the Committee on House Administration and the Chief Administrative Officer of the House of Representatives certifying that it will administer an account in accordance with paragraph (1)(B).

(q) SOCIAL SECURITY SOLVENCY.—

(1) POINT OF ORDER.—During the One Hundred Fourteenth Congress, it shall not be in order to consider a bill or joint resolution, or an amendment thereto or conference report thereon, that reduces the actuarial balance by at least .01 percent of the present value of future taxable payroll of the Federal Old-Age and Survivors Insurance Trust Fund established under section 201(a) of the Social Security Act for the 75-year period utilized in the most recent annual report of the Board of Trustees provided pursuant to section 201(c)(2) of the Social Security Act.

(2) EXCEPTION.—Paragraph (1) shall not apply to a measure that would improve the actuarial balance of the combined balance in the Federal Old-Age and Survivors Insurance Trust Fund and the Federal Disability Insurance Trust Fund for the 75-year period utilized in the most recent annual report of the Board of Trustees provided pursuant to section 201(c)(2) of the Social Security Act.

SEC. 4. COMMITTEES, COMMISSIONS, AND HOUSE OFFICES.

(a) SELECT COMMITTEE ON THE EVENTS SURROUNDING THE 2012 TERRORIST ATTACK IN BENGHAZI.—House Resolution 567, One Hundred Thirteenth Congress, shall apply in the same manner as such resolution applied in the One Hundred Thirteenth Congress, except that notwithstanding clause 2(j)(2)(A) of rule XI, the Select Committee on the Events Surrounding the 2012 Terrorist Attack in Benghazi may adopt a rule or motion permitting members of the select committee to question a witness for ten minutes until such time as each member of the select committee who so desires has had an opportunity to question such witness.

(b) HOUSE DEMOCRACY PARTNERSHIP.—House Resolution 24, One Hundred Tenth Congress, shall apply in the One Hundred Fourteenth Congress in the same manner as such resolution applied in the One Hundred Tenth Congress except that the commission concerned shall be known as the House Democracy Partnership.

(c) TOM LANTOS HUMAN RIGHTS COMMISSION.—Sections 1 through 7 of House Resolution 1451, One Hundred Tenth Congress, shall apply in the One Hundred Fourteenth Congress in the same manner as such provisions applied in the One Hundred Tenth Congress, except that—

(1) the Tom Lantos Human Rights Commission may, in addition to collaborating closely with other professional staff members of the Committee on Foreign Affairs, collaborate closely with professional staff members of other relevant committees; and

(2) the resources of the Committee on Foreign Affairs which the Commission may use shall include all resources which the Committee is authorized to obtain from other offices of the House of Representatives.

(d) OFFICE OF CONGRESSIONAL ETHICS.—Section 1 of House Resolution 895, One Hundred Tenth Congress, shall apply in the One Hundred Fourteenth Congress in the same manner as such provision applied in the One Hundred Tenth Congress, except that—

(1) the Office of Congressional Ethics shall be treated as a standing committee of the House for purposes of section 202(i) of the Legislative Reorganization Act of 1946 (2 U.S.C. 72a(i));

(2) references to the Committee on Standards of Official Conduct shall be construed as references to the Committee on Ethics;

(3) the second sentence of section 1(b)(6)(A) shall not apply;

(4) members subject to section 1(b)(6)(B) may be reappointed for a second additional term;

(5) any individual who is the subject of a preliminary review or second-phase review by the board shall be informed of the right to be represented by counsel and invoking that right should not be held negatively against them; and

(6) the Office may not take any action that would deny any person any right or protection provided under the Constitution of the United States.

SEC. 5. ORDER OF BUSINESS.

The Speaker may recognize a Member for the reading of the Constitution on any legislative day through January 16, 2015.

Mr. MCCARTHY (during the reading). Mr. Speaker, I ask unanimous consent that the resolution be considered as read and printed in the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

MOTION TO REFER

Ms. NORTON. Mr. Speaker, I rise to offer a motion that is at the desk.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Ms. NORTON moves to refer the resolution to a select committee of five members, to be appointed by the Speaker, not more than three of whom shall be from the same political party, with instructions not to report back the same until it has conducted a full and complete study of, and made a determination on, whether there is any reason to deny Delegates voting rights in the Committee of the Whole House on the state of the Union in light of the decision of the United States Court of Appeals for the District of Columbia in Michel v. Anderson (14 F.3d 623 (D.C. Cir. 1994)) upholding the constitutionality of such voting rights, and the inclusion of such voting rights in the Rules for the 103rd, 110th and 111th Congresses.

MOTION TO TABLE

Mr. MCCARTHY. Mr. Speaker, I have a motion to table at the desk.

The SPEAKER pro tempore. The Clerk will report the motion to table.

The Clerk read as follows:

Mr. MCCARTHY moves to lay on the table the motion to refer.

The SPEAKER pro tempore. The question is on the motion to table.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. NORTON. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 230, nays 160, not voting 43, as follows:

[Roll No. 3]

YEAS—230

Abraham
Aderholt
Allen
Amash
Amodei
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emmer
Farenthold
Fincher
Fitzpatrick
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice (GA)
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mooney (WV)
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Thompson (PA)
Thornberry
Tiberi
Tipton
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—160

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carson (IN)
Castor (FL)
Castro (TX)
Chu (CA)
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle (PA)
Duckworth
Edwards
Ellison
Eshoo
Esty
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Gutiérrez
Hahn
Hastings
Heck (WA)
Himes
Hinojosa
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu (CA)
Lipinski
Loebsack
Lofgren
Lowenthal
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Matsui
McCollum
McDermott
McGovern
McNerney
Moore
Moulton
Napolitano
Neal
Norcross
O'Rourke
Pallone
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Quigley
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Visclosky
Walz
Wasserman Schultz
Wilson (FL)
Yarmuth

NOT VOTING—21

Babin
Bishop (UT)
Carney
Carter (GA)
Cartwright
Crawford
Farr
Fleischmann
Granger
Grijalva
Grothman
Honda
Loudermilk
Murphy (FL)
Nugent
Pascrell
Sewell (AL)
Sinema
Stutzman
Trott
Watson Coleman

□ 1507

Mr. RATCLIFFE changed his vote from ''nay'' to ''yea.''

So the motion to table was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated for:

Mr. CARTER of Georgia. Mr. Speaker, on rollcall No. 3, I was unavoidably detained. Had I been present, I would have voted "yes."

Mr. TROTT. Mr. Speaker, on rollcall No. 3, I was unavoidably detained. Had I been present, I would have voted "yes."

Mr. GROTHMAN. Mr. Speaker, on rollcall No. 3, had I been present, I would have voted "yes."

Stated against:

Mrs. WATSON COLEMAN. Mr. Speaker, on rollcall No. 3, I was detained in meeting. Had I been present, I would have voted "no."

PERSONAL EXPLANATION

Mr. PRICE of North Carolina. Mr. Speaker, because of inclement weather and two grounded flights, I was unable to vote during rollcall 2—Electing the Speaker of the House of Representatives. I would have proudly voted for Congresswoman NANCY PELOSI of California for Speaker of the House of Representatives.

I was also unable to vote during rollcall vote 3—Motion to Table. Had I been present, I would have voted against the Motion to Table.

The SPEAKER pro tempore (Mr. WOMACK). The gentleman from California (Mr. MCCARTHY) is recognized for 1 hour.

Mr. MCCARTHY. Mr. Speaker, I yield the hour to the gentleman from Texas (Mr. SESSIONS), and I ask unanimous consent that he be permitted to control that time.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

Mr. SESSIONS. Mr. Speaker, I want to thank the gentleman from California (Mr. MCCARTHY), the majority leader.

Mr. Speaker, for the purpose of debate only, I yield the customary 30 minutes to the gentlewoman from Rochester, New York (Ms. SLAUGHTER). During consideration of this resolution, all time yielded is for the purpose of debate only.

GENERAL LEAVE

Mr. SESSIONS. Mr. Speaker, I ask unanimous consent that all Members have 5 legislative days to revise and extend their remarks.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

Mr. SESSIONS. Mr. Speaker, I yield 1 minute to the gentleman from California (Mr. MCCARTHY), the distinguished majority leader.

Mr. MCCARTHY. Mr. Speaker, I thank the gentleman for yielding, but I

also want to thank Chairman SESSIONS for the hard work he has done in putting the rules package together today.

Today, the House will adopt these rules to govern the 114th Congress and dictate how this House will function over the next 2 years. As you will hear over the course of this debate, they are a recommitment by the Republican majority to govern transparently.

The rules ensure that both Members and the public have a chance to read bills before they come up for a vote, institute more accurate accounting for the economic effect of legislation, and restore the constitutional balance of power between the legislative and executive branches.

With these rules in place, the House can now proceed in tackling the challenges facing America today and pass legislation that creates jobs, grows the economy, and promotes freedom for all Americans.

Mr. Speaker, I urge adoption of the rules package.

Mr. SESSIONS. Mr. Speaker, I want to thank the distinguished gentleman from California (Mr. MCCARTHY), the majority leader.

Mr. Speaker, I insert for the RECORD a section-by-section analysis of the resolution as well as a July 21, 2014, memorandum prepared by the Office of the Parliamentarian for the Over-Criminalization Task Force of the Committee on the Judiciary.

H. RES. 5

ADOPTING RULES FOR THE 114TH CONGRESS

SECTION-BY-SECTION ANALYSIS

Section 1. Resolved Clause.

This section provides that the Rules of the 113th Congress are the Rules of the 114th Congress, except with the amendments contained in section 2 of the resolution and orders contained in sections 3, 4, and 5.

Section 2. Changes to the Standing Rules.

Disclosure of Foreign Payments to Witnesses. Subsection (a)(1) requires, to the greatest extent practicable, nongovernmental witnesses to disclose payments or contracts to the witness or an organization they represent originating from foreign governments received in the current and preceding two calendar years, to the extent that such information is relevant to the subject matter of, and the witness' representational capacity at, that hearing.

While failure to comply fully with this requirement would not give rise to a point of order against the witness testifying, it could result in an objection to including the witness's written testimony in the hearing record in the absence of such disclosure.

Jurisdictional Changes. Subsection (a)(2) adds language to the Committee on the Judiciary's jurisdictional statement with respect to the criminalization of conduct.

The Committee on the Judiciary's jurisdiction over criminal penalties and criminal law enforcement would remain unchanged. That is, the committee would maintain its existing jurisdiction over measures that create or repeal a crime, and over measures that alter criminal penalties with regard to crimes already existing in law.

The rules change is intended to cover measures that alter the elements of a crime so as to criminalize new conduct and, in so doing, trigger an existing criminal penalty. This rules change is not intended to cover measures that merely supply the regulatory framework or address the regulatory underpinnings of the overall enforcement scheme. Past measures proposing merely to adjust the elements of such a crime—as opposed to adjusting the penalty for commission of the crime—have been out of the jurisdictional reach of the Committee on the Judiciary. Even though such measures have left the criminal penalty unchanged, they have nonetheless subjected new conduct to that criminal penalty. In other words, new conduct was criminalized. If the relatively rare practice of criminalizing new conduct within the framework of existing penalties is left unchecked, it calls into question the efficacy of the Committee on the Judiciary's jurisdictional statement in providing a comprehensive look at criminal penalties and criminal law enforcement. Hence, a rule X statement of ''criminalization'' is the most appropriate way to address this circumstance.

The jurisdiction of other committees over the elements of a crime—particularly in the context of a regulatory scheme and outside of title 18, United States Code—would remain the same, except that it potentially would be shared with the Committee on the Judiciary in some instances. In that respect, it is similar to the criminalization of new conduct accompanied by a new criminal penalty; this change is to ensure that it is the act of criminalizing conduct, and not just the penalties themselves, that gives rise to a jurisdictional interest by the Committee on the Judiciary.

This rules change is not intended to alter existing jurisdiction over any enforcement scheme that falls outside of the ambit of criminal law enforcement. Rather, it is to confirm that the creation of a new crime subject to criminal law enforcement is what gives rise to the Committee on the Judiciary's interest, and not merely the establishment or modification of the penalty.

For instance, the change is intended to address a situation analogous to H.R. 2492 of the 112th Congress, which addressed attendance at animal fighting events through amendments to the Animal Welfare Act—compiled in title 7 of the United States Code—and to title 18. That measure was referred to both the Committee on Agriculture and the Committee on the Judiciary. Portions of that measure were later included in H.R. 2642 of the 113th Congress and addressed a type of animal fighting to be covered by the Animal Welfare Act, but did not amend the existing criminal penalty in the Animal Welfare Act and did not touch title 18. As a result, the Committee on the Judiciary did not receive a referral of that measure.

Committees with jurisdiction over a regulatory statute will continue to exercise that jurisdiction, and the interest of the Committee on the Judiciary will extend to the creation of a new crime without a change to an existing penalty only to the same extent it would to creation of a new crime with an accompanying penalty prior to the 114th Congress.

The subsection adds language to the Committee on Appropriations' jurisdictional statement with respect to certain loan obligations and new loan guarantees with a textual reference to section 504(b) of the Congressional Budget Act.

Clarifying the Jurisdiction of the Committee on House Administration. Subsection (a)(3) clarifies the Committee on House Administration's jurisdiction over the Chief Administrative Officer.

Committee Activity Reports. Subsection (a)(4) reduces the frequency of committee activity reports from two times per Congress to one time per Congress.

Dissenting Views. Subsection (a)(5) codifies current practice by updating the rule regarding supplemental, minority, or additional views to include ''dissenting'' views.

Consolidating Requirements for Written Rules. Subsection (a)(6) requires committees to include in their written rules pursuant to clause 2(a)(1) of rule XI certain audio and visual coverage rules described in clause 4(f) of rule XI and formerly required by such clause.

Conforming Committee and House Broadcasting Standards. Subsection (a)(7) conforms the language in clause 4(b) of rule XI with clause 2(c) of rule V to ensure consistent application of broadcasting standards.

Eliminating the Point of Order Against Considering Appropriations Measures without Printed Hearings. Subsection (a)(8) eliminates the point of order against the consideration of appropriations measures without printed hearings. This information is largely available through archived broadcasts, testimony, and other documents available on the Appropriations Committee's website and the public hearings themselves.

Permanent Select Committee on Intelligence. Subsection (a)(9) increases the size of the committee to 22 members, with not more than 13 from the same party.

Committee on Ethics. Subsection (a)(10) prohibits the Committee on Ethics from taking action that would deny a person any rights or protections provided under the Constitution of the United States of America.

Bipartisan Legal Advisory Group. Subsection (b) updates the authorization for the Bipartisan Legal Advisory Group to conform to current practice and codifies a separate order of the 113th Congress.

Cost Estimates for Major Legislation to Incorporate Macroeconomic Scoring. Subsection (c) requires the Congressional Budget Office and Joint Committee on Taxation, to the extent practicable, to incorporate the macroeconomic effects of ''major legislation'' into the official cost estimates used for enforcing the budget resolution and other rules of the House. The subsection requires, to the extent practicable, a qualitative assessment of the long-term budgetary and macroeconomic effects of ''major legislation'', which is defined to cover legislation that causes a gross budgetary effect in any fiscal year covered by the budget resolution that is equal to or greater than 0.25 percent of the projected GDP for that year. This subsection also allows the chair of the Committee on the Budget, or in the case of revenue legislation the House member serving as the Chair or Vice Chair of the Joint Committee on Taxation, to designate ''major legislation'' for purposes of this rule.

This subsection also repeals the existing provision in clause 3(h)(2) of rule XIII that requires a macroeconomic impact analysis of revenue legislation, which is superseded by the new rule.

Providing for Reconvening Authority for the House of Representatives. Subsection (d) allows the Speaker, after consultation with the Minority Leader, to reconvene the House during an adjournment of three days or less, at a time other than previously appointed. This codifies separate orders from the 112th and 113th Congresses.

Providing Conference Committees with Time to Reach Agreement. Subsection (e) modifies clause 7(c)(1) of rule XXII by providing conference committees 45 calendar days and 25 legislative days after the formation of a conference to reach agreements before additional motions to instruct managers may be offered.

Contents of Committee Reports Showing Changes to Existing Law. Subsection (f) requires that a Ramseyer print to show the entire text of amended or repealed sections of a statute along with the proposed changes.

Mandatory Ethics Training for New Members. Subsection (g) requires that new Members of

the House, in addition to employees, complete ethics training.

Technical and Conforming Changes. Subsection (h)(1) conforms the standing rules to reflect the name in statute of the Joint Committee on Taxation (JCT). Subsection (h)(2) updates an outdated statutory citation and removes a reference inadvertently left in place at the start of the 113th Congress, which is no longer necessary due to the enactment of the STOCK Act.

Section 3. Separate Orders.

Independent Payment Advisory Board. Subsection (a) eliminates provisions contained in the Affordable Care Act that limit the ability of the House to determine the method of consideration for a recommendation from the Independent Payment Advisory Board or to repeal the provision in its entirety.

Staff Deposition Authority for Certain Committees. Subsection (b) provides the Committees on Energy and Commerce, Financial Services, Science, Space, and Technology, and Ways and Means deposition authority to be conducted by a member or committee counsel during the first session of the 114th Congress. Depositions taken under this authority shall be subject to regulations issued by the chair of the Committee on Rules and printed in the Congressional Record.

Providing for Transparency with Respect to Memorials Submitted Pursuant to Article V of the Constitution of the United States. Subsection (c) clarifies the procedures of the House upon receipt of Article V memorials from the States by directing the Clerk to make each memorial, designated by the chair of the Committee on the Judiciary, electronically available and organized by State of origin and year of receipt.

In carrying out section 3(c) of House Resolution 5, it is expected that the chair of the Committee on the Judiciary will be solely charged with determining whether a memorial purports to be an application of the legislature of a state calling for a constitutional convention. The Clerk's role will be entirely administrative. The chair of the Committee on the Judiciary will only designate memorials from state legislatures (and not petitions from individuals or other parties) as it is only state legislatures that are contemplated under Article V of the Constitution.

In submitting the memorials to the Clerk, the chair of the Committee on the Judiciary will include a transmission letter with each memorial indicating it has been designated under section 3(c) of House Resolution 5. The Clerk will make publicly available the memorial and the transmission letter from the chair. Ancillary documentation from the state or other parties is not expected to be publicized.

The chair of the Committee on the Judiciary is also permitted to designate memorials from earlier Congresses to be made publicly available under the same procedure.

Spending Reduction Amendments in Appropriations Bills. Subsection (d) carries forward the prohibition from the 112th and 113th Congresses against consideration of a general appropriation bill that does not include a ''spending reduction'' account, the contents of which is a recitation of the amount by which, through the amendment process, the House has reduced spending in other portions of the bill and indicated that such savings should be counted towards spending reduction. It provides that other amendments that propose to increase spending in accounts in a general appropriations bill must include an offset of equal or greater value.

Budget Matters. Subsection (e)(1) provides that titles III, IV, and VI, of House Concurrent Resolution 25 (113th Congress), as well as the allocations, aggregates, and appropriate levels contained in the chair of the Committee on the Budget's statement submitted in the Congressional Record on April 29, 2014, as adjusted, will continue to have force and effect until a budget resolution for fiscal year 2015 is adopted. This subsection also provides that the chair of the Committee on the Budget may revise allocations, aggregates, and appropriate levels for measures maintaining the Highway Trust Fund, provided such a measure does not increase the deficit over the 11-year window and revise allocations, aggregates, and appropriate levels to take into account updated CBO baselines.

Subsection (e)(2) carries forward from the 113th Congress the requirement that prevents the Committee of the Whole from rising to report a bill to the House that exceeds an applicable allocation of new budget authority under section 302(b) (Appropriations subcommittee allocations) as estimated by the Budget Committee and creates a point of order.

Continuing Litigation Authorities. Subsection (l) addresses continuing litigation in which the House is a party. Paragraph (1) authorizes the Committee on Oversight and Government Reform, through the House Office of General Counsel, to continue litigation to enforce a subpoena against the Attorney General related to the ''Fast and Furious'' investigation. This lawsuit was authorized by H. Res. 706 (112th Congress). It also authorizes the chair of the Committee on Oversight and Government Reform (when elected) to take certain actions necessary to continue the litigation. Paragraph (2) authorizes the House to act as the successor in interest with respect to ongoing civil actions regarding the implementation of the Patient Protection and Affordable Care Act. The lawsuit was authorized by H. Res. 676 (113th Congress). The subsection also carries forward the authorities provided by H. Res. 676 (113th Congress) to remain in effect in the 114th Congress. Paragraph (3) authorizes Michael W. Sheehy to provide testimony in an ongoing criminal action in accordance with authorizations from the Permanent Select Committee on Intelligence in the 112th and 113th Congresses.

Duplication of Federal Programs. Subsection (g) carries forward from the 113th Congress the authorization of a committee chair to request that the Government Accountability Office perform a duplication analysis of any bill or joint resolution referred to that committee. The subsection also requires committee reports to include a statement on whether any provision of the measure establishes or reauthorizes a program of the Federal Government known to be duplicative of another Federal program. This order has been modified to allow for a statement that no program is being established or reauthorized for purposes of complying with the order.

Estimates of Direct Spending. Subsection (h) carries forward from the 113th Congress the prohibition of consideration of a concurrent resolution on the budget, or any proposed amendment to or conference report thereon, unless it includes specified information and estimates related to direct spending, including means-tested direct spending and nonmeans-tested direct spending. The subsection also requires the chair of the Committee on the Budget to publish a description in the Congressional Record of covered programs

Disclosure of Directed Rulemakings. Subsection (i) carries forward from the 113th Congress the requirement that committee reports on bills or joint resolutions are to include an estimate of the number of directed rule makings required by the measure. The subsection defines ''directed rule making'' to include those rule makings specifically directed to be completed by a provision in the legislation, but does not include a grant of discretionary rule making authority.

Subcommittees. Subsection (j) waives clause 5(d) of rule X to allow the Committees on Armed Services and Foreign Affairs up to seven subcommittees and the Committees on Transportation and Infrastructure and Agriculture up to six subcommittees. Other than the inclusion of the Committee on Agriculture, this is similar to provisions carried in the rules package during the last several Congresses.

Exercise Facilities for Former Members. Subsection (k) continues the prohibition on access to any exercise facility that is made available exclusively to Members, former Members, officers, and former officers of the House and their spouses to any former member, former officer, or spouse who is a lobbyist registered under the Lobbying Disclosure Act of 1995.

Numbering of Bills. Subsection (l) reserves the first 10 numbers for bills (H.R. 1 through H.R. 10) for assignment by the Speaker and the second 10 numbers (H.R. 11 through H.R. 20) for assignment by the Minority Leader.

Inclusion of U.S. Code Citations. Subsection (m) adds, to the maximum extent practicable, a requirement for parallel citations for amendatory instructions to Public Laws and Statutes at Large that are not classified in the U.S. Code.

Broadening Availability of Legislative Documents in Machine Readable Formats. Subsection (n) instructs the appropriate officers and committees to continue to advance government transparency by taking further steps to publish documents of the House in machine-readable formats.

Temporary Designation. Subsection (o) designates a temporary location for documents to be made publicly available pending the official designation by the Committee on House Administration under clause 3 of rule XXIX.

Congressional Member Organization Transparency Reform. Subsection (p) allows participating Members to enter into agreements with eligible Congressional Member Organizations for the purpose of payment of salaries and expenses. The subsection requires the Committee on House Administration to promulgate regulations, consistent with current law, to carry out this subsection.

Social Security Solvency. Subsection (q) creates a point of order against legislation that would reduce the actuarial balance of the Federal Old-Age and Survivors Insurance Trust Fund, but provides an exemption to the point of order if a measure improves the overall financial health of the combined Social Security Trust Funds. This subsection would protect the Old-Age and Survivors Insurance (OASI) Trust Fund from diversion of its funds to finance a broken Disability Insurance system.

Section 4. Committees, Commissions, and House Offices.

Select Committee on the Events Surrounding the 2012 Terrorist Attack in Benghazi. Subsection (a) carries forward the select committee as authorized by H. Res. 567 (113th Congress) as it existed at the end of the 113th Congress. Additionally, the subsection provides the select committee authority to adopt a rule or motion allowing for a ten-minute rule for the questioning of witnesses.

House Democracy Partnership. Subsection (b) reauthorizes the House Democracy Assistance Commission, now known as the House Democracy Partnership.

Tom Lantos Human Rights Commission. Subsection (c) reauthorizes the Tom Lantos Human Rights Commission.

Office of Congressional Ethics. Subsection (d) reauthorizes the Office of Congressional

Ethics (OCE) for the 114th Congress and clarifies that term limits do not apply to members of the OCE. The subsection reaffirms that a person subject to a review by the Office of Congressional Ethics has a right to be represented by counsel, and establishes that invoking such right is not to be held as a presumption of guilt. The subsection also prohibits the Office of Congressional Ethics from taking action that would deny a person any rights or protections provided under the Constitution of the United States of America.

Section 5. Additional Order of Business.

Reading of the Constitution. This section allows the Speaker to recognize Members for the reading of the Constitution on any legislative day through January 16, 2015.

OFFICE OF THE PARLIAMENTARIAN,
HOUSE OF REPRESENTATIVES,
Washington, DC.

MEMORANDUM

To: Over-Criminalization Task Force of the Committee on the Judiciary.
From: Office of the Parliamentarian.
Date: July 21, 2014.

The Over-Criminalization Task Force of the Committee on the Judiciary is tasked with assessing the current federal criminal statutes and making recommendations for improvements. One of its areas of study is legislative jurisdiction in the House over proposals addressing Federal criminal law. This memo provides guidance on the rules of the House and precedents in this area.

RULE X—THE JURISDICTIONAL STATEMENT OF THE COMMITTEE ON THE JUDICIARY

The Parliamentarian, acting as the Speaker's agent, refers bills and other matters upon their introduction to committees pursuant to the jurisdiction of each committee as defined by rule X, taking into account any relevant precedents. Rule XII guides the Speaker in the type and timing of a referral.

The jurisdiction of each of the 20 standing committees of the House is set out in rule X of the rules of the House. The jurisdictional statement of the Committee on the Judiciary is found in clause 1(l) of rule X. The referral of measures on the subject of criminalization is based on clause 1(l)(1) addressing, ''The judiciary and judicial proceedings, civil and criminal,'' and clause 1(l)(7), addressing ''Criminal law enforcement.''

The jurisdictional statement regarding ''The judiciary and judicial proceedings, civil and criminal'' has been in place since the creation of the Committee on the Judiciary in 1813. That statement has been interpreted to apply to matters ''touching judicial proceedings.'' Hinds, vol. 4, sec. 4054.

The jurisdictional statement regarding ''Criminal law enforcement'' was added in the 109th Congress (sec. 2(a)(2), H. Res. 5, Jan. 4, 2005). This statement has been interpreted by the Office of the Parliamentarian as a codification of the committee's existing de facto jurisdiction over legislation addressing law *enforcement* powers, consistent with the absence of legislative history supplying any other meaning (Cong. Rec. Jan 4, 2005). This area of the committee's jurisdiction is often manifested in * * *

REFERRAL PATTERNS

The issue presented by indirect criminalization can be found in examples spanning many different subject matters. One illustration is in the referrals of the Lacey Act, a frequently amended statute that regulates the trafficking of fish, wildlife, and plants. The Lacey Act is compiled in both title 16 and title 18 of the United States Code. In the case of H.R. 3049 of the 109th Congress (regulating the trafficking in Asian carp), the bill amended 18 U.S.C. 42 and addressed criminalization. Accordingly, it was referred to the Committee on the Judiciary. In contrast, H.R. 1497 of the 110th Congress (regulating plants harvested outside the United States) amended various regulatory sections of the Lacey Act Amendments of 1981 that have been compiled in title 16 of the United States Code. The bill extended the Lacey Act's coverage to plants harvested outside the United States and any address of criminalization was indirect. Accordingly, it was referred to the Committee on Natural Resources.

A more recent example is found in the animal welfare area. H.R. 2492 of the 112th Congress addressed attendance at animal fighting events through amendments to the Animal Welfare Act—compiled in title 7 of the United States Code—and to title 18. The bill was referred to both the Committee on Agriculture and the Committee on the Judiciary. Parts of the contents of this bill were later included in a larger measure in the 113th Congress—H.R. 2642, the Federal Agriculture Reform and Risk Management Act of 2013 (section 11311). The provision addressed a type of animal fighting to be covered by the Animal Welfare Act, but did not amend the existing criminal penalty in the Animal Welfare Act and did not touch title 18. The Parliamentarian advised that a referral to the Committee on the Judiciary was not consistent with past precedent.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I thank my friend from Texas for yielding me the time, and if I could just take a minute to wish everybody a great new session. It is good to be back. I yield myself such time as I may consume.

Mr. Speaker, we rise today to set a new course for this Congress, though, with the record of the past Congresses, we know we have a lot of work to do.

During their tenure, the majority has careened from crisis to crisis, sued the President for doing his job, brought the House to new heights of dysfunction and closed debate with the most closed rules in a single Congress in our Nation's history, chased nonexistent scandals in Benghazi and at the IRS, and, since 2011, had this House vote more than 50 times to take health care away from their own constituents.

This legacy of dysfunction, of partisanship and prioritizing political games over the public policy has dealt the American people a bad hand. By governing this House in such a haphazard way, the majority has closed down the process and shut out the American people.

Sadly, the majority is poised to double down on their partisanship and even reinvent the mathematics of public policy. By using what is called ''dynamic scoring'' to pretend that tax cuts pay for themselves, Republicans will require the nonpartisan Congressional Budget Office and Joint Taxation Committee to use math that Bruce Bartlett, an economic adviser for both Presidents Ronald Reagan and George H.W. Bush, called ''smoke and mirrors.'' This new math cooks the books in favor of the majority to pretend that the tax cut bills are revenue neutral.

Time and time again, the falsehoods of dynamic scoring have come to light. The first President Bush even called this tactic ''voodoo economics.'' But even so, the House Republicans want to change the rules and inject their partisan ideology into even the mathematics which underlies our Nation's public policy.

Rising above partisanship, the House Democrats will propose today two measures that would do immeasurable good for the American people.

First, giving average Americans the paychecks that they deserve, our commonsense legislation would deny CEOs the ability to claim tax deductions on incomes over $1 million unless their own employees get a well-deserved raise first. This would ensure that average workers share in the fruit of the Nation's productivity, not just the millionaires and the billionaires. Today, as our Tax Code stands, CEOs get a break and their workers are left out. The CEOs get the money, the deduction on taxes, and we get the bill to pay for that deduction. It is destroying the middle class.

Second, Democrats will bring forward the Stop Corporate Expatriation and Invest in America's Infrastructure Act, which prevents U.S. corporations from renouncing their citizenship to dodge paying their fair share of taxes. It is time to stop rewarding companies that move overseas and, instead, use those dollars to create good-paying jobs here at home and rebuild our Nation's crumbling infrastructure.

□ 1515

By closing this loophole and ending the so-called tax inversions, we would raise an estimated $33.6 billion to invest in our roads, railways, and bridges which are falling apart all over the country.

Last fall, I stood by a 100-year-old bridge in Bushnell's Basin that fell into such disrepair that firefighters stopped using it for fear the bridge could not bear the weight of the engines. It endangered the safety of the people they were expected to serve.

In my home State of New York, 40 percent of the bridges have been rated structurally deficient or functionally obsolete, which is even worse. I wonder what the number is for the United States.

This is an unconscionable state of affairs. Repairing the Nation's highways and bridges is now, literally, life or death. We can do it with the Democrat proposals. We can, and we must.

These are the types of bills that we hope to be bringing to the floor in this session of Congress. We will debate them and ultimately pass them. That is what Congress is about, not a legislative branch that silences half of this Nation by bypassing the committee process and bringing to Rules emergency bills that silence the Representatives of half of the people in the United States.

It is my fervent hope that the new Congress will bring about an era of

willingness to tackle the big problems facing our Nation, a renewed call for true bipartisanship, and a culture of enlivened debate, and I promise that our side will be a willing partner.

In describing how the Bill of Rights came to be, former Supreme Court Justice, the late Harry Blackmun, said that the Founding Fathers survived a ''crucible of disagreement'' to give us a more perfect Union. Forging through that crucible is not only good for the legislative branch, but good for the Nation.

Truly, it is the debate that makes us stronger, and time and time again, debate in the House has been stalled, strangling policies and solutions that could have benefited the Nation. Sadly, this is the legacy of the last Congress.

I would like to insert the text of Justice Blackmun's speech into the RECORD.

HARRY A. BLACKMUN

ASSOCIATE JUSTICE OF THE UNITED STATES SUPREME COURT REMARKS TO THE PHILADELPHIA BAR ASSOCIATION ''CELEBRATION OF THE BICENTENNIAL OF THE BILL OF RIGHTS''

NOV. 22, 1991

TRANSCRIPT AVAILABLE IN THE LIBRARY OF CONGRESS

So there you are. Does it bother you that, in this Bicentennial year, the Bill of Rights which we regard almost as Holy Writ in our national consciousness, was forged in the crucible of disagreement and contest and tempered by the Founders' diverse estimates of political reaction? It should not bother us, I submit, for that is the very stuff from which strong constitutions emerge—the lessons derived from past adversities, from hardening experiences with our fellows and with those who would govern us, and, from the fervent desire to avoid, as Santayana warned us, the necessity of living history over again. Our Constitution and Bill of Rights are of our own making. They are the product of hard bargaining, not the divine gift of a visionary presence.

My final observation is of a different and lighter touch. A great poet, one whom T.S. Eliot once called ''the greatest poet of our times * * * certainly the greatest in this language, and so far as I am able to judge, in any language,'' wrote two things that have intrigued me.

Ms. SLAUGHTER. Mr. Speaker, the past does not dictate the future. We can right our path forward. We may be able to prioritize that the American people will win over politics; and, today, we have the opportunity to do that with the beginning of this, the 114th Congress.

Mr. Speaker, I reserve the balance of my time.

Mr. SESSIONS. Mr. Speaker, I yield myself such time as I may consume.

I, too, want to welcome the gentlewoman from Rochester, New York, the ranking member of the Rules Committee, as we begin another session in this new year. I am delighted to know that the Rules Committee will be ready and available to handle the pieces of legislation that the gentlewoman spoke of in terms of helping the American people to understand what Congress' role is in working with the President to help with policies that will get this country back to work.

Mr. Speaker, just a year ago, we recognized as we came back to Washington that we were at a GDP growth of a negative GDP. We had to fight out of these terrible, terrible tax increases and the things that are occurring to our economy.

The American people found new footing this year because it was the Republican majority who gave new meaning and life to ''we are going to make this place, meaning Washington, D.C., and government, smaller and make things bigger and better for people back home.''

We have now lived through what has become a reality with Republican policies on energy, for a competitive marketplace for there to be alternative fuels that are available that have dominated the marketplaces and put other countries on their heels and have given an advantage to American drivers who are here, families who are trying to make a go of it. The price of gasoline at the pump has dropped.

We still have much to do. As we know of the first year that President Obama was in office, food prices began doubling, energy prices began doubling. Republicans now are giving the American people a sense that we can manage our country better, so that they cannot only have a job and keep a job, but that they can take care of their families.

We are going to aim this year on a lot of things; but today, we are here for the rules package that will enable the opportunities for all of our Members to know what the rules are and to become engaged.

Four years ago, Mr. Speaker, we pledged to the American people that Speaker BOEHNER, through the rules of this House and our package that we would have, would allow Members from both sides of the aisle to engage in robust debate under an open process.

I am proud to announce that in following through with that promise, which is what we have done, we now have a new, larger group of Republicans because of the hard work we have done and have sold to the American people about effectively managing their affairs in Washington, D.C.

Republicans have put forth all sorts of reforms, not just in the House of Representatives—more transparency, more opportunities for debate—but the opportunity for the American people to see that what we are trying to do is to give the American people a chance to debate and to vote and to move forward legislative ideas, not just about jobs and not just about a better economy and not just about more freedom and not just about trying to take care of energy, but also to protect the men and women who protect this country. The 114th Congress is going to present also an opportunity, I think, for all of us to up our game, to work together.

The House and the Senate because they are in Republican control—instead of things being roadblocked and set aside and stacked up—over 300 bills, Mr. Speaker, this past term on which we are waiting for Senatorial action—can work together to enact legislation. We can talk with the American people. We can fashion transparency in bills for accountability, something that the American people want and need.

It also represents an opportunity for us to jump-start our economy. We are here to serve people back home. We are here to make things better for people back home, not to give away our country, but to make it stronger, a chance to empower people in their communities to make their own decisions and, hopefully, reap the rewards that come from that.

Many times, it is not just about the creation of a job, but really of sustaining these families who are trying to work and make things happen and make more decisions about themselves and their futures.

To begin that process today, as we open the House for the 114th Congress, we have a rules package. As we begin, I want to say let's not forget why we are here. We are here because those from our individual congressional districts sent us here—mine, the 32nd Congressional District of Texas, sent me here to accomplish things on their behalf—to make life better for them, to create better opportunities for people today, and a better America in the future, so that we are able to extend our lead among other nations with, I believe, American ingenuity and opportunity—American exceptionalism, as we say it in Dallas, Texas, Mr. Speaker, American exceptional power.

Whether it is leading in the United States military or providing leadership for freedom, that is what we are best at, and we have this privilege by serving in this body.

We must also be held accountable, I believe, to the Constitution. We have, all of us today, raised our hands to support and defend the Constitution of the United States. It doesn't mean certain parts of that Constitution; it means the Constitution.

By our being here today, we are, once again, reaffirming that in this rules package—the support to the Constitution, that basis of power, that is so important in that we understand the House, the Senate, the Presidency but, most of all, the power that lies with people, the rules package helps us to achieve these goals.

H. Res. 5 is a continuation of the House Republicans' efforts to streamline processes, to increase transparency, and to improve accountability. Specifically, it preserves the important reforms that were made in the previous two Congresses. It also adds a few perfecting amendments and orders to help further advance our twin goal of transparency and openness for all of the Members of this body. I would like to take a few minutes, if I can, to highlight some of the key parts of this rules package, Mr. Speaker.

First, it builds upon the fiscal restraint imposed upon the Federal Government by House Republicans in the

last two Congresses. We have seen in the last 4 years that the American economy is able to grow when the government shrinks and when less taxpayer money is used to support the government, more freedom and opportunity. We should have a smaller government and a larger free enterprise system. That is a goal. ''Limited government'' means unlimited opportunity for people back home.

In 2011, the Federal Government was spending 24 percent of our GDP, and the economy was suffering. Thanks to the leadership of House Republicans, the Federal Government's spending is now down. In fact, the Federal Government now spends 19.9 percent of our GDP, which is nearly 5 percent less than just 4 years ago.

This has come through fiscal restraint. This has come through making sure that we spoke to the American people about government that was getting too big, costing too much money, and had too much power. The American people understood that because the government was getting in the way, not playing its role of making life better for people but, rather, getting in the way and making onerous decisions on our economy, on people's jobs, and, perhaps worst of all, on stifling families and the American Dream.

In turn, we are finally now seeing, as a result of these 5 years in which we have held government spending—it has decreased from 24 percent of GDP to 19.9 percent—an economic growth rate that the American people, I think, want and deserve.

Are we where we want to be? Absolutely not. What is the approximate level? We need a GDP growth of 4 percent. We need a GDP growth not just in Dallas, Texas, but all over this country where we have people who in their homes, in their cities, and in their regions are able to take care of themselves, to sustain their economies, and to take care of their infrastructures in a responsible way.

This Congress, Republicans are going to provide for fiscal discipline that restrains spending and gets the government out of the way. Getting government out of the way means you take money away from it which does one of two things: it leaves more money back home for people, or it simply gives people more opportunity to invest in the marketplace to grow jobs.

This rules package will ensure that Congress has the necessary budget enforcement tools in place to continue our work that will help create jobs and grow the economy.

We have a brandnew Budget chairman. He is one of the finest members of the Republican Conference, the gentleman from Georgia (Mr. PRICE). Mr. PRICE has been not only a professional at his job as a physician where he healed people, but he came to Washington to do the same for us.

His ascension to be the chairman of the Budget Committee will offer this country and, I believe, more specifically, this body a reevaluation of the important attributes of having a good economy through better budgeting and ways that we can restrain the Federal Government from unwanted and unnecessary spending to that which is done for the American people that makes sense. TOM PRICE will become a household name, and he will earn the accolades that he will get from his chairmanship.

Second, the rules package includes a commonsense requirement for Congress when we consider legislation that will have a larger impact on our economy. In short, the House is going to require the Congressional Budget Office and the Joint Committee on Taxation to provide nonpartisan macroeconomic analyses for legislation that costs .25 percent of projected GDP.

What does this mean? This means that, now, we are going to be able to recognize on percentage basis points how close is the impact of our decisions that we make and to project them out to where we are able to actually know what the impact will be of the legislation that we pass in order to create more jobs.

It is meant to err on the side of people and the free enterprise system, as opposed to stymieing what would end up going to them and erring on the side of growing this government.

□ 1530

This means that the House will take time to analyze how legislation that we consider will really impact the American economy to where we can project what it will be as a result of including billions of dollars back into the economy for economic growth and development on the side of the free enterprise system.

This is going to allow us to measure the impact of legislation, it is going to help us to use some commonsense projections on how our ideas are going to help the bottom line.

Gosh knows we have been through 4 years where we saw high taxes, high spending, Big Government that caused America to fall not only in relative power to the rest of the world, but it placed on the American people disillusionment, unemployment, high taxation, people who could not pay their bills, a loss of their own identity within their own systems.

Unemployment up to 23 million people unemployed and underemployed; we have now turned that corner. We will continue to turn that corner and extrapolate out how we want to get to all sectors of our economy to have a better shot at jobs in their hometown, in their region, and ones that they can keep, not have and then lose again.

It is these current opportunities that lie right before us, and the gentleman from Georgia and the gentleman, the chairman of the Ways and Means Committee, Mr. RYAN, are perfectly suited for selling to this body and the American people why we believe that we have got to look at and change the way we authorize bills.

So under one method, which would be called static scoring, which is what we have, we assume that major legislation does not change economic behavior. They just plug a new number in, and then we assume nothing really happens.

But in fact we know when you raise taxes, you lower the opportunity for people not only to create more economic benefit, but you take that incentive away.

Our friends, the Democrats, would leave you to believe that taxation is a zero sum game, that when rates go up, revenues always come that way, and aren't we for making sure that we balance our budget?

Well, let me tell you what? It didn't work that way. We were spending hundreds of billions of dollars more. Instead of an economy that was working, we were paying unemployment compensation—people not to be employed, people to be at home, a terrible cost not only to humanity but also to our Treasury.

We need people to go to work, and encouraging them to do this through our Tax Code means that people can have the dignity of work, the opportunity to make their life better, and perhaps more importantly, a chance for America to grow its GDP.

We have examples over and over that we have seen about how taxation legislation affects behavior, and certainly in my home State of Texas, I remember in the 1980s and the early 1990s, when revenue was at a premium for the Democrats who ran our House and Senate in Texas, and of course they wanted to raise more revenue, and they were always looking for ways to raise revenue.

I remember them looking when I was just out of high school at personalized license plates, and they looked at how much money came in for personalized license plates. I want to say it was $30 for the plates. They needed more revenue, so they just doubled that amount of money that it would cost, knowing they would get twice as much revenue.

But it didn't work that way, Mr. Speaker. Not surprisingly, fewer Texans bought more license plates. But to the Democrats, it was a simple matter under static scoring of just saying they wanted more money, and they were going to increase the rates. It doesn't happen that way because the American people or citizens understand they would no longer buy something at a different rate.

The same thing is true of tax rates, Mr. Speaker. We have the exact same problem, where people who are working and working hard, when you take away their money, there is less money that they can put into the economy to grow another job, to give somebody a chance at a new job.

These are the things we are going to be looking at, how we can maximize through the effort of Dr. PRICE, through the effort of PAUL RYAN, the Ways and Means Committee, the Budget Committee to bring the leading edge

ideas instead of saying, no, it is really a zero sum game. If you want to do something, you have to really raise taxes; you can't give money back to people because, oh my gosh, the Federal Government would be in trouble. Well, we are not.

It would change from unemployment compensation to people working, and Republicans believe in work. We believe in empowering communities and people standing a chance to go from unemployment and welfare to a chance to have a job. We are going to get this done.

Let me be clear. Republicans are not arguing that tax cuts always pay for themselves. They don't. But instead we are acknowledging that when it is done right, when you study what you are doing, you can make an effort to have a tax cut to grow the economy. I believe Republicans understand that the American economy and Americans are better off when they keep more of their paychecks.

Lastly, this rules package defends the House's constitutional role in our system of checks and balances by providing for continuation of legal actions against the executive branch. It will allow the House to pursue its lawsuits and to enforce subpoenas, for instance, in the Fast and Furious investigation, where we have seen guns that were sold by the United States Government and put into hands of very dangerous people all around our world, including in Mexico and other places, only to find they come back and appear where they were involved in murders in the United States. It is a lawless action that was taken by our Department of Justice. It is wrong, and we are going to continue pursuing this.

So it means that we are going to look at those things that this Federal Government is doing that we believe are unconstitutional and should change also. We also believe in a lawsuit against the executive branch regarding the implementation of the Affordable Care Act. In short, this package makes it perfectly clear that our constitutional order still matters, and it is Congress' job to write the law and for the President to faithfully execute it. We are not going to stand by and watch this President go and write laws and to execute them down the block. We are going to make sure we do it the way the Constitution spoke about.

Certainly we know that IPAB, which is a part of the President's package, where he has this group of people that have unlimited power to make decisions over health care, over people as opposed to a physician, we are going to limit that authority. We believe we are within the right in doing this because the American people want and need a health care system that works, not one that we cannot afford and we cannot find a doctor, and where the government and a bureaucrat make decisions as opposed to a physician and a patient.

Regardless of what one thinks about ObamaCare, all Members of Congress should be united to preserve and protect the role of the House of Representatives and our ability to make the laws on behalf of people and work with the President in that.

Finally, the package is going to allow the Speaker to recognize Members for the reading of the Constitution on any legislative day through January 16, 2015. I believe it is vital. We saw this several years ago, Mr. Speaker, where we came down to the floor of the House and took turns at reading the Constitution. It is a vital part of our history. It is important that we understand it serves this great Nation that separates us from so many other countries, the rule of law and constitutional guidance.

This rules package that I have outlined will better enable the House to perform our duties. It will help us with our obligations, our integrity, and transparency and accountability, and it is going to help us to make sure that we work well together with each other.

Our friends, whether they are Republicans or Democrats, elected Members of this body, I am very proud to say that this resolution represents so many great things. I think it is a balanced package, and I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 4 minutes to the gentleman from Maryland (Mr. HOYER), the Democratic whip.

Mr. HOYER. Mr. Speaker, I thank the gentlelady for yielding. Unfortunately, I don't have time to respond to many of the representations that Mr. SESSIONS made with reference to our economy, but we can all agree that our most important responsibilities as Members of Congress is to grow this economy, create the kinds of jobs that Americans need so that they can succeed and support themselves and their families.

I want to speak about a couple of things in this rules package. Traditionally, Democrats will vote against and Republicans will vote for because traditionally this is a partisan vote. I urge the Rules Committee chairman to adopt a couple of changes which I thought would make this rules package a better one.

First, I ask the House to move to ban discrimination against gay, lesbian, bisexual, and transgender employees. We provide in our rules that you cannot discriminate against people based upon race, nationality, gender, and other arbitrary distinctions. We should have added this as we have in so many of our laws. Currently there are no protections for a congressional staffer fired or refused promotion simply for LGBT status. I regret that the Rules Committee was unprepared to offer such a protection to our employees.

Secondly, since Republicans assumed the majority in 2011, Delegates from the District of Columbia, the U.S. Virgin Islands, Guam, Samoa, and the Northern Mariana Islands as well as the Resident Commissioner from Puerto Rico have been denied the opportunity to vote in the Committee of the Whole. They can vote in committees, and the Committee of the Whole is of course a committee of the House. It is not a final arbiter.

When I was majority leader, I offered that amendment in the rules. It passed. My Republican friends took it to court, and the court said that it was sustainable and sustained it. This effectively, unfortunately, denies representation to nearly 5 million Americans, Americans, one of whom is on the Republican side of the aisle from American Samoa. So this is a bipartisan concern that I have. Unfortunately, this rules package put forward by the Republican majority does not include either change.

In addition, this rules package does not live up to the responsible governing the American people expect and deserve from Congress. Mr. SESSIONS spent a long time talking about scoring, static scoring versus dynamic scoring.

Dynamic scoring I would suggest to the American people is a gamble. It is a gamble that your projection is correct. If your projection is not correct, as it has so often been, then you end up putting the deficit even higher because you bet on the come.

The more conservative policy, I would suggest, would be to get the money first and then decide how you are going to apply it. Don't gamble on the fact that you are going to get the money, which is what dynamic scoring is. The gentleman admitted—he did not argue—that cutting taxes always paid for themselves. In fact, Alan Greenspan said exactly that in the last decade.

What it means is the Republicans will be able to hide the true cost of tax cuts behind a debunked mantra that tax cuts pay for themselves. They do not. This provision will allow them to explode the deficit as they did the last time they were in charge.

The last time the budget was balanced was not under the Bush administration when you had a Republican Congress, a Republican Senate, and a Republican President. It was when Bill Clinton was President of the United States. For 4 years we had a balanced budget.

It also threatens to politicize the Congressional Budget Office, which has maintained its role as impartial and nonpartisan arbiter on budget scoring for four decades, which makes us be honest, which is what the American public expects. Rely on the figures that are not political figures but are independent analytical figures on which we can rely.

I urge my colleagues to vote against this rules package. It can be a better package; it should be. And if it is defeated, we can adopt a better, more fair package.

Mr. Speaker, we are at the start of a new Congress, and we have an opportunity to right two wrongs in the rules of this House.

I wrote to the Chairman of the Rules last month asking that two changes be made in today's rules package.

First, I asked that the House move to ban discrimination against gay, lesbian, bisexual, and transgender employees.

Currently, there are no protections for a Congressional staffer fired or refused a promotion simply for LGBT status.

Second, since Republicans assumed the majority in 2011, delegates from the District of Columbia, U.S. Virgin Islands, Guam, Samoa, and the Northern Mariana Islands, as well as the Resident Commissioner from Puerto Rico, have been denied the opportunity to vote in the Committee of the Whole House.

This effectively denies representation to nearly 5 million Americans.

Unfortunately, this rules package, put forward by the Republican majority, does not include either change.

In addition, this rules package does not live up to the responsible governing the American people expect and deserve from their Congress.

First, it includes something called ''Dynamic Scoring.''

What it means is that Republicans will be able to hide the true cost of tax cuts behind a debunked mantra that ''tax cuts pay for themselves.''

They do not—and this provision will allow them to explode the deficit, as they did the last time they were in charge.

It also threatens to politicize the Congressional Budget Office, which has maintained its role as impartial and nonpartisan arbiter on budget scoring for four decades.

The rules package also extends the Benghazi select committee, placing conspiracy theories above fact.

At least three committees—two led by Republicans—exhaustively investigated the Benghazi tragedy.

Everything has been reviewed; a million dollars in taxpayer money last year were wasted.

And, furthermore, these rules would limit the ability of Congress to reallocate resources between Social Security trust funds, making it more difficult to prevent automatic cuts to Social Security disability insurance.

We can do better—and should do better—in this House for the 114th Congress.

I urge my colleagues to reject this rules package, and I call on Chairman SESSIONS and his Republican colleagues to work in a bipartisan way with Democrats to enact rules that enhance the work of this House, protect LGBT employees, include all of the voices in our democracy, and set guidelines that facilitate greater cooperation, not more partisan gridlock.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 3 minutes to the gentleman from Maryland (Mr. VAN HOLLEN), the distinguished returning ranking member of the Committee on the Budget.

□ 1545

Mr. VAN HOLLEN. Mr. Speaker, I thank my colleague.

Mr. Speaker, it is absolutely astounding that within minutes—minutes—of our being sworn in, our Republican colleagues want to pass a rule that will stack the deck in favor of trying to give another big tax cut not to the middle class, but to millionaires, the folks at the very top. That is what their budget does.

What is equally astounding is that this economic theory of trickle-down economics crashed and burned in the real world between 2001 and 2008. Our Republican colleague says that if you give millionaires these tax cuts, they are going to spend them, and a little bit will trickle down to the middle class and people who aspire to the middle class and boost everybody up.

That is not what happened. What happened? Sure, the folks who got the tax cuts at the top, they did better. Nobody else did. In fact, real wages went down. What went up? The deficit—and everybody has to pay for that deficit.

Now, I heard the Speaker this morning say he wanted to deal with the issue of wage stagnation. That is what we should be focused on. We shouldn't be talking about tax cuts for the wealthy and a trickle-down theory. We should try to build this economy from the middle class out and from the bottom up.

I am glad the Speaker said that because we are going to give him an opportunity to vote for something that will address wage stagnation. I am going to offer a motion at the end of this debate. It is called the CEO-Employee Paycheck Fairness Act, and it addresses this issue.

If you look back in the 1960s and 1970s, when workers were working hard, they got paid more, but beginning around 1979, they kept working hard, productivity kept going up, but their wages got flat. What happened during the same time? CEOs took care of themselves. Their pay started to go up and up and up. It used to be about 20 times that of the average worker.

In other words, the CEO and the folks at the top got about 20 times what they were paying their employees, but as you can see, it has now shot up so that CEOs and the top guys get paid about 300 times what their workers are getting paid.

We have a simple proposition: that corporations should not be able to deduct the bonuses and compensation for their CEOs and other executives over $1 million unless they are giving their employees a fair shake, a fair wage. Right? Why should the taxpayers be subsidizing that?

Between 2007 and 2010, they took about $66 billion, thereabouts, in deductions for bonuses for performance pay when they were sometimes laying off employees and cutting their paychecks, so we say: ''Hey, okay, pay yourselves what you want, but if you want the taxpayers to allow you to deduct your bonuses and performance pay, for goodness' sakes, you had better be giving your employees a fair shake.''

Over time, that would close that gap in worker productivity and wages and do what the Speaker said he wanted to do this morning, which is deal with wage stagnation. Let's help the workers, not just the CEOs. Let's vote for the CEO-Employee Paycheck Fairness Act.

Mr. SESSIONS. Mr. Speaker, there they go again, more tax increases, bigger government, the Democrat party. I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I yield 30 seconds to the gentleman from Maryland (Mr. VAN HOLLEN) to respond to that.

Mr. VAN HOLLEN. Actually, what we are talking about, Mr. Speaker, is a Republican plan that actually cuts the top rate for folks at the top from 39 percent to 25 percent.

The nonpartisan Tax Policy Center has said that will actually leave the middle class family—typical family—paying another $2,000, so that you can give the folks at the very top another tax break.

When you increase the deficit, guess who pays the bill? Everybody, all the taxpayers do. So you give a tax break to the folks at the top, increase the deficit, and everybody else is left to pay the bill. That is not the right way to go. Vote for this motion.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 2 minutes to the gentlewoman from Connecticut (Ms. DELAURO), who has been successful already about inversions.

Ms. DELAURO. Mr. Speaker, I rise in opposition to the Republican rule package and to the previous question. If we defeat that question, Ms. SLAUGHTER will offer an amendment to end corporate desertion.

Over the last decade, we have seen nearly 50 American companies try to avoid taxes by moving their mailboxes overseas, but they leave their operations here, effectively renouncing their U.S. citizenship in order to dodge taxes.

These companies benefit from American education, research and development incentives, and infrastructure, all taxpayer supported, but when their own tax bill arrives, they hide overseas and are no longer American corporations.

They even have the temerity—and this is legal under the law today, and it shouldn't be—they have the temerity then to apply for Federal contracts, but they deny their U.S. citizenship when it comes to paying their taxes.

Mr. Speaker, what this amendment would do is make sure that they pay their fair share. The extra revenue goes to the highway trust fund. That trust fund runs out of money in May if we do not act. Anyone who has driven a car lately knows how badly our roads need investment.

Our highways are crumbling beneath our wheels, 65 percent of our major roads are in less than good condition, and one-quarter of our bridges require repair or improvements. The backlog of projects grows longer by the day.

At a time when globalization is gathering pace, this state of affairs puts America's competitiveness in jeopardy.

According to the World Economic Forum, the United States has slipped from 7th to 18th in the quality of our roadways. Replenishing the highway trust fund will reverse this trend, unleash economic growth, and create thousands of good jobs that cannot be sent overseas.

If we want business to invest in this Nation, we must be prepared to do the same. Instead of lining the pockets of corporate deserters, we should be revitalizing our roadways. That is the path to a better, stronger, and more sustainable economy. This amendment puts us back on the right track.

Mr. SESSIONS. Mr. Speaker, I continue to reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 3 minutes to the gentleman from South Carolina (Mr. CLYBURN), the assistant Democratic leader.

Mr. CLYBURN. Mr. Speaker, I thank the gentlewoman for yielding.

Mr. Speaker, like most Americans, I spent the holidays with family and friends reflecting on the blessings of the past year. There were many.

Since 2009, the stock market has soared another 10,000 points. In 2009, our budget deficit stood at $1.4 trillion. Today, according to current projections, we have sliced that deficit to $514 billion, and we have created 10 million new jobs, the longest stretch of private sector job growth in American history.

When I left home yesterday, I left my wife with a full tank of gas, and I did so paying less than $2 per gallon. It was the first time I have been able to do that in 5 years. We have achieved much progress over the past several years. Now, we must get about the work of making sure that progress is shared by all.

Mr. Speaker, in a few moments, we will cast some substantive votes. These votes will literally set the rules of the game for the next 2 years. They will be a very clear reflection of our respective parties' priorities.

While Republicans' rules changes seem to rig the game in favor of the wealthy, Democrats will immediately force a vote on job creation, bigger paychecks for working families, and American competitiveness and economic growth.

Democrats want to put people to work building roads and bridges that will connect our economy in the 21st century. We will ensure that every American shares in our Nation's prosperity by taking away corporate tax deductions for millionaire executive compensation unless their employees get a raise as well.

It is simple, Mr. Speaker. House Republicans' first priority in the 114th Congress is stacking the deck for those with the highest incomes and for voodoo, trickle-down economics. House Democrats' first priority is to put Americans in a better place by creating jobs, standing up for working families, and growing the economy for all. The contrast could not be more stark.

Mr. Speaker, House Democrats' numbers may be smaller in the 114th, but we are stronger in our unity and resolve to grow and strengthen middle income Americans. Today, with our votes on the new rules, Mr. Speaker, we will be demonstrating our support for hardworking American families.

Mr. SESSIONS. Mr. Speaker, I continue to reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 2 minutes to the gentleman from Massachusetts (Mr. MCGOVERN), a valued member of the Committee on Rules.

Mr. MCGOVERN. Mr. Speaker, I thank the distinguished ranking member for the time.

Mr. Speaker, I suppose I should simply take this time to say to my colleagues: welcome back, happy new year, and I missed you.

Technically, we are considering, debating, and voting on the Republican majority's ''rules package,'' but that is sort of a misnomer. The word ''rules,'' as most of us understand it, means a set of procedures that someone is required to follow, but if my Republican friends have demonstrated anything over the past few years, it is that they have absolutely no intention of following the rules of the House. They routinely waive, ignore, or break the rules of this House whenever it is convenient or politically expedient for them to do so.

The gentleman from Texas says the Speaker of the House promised the most open Congress in history. I hate to remind him that the Republicans presided over the most closed Congress in history during the 113th Congress.

Let me just mention a couple of the most egregious provisions in this package before us today. First, my Republican friends believe we should adopt the voodoo economics of so-called dynamic scoring. Under this fairy tale, they would have us believe that tax cuts for the very wealthy don't increase the deficit. Never mind that time after time after time in our history, those tax cuts for the rich have caused an explosion in our deficit. This rules package would have us believe that up is down and left is right.

Second, this package would allow committee staff from the Ways and Means Committee, Financial Services, Energy and Commerce, and the Science Committee to take depositions under oath. Currently, only the Oversight Committee has that authority.

Mr. Speaker, I served as a staff member in this House for the late Congressman Joe Moakley. Our staff members are dedicated public servants who work incredibly hard, but this provision, quite frankly, goes too far.

Mr. Speaker, we ought to be spending our time on rebuilding our aging infrastructure and increasing workers' paychecks rather than making it easier to conduct more political witch hunts, which the American people are fed up with.

Mr. Speaker, I am honored to serve on the Rules Committee, and that word ''rules'' used to mean something. My hope is that in this Congress, enough of my Republican colleagues will demonstrate the political courage to make it mean something again.

Vote ''no'' on this resolution.

Mr. SESSIONS. Mr. Speaker, I continue to reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I yield 2 minutes to the gentleman from Texas (Mr. DOGGETT).

Mr. DOGGETT. Mr. Speaker, to those who have wondered, what would be the top priority of this Republican-controlled Congress? What would they do on day one? Well, now we know. It is deception, what some could even rightly call tax fraud, since this amounts to deliberate misrepresentation of tax data.

Republicans are admitting right here on day one that they don't know how to balance the budget. When the budget numbers will not add up, when the arithmetic just doesn't work for them, they change the numbers with magical new math. Where the books won't balance with the numbers that you have got, Republicans say, ''Use the numbers you would like to have.''

All their previous talk about budget discipline and balancing budgets was really about trying to dismantle Democratic efforts to provide an opportunity ladder up for all Americans, to assure dignity in retirement, and to protect families from the risk of illness—that ladder of security and protection that many Republicans were never for in the first place.

Now, to free themselves from the hard work of responsible, balanced budgets, Republicans are compelling the House for the first time in American history to rely upon something they call ''dynamic scoring''—That is just a euphemism for whimsy, speculation, and wishful thinking—the thin veneer for a failed political ideology.

One leading Republican expert, former Senate budget staff director Bill Hoagland, has said that instead of this scoring gimmick that they are using today, he would ''rather [they] just simply belly up to the bar'' and ''admit up front that they can't lower rates without adding to the deficit.''

□ 1600

Today's actions remind me of a riddle some attribute to President Abraham Lincoln: ''How many legs does a dog have if you call the tail a leg? Four, because calling a tail a leg doesn't make it a leg.''

And calling a budget ''balanced'' when it doesn't have adequate revenue does not make it so.

Passing a budget requires hard work. Republicans would rather use a sleight of hand than offer a helping hand from all to get the job done. Vote no.

Mr. SESSIONS. Mr. Speaker, in fact, Republicans are going to use a doctor to get the budget done this time.

I yield 3 minutes to the gentleman from Georgia (Mr. PRICE), the young chairman from the Budget Committee.

Mr. PRICE of Georgia. I thank the gentleman from Texas for his leadership on this package and his work throughout this Congress.

Mr. Speaker, I am actually surprised—well, I am not surprised. I thought we might actually go a day without having the kind of hyperbole that we have grown used to from the other side of the aisle.

I want to speak to the issue of macroeconomic analysis as the incoming chair of the Budget Committee. The other side has said this is a gamble, that we are gambling that the projections are going to be correct. Mr. Speaker, this is craziness. That is not so. In fact, all economic projections—static, dynamic—all of them have a level of uncertainty.

We have heard that it is ''stacking the deck'' or that it is ''cooking the books'' in favor of tax cuts. Nonsense. Nonsense. It doesn't game the system at all. All we are trying to do is make certain that Members of Congress have more information upon which to be able to make decisions. That is the kind of commonsense things that our folks back home want.

Scoring, which is what we are talking about here, the Congressional Budget Office works hard to try to determine what the effect is of the kind of policies that we adopt around here. They will tell you right now that now it is inaccurate. Now it is inaccurate. What we are trying to do is simply say that if a piece of legislation is going to have a large effect on the economy, that we include that effect in the official estimate.

So if you think a bill is going to help or hurt the economy—help or hurt the economy—then they ought to tell us. They ought to let us know how many more jobs are going to be created, what kind of tax revenue up or down is going to occur. Is it going to harm jobs? The people who prepare our cost estimates, I tell you, they are the best in the business, and they have been working on this issue for years.

Mr. Speaker, this may come as some surprise to our friends on the other side, but they already do this kind of analysis. They already do the macroeconomic analysis. It is just that we don't include it in our cost estimate because of the rules. And we should. That is why we are offering this change today.

We don't predetermine the outcome. We simply make it so that the Congressional Budget Office is allowed, the scorekeepers are allowed, to have a more realistic score. It has come as no surprise, talking to economists from around the country over the past couple of weeks, over the past couple of months, and to a person they say economic scoring, the effects of legislation that we pass, it is an inaccurate science. It is hard to do. But what we want to do is to make certain that they have greater opportunity to get that scoring correct, to give us the kind of information so we can make wiser decisions.

Mr. Speaker, this isn't about cooking the books or gaming the system. This is about trying to do the hard work of the American people, trying to get the policies that we adopt here in this Congress correct so that we can get the American people back to work and get this economy thriving again.

I commend the gentleman from Texas for the work that he has done and urge adoption of the rules.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 2 minutes to the gentleman from California (Mr. BECERRA), the chairman of the Democratic Caucus.

Mr. BECERRA. Mr. Speaker, I thank the gentlelady for yielding.

It is time to get to work. Americans don't care who won or lost in the election. They just want us to get our work done. They want us to work together to solve the problems that they see every day. They want us to boost job growth, and they want us to build an economy that works for all Americans, not just the privileged few.

The rules of the road that should guide this Congress should be built on the foundation that has increased opportunities for American families over the last few years—nearly 11 million new jobs, 57 consecutive months of job growth, the longest streak in our country's history. There are 10 million more Americans with health insurance, which means more security for those Americans. The deficit has been cut by two-thirds since 2009.

What is the one piece of the puzzle that we now need to work on? In that span of time since we have seen things go better; the economy has grown 12 percent; corporate profits have grown by 46 percent, and the stock market by 92 percent. What hasn't grown? The paycheck that the average American gets day in and day out for working to do all those things to make it possible for the stock market and corporations to succeed. So it is time for us to focus on the middle of America that works hard every month and gets a paycheck but doesn't see that paycheck grow.

This rules package requires Congress to use fuzzy math, so-called dynamic scoring, to make it easier to give massive tax breaks to special interests and the wealthy. Is that what the middle class wants? No.

Republicans have also added a midnight change to this rules package that rigs the rules against 59 million Americans who currently receive Social Security and to the 160 million Americans who are working today to get Social Security in the future and don't know if Social Security will be there based on these rules. That is not what Americans in the middle want.

Congress should be in the business of making life better, not worse, for everyday Americans. So let's establish rules of the road for this Congress that let us build on the economic progress of nearly 11 million new Americans going back to work, 57 months straight of job growth.

What we don't need are rules of the road for this House that give a green light to reckless legislating that favors special interests and the privileged few at the expense of the middle class and America's Social Security.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 1 minute to the gentleman from Michigan (Mr. LEVIN), the distinguished returning ranking member of the Ways and Means Committee.

Mr. LEVIN. Mr. Speaker, what was said by the Budget Committee chairman is not correct. This is not about more information. This is a requirement that these official cost estimates really be part of the enforcement of the budget resolution. So what this is, in a few words: Republicans today are extending their embrace of voodoo economics by wrapping their arms around voodoo score keeping. Again, it is not about more information. It is being able to cook the books to implement their long-held discredited notion that tax cuts pay for themselves.

I think the former Reagan and George H.W. Bush administration official Bruce Bartlett said it best:

> It is not about honest revenue estimating. It is about using smoke and mirrors to institutionalize Republican ideology in the budget process.

Mr. Speaker, that is what this is all about.

Mr. SESSIONS. Mr. Speaker, I continue to reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, may I inquire from my colleague if he has any remaining speakers.

Mr. SESSIONS. I do have one additional speaker, and then I will close.

Ms. SLAUGHTER. Mr. Speaker, I yield 1 minute to the gentlewoman from California (Ms. PELOSI), the Democratic leader.

Ms. PELOSI. Mr. Speaker, I thank the gentlelady for yielding, and I thank her for her wonderful work on behalf of the American people as the ranking member on the Rules Committee for such a long time and in such a very strong way.

My colleagues, I congratulate you and your families on your swearing in today. We had a lovely ceremony earlier. Eventually it became that, after we knew the outcome of the vote. But it is clear that the election at the polls in November demonstrated that the American people are hopeful that this new Congress can work together to grow our economy and, in turn, grow paychecks for American workers. Honoring that trust, House Democrats today are putting forward a legislative package to increase paychecks for working families and put Americans back to work building the roads and bridges our country needs, paid for by keeping our tax dollars here at home. I

talked about this a little bit earlier when I introduced the Speaker.

What we are proposing, sadly, is in sharp contrast to what the Republicans have in this rule. The first vote that the Republicans are asking this Congress to take in the new Congress will be to advance additional tax cuts for the wealthy and special interests. When they talk about dynamic scoring—when they talk about dynamic scoring—it is a very bad deal for middle-income families in our country.

In sharp contrast to them, we will bring forth the Stop Corporate Expatriation and Invest in America's Infrastructure Act, which prevents U.S. corporations from renouncing their citizenship in order to dodge paying their fair share of taxes. It is time to stop rewarding companies that move overseas and instead use those dollars to create good-paying jobs here at home.

Every chance any of us gets, we have to make that point. I don't see anything partisan about it. And many Republicans have voted in this manner in the past. So this was supposed to be something where we have common ground.

House Democrats will also put forth the CEO-Employee Pay Fairness Act, and that is legislation to ensure that workers share in the fruit of their productivity, denying CEOs the ability to claim tax deductions on income over $1 million unless they give their employees a well-deserved raise.

The American people are owed an open and transparent debate on these issues. Today, with this rules package, Republicans are shutting down debate for Democrats and Republicans. With their extending of the amount of time it takes for Members to put forth a motion to instruct, they are shutting down debate. They are rejecting transparency and openness. That is what the American people want: transparency and openness.

In all that we do in Congress, we must keep the hopes, dreams, and aspirations of the American people in the forefront. We must be committed to do this is a bipartisan way, an open and transparent way. This bill today rejects that.

Now what I want to say, and we all have been reading our Christmas cards and all the rest, but one of the ones that I want to share with you which is irrelevant to our discussion today is from my friend Jack Trout. What he said in ''A Seasonal Greeting for the Times'':

> To borrow a Biblical reference, the money changers have taken over the temple.
>
> What is behind all of this is a concerted effort by wealthy companies and people to protect the status quo and their vested interests. The result is the sad fact that the middle class gets squeezed while the rich get richer. This squeeze is why the consumer-led economy has been so slow to rebound after the financial crisis.
>
> What people fail to realize is the simple fact that the middle class are the real job creators in America. They generate demand, which, in turn, builds markets. The middle class put ''merry'' into Merry Christmas.

I mention this because the fact is that it is true that when the consumer economy, which is what we are, is alive and well and thriving, they spend money, inject demand in the economy, create jobs, and our economic recovery is accelerated.

Dynamic scoring, suppressing debate, and some of the other things contained in this rule are contrary to that and antagonistic to the financial stability of the middle class. So I hope that our colleagues—and there are so many reasons to go through. But what means the most to America's working families is their financial stability. On that subject alone, were it not even for other things in this bill which we could talk about all day that should be rejected, but just because it, again, has a negative impact on the growth of our economy when it comes to supporting the financial stability of the middle class we should vote ''no'' on this.

The Democrats offer a sharp contrast. The motion that will be made to call the previous question is one that calls for us to talk about building the infrastructure of America. The motion to commit that will be put forth by Mr. VAN HOLLEN is one that is fair in terms of pay to our workers.

So for many reasons, Mr. Speaker, I urge our colleagues to vote ''no.'' This isn't what was talked about in terms of ideals and values this morning. This is about putting the squeeze on the middle class, doing it in a nontransparent way, and doing it under the rules of the House. I urge a ''no'' vote.

Mr. SESSIONS. Mr. Speaker, I reserve the balance of my time.

Ms. SLAUGHTER. Mr. Speaker, I am pleased to yield 3 minutes to the gentleman from New York (Mr. ISRAEL).

□ 1615

Mr. ISRAEL. Mr. Speaker, I thank my friend from New York, the distinguished ranking member.

Mr. Speaker, I congratulate all of my colleagues on our swearing in. I just hope that it doesn't trigger 2 years of swearing at. It really does not have to be that way, Mr. Speaker. Democrats in this House will work with the majority to find commonsense solutions to ease the squeeze, to support paycheck growth for the middle class.

What better middle ground than the middle class, Mr. Speaker. The problem with this rules package is it is stacked against the middle class, it is stacked against tax cuts for the middle class, it is stacked against paycheck growth for the middle class.

In contrast, Mr. Speaker, here is what House Democrats are proposing. It is very simple.

Number one, bigger paychecks for the middle class. Under the current rules that the majority supports, Mr. Speaker, a CEO can get a million-dollar bonus and deduct that million dollars from taxes. That shifts that tax burden to an underpaid worker for that CEO. Now, how is that fair? How is that fair? It is not.

It is bad enough that middle class workers' paychecks are squeezed, but sticking the middle class worker with a bill for the CEO's taxes as a result of that million dollar bonus is unconscionable. We have a better way, a better contrast, something that will grow paychecks for the middle class.

Second, under the rules, in the stacked deck that the majority supports, a big corporation can ship jobs overseas. With those jobs overseas go bigger bridges, better roads, better airports, and faster airplanes. Meanwhile, in my district on Long Island, Mr. Speaker, the average middle class worker has to drive through potholes, has longer delays, slower trains, antiquated transportation systems, and delayed airplanes because all of the infrastructure is being built abroad.

It is bad enough that corporations are given incentives to ship jobs overseas. It is unconscionable that under these rules those corporations are able to build infrastructure in those foreign places while America decays.

Under our contrast, Mr. Speaker, we will invest in America, we will rebuild America, we will create new jobs in America, improving our infrastructure.

It is bad enough to be underpaid, Mr. Speaker, but to be underpaid and have to drive through potholes, that is even worse.

Mr. Speaker, on this first day of this new Congress until the very last day of this new Congress, the American people are going to want to know whose side we are on. With these two votes we clearly demonstrate and clearly establish who is on whose side.

I urge my colleagues in this majority on this first day to establish for the American people whose backs they have: the special interests, tax deductions for million-dollar bonuses, foreign corporations; or rebuilding America and rebuilding American jobs.

Mr. SESSIONS. Mr. Speaker, at this time, I yield 4 minutes to the gentleman from Virginia (Mr. GOODLATTE), the chairman of the Judiciary Committee.

Mr. GOODLATTE. Mr. Speaker, I rise in support of the rules package for the 114th Congress.

I would like to begin by taking this opportunity to thank you, Chairman SESSIONS, the Speaker's Office, and the other committee chairmen for working with me to hone and clarify the Judiciary Committee's criminal law jurisdiction.

For many years, the House rules have given the Judiciary Committee jurisdiction over, among other things, the judiciary and judicial proceedings, civil and criminal, and criminal law enforcement. The Judiciary Committee's jurisdiction over criminal law dates back to the creation of the committee in 1813.

In recent years, however, we have become aware of an anomaly in the referral pattern that occasionally prevents the Judiciary Committee from obtaining a referral when a bill criminalizes

new conduct without actually addressing the penalty portion of the criminal law. In other words, while the Judiciary Committee would have had jurisdiction over the underlying statute when it was enacted, it is sometimes unable to assert jurisdiction when the statute is amended in such a way as to criminalize new conduct. The result is that new criminal offenses are being created without being considered by the lawmakers on the Judiciary Committee, which is the committee best situated to provide valuable expertise in drafting and resolving potential conflicts with existing criminal law.

Last Congress, the Judiciary Committee created a bipartisan Over-Criminalization Task Force with the goal of examining the problems associated with a bloated, disorganized, and often redundant collection of Federal criminal offenses. The Congressional Research Service recently reported to us that there are nearly 5,000 Federal criminal laws on the books. Unfortunately, Congress continues to add to this number at a rate of roughly 50 new crimes per year.

One of the recurring themes from both the witnesses who appeared before the task force as well as the members of the task force is that it is crucial that the Judiciary Committee have the opportunity to review all new Federal criminal laws.

Throughout its existence, this bipartisan task force endeavored to closely examine the problems posed by over-criminalization and over-Federalization, and to identify potential solutions to combat the regrettable circumstances that inevitably arise from the tangled web of Federal criminal provisions. Examples of similarly-situated defendants convicted of the same conduct under different statutes with different penalties, or individuals convicted of offenses without proof of any level of criminal intent, have been detailed in our hearings and are far too commonplace.

The rules package today clarifies the committee's jurisdiction over criminal matters by adding one word—''criminalization''—to our existing jurisdiction over criminal law. By making this change, the Judiciary Committee will have a new jurisdictional interest only in those relatively rare instances that a bill criminalizes new conduct by amending a statute that is attached to a criminal penalty without amending the penalty itself. In this instance, the Judiciary Committee will look to work with the other committee on ensuring that the new conduct is worthy of criminalization and that the attached criminal penalties are appropriately drafted.

The Judiciary Committee is not looking to insert itself into the regulatory schemes under the jurisdiction of other committees. However, to the extent that another committee chooses to use the criminal justice system to enforce the regulation under its jurisdiction, we would like to be involved so that we may ask the important question together as to whether particular conduct should be criminalized.

In conclusion, I believe this small clarification of the Judiciary Committee's jurisdiction will allow us to address many of the problems associated with the tangled web of Federal criminal laws.

Again, I would like to thank Chairman SESSIONS and his staff for working very closely with us on this issue and express my strong support.

I urge my colleagues to vote for this rules package.

I rise today in support of the Rules package for the 114th Congress.

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For many years, the House Rules have given the Judiciary Committee jurisdiction over, among other things, ''the judiciary and judicial proceedings, civil and criminal,'' and ''criminal law enforcement.'' The Judiciary Committee's jurisdiction over criminal law dates back to the creation of the committee in 1813.

Typically, the Judiciary Committee either receives a referral upon introduction or has the opportunity to seek a sequential referral when a bill creates a new criminal law or criminal penalties. This allows us to ensure that a criminal provision is properly drafted, or eliminated if it is unnecessary.

In recent years, however, we have become aware of an anomaly in the referral pattern that occasionally prevents the Judiciary Committee from obtaining a referral when a bill criminalizes new conduct without actually addressing the penalty portion of the criminal law. In other words, while the Judiciary Committee would have had jurisdiction over the underlying statute when it was enacted, it is sometimes unable to assert jurisdiction when the statute is amended in such a way as to criminalize new conduct. The result is that new criminal offenses are being created without being considered by the lawmakers on the Judiciary Committee, which is the Committee best situated to provide valuable expertise in drafting and resolving potential conflicts with existing criminal law.

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One of the recurring themes from both the witnesses who appeared before the task force, as well as the Members of the task force, is that it is crucial that the Judiciary Committee have the opportunity to review all new federal criminal laws.

Our Members and staff have the longstanding expertise to ensure that criminal laws are appropriately drafted, that they fit with the overall federal criminal law scheme, that they are appropriate in force relative to other criminal laws, and finally, that the new criminal law is even necessary.

Throughout its existence, this bi-partisan task force endeavored to closely examine the problems posed by over-criminalization and over-federalization, and to identify potential solutions to combat the regrettable circumstances that inevitably arise from the tangled web of federal criminal provisions. Examples of similarly-situated defendants convicted of the same conduct under different statutes with different penalties, or individuals convicted of offenses without proof of any level of criminal intent, have been detailed in our hearings and are far too commonplace.

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In conclusion, I believe this small clarification to the Judiciary Committee's jurisdiction will allow us to address many of the problems associated with the tangled web of federal criminal laws.

Again, I would like to thank Chairman SESSIONS for working with me on this issue, and express my strong support for this Rules package.

Ms. SLAUGHTER. Mr. Speaker, I yield myself such time as I may consume.

The legacy of the 113th Congress shows us a broken institution: broken by partisanship and recalcitrance.

I urge my colleagues to change course in the 114th Congress, to encourage openness, transparency, and true bipartisanship. If we can achieve this, we will come together.

If we defeat the previous question, I will move to amend the resolution to bring up the Stop Corporate Expatriation and Invest in America's Infrastructure Act of 2015 to stop giving up American citizenship to avoid paying taxes.

Mr. Speaker, I ask unanimous consent to insert the text of the amendment in the RECORD, along with extraneous material, immediately prior to the vote on the previous question.

The SPEAKER pro tempore. Is there objection to the request of the gentlewoman from New York?

There was no objection.

Ms. SLAUGHTER. I urge my colleagues to vote ''no,'' and I yield back the balance of my time.

Mr. SESSIONS. Mr. Speaker, I yield myself such time as I may consume.

Overall, this package demonstrates Republicans' commitment to an open process from Members on both sides of the aisle on the issues of the day that need to be debated, on legislation that will make a difference in the lives of the American people.

We have heard from the Republican chairman of the Budget Committee and the Republican chairman of the Judiciary Committee. I believe this is a great package.

Ms. SLAUGHTER. Mr. Speaker, this House rules package has a number of other provisions with which we have serious concerns. Most significantly, the rules change relating to Social Security. Late last night, the Republican rules package was revised to include a major new provision that will likely force Social Security benefit cuts. The new rule would prevent the House from considering legislation to prevent a scheduled 20 percent cut to Social Security benefits for 11 million disabled workers and their families (by creating a point of order against legislation that reallocates FICA taxes between the Social Security Trust Funds, which have a current overall balance of $2.8 trillion), unless the legislation also includes Social Security benefit cuts or tax increases. Without any substantive debate and out of public view, the rule would prevent the House from even considering a mechanism endorsed by more than 50 advocacy groups and which Congress has used 11 times in the past to address shortfalls in one of the trust funds.

H. Res. 5 also extends staff deposition authority to four more committees (Energy and Commerce, Financial Services, Science, and Ways and Means). We are deeply concerned that these new authorities will be used to launch politically motivated attacks on the Affordable Care Act, Environmental Protection Agency actions, the implementation of Dodd-Frank financial industry reform, and IRS regulations.

Democrats are disappointed that House Republicans have decided to continue their politically-motivated lawsuit against the President over implementation of the Affordable Care Act and their partisan investigations into ''Fast and Furious'' and the attack in Benghazi, Libya. Extensions of those authorities also appear in H. Res. 5.

H. Res. 5's changes to the motion to instruct also concern us deeply. Under current rules, motions to instruct conferees can be offered 25 legislative days and 10 calendar days after conference committees have been appointed. H. Res. 5 lengthens these periods, so that motions to instruct would be privileged 45 calendar days and 25 legislative days after the conference is appointed. This is clearly an attempt to weaken the Minority's ability to participate in the conference committee process in the future.

Changes to the authorizing language of the Bipartisan Legal Advisory Group have the potential to make it politically easier for the Majority to file additional lawsuits against the President, and this possibility disturbs us given the events surrounding the filing of the ACA-related lawsuit last Congress.

H. Res. 5 contains a number of other provisions, some of which raise concerns and some of which appear to be innocuous. For example, small changes to the jurisdiction of certain committees, an increase in the size of the Intelligence Committee, an allowance for extra subcommittees on the Agriculture, Armed Services, Foreign Affairs, and Transportation and Infrastructure Committees, and allowing the Speaker to reconvene the House at a time other than previously appointed after consultation with the Minority Leader, among others.

Mr. TOM PRICE of Georgia. Mr. Speaker, in this resolution, we are establishing a new requirement in clause 8 of Rule XIII that the Congressional Budget Office (CBO) and the Joint Committee on Taxation (JCT) incorporate into the official cost estimates required under section 402 of the Congressional Budget Act of 1974 (Budget Act) the macroeconomic effects of ''major legislation.'' Because this rule builds on the existing requirement for cost estimates, it does not apply to appropriations legislation.

By including an analysis of how major legislation will affect the economy, this rule provides the House with a more comprehensive estimate than can be produced using only the traditional, conventional scoring methods which implicitly assume that legislation has no effect on the broader economy. In particular, this analysis is required to include the budgetary effects of changes in economic output, employment, the capital stock, and other macroeconomic variables resulting from major legislation. In addition, this rule requires a qualitative assessment of the long-term budgetary and macroeconomic effects of major legislation.

Major legislation is defined as legislation causing an increase or decrease in revenues, outlays, or deficits in any fiscal year covered by the budget resolution equal to or greater than 0.25 percent of the projected gross domestic product for that year. In applying the 0.25 percent threshold, CBO and JCT are required to look at the gross budgetary effects of the legislation. In carrying out this requirement, the intent is that CBO and JCT review provisions in the bill that have a significant effect. Thus, the test is whether any provision in the legislation has a budgetary effect larger than the threshold, or if the absolute value of the sum of the provisions exceeds the threshold, rather than whether the legislation as a whole has such an effect when all of the provisions are netted out.

Alternately, for legislation that may not have a large fiscal effect, but would still have significant economic impacts, the new rule empowers the House to designate ''major legislation.'' For all legislation other than purely revenue legislation, the rule authorizes the chair of the Budget Committee to designate ''major legislation.'' For purely revenue legislation (i.e., legislation that contains only provisions described in section 201(f) of the Budget Act), the rule authorizes the House Member serving as the chair or vice chair of JCT, to designate ''major legislation'' for purposes of this rule.

The rule carefully preserves the existing division of labor between CBO and JCT, which requires close collaboration between these two non-partisan institutions. When major legislation involves both revenue and non-revenue provisions, CBO and JCT will need to work together to produce a single, integrated cost estimate for the legislation drawing on each agency's institutional responsibilities.

The rule requires enhanced transparency around these budgetary estimates. Both CBO and JCT, as applicable, must provide together with their estimates a description of the critical assumptions and the source data underlying such estimates. It is important that CBO and JCT make this information available so that the public, academic, and other experts have an opportunity to review the analysis and pursue possible improvements in the methodologies used to develop these estimates. Distributional analyses of proposed tax changes that JCT provides as background information is another area where estimates could be improved by incorporating macroeconomic effects into these analyses.

The preparation of cost estimates incorporating macroeconomic effects is frequently more complex and requires more time than the preparation of conventional cost estimates. Committees should therefore build in additional time to allow for the completion of the cost estimate. Both CBO and JCT should strive to promptly produce the estimates required by this rule. To the extent it is not practicable for CBO and JCT to produce the required estimates, the rule provides an accommodation in this instance. Two possible circumstances may arise when it is not feasible to produce the required analysis. First, committees and the House may be operating under tight deadlines and it is not possible for CBO or JCT to complete the analysis prior to the legislation's consideration. Second, while CBO and JCT have developed a great deal of expertise and experience in producing these analyses, there may be situations where it is not possible for CBO and JCT to produce the required analysis.

The material previously referred to by Ms. SLAUGHTER is as follows:

AN AMENDMENT TO H. RES. 5 OFFERED BY MS. SLAUGHTER OF NEW YORK

At the end of the resolution, add the following new sections:

Sec. 6. STOP CORPORATE EXPATRIATION AND INVEST IN AMERICA'S INFRASTRUCTURE ACT OF 2015.

Not later than January 31, 2015, the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of a bill consisting of the text specified in section 8 of this resolution, to amend the Internal Revenue Code of 1986 to modify the rules relating to inverted corporations and to transfer the resulting revenues to the Highway Trust Fund. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

Sec. 7. Clause 1(c) of rule XIX shall not apply to the consideration of the bill specified in section 8 of this resolution.

Sec. 8. The text referred to in section 6 is as follows:

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Stop Corporate Expatriation and Invest in America's Infrastructure Act of 2015''.

SEC. 2. MODIFICATIONS TO RULES RELATING TO INVERTED CORPORATIONS.

(a) IN GENERAL.—Subsection (b) of section 7874 of the Internal Revenue Code of 1986 is amended to read as follows:

''(b) INVERTED CORPORATIONS TREATED AS DOMESTIC CORPORATIONS.—

''(1) IN GENERAL.—Notwithstanding section 7701(a)(4), a foreign corporation shall be treated for purposes of this title as a domestic corporation if—

''(A) such corporation would be a surrogate foreign corporation if subsection (a)(2) were applied by substituting '80 percent' for '60 percent', or

''(B) such corporation is an inverted domestic corporation.

''(2) INVERTED DOMESTIC CORPORATION.—For purposes of this subsection, a foreign corporation shall be treated as an inverted domestic corporation if, pursuant to a plan (or a series of related transactions)—

''(A) the entity completes after May 8, 2014, the direct or indirect acquisition of—

''(i) substantially all of the properties held directly or indirectly by a domestic corporation, or

''(ii) substantially all of the assets of, or substantially all of the properties constituting a trade or business of, a domestic partnership, and

''(B) after the acquisition, either—

''(i) more than 50 percent of the stock (by vote or value) of the entity is held—

''(I) in the case of an acquisition with respect to a domestic corporation, by former shareholders of the domestic corporation by reason of holding stock in the domestic corporation, or

''(II) in the case of an acquisition with respect to a domestic partnership, by former partners of the domestic partnership by reason of holding a capital or profits interest in the domestic partnership, or

''(ii) the management and control of the expanded affiliated group which includes the entity occurs, directly or indirectly, primarily within the United States, and such expanded affiliated group has significant domestic business activities.

''(3) EXCEPTION FOR CORPORATIONS WITH SUBSTANTIAL BUSINESS ACTIVITIES IN FOREIGN COUNTRY OF ORGANIZATION.—A foreign corporation described in paragraph (2) shall not be treated as an inverted domestic corporation if after the acquisition the expanded affiliated group which includes the entity has substantial business activities in the foreign country in which or under the law of which the entity is created or organized when compared to the total business activities of such expanded affiliated group. For purposes of subsection (a)(2)(B)(iii) and the preceding sentence, the term 'substantial business activities' shall have the meaning given such term under regulations in effect on May 8, 2014, except that the Secretary may issue regulations increasing the threshold percent in any of the tests under such regulations for determining if business activities constitute substantial business activities for purposes of this paragraph.

''(4) MANAGEMENT AND CONTROL.—For purposes of paragraph (2)(B)(ii)—

''(A) IN GENERAL.—The Secretary shall prescribe regulations for purposes of determining cases in which the management and control of an expanded affiliated group is to be treated as occurring, directly or indirectly, primarily within the United States. The regulations prescribed under the preceding sentence shall apply to periods after May 8, 2014.

''(B) EXECUTIVE OFFICERS AND SENIOR MANAGEMENT.—Such regulations shall provide that the management and control of an expanded affiliated group shall be treated as occurring, directly or indirectly, primarily within the United States if substantially all of the executive officers and senior management of the expanded affiliated group who exercise day-to-day responsibility for making decisions involving strategic, financial, and operational policies of the expanded affiliated group are based or primarily located within the United States. Individuals who in fact exercise such day-to-day responsibilities shall be treated as executive officers and senior management regardless of their title.

''(5) SIGNIFICANT DOMESTIC BUSINESS ACTIVITIES.—For purposes of paragraph (2)(B)(ii), an expanded affiliated group has significant domestic business activities if at least 25 percent of—

''(A) the employees of the group are based in the United States,

''(B) the employee compensation incurred by the group is incurred with respect to employees based in the United States,

''(C) the assets of the group are located in the United States, or

''(D) the income of the group is derived in the United States,

determined in the same manner as such determinations are made for purposes of determining substantial business activities under regulations referred to in paragraph (3) as in effect on May 8, 2014, but applied by treating all references in such regulations to 'foreign country' and 'relevant foreign country' as references to 'the United States'. The Secretary may issue regulations decreasing the threshold percent in any of the tests under such regulations for determining if business activities constitute significant domestic business activities for purposes of this paragraph.''.

(b) CONFORMING AMENDMENTS.—

(1) Clause (i) of section 7874(a)(2)(B) of such Code is amended by striking ''after March 4, 2003,'' and inserting ''after March 4, 2003, and before May 9, 2014,''.

(2) Subsection (c) of section 7874 of such Code is amended—

(A) in paragraph (2)—

(i) by striking ''subsection (a)(2)(B)(ii)'' and inserting ''subsections (a)(2)(B)(ii) and (b)(2)(B)(i)'', and

(ii) by inserting ''or (b)(2)(A)'' after ''(a)(2)(B)(i)'' in subparagraph (B),

(B) in paragraph (3), by inserting ''or (b)(2)(B)(i), as the case may be,'' after ''(a)(2)(B)(ii)'',

(C) in paragraph (5), by striking ''subsection (a)(2)(B)(ii)'' and inserting ''subsections (a)(2)(B)(ii) and (b)(2)(B)(i)'', and

(D) in paragraph (6), by inserting ''or inverted domestic corporation, as the case may be,'' after ''surrogate foreign corporation''.

(c) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years ending after May 8, 2014.

SEC. 3. TRANSFERS TO HIGHWAY TRUST FUND.

(a) IN GENERAL.—Section 9503(f) of the Internal Revenue Code of 1986 is amended by redesignating paragraph (5) as paragraph (6) and by inserting after paragraph (4) the following new paragraph:

''(5) ADDITIONAL APPROPRIATIONS TO TRUST FUND.—Out of money in the Treasury not otherwise appropriated, there is hereby appropriated—

''(A) $26,852,000,000 to the Highway Account (as defined in subsection (e)(5)(B)) in the Highway Trust Fund, and

''(B) $6,713,000,000 to the Mass Transit Account in the Highway Trust Fund.''.

(b) EFFECTIVE DATE.—The amendments made by this section shall take effect on the date of the enactment of this Act.

THE VOTE ON THE PREVIOUS QUESTION: WHAT IT REALLY MEANS

This vote, the vote on whether to order the previous question on a special rule, is not merely a procedural vote. A vote against ordering the previous question is a vote against the Republican majority agenda and a vote to allow the Democratic minority to offer an alternative plan. It is a vote about what the House should be debating.

Mr. Clarence Cannon's Precedents of the House of Representatives (VI, 308–311), describes the vote on the previous question on the rule as ''a motion to direct or control the consideration of the subject before the House being made by the Member in charge.'' To defeat the previous question is to give the opposition a chance to decide the subject before the House. Cannon cites the Speaker's ruling of January 13, 1920, to the effect that ''the refusal of the House to sustain the demand for the previous question passes the control of the resolution to the opposition'' in order to offer an amendment. On March 15, 1909, a member of the majority party offered a rule resolution. The House defeated the previous question and a member of the opposition rose to a parliamentary inquiry, asking who was entitled to recognition. Speaker Joseph G. Cannon (R-Illinois) said: ''The previous question having been refused, the gentleman from New York, Mr. Fitzgerald, who had asked the gentleman to yield to him for an amendment, is entitled to the first recognition.''

The Republican majority may say ''the vote on the previous question is simply a vote on whether to proceed to an immediate vote on adopting the resolution . . . [and] has no substantive legislative or policy implications whatsoever.'' But that is not what they have always said. Listen to the Republican Leadership Manual on the Legislative Process in the United States House of Representatives, (6th edition, page 135). Here's how the Republicans describe the previous question vote in their own manual: ''Although it is generally not possible to amend the rule because the majority Member controlling the time will not yield for the purpose of offering an amendment, the same result may be achieved by voting down the previous question on the rule. . . . When the motion for the previous question is defeated, control of the time passes to the Member who led the opposition to ordering the previous question. That Member, because he then controls the time, may offer an amendment to the rule, or yield for the purpose of amendment.''

In Deschler's Procedure in the U.S. House of Representatives, the subchapter titled ''Amending Special Rules'' states: ''a refusal to order the previous question on such a rule [a special rule reported from the Committee on Rules] opens the resolution to amendment and further debate.'' (Chapter 21, section 21.2) Section 21.3 continues: ''Upon rejection of the motion for the previous question on a resolution reported from the Committee on Rules, control shifts to the Member leading the opposition to the previous question, who may offer a proper amendment or motion and who controls the time for debate thereon.''

Clearly, the vote on the previous question on a rule does have substantive policy implications. It is one of the only available tools for those who oppose the Republican majority's agenda and allows those with alternative views the opportunity to offer an alternative plan.

Mr. SESSIONS. Mr. Speaker, I yield back the balance of my time, and I move the previous question on the resolution.

The SPEAKER pro tempore. The question is on ordering the previous question.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 239, nays 168, not voting 26, as follows:

[Roll No. 4]

YEAS—239

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emmer
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice (GA)
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Pitts
Poe (TX)
Poliquin
Pompeo
Posey
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NAYS—168

Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu (CA)
Cicilline
Clark (MA)
Clarke (NY)
Clay
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle (PA)
Duckworth
Edwards
Ellison
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Himes
Hinojosa
Honda
Hoyer
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lipinski
Loebsack
Lofgren
Lowenthal
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Matsui
McCollum
McDermott
McGovern
McNerney
Moore
Moulton
Murphy (FL)
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Visclosky
Walz
Wasserman Schultz
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NOT VOTING—8

Cárdenas
Carney
Cleaver
Huffman
Knight
Lieu (CA)
Mooney (WV)
Payne

SWEARING IN OF MEMBERS-ELECT

The SPEAKER (during the vote). While Members are coming in to record their votes, it is the intention of the Chair to administer the oath of office to the gentleman from South Carolina (Mr. GOWDY), the gentleman from Vermont (Mr. WELCH), the gentleman from Rhode Island (Mr. CICILLINE), the gentleman from North Carolina (Mr. PRICE), and the gentleman from Tennessee (Mr. COOPER).

Messrs. GOWDY, WELCH, CICILLINE, PRICE of North Carolina, and COOPER appeared at the bar of the House, and the Speaker administered the oath of office to them as follows:

Do you solemnly swear or affirm that you will support and defend the Constitution of the United States against all enemies, foreign and domestic; that you will bear true faith and allegiance to the same; that you take this obligation freely, without any mental reservation or purpose of evasion; and that you will well and faithfully discharge the duties of the office on which you are about to enter, so help you God.

The SPEAKER. Congratulations. You are now Members of the 114th Congress.

□ 1652

Ms. MOORE and Ms. CLARKE of New York changed their vote from ''yea'' to ''nay.''

So the previous question was ordered.

The result of the vote was announced as above recorded.

Stated against:

Mr. PAYNE. Mr. Speaker, on rollcall No. 4, had I been present, I would have voted "no."

MOTION TO COMMIT

Mr. VAN HOLLEN. Mr. Speaker, I have a motion to commit at the desk.

The SPEAKER pro tempore. The Clerk will report the motion.

The Clerk read as follows:

Mr. Van Hollen moves that the resolution (H. Res. 5) be committed to a select committee composed of the Majority Leader and the Minority Leader with instructions to report it forthwith back to the House with the following amendment:

At the end of the resolution, add the following new sections:

Sec. 6. CEO–EMPLOYEE PAYCHECK FAIRNESS ACT OF 2015.

Not later than January 31, 2015, the Speaker shall, pursuant to clause 2(b) of rule XVIII, declare the House resolved into the Committee of the Whole House on the state of the Union for consideration of a bill consisting of the text specified in section 8 of this resolution, to amend the Internal Revenue Code of 1986 to expand the denial of deduction for certain excessive employee remuneration. The first reading of the bill shall be dispensed with. All points of order against consideration of the bill are waived. General debate shall be confined to the bill and shall not exceed one hour equally divided and controlled by the chair and ranking minority member of the Committee on Ways and Means. After general debate the bill shall be considered for amendment under the five-minute rule. All points of order against provisions in the bill are waived. At the conclusion of consideration of the bill for amendment the Committee shall rise and report the bill to the House with such amendments as may have been adopted. The previous question shall be considered as ordered on the bill and amendments thereto to final passage without intervening motion except one motion to recommit with or without instructions. If the Committee of the Whole rises and reports that it has come to no resolution on the bill, then on the next legislative day the House shall, immediately after the third daily order of business under clause 1 of rule XIV, resolve into the Committee of the Whole for further consideration of the bill.

Sec. 7. Clause 1(c) of rule XIX shall not apply to the consideration of the bill specified in section 8 of this resolution.

Sec. 8. The text referred to in section 6 is as follows:

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''CEO–Employee Paycheck Fairness Act of 2015''.

SEC. 2. EXPANSION OF DENIAL OF DEDUCTION FOR CERTAIN EXCESSIVE EMPLOYEE REMUNERATION.

(a) EXPANDED APPLICATION OF DEDUCTION DENIAL IF PAY FAIRNESS REQUIREMENT NOT MET.—Section 162(m) of the Internal Revenue Code of 1986 is amended by adding at the end the following new paragraph:

''(7) SPECIAL RULE IN CASE OF COMPANIES NOT MEETING PAY FAIRNESS REQUIREMENT.—

''(A) IN GENERAL.—In the case of a publicly held corporation which does not meet the pay fairness requirement of subparagraph (B) for the taxable year—

''(i) no deduction shall be allowed under this chapter for applicable employee remuneration with respect to any employee to the extent that the amount of such remuneration for the taxable year with respect to such employee exceeds $1,000,000, and

''(ii) paragraph (4) shall be applied without regard to subparagraphs (B), (C), and (D) thereof.

For purposes of the preceding sentence, the term 'employee' includes any officer or director of the taxpayer and any former officer, director, or employee of the taxpayer.

''(B) PAY FAIRNESS REQUIREMENT.—The pay fairness requirement of this subparagraph is satisfied if—

''(i)(I) the average compensation paid by the taxpayer to or for all applicable United States employees for the taxable year, exceeds

''(II) the inflation and productivity growth adjusted average of such compensation for the preceding taxable year, and

''(ii) the aggregate compensation paid by the employer to or for all applicable United States employees for the taxable year is not less than the aggregate of such compensation for the preceding taxable year.

''(C) APPLICABLE UNITED STATES EMPLOYEE.—For purposes of this paragraph, the term 'applicable United States employee' means, with respect to any taxable year, any employee—

''(i) whose services with respect to the employer are substantially all performed within the United States, and

''(ii) whose compensation from the employer for the taxable year does not exceed the dollar amount in effect under section 414(q)(1)(B)(i) with respect to the calendar year in which such taxable year begins.

''(D) INFLATION AND PRODUCTIVITY GROWTH ADJUSTED AVERAGE.—The inflation and productivity growth adjusted average of compensation under subparagraph (B)(i)(II) for any taxable year shall be determined by multiplying—

''(i) the average of the compensation paid by the taxpayer to or for all applicable United States employees for the taxable year, by

''(ii) the sum of the cost-of-living adjustment and the productivity adjustment for the taxable year.

''(E) COST-OF-LIVING ADJUSTMENT.—For purposes of subparagraph (D)(ii), the cost-of-living adjustment for any taxable year shall be the cost-of-living adjustment determined under section 1(f)(3) for the calendar year in which the taxable year begins, determined by substituting 'the second preceding calendar year' for 'calendar year 1992' in subparagraph (B) thereof.

''(F) PRODUCTIVITY ADJUSTMENT.—For purposes of subparagraph (D)(ii)—

''(i) IN GENERAL.—The productivity adjustment for the taxable year shall be an amount (expressed as a percentage) equal to the average annual increase in the business productivity index for the period beginning with calendar year 2000 and ending with the calendar year preceding the calendar year in which the taxable year begins.

''(ii) BUSINESS PRODUCTIVITY INDEX.—The term 'business productivity index' means the nonfarm business productivity index published by the Bureau of Labor Statistics as adjusted by the Secretary to account for depreciation.

''(G) COMPENSATION.—For purposes of this subparagraph, the term 'compensation' means, with respect to any employee, the sum of—

''(i) the employee's wages on which the tax under section 3101(b) is imposed, plus

''(ii) any amount described in paragraph (9), (11), (12), or (14) of section 6051(a) with respect to the employee.

''(H) AGGREGATION RULES.—Rules similar to the rules of paragraph (5)(B)(iii) shall apply for purposes of this paragraph.

''(I) REGULATIONS.—The Secretary may prescribe such regulations as are necessary to carry out the purposes of this paragraph, including adjustments to the pay fairness requirements of subparagraph (B)—

''(i) to prevent avoidance of this paragraph through changes in the composition of the taxpayer's workforce, and

''(ii) to account for significant, non-tax-motivated changes in the size and composition of the taxpayer's workforce (including mergers, spinoffs, or changes in the occupational composition of a taxpayer's workforce).''.

(b) MODIFICATION OF DEFINITION OF COVERED EMPLOYEES.—

(1) IN GENERAL.—Paragraph (3) of section 162(m) of such Code is amended—

(A) in subparagraph (A), by striking ''as of the close of the taxable year, such employee is the chief executive officer of the taxpayer or'' and inserting ''such employee is the chief executive officer or the chief financial officer of the taxpayer at any time during the taxable year, or was'',

(B) in subparagraph (B) by striking ''(other than the chief executive officer)'' and inserting ''(other than any individual described in subparagraph (A))'', and

(C) by striking ''or'' at the end of subparagraph (A), by striking the period at the end of subparagraph (B) and inserting '', or'', and by adding at the end the following:

''(C) was a covered employee of the taxpayer (or any predecessor) for any preceding taxable year beginning after December 31, 2014.''.

(2) TECHNICAL AMENDMENT.—Section 162(m)(3)(B) of such Code is amended by striking ''4 highest'' and inserting ''3 highest''.

(c) APPLICABLE EMPLOYEE REMUNERATION PAID TO BENEFICIARIES, ETC.—Paragraph (4) of section 162(m) of such Code is amended by adding at the end the following new subparagraph:

''(H) SPECIAL RULE FOR REMUNERATION PAID TO BENEFICIARIES, ETC.—Remuneration shall not fail to be applicable employee remuneration merely because it is includible in the income of, or paid to, a person other than the covered employee, including after the death of the covered employee.''.

(d) EXPANSION OF APPLICABLE EMPLOYER TO INCLUDE NON-LISTED PUBLIC COMPANIES.—Paragraph (2) of section 162(m) of such Code is amended to read as follows:

''(2) PUBLICLY HELD CORPORATION.—For purposes of this subsection, the term 'publicly held corporation' means any corporation which is an issuer (as defined in section 3 of the Securities Exchange Act of 1934)—

''(A) that has a class of securities registered under section 12 of such Act, or

''(B) that is required to file reports under section 15(d) of such Act.''.

(e) EFFECTIVE DATE.—The amendments made by this section shall apply to taxable years beginning after December 31, 2014.

Mr. SESSIONS (during the reading). Mr. Speaker, I ask unanimous consent that the motion to commit be considered as read.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Texas?

There was no objection.

The SPEAKER pro tempore. Without objection, the previous question is ordered on the motion to commit.

There was no objection.

The SPEAKER pro tempore. The question is on the motion to commit.

The question was taken; and the Speaker pro tempore announced that the noes appeared to have it.

Mr. VAN HOLLEN. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 168, nays 243, not voting 22, as follows:

[Roll No. 5]

YEAS—168

Adams
Aguilar
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capps
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu (CA)
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DeLauro
DelBene
DeSaulnier
Deutch
Dingell
Doggett
Doyle (PA)
Duckworth
Edwards
Ellison
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Grayson
Green, Al
Green, Gene
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Larson (CT)
Lawrence
Lee
Levin
Lewis
Lieu (CA)
Lipinski
Loebsack
Lofgren
Lowenthal
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Matsui
McCollum
McDermott
McGovern
McNerney
Moore
Moulton
Murphy (FL)
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Visclosky
Walz
Wasserman Schultz
Watson Coleman
Welch
Wilson (FL)
Yarmuth

NAYS—243

Abraham
Aderholt
Allen
Amash
Amodei
Ashford
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost

Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duffy
Duncan (SC)
Duncan (TN)
Ellmers
Emmer
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Graham
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Griffith
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice (GA)
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
Hurt (VA)
Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jones
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
Massie
McCarthy
McCaul
McClintock
McHenry
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mullin
Mulvaney
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Peters
Pittenger
Poe (TX)
Poliquin
Pompeo
Posey
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Sinema
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Yoho
Young (IA)
Young (IN)
Zeldin
Zinke

NOT VOTING—4

McKinley
Mooney (WV)
Pitts
Sanchez, Loretta

□ 1714

Messrs. GOHMERT, ASHFORD, and PALMER changed their vote from ''yea'' to ''nay.''

Mr. TAKANO changed his vote from ''nay'' to ''yea.''

So the motion to commit was rejected.

The result of the vote was announced as above recorded.

The SPEAKER pro tempore. The question is on the resolution.

The question was taken; and the Speaker pro tempore announced that the ayes appeared to have it.

Ms. SLAUGHTER. Mr. Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 234, nays 172, answered ''present'' 1, not voting 26, as follows:

[Roll No. 6]

YEAS—234

Abraham
Aderholt
Allen
Amash
Amodei
Babin
Barletta
Barr
Barton
Benishek
Bilirakis
Bishop (MI)
Bishop (UT)
Black
Blackburn
Blum
Bost
Boustany
Brady (TX)
Brat
Bridenstine
Brooks (AL)
Brooks (IN)
Buchanan
Buck
Bucshon
Burgess
Byrne
Calvert
Carter (GA)
Chabot
Chaffetz
Clawson (FL)
Coffman
Cole
Collins (GA)
Collins (NY)
Comstock
Conaway
Cook
Costello (PA)
Cramer
Crawford
Crenshaw
Culberson
Curbelo (FL)
Davis, Rodney
Denham
Dent
DeSantis
DesJarlais
Diaz-Balart
Dold
Duncan (SC)
Duncan (TN)
Ellmers
Emmer
Farenthold
Fincher
Fitzpatrick
Fleischmann
Fleming
Flores
Forbes
Fortenberry
Foxx
Franks (AZ)
Frelinghuysen
Garrett
Gibbs
Gibson
Gohmert
Goodlatte
Gosar
Gowdy
Granger
Graves (GA)
Graves (LA)
Graves (MO)
Grothman
Guinta
Guthrie
Hanna
Hardy
Harper
Harris
Hartzler
Heck (NV)
Hensarling
Herrera Beutler
Hice (GA)
Hill
Holding
Hudson
Huelskamp
Huizenga (MI)
Hultgren
Hunter
Hurd (TX)
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Issa
Jenkins (KS)
Jenkins (WV)
Johnson (OH)
Johnson, Sam
Jolly
Jordan
Joyce
Katko
Kelly (PA)
King (IA)
King (NY)
Kinzinger (IL)
Kline
Knight
Labrador
LaMalfa
Lamborn
Lance
Latta
LoBiondo
Long
Loudermilk
Love
Lucas
Luetkemeyer
Lummis
MacArthur
Marchant
Marino
McCarthy
McCaul
McClintock
McHenry
McKinley
McMorris Rodgers
McSally
Meadows
Meehan
Messer
Mica
Miller (FL)
Miller (MI)
Moolenaar
Mullin
Murphy (PA)
Neugebauer
Newhouse
Noem
Nugent
Nunes
Olson
Palazzo
Palmer
Paulsen
Pearce
Perry
Pittenger
Poe (TX)
Poliquin
Pompeo
Posey
Price (GA)
Ratcliffe
Reed
Reichert
Renacci
Ribble
Rice (SC)
Rigell
Roby
Roe (TN)
Rogers (AL)
Rogers (KY)
Rohrabacher
Rokita
Rooney (FL)
Ros-Lehtinen
Roskam
Ross
Rothfus
Rouzer
Royce
Russell
Ryan (WI)
Salmon
Sanford
Scalise
Schock
Schweikert
Scott, Austin
Sensenbrenner
Sessions
Shimkus
Shuster
Simpson
Smith (MO)
Smith (NE)
Smith (NJ)
Smith (TX)
Stefanik
Stewart
Stivers
Stutzman
Thompson (PA)
Thornberry
Tiberi
Tipton
Trott
Turner
Upton
Valadao
Wagner
Walberg
Walden
Walker
Walorski
Walters, Mimi
Weber (TX)
Webster (FL)
Wenstrup
Westerman
Westmoreland
Whitfield
Williams
Wilson (SC)
Wittman
Womack
Woodall
Yoder
Young (IA)
Young (IN)
Zeldin
Zinke

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Adams
Aguilar
Ashford
Bass
Beatty
Becerra
Bera
Beyer
Bishop (GA)
Blumenauer
Bonamici
Boyle (PA)
Brady (PA)
Brown (FL)
Brownley (CA)
Bustos
Butterfield
Capuano
Cárdenas
Carney
Carson (IN)
Cartwright
Castor (FL)
Castro (TX)
Chu (CA)
Cicilline
Clark (MA)
Clarke (NY)
Clay
Cleaver
Clyburn
Cohen
Connolly
Conyers
Cooper
Courtney
Cuellar
Cummings
Davis (CA)
Davis, Danny
DeFazio
DeGette
Delaney
DelBene
DeSaulnier
Dingell
Doggett
Doyle (PA)
Duckworth
Edwards
Ellison
Eshoo
Esty
Farr
Fattah
Foster
Frankel (FL)
Fudge
Gabbard
Gallego
Garamendi
Graham
Grayson
Green, Al
Green, Gene
Griffith
Grijalva
Gutiérrez
Hahn
Hastings
Heck (WA)
Himes
Hinojosa
Honda
Hoyer
Huffman
Israel
Jackson Lee
Jeffries
Johnson (GA)
Johnson, E. B.
Jones
Kaptur
Keating
Kelly (IL)
Kennedy
Kildee
Kilmer
Kind
Kirkpatrick
Kuster
Langevin
Larsen (WA)
Lawrence
Lee
Levin
Lewis
Lieu (CA)
Lipinski
Loebsack
Lofgren
Lowenthal
Lujan Grisham (NM)
Luján, Ben Ray (NM)
Lynch
Massie
Matsui
McCollum
McDermott
McGovern
McNerney
Moore
Moulton
Murphy (FL)
Napolitano
Neal
Norcross
O'Rourke
Pallone
Pascrell
Payne
Pelosi
Perlmutter
Peters
Peterson
Pingree
Pocan
Polis
Price (NC)
Quigley
Rice (NY)
Richmond
Roybal-Allard
Ruiz
Ruppersberger
Rush
Ryan (OH)
Sánchez, Linda T.
Sanchez, Loretta
Sarbanes
Schakowsky
Schiff
Schrader
Scott (VA)
Scott, David
Serrano
Sewell (AL)
Sherman
Sinema
Sires
Slaughter
Smith (WA)
Speier
Swalwell (CA)
Takai
Takano
Thompson (CA)
Thompson (MS)
Titus
Torres
Tsongas
Van Hollen
Vargas
Veasey
Vela
Visclosky
Walz
Wasserman Schultz
Welch
Wilson (FL)
Yarmuth
Yoho

ANSWERED ''PRESENT''—1

Mulvaney

NOT VOTING—8

Capps
DeLauro
Deutch
Duffy
Larson (CT)
Mooney (WV)
Pitts
Watson Coleman

□ 1730

So the resolution was agreed to.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

Stated against:

Ms. DELAURO. Madam Speaker, I was unavoidably detained and so I missed rollcall vote No. 6 regarding the ''The Rules Package for the 114th Congress'' (H. Res. 5). Had I been present, I would have voted ''no.''

Mr. DEUTCH. Mr. Speaker, on rollcall No. 6, had I been present, I would have voted ''nay.''

Mrs. WATSON COLEMAN. Mr. Speaker, on rollcall No. 6, had I been present, I would have voted ''nay.''

MESSAGE FROM THE SENATE

A message from the Senate by Ms. Curtis, one of its clerks, announced that the Senate has agreed to resolutions:

S. RES. 2

In the Senate of the United States, January 6, 2015.

Resolved, That the Secretary inform the House of Representatives that a quorum of the Senate is assembled and that the Senate is ready to proceed to business.

S. RES. 5

In the Senate of the United States, January 6, 2015.

Resolved, That the House of Representatives be notified of the election of the Honorable Orrin G. Hatch as President of the Senate pro tempore.

S. RES. 10

In the Senate of the United States, January 6, 2015.

Resolved, That the House of Representatives be notified of the election of the Honorable Julie E. Adams as Secretary of the Senate.

S. RES. 13

In the Senate of the United States, January 6, 2015.

Resolved, That the House of Representatives be notified of the election of the Honorable Frank J. Larkin as Sergeant at Arms and Doorkeeper of the Senate.

ELECTING MEMBERS TO CERTAIN STANDING COMMITTEES OF THE HOUSE OF REPRESENTATIVES

Mrs. MCMORRIS RODGERS. Madam Speaker, by direction of the Republican Conference, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 6

Resolved, That the following named Members be, and are hereby, elected to the following standing committees of the House of Representatives:

COMMITTEE ON AGRICULTURE: Mr. Conaway, Chair.

COMMITTEE ON APPROPRIATIONS: Mr. Rogers of Kentucky, Chair.

COMMITTEE ON ARMED SERVICES: Mr. Thornberry, Chair.

COMMITTEE ON THE BUDGET: Mr. Tom Price of Georgia, Chair.

COMMITTEE ON EDUCATION AND THE WORKFORCE: Mr. Kline, Chair.

COMMITTEE ON ENERGY AND COMMERCE: Mr. Upton, Chair.

COMMITTEE ON ETHICS: Mr. Dent, Chair; Mr. Meehan; Mr. Gowdy; Mrs. Brooks of Indiana; and Mr. Marchant.

COMMITTEE ON FINANCIAL SERVICES: Mr. Hensarling, Chair.

COMMITTEE ON FOREIGN AFFAIRS: Mr. Royce, Chair.

COMMITTEE ON HOMELAND SECURITY: Mr. McCaul, Chair.

COMMITTEE ON HOUSE ADMINISTRATION: Mrs. Miller of Michigan, Chair; Mr. Harper; Mr. Schock; Mr. Nugent; Mr. Rodney Davis of Illinois; and Mrs. Comstock.

COMMITTEE ON THE JUDICIARY: Mr. Goodlatte, Chair.

COMMITTEE ON NATURAL RESOURCES: Mr. Bishop of Utah, Chair.

COMMITTEE ON OVERSIGHT AND GOVERNMENT REFORM: Mr. Chaffetz, Chair.

COMMITTEE ON RULES: Mr. Sessions, Chair; Ms. Foxx; Mr. Cole; Mr. Woodall; Mr. Burgess; Mr. Stivers; and Mr. Collins of Georgia.

COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY: Mr. Smith of Texas, Chair.

COMMITTEE ON SMALL BUSINESS: Mr. Chabot, Chair.

COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE: Mr. Shuster, Chair.

COMMITTEE ON VETERANS' AFFAIRS: Mr. Miller of Florida, Chair.

COMMITTEE ON WAYS AND MEANS: Mr. Ryan of Wisconsin, Chair.

Mrs. MCMORRIS RODGERS (during the reading). Madam Speaker, I ask unanimous consent that the resolution be considered as read and printed in the RECORD.

The SPEAKER pro tempore (Ms. FOXX). Is there objection to the request of the gentlewoman from Washington?

There was no objection.

The resolution was agreed to.

A motion to reconsider was laid on the table.

ELECTING MEMBERS TO CERTAIN STANDING COMMITTEES OF THE HOUSE OF REPRESENTATIVES

Mr. BECERRA. Madam Speaker, by direction of the Democratic Caucus, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 7

Resolved, That the following named Members be and are hereby elected to the following standing committees of the House of Representatives:

(1) COMMITTEE ON AGRICULTURE.—Mr. Peterson.

(2) COMMITTEE ON APPROPRIATIONS.—Mrs. Lowey (when sworn), Ms. Kaptur, Mr. Visclosky, Mr. Serrano, Ms. DeLauro, Mr. Price of North Carolina, Ms. Roybal-Allard, Mr. Farr, Mr. Fattah, Mr. Bishop of Georgia, Ms. Lee of California, Mr. Schiff, Mr. Honda, Ms. McCollum, Mr. Israel, Mr. Ryan of Ohio, Mr. Ruppersberger, Ms. Wasserman Schultz, Mr. Cuellar, Ms. Pingree of Maine, and Mr. Quigley.

(3) COMMITTEE ON ARMED SERVICES.—Mr. Smith of Washington.

(4) COMMITTEE ON THE BUDGET.—Mr. Van Hollen.

(5) COMMITTEE ON EDUCATION AND THE WORKFORCE.—Mr. Scott of Virginia.

(6) COMMITTEE ON ENERGY AND COMMERCE.—Mr. Pallone, Mr. Rush, Ms. Eshoo, Mr. Engel, Mr. Gene Green of Texas, Ms. DeGette, Mrs. Capps, Mr. Doyle, Ms. Schakowsky, Mr. Butterfield, Ms. Matsui, Ms. Castor of Florida, Mr. Sarbanes, Mr. McNerney, Mr. Welch, Mr. Ben Ray Luján of New Mexico, Mr. Tonko (when sworn), Mr. Yarmuth, Ms. Clarke of NY, Mr. Loebsack, Mr. Schrader, Mr. Kennedy, and Mr. Cárdenas.

(7) COMMITTEE ON FINANCIAL SERVICES.—Ms. Waters (when sworn), Mrs. Carolyn B. Maloney of New York (when sworn), Ms. Velázquez (when sworn), Mr. Sherman, Mr. Meeks (when sworn), Mr. Capuano, Mr. Hinojosa, Mr. Clay, Mr. Lynch, Mr. David Scott of Georgia, Mr. Al Green of Texas, Mr. Cleaver, Ms. Moore, Mr. Ellison, Mr. Perlmutter, Mr. Himes, Mr. Carney, Ms. Sewell of Alabama, Mr. Foster, Mr. Kildee, Mr. Murphy of Florida, Mr. Delaney, Ms. Sinema, Mrs. Beatty, Mr. Heck of Washington, and Mr. Vargas.

(8) COMMITTEE ON FOREIGN AFFAIRS.—Mr. Engel (when sworn).

(9) COMMITTEE ON HOMELAND SECURITY.—Mr. Thompson of Mississippi.

(10) COMMITTEE ON HOUSE ADMINISTRATION.—Mr. Brady of Pennsylvania.

(11) COMMITTEE ON THE JUDICIARY.—Mr. Conyers.

(12) COMMITTEE ON NATURAL RESOURCES.—Mr. Grijalva.

(13) COMMITTEE ON OVERSIGHT AND GOVERNMENT REFORM.—Mr. Cummings.

(14) COMMITTEE ON RULES.—Ms. Slaughter, Mr. McGovern, Mr. Hastings of Florida, and Mr. Polis.

(15) COMMITTEE ON SCIENCE, SPACE, AND TECHNOLOGY.—Ms. Eddie Bernice Johnson of Texas.

(16) COMMITTEE ON SMALL BUSINESS.—Ms. Velázquez (when sworn).

(17) COMMITTEE ON TRANSPORTATION AND INFRASTRUCTURE.—Mr. DeFazio.

(18) COMMITTEE ON VETERANS' AFFAIRS.—Ms. Brown of Florida.

(19) COMMITTEE ON WAYS AND MEANS.—Mr. Levin, Mr. Rangel (when sworn), Mr. McDermott, Mr. Lewis, Mr. Neal, Mr. Becerra, Mr. Doggett, Mr. Thompson of California, Mr. Larson of Connecticut, Mr. Blumenauer, Mr. Kind, Mr. Pascrell, Mr. Crowley (when sworn), Mr. Danny K. Davis of Illinois, and Ms. Linda T. Sánchez of California.

Mr. BECERRA (during the reading). Madam Speaker, I ask unanimous consent that the resolution be considered as read and printed in the RECORD.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The resolution was agreed to.

A motion to reconsider was laid on the table.

PROVIDING FOR THE DESIGNATION OF CERTAIN MINORITY EMPLOYEES

Mr. BECERRA. Madam Speaker, I offer a resolution and ask unanimous consent for its immediate consideration.

The Clerk read the title of the resolution.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

The text of the resolution is as follows:

H. RES. 8

Resolved, That pursuant to the Legislative Pay Act of 1929, as amended, the six minority employees authorized therein shall be the following named persons, effective January 6, 2015, until otherwise ordered by the House, to-wit: Nadeam Elshami, George Kundanis, Diane Dewhirst, Richard Meltzer, Wyndee Parker, and Drew Hammill, each to receive gross compensation pursuant to the provisions of House Resolution 119, Ninety-fifth Congress, as enacted into permanent law by section 115 of Public Law 95–94. In addition, the Minority Leader may appoint and set the annual rate of pay for up to 3 further minority employees.

The resolution was agreed to.

A motion to reconsider was laid on the table.

FIXING THE DAILY HOUR OF MEETING OF THE FIRST SESSION OF THE ONE HUNDRED FOURTEENTH CONGRESS

Mr. SESSIONS. Madam Speaker, I offer a privileged resolution and ask for its immediate consideration.

The Clerk read the resolution, as follows:

H. RES. 9

Resolved, That unless otherwise ordered, the hour of daily meeting of the House shall be 2 p.m. on Mondays; noon on Tuesdays (or 2 p.m. if no legislative business was conducted on the preceding Monday); noon on Wednesdays and Thursdays; and 9 a.m. on all other days of the week.

The resolution was agreed to.

A motion to reconsider was laid on the table.

HIRE MORE HEROES ACT OF 2015

Mr. RYAN of Wisconsin. Madam Speaker, I move to suspend the rules and pass the bill (H.R. 22) to amend the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act.

The Clerk read the title of the bill.

The text of the bill is as follows:

H.R. 22

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Hire More Heroes Act of 2015''.

SEC. 2. EMPLOYEES WITH HEALTH COVERAGE UNDER TRICARE OR THE VETERANS ADMINISTRATION NOT TAKEN INTO ACCOUNT IN DETERMINING EMPLOYERS TO WHICH THE EMPLOYER MANDATE APPLIES UNDER PATIENT PROTECTION AND AFFORDABLE CARE ACT.

(a) IN GENERAL.—Section 4980H(c)(2) of the Internal Revenue Code of 1986 is amended by adding at the end the following:

''(F) EXEMPTION FOR HEALTH COVERAGE UNDER TRICARE OR THE VETERANS ADMINISTRATION.—Solely for purposes of determining whether an employer is an applicable large employer under this paragraph for any month, an individual shall not be taken into account as an employee for such month if such individual has medical coverage for such month under—

''(i) chapter 55 of title 10, United States Code, including coverage under the TRICARE program, or

''(ii) under a health care program under chapter 17 or 18 of title 38, United States Code, as determined by the Secretary of Veterans Affairs, in coordination with the Secretary of Health and Human Services and the Secretary.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply to months beginning after December 31, 2013.

The SPEAKER pro tempore. Pursuant to the rule, the gentleman from Wisconsin (Mr. RYAN) and the gentleman from Michigan (Mr. LEVIN) each will control 20 minutes.

The Chair recognizes the gentleman from Wisconsin.

GENERAL LEAVE

Mr. RYAN of Wisconsin. Madam Speaker, I ask unanimous consent that all Members may have 5 legislative days within to which to revise and extend their remarks and include extraneous material on H.R. 22, currently under consideration.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from Wisconsin?

There was no objection.

Mr. RYAN of Wisconsin. Madam Speaker, I yield myself such time as I may consume.

Madam Speaker, only a law as bad as ObamaCare would penalize a small business for hiring a veteran.

Madam Speaker, right now, the law says if you have at least 50 full-time employees, you must give all of them health insurance even if they are already getting health insurance elsewhere. In fact, over 9 million veterans are already getting health care through the VA, but they are not exempt. Every employer has to cover them anyway.

So here is what is happening. Businesses have an incentive to turn away veterans, not because they don't want to hire them, but because it is too expensive to hire them. This is serving as a penalty to hiring our Nation's veterans.

Madam Speaker, nobody works harder than our men and women that serve us in our military. They fought for our country, and they sacrificed. The least we can do is remove this penalty from putting a veteran on your payroll. The way I see it is we owe it to them. We should make it as easy as possible for them to find a job. That is what we are trying to do with this legislation.

What this bill says is that if you are already getting health care through TRICARE or the VA, then you are exempt from the mandate. Anyone can hire you without any fear of this penalty. I think we can all agree that more veterans on the payroll means a healthier economy for all of us.

Now, I think all families need relief from ObamaCare. All of us need relief from this law that we think is going to collapse under its own weight, but I consider this bill as an installment plan, as one piece of our ongoing efforts to fully repeal and replace this law.

Madam Speaker, we have an enormous generation of talented men and women who have served this country so honorably overseas in the recent years. The least we can do is make it easier for an employer to hire them and remove this penalty that puts a price tag on hiring the bravest among us.

Most of all, I want to thank Congressman RODNEY DAVIS for bringing this issue to our attention. I want to thank Congressman DAVIS for introducing this legislation.

With that, I reserve the balance of my time.

Mr. LEVIN. Madam Speaker, I yield myself such time as I shall consume.

First of all, I would like to congratulate Mr. RYAN on your selection in election, I guess, as chairman of the Ways and Means Committee. We look forward to working together.

Madam Speaker, I support this bill. This bill encourages the hiring of veterans. The unemployment rate has continued to decline for post-9/11 veterans, and these improvements are part of a larger economic recovery.

In November 2013, the unemployment rate for these veterans was nearly 10 percent. One year later, the rate has dropped to 5.7 percent, the national average; yet for female post-9/11 veterans, the unemployment rate remains high, above 8 percent.

This bill continues as part of our national commitment to help the veterans of this country. I want to emphasize this if I might: as we legislate, we need to balance priorities. We need to maintain—very differently than just spoken—the basic structure of ACA, which is providing millions and millions of Americans with insurance and with coverage they never had.

We also need to encourage the hiring of the veterans of this country who have served this Nation and serve this Nation so well. That is a supreme obligation of this institution; therefore, I support this legislation and reserve the balance of my time.

Mr. RYAN of Wisconsin. Madam Speaker, at this time, I would like to yield 2 minutes to the gentlewoman from Topeka, Kansas (Ms. JENKINS), a member of the Ways and Means Committee.

Ms. JENKINS of Kansas. I thank the gentleman for yielding.

Madam Speaker, I was a freshman lawmaker in 2010 when the President's partisan health care law was passed through Congress and became law. I worried at the time that it would take our health care system in the wrong direction and would lead to numerous unintended consequences that could hurt American families. Now that the law is being implemented, we can see that this is indeed true.

The employer mandate penalty tax is a troublesome and confusing piece of the President's health care law. The American people want to see it fixed. The legislation that we are debating right now will exempt those who employ members of our Nation's military and veterans from the employer mandate.

Because our current and former servicemembers already receive health care from TRICARE and the VA, it simply does not make sense to force small businesses to treat these folks as if they do not have health insurance, which drives up the cost of doing business, leaving less for employees' salaries. In fact, the current law effectively punishes small businesses for hiring these heroes.

Madam Speaker, I was a proud cosponsor and supporter of this legislation in the last Congress, and I am happy to again stand today in support of this commonsense provision. I ask that you support it.

Mr. LEVIN. Madam Speaker, it is now my pleasure to yield as much time as she shall consume to the gentlewoman from Hawaii (Ms. GABBARD), someone who has served this Nation

and now serves all of the people of Hawaii and I think, once again, all the people of this country.

Ms. GABBARD. Madam Speaker, I am rising today in very strong support of this Hire More Heroes Act introduced by my friend, the gentleman from Illinois (Mr. RODNEY DAVIS), someone whom I have been privileged to work with and am proud to cosponsor this legislation.

When he first came to me with this idea, it was a no-brainer that I would support it because of the key constituencies that this legislation serves: our veterans and our small businesses. In addition to that, I think, as we kick off this 114th Congress, it is a great message and exactly the right tone that we are focused on these two constituencies.

By exempting veterans who have health insurance through the VA or from the DOD from being counted toward that 50-employee limit under the Affordable Care Act, this legislation creates important incentives. It encourages small businesses to grow and expand their workforce, and it establishes an incentive to hire more veterans.

Madam Speaker, there are many people who already receive insurance because of their service to our country. I used to be one of them. I was covered under TRICARE for a long period of time after both of my deployments to the Middle East, and it just makes sense that these individuals who already have great medical coverage would not have to count towards the numbers of employees that would trigger the employer mandate under the Affordable Care Act.

Most importantly, this bill is about serving veterans. Servicemembers who are transitioning to civilian life bring exceptional training, critical skill sets, and proven leadership ability back to their local communities.

□ 1745

Unfortunately, as a country, we are facing an unacceptable number of unemployed veterans, people who are experienced, who are capable and energetic, who are coming back from serving oftentimes in conflicts overseas. These are veterans who will serve as a great asset to businesses and organizations of any size because they come with a built-in unique work ethic, a great deal of training, and real-world experience. These are people who are highly disciplined, who know what it means to work as a member of a team. They know what it means to put the mission first, and they are servant leaders at their very best.

This bill provides an incentive for businesses to hire these veterans and, in turn, helps these veterans be successful in their transition to civilian life. This commonsense legislation benefits both veterans and small businesses, while also growing our economy. I urge all of our colleagues to strongly support H.R. 22.

Mr. RYAN of Wisconsin. Madam Speaker, I yield 2 minutes to the gentlewoman from Indiana (Mrs. WALORSKI).

Mrs. WALORSKI. Madam Speaker, I thank the gentleman and Representative RODNEY DAVIS.

Today I honor the 54,000 veterans in my district and 20 million veterans across America who deserve the opportunity to have a job with the Hire More Heroes Act. The bill makes a change to ObamaCare and encourages small businesses to hire more veterans by exempting veterans as long as they already have health insurance.

Currently, the employer mandate under ObamaCare requires that all businesses with more than 50 employees provide health insurance to their employers or pay a penalty. But according to the Bureau of Labor Statistics, the unemployment rate for veterans last year was 6.6 percent, for those who served on Active Duty after 9/11 it was 9 percent. What saddens me about this is both of these percentages were higher than the national average of 6.3 percent.

No veteran in the United States of America should be jobless because of ObamaCare's employer mandate. Our brave men and women return from serving our Nation, return to civilian life while facing many challenges. Getting a job should not be one of them. This bill will ensure that employers can and will hire veterans and will not be penalized.

I urge my colleagues to support this bill. We must do everything in our power to ensure our finest men and women who come home have every opportunity we promised them.

Mr. LEVIN. I reserve the balance of my time.

Mr. RYAN of Wisconsin. Madam Speaker, I yield 5 minutes to the gentleman from Illinois (Mr. RODNEY DAVIS), the author of this legislation.

Mr. RODNEY DAVIS of Illinois. Madam Speaker, I thank you for this opportunity today. Chairman RYAN, my colleague from the great State of Michigan, I thank you for your support for this piece of legislation.

Earlier today, a new Congress was sworn in, each of us swearing to uphold and defend the Constitution of the United States. A new Congress is another opportunity to do the people's work, to further the ideas and priorities of our constituents and put our Nation on solid footing for an even brighter future.

I am honored that this 114th Congress is opening with the Hire More Heroes Act, a bill that I have introduced and an idea that didn't come from Washington, D.C. It began with a constituent of mine, Brad Lavite, who is actually up in the gallery today. Brad had this idea, and as a superintendent of the Madison County Veterans' Assistance Commission, I am proud to have him here today to see the culmination of what that idea has turned into and the bipartisan support that you see for this idea on the floor of the House today.

Brad helps the nearly 35,000 veterans living in Madison County navigate the VA system and actually find other resources, including helping our veterans find employment. After explaining ObamaCare to veterans throughout southwestern Illinois and how it impacts their VA health benefits, he began wondering why they were subject to the employer mandate if they were not even in need of health care coverage. Brad raised his concern with me at one of our veterans advisory board meetings, and shortly thereafter we began work on the Hire More Heroes Act.

This bill will help businesses hire more of our Nation's veterans by making a commonsense change to ObamaCare. In just a few months, the President's health care law will mark its fifth anniversary; 5 years of delays, canceled policies, costly Web site glitches, and increased out-of-pocket expenses for hardworking middle class families. Unfortunately, the law's problems don't end there. We continue to see its lingering impact on our economy as many small businesses delay hiring, cut hours, and, in some cases, reduce payroll. In fact, the National Small Business Association found that 91 percent of small businesses have seen increases in their health care costs, and two-thirds of their members listed ObamaCare as a reason for holding off on investing in people. And, Madam Speaker, I must remind everybody that investing in people is how we create jobs here in America.

The Hire More Heroes Act exempts veterans already enrolled in their own health care plans through the Department of Defense or through the VA from being counted toward the 50-employee limit as part of the employer mandate required under ObamaCare. By making this commonsense change to the law, we will not only provide small businesses with much-needed relief, but also help more of our veterans find work.

Despite receiving some of the best training in the world, post-9/11 veterans are consistently faced with higher unemployment rates than that of other veterans. So as more and more of our veterans return home, the Hire More Heroes Act will give those who have sacrificed and served our country a leg up in a very competitive job market. Last Congress, this legislation passed this House overwhelmingly by a count of 406–1, almost as bipartisan as you can get, but it was held up in the Senate.

The Hire More Heroes Act is just one example of the bipartisan bills that the House will bring up this Congress. Later this week, we will further the American people's call for greater energy independence and job creation by voting to approve the Keystone XL pipeline and by helping Americans by restoring the 40-hour workweek under ObamaCare. With a new Congress, and

if the President is willing to work with us, we have an opportunity to end the stagnation in Washington and make our government work for the people again.

I ask all of my colleagues to defend the oath that they have just taken and help hire more of our heroes by voting ''yes'' on this piece of legislation.

The SPEAKER pro tempore. Members are reminded to avoid references to occupants in the gallery.

Mr. LEVIN. Madam Speaker, I ask the gentleman if he has other speakers.

Mr. RYAN of Wisconsin. We have four additional speakers.

Mr. LEVIN. Madam Speaker, I reserve the balance of my time.

Mr. RYAN of Wisconsin. Madam Speaker, I yield 3 minutes to the gentleman from Ohio (Mr. CHABOT), the chairman of the Small Business Committee.

Mr. CHABOT. Madam Speaker, I thank the gentleman for yielding.

Madam Speaker, in the fall, we made a commitment to the American people, a commitment to produce solutions that grow our economy and create more opportunity and help our small businesses and make life better for working families. Today, the new American Congress begins the work of making good on that commitment, and we start with a bill that helps two groups critical to America's success: our veterans and our small businesses.

The Hire More Heroes Act is a bipartisan bill which passed the House, as has been mentioned before, with more than 400 votes last year. It would make it easier for small businesses to hire veterans by exempting those veterans who already receive health care at the VA from ObamaCare's costly employer mandate. This commonsense solution offsets the cost of hiring a veteran by addressing one of ObamaCare's many failures, and there are many.

As I have said many times before, I and many of my colleagues believe that ObamaCare should be repealed in its entirety. It may take awhile to do that, and so we can do some other things in the meantime. This is one of those things, a realistic thing which will actually help the American people.

ObamaCare is placing tremendous burdens on small businesses looking to grow and individuals looking for work. This bill alleviates one of the many burdens ObamaCare places on our small businesses and, in doing so, helps our returning war fighters find meaningful work.

Small businesses are responsible for the majority of new jobs created in America today. As the new incoming chairman of the House Small Business Committee, my goal each day will be to make life better for America's small businesses so they can continue to innovate and create jobs for more Americans who are seeking them.

Even though unemployment has come down to some degree, we need to do a lot better. The bill before us today is an important step towards that goal and towards our commitment to the American people to create more jobs, real jobs in the private sector. I encourage my colleagues to support the bill.

Mr. LEVIN. I reserve the balance of my time.

Mr. RYAN of Wisconsin. Madam Speaker, I yield 2 minutes to the gentlewoman from Tennessee (Mrs. BLACK), a member of the Ways and Means Committee.

Mrs. BLACK. Madam Speaker, I rise today in strong support of the Hire More Heroes Act. In my home State of Tennessee, we have over 525,000 veterans who have served our country in both war and peace—veterans, people like my son, Steve, and my husband, Dave.

But today, too many of these Americans are struggling to find work. In fact, the unemployment rate among post-September 11 veterans is chronically higher than the national unemployment rate. I believe that we can do better. After all, our veterans have sacrificed for our country. Congress should, at the very least, make certain that Washington does not stand between them and access to a steady job.

The Hire More Heroes Act will help accomplish this by exempting veterans who already have health insurance from being counted as full-time workers under ObamaCare's employer mandate, meaning that business owners can hire veterans without fear of being slapped with an ObamaCare penalty. That is why this body passed the legislation by an overwhelming vote of 406–1 last year. Unfortunately, our efforts were stonewalled in the Democrat-controlled Senate. But today, we have an opportunity to start anew.

I urge my colleagues to vote ''yes'' on the Hire More Heroes Act, and I thank the gentleman from Illinois for his work on this critical measure.

Mr. LEVIN. I reserve the balance of my time.

Mr. RYAN of Wisconsin. Madam Speaker, I yield myself such time as I may consume.

This basically is how it is supposed to work. A constituent in central Illinois, Brad Lavite, approaches his Congressman, Congressman DAVIS, and says there is a problem with the law affecting our Nation's veterans. So his Congressman goes to work, does the research, and then writes legislation to fix the law, and here we are. This is how it is supposed to work. This is how the Founders intended the Congress to work.

Here is what we are fixing. We are saying there will not be a penalty based on the health care law affixed to our veterans. We have got a new, great generation. We have all read the books and heard the stories, and it is true, of the Greatest Generation, the World War II generation. We now have a new great generation, the men and women since 9/11 who have bravely fought for this country and sacrificed for us are a generation of people who have developed the kinds of leadership skills, the kinds of courage, the experiences, the sacrifices their families made, and they are bringing that home to serve our country even further. They are bringing this great experience and talent and skills to our economy. We need to remove every conceivable barrier that exists that prevents them from sharing these talents with us.

This bill takes us a big step in the right direction to removing this barrier that disincentivizes a small business from hiring a veteran and instead turns it into an incentive so we can hire our heroes, our veterans.

With that, I reserve the balance of my time to close.

Mr. LEVIN. Madam Speaker, I yield myself the balance of my time.

As I said at the beginning, we need to, as we legislate, balance priorities. We have here a very different view of the ACA than has been expressed by several. But that isn't the point of this legislation. This is about the veterans of this country.

□ 1800

This isn't about Keystone. We will debate that some other time. We have very different views. This is no way a precedent to that. We will debate the 40-hour week later this week. We have some very different views, to put it mildly, about the legislation entitled the ''40-hour week.''

I should also like to point out regarding ACA that businesses, small businesses with fewer than 50 employees, aren't even required to contribute to or offer insurance to their employees.

This bill is called the Heroes Act because the focus of this bill is to make sure that there isn't any disincentive for anybody to hire veterans. The rate of unemployment for veterans has been higher. I had the chance in Roseville, Michigan, to meet with veterans, Vietnam veterans, some months ago. I was deeply troubled by the high rate of unemployment for those Vietnam veterans. This country has not done an adequate job in terms of making sure that veterans have a real opportunity to work.

That is the tribute that we must provide, and it is more than a tribute; it is an obligation to those who have served this Nation. That is why this is called the Heroes Act. Let's not distort it. Let's not undermine what is the purpose of this legislation. Those who have served deserve as our priority any reasonable effort to provide them with the opportunity that they want. They have served. Now they want to work. We need to make sure they have that opportunity to work.

It is within that spirit that I support this legislation and urge its passage.

I yield back the balance of my time.

Mr. RYAN of Wisconsin. Madam Speaker, I yield myself the balance of the time only to say that our constituents have been very clear to all of us on both sides of the aisle that they want to see us come together to find

common ground to make a positive difference in the lives of Americans, particularly our veterans, and this bipartisan effort reflects that.

I am very proud to be here with Congressman DAVIS, with Congressman LEVIN, to be doing this.

With that, I simply ask all Members to support it, and I yield back the balance of my time.

The SPEAKER pro tempore. The question is on the motion offered by the gentleman from Wisconsin (Mr. RYAN) that the House suspend the rules and pass the bill, H.R. 22.

The question was taken.

The SPEAKER pro tempore. In the opinion of the Chair, two-thirds being in the affirmative, the ayes have it.

Mr. RYAN of Wisconsin. Madam Speaker, on that I demand the yeas and nays.

The yeas and nays were ordered.

The vote was taken by electronic device, and there were—yeas 412, nays 0, not voting 3, as follows:

[Roll No. 7]

YEAS—412

Abraham	Cleaver	Frankel (FL)
Adams	Clyburn	Franks (AZ)
Aderholt	Coffman	Frelinghuysen
Aguilar	Cohen	Fudge
Allen	Cole	Gabbard
Amash	Collins (GA)	Gallego
Amodei	Collins (NY)	Garamendi
Ashford	Comstock	Garrett
Babin	Conaway	Gibbs
Barletta	Connolly	Gibson
Barr	Conyers	Gohmert
Barton	Cook	Goodlatte
Bass	Cooper	Gosar
Beatty	Costello (PA)	Gowdy
Becerra	Courtney	Graham
Benishek	Cramer	Granger
Bera	Crawford	Graves (GA)
Beyer	Crenshaw	Graves (LA)
Bilirakis	Cuellar	Graves (MO)
Bishop (GA)	Culberson	Grayson
Bishop (MI)	Cummings	Green, Al
Bishop (UT)	Curbelo (FL)	Green, Gene
Black	Davis (CA)	Griffith
Blackburn	Davis, Danny	Grijalva
Blum	Davis, Rodney	Grothman
Blumenauer	DeFazio	Guinta
Bonamici	DeGette	Guthrie
Bost	Delaney	Gutiérrez
Boustany	DeLauro	Hahn
Boyle (PA)	DelBene	Hanna
Brady (PA)	Denham	Hardy
Brady (TX)	Dent	Harper
Brat	DeSantis	Harris
Bridenstine	DeSaulnier	Hartzler
Brooks (AL)	DesJarlais	Hastings
Brooks (IN)	Deutch	Heck (NV)
Brown (FL)	Diaz-Balart	Heck (WA)
Brownley (CA)	Dingell	Hensarling
Buchanan	Doggett	Herrera Beutler
Buck	Dold	Hice (GA)
Bucshon	Doyle (PA)	Hill
Burgess	Duckworth	Himes
Bustos	Duffy	Hinojosa
Butterfield	Duncan (SC)	Holding
Byrne	Duncan (TN)	Honda
Calvert	Edwards	Hoyer
Capps	Ellison	Hudson
Capuano	Ellmers	Huelskamp
Cárdenas	Emmer	Huffman
Carney	Eshoo	Huizenga (MI)
Carson (IN)	Esty	Hultgren
Carter (GA)	Farenthold	Hunter
Cartwright	Farr	Hurd (TX)
Castor (FL)	Fattah	Hurt (VA)
Castro (TX)	Fincher	Israel
Chabot	Fitzpatrick	Issa
Chaffetz	Fleischmann	Jackson Lee
Chu (CA)	Fleming	Jeffries
Cicilline	Flores	Jenkins (KS)
Clark (MA)	Forbes	Jenkins (WV)
Clarke (NY)	Fortenberry	Johnson (GA)
Clawson (FL)	Foster	Johnson (OH)
Clay	Foxx	Johnson, E. B.
Johnson, Sam	Mullin	Schrader
Jolly	Mulvaney	Schweikert
Jones	Murphy (FL)	Scott (VA)
Jordan	Murphy (PA)	Scott, Austin
Joyce	Napolitano	Scott, David
Kaptur	Neal	Sensenbrenner
Katko	Neugebauer	Serrano
Keating	Newhouse	Sessions
Kelly (IL)	Noem	Sewell (AL)
Kelly (PA)	Norcross	Sherman
Kennedy	Nugent	Shimkus
Kildee	Nunes	Shuster
Kilmer	O'Rourke	Simpson
Kind	Olson	Sinema
King (IA)	Palazzo	Sires
King (NY)	Pallone	Slaughter
Kinzinger (IL)	Palmer	Smith (MO)
Kirkpatrick	Pascrell	Smith (NE)
Kline	Paulsen	Smith (NJ)
Knight	Payne	Smith (TX)
Kuster	Pearce	Smith (WA)
Labrador	Pelosi	Speier
LaMalfa	Perlmutter	Stefanik
Lamborn	Perry	Stewart
Lance	Peters	Stivers
Langevin	Peterson	Stutzman
Larsen (WA)	Pingree	Swalwell (CA)
Latta	Pittenger	Takai
Lawrence	Pocan	Takano
Lee	Poe (TX)	Thompson (CA)
Levin	Poliquin	Thompson (MS)
Lewis	Polis	Thompson (PA)
Lieu (CA)	Pompeo	Thornberry
Lipinski	Posey	Tiberi
LoBiondo	Price (GA)	Tipton
Loebsack	Price (NC)	Titus
Lofgren	Quigley	Torres
Long	Ratcliffe	Trott
Loudermilk	Reed	Tsongas
Love	Reichert	Turner
Lowenthal	Renacci	Upton
Lucas	Ribble	Valadao
Luetkemeyer	Rice (NY)	Van Hollen
Lujan Grisham (NM)	Rice (SC)	Vargas
	Richmond	Veasey
Luján, Ben Ray (NM)	Rigell	Vela
	Roby	Visclosky
Lummis	Roe (TN)	Wagner
Lynch	Rogers (AL)	Walberg
MacArthur	Rogers (KY)	Walden
Marchant	Rohrabacher	Walker
Marino	Rokita	Walorski
Massie	Rooney (FL)	Walters, Mimi
Matsui	Ros-Lehtinen	Walz
McCarthy	Roskam	Wasserman Schultz
McCaul	Ross	
McClintock	Rothfus	Watson Coleman
McCollum	Rouzer	Weber (TX)
McDermott	Roybal-Allard	Webster (FL)
McGovern	Royce	Welch
McHenry	Ruiz	Wenstrup
McKinley	Ruppersberger	Westerman
McMorris Rodgers	Rush	Westmoreland
	Russell	Whitfield
McNerney	Ryan (OH)	Williams
McSally	Ryan (WI)	Wilson (FL)
Meadows	Salmon	Wilson (SC)
Meehan	Sánchez, Linda T.	Wittman
Messer		Womack
Mica	Sanchez, Loretta	Woodall
Miller (FL)	Sanford	Yarmuth
Miller (MI)	Sarbanes	Yoder
Moolenaar	Scalise	Yoho
Mooney (WV)	Schakowsky	Young (IA)
Moore	Schiff	Young (IN)
Moulton	Schock	Zeldin

NOT VOTING—3

Larson (CT)	Pitts	Zinke

□ 1831

Mrs. CAPPS changed her vote from ''nay'' to ''yea.''

So (two-thirds being in the affirmative) the rules were suspended and the bill was passed.

The result of the vote was announced as above recorded.

A motion to reconsider was laid on the table.

PERSONAL EXPLANATION

Mr. LARSON of Connecticut, Mr. Speaker, on January 6, 2015—I was not present for rollcall votes 6 and 7. If I had been present for these votes, I would have voted: ''nay'' on rollcall vote 6, ''aye'' on rollcall vote 7, the Hire More Heroes Act, as I had done previously in the 113th Congress when it passed the House (rollcall vote 115) on March 11, 2014.

REGARDING CONSENT TO ASSEMBLE OUTSIDE THE SEAT OF GOVERNMENT

Mr. SESSIONS. Madam Speaker, I offer a privileged concurrent resolution and ask for its immediate consideration.

The Clerk read the concurrent resolution, as follows:

H. CON. RES. 1

Resolved by the House of Representatives (the Senate concurring), That pursuant to clause 4, section 5, article I of the Constitution, during the One Hundred Fourteenth Congress the Speaker of the House and the Majority Leader of the Senate or their respective designees, acting jointly after consultation with the Minority Leader of the House and the Minority Leader of the Senate, may notify the Members of the House and the Senate, respectively, to assemble at a place outside the District of Columbia if, in their opinion, the public interest shall warrant it.

The concurrent resolution was agreed to.

A motion to reconsider was laid on the table.

AUTHORIZING SPEAKER, MAJORITY LEADER, AND MINORITY LEADER TO ACCEPT RESIGNATIONS AND MAKE APPOINTMENTS DURING THE 114TH CONGRESS

Mr. MCCARTHY. Madam Speaker, I ask unanimous consent that during the 114th Congress, the Speaker, majority leader, and minority leader be authorized to accept resignations and to make appointments authorized by law or by the House.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

GRANTING MEMBERS PERMISSION TO EXTEND REMARKS AND INCLUDE EXTRANEOUS MATERIAL IN THE CONGRESSIONAL RECORD DURING THE 114TH CONGRESS

Mr. MCCARTHY. Madam Speaker, I ask unanimous consent that during the 114th Congress all Members be permitted to extend their remarks and to include extraneous material within the permitted limit in that section of the RECORD entitled ''Extensions of Remarks.''

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

MAKING IN ORDER MORNING-HOUR DEBATE

Mr. MCCARTHY. Madam Speaker, I ask unanimous consent that during the first session of the 114th Congress:

(1) On legislative days of Monday or Tuesday when the House convenes pursuant to House Resolution 9, the House

shall convene 2 hours earlier than the time otherwise established by the resolution for the purpose of conducting morning-hour debate;

(2) on legislative days of Wednesday or Thursday when the House convenes pursuant to House Resolution 9, the House shall convene 2 hours earlier than the time otherwise established by the resolution for the purpose of conducting morning-hour debate;

(3) when the House convenes pursuant to an order other than House Resolution 9, the House shall convene for the purpose of conducting morning-hour debate only as prescribed by such order;

(4) the time for morning-hour debate shall be allocated equally between the parties and may not continue beyond 10 minutes before the hour appointed for the resumption of the session of the House; and

(5) the form of proceeding for morning-hour debate shall be as follows:

(a) the prayer by the Chaplain, the approval of the Journal and the Pledge of Allegiance to the flag shall be postponed until resumption of the session of the House;

(b) initial and subsequent recognitions for debate shall alternate between the parties;

(c) recognition shall be conferred by the Speaker only pursuant to lists submitted by the majority leader and by the minority leader;

(d) no Member may address the House for longer than 5 minutes, except the majority leader, the minority leader, or the minority whip;

(e) no legislative business shall be in order except the filing of privileged reports; and

(f) following morning-hour debate, the Chair shall declare a recess pursuant to clause 12(a) of rule I until the time appointed for the resumption of the session of the House; and

(6) the Speaker may dispense with morning-hour debate upon receipt of a notification described in clause 12(c) of rule I, or upon a change in reconvening pursuant to clause 12(e) of rule I, and notify Members accordingly.

The SPEAKER pro tempore. Is there objection to the request of the gentleman from California?

There was no objection.

REPORT OF COMMITTEE TO NOTIFY THE PRESIDENT

Mr. MCCARTHY. Madam Speaker, your committee appointed on the part of the House to join a like committee on the part of the Senate to notify the President of the United States that a quorum of each House has been assembled and is ready to receive any communication that he may be pleased to make has performed that duty.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair customarily takes this occasion at the outset of a Congress to announce her policies with respect to particular aspects of the legislative process. The Chair will insert in the RECORD announcements concerning:

first, privileges of the floor;

second, introduction of bills and resolutions;

third, unanimous-consent requests for the consideration of legislation;

fourth, recognition for 1-minute speeches;

fifth, recognition for Special Order speeches;

sixth, decorum in debate;

seventh, conduct of votes by electronic device;

eighth, use of handouts on the House floor;

ninth, use of electronic equipment on the House floor; and

tenth, use of the Chamber.

These announcements, where appropriate, will reiterate the origins of the stated policies. The Chair intends to continue in the 114th Congress the policies reflected in these statements. The policy announced in the 102nd Congress with respect to jurisdictional concepts related to clause 5(a) of rule XXI—tax and tariff measures—will continue to govern but need not be reiterated, as it is adequately documented as precedent in the House Rules and Manual.

Without objection, the announcements will be printed in the RECORD.

There was no objection.

1. Privileges of the Floor

The Chair will make the following announcements regarding floor privileges, which will apply during the 114th Congress.

ANNOUNCEMENT BY THE SPEAKER WITH RESPECT TO STAFF

Rule IV strictly limits those persons to whom the privileges of the floor during sessions of the House are extended, and that rule prohibits the Chair from entertaining requests for suspension or waiver of that rule. As reiterated by the Chair on January 21, 1986, January 3, 1985, January 25, 1983, and August 22, 1974, and as stated in Chapter 10, section 2, of House Practice, the rule strictly limits the number of committee staff on the floor at one time during the consideration of measures reported from their committees. This permission does not extend to Members' personal staff except when a Member's amendment is actually pending during the five-minute rule. It also does not extend to personal staff of Members who are sponsors of pending bills or who are engaging in special orders. The Chair requests the cooperation of all Members and committee staff to assure that only the proper number of staff are on the floor, and then only during the consideration of measures within the jurisdiction of their committees. The Chair is making this statement and reiterating this policy because of Members' past insistence upon strict enforcement of the rule. The Chair requests each committee chair, and each ranking minority member, to submit to the Speaker a list of those staff who are allowed on the floor during the consideration of a measure reported by their committee. The Sergeant-at-Arms, who has been directed to assure proper enforcement of rule IV, will keep the list. Each staff person should exchange his or her ID for a ''committee staff' badge, which is to be worn while on the floor. The Chair has consulted with the Minority Leader and will continue to consult with her.

Furthermore, as the Chair announced on January 7, 2003, in accordance with the change in the 108th Congress of clause 2(a) of rule IV regarding leadership staff floor access, only designated staff approved by the Speaker shall be granted the privilege of the floor. The Speaker intends that his approval be narrowly granted on a bipartisan basis to staff from the majority and minority side and only to those staff essential to floor activities.

ANNOUNCEMENT BY THE SPEAKER WITH RESPECT TO FORMER MEMBERS

The Speaker's policy announced on February 1, 2006, will continue to apply in the 114th Congress.

ANNOUNCEMENT BY THE SPEAKER, FEBRUARY 1, 2006

The SPEAKER. The House has adopted a revision to the rule regarding the admission to the floor and the rooms leading thereto. Clause 4 of rule IV provides that a former Member, Delegate or Resident Commissioner or a former Parliamentarian of the House, or a former elected officer of the House or a former minority employee nominated as an elected officer of the House shall not be entitled to the privilege of admission to the Hall of the House and the rooms extending thereto if he or she is a registered lobbyist or an agent of a foreign principal; has any direct personal pecuniary interest in any legislative measure pending before the House, or reported by a committee; or is in the employ of or represents any party or organization for the purpose of influencing, directly or indirectly, the passage, defeat, or amendment of any legislative proposal.

This restriction extends not only to the House floor but adjacent rooms, the cloakrooms and the Speaker's lobby.

Clause 4 of rule IV also allows the Speaker to exempt ceremonial and educational functions from the restrictions of this clause. These restrictions shall not apply to attendance at joint meetings or joint sessions, Former Members' Day proceedings, educational tours, and other occasions as the Speaker may designate.

Members who have reason to know that a person is on the floor inconsistent with clause 4 of rule IV should notify the Sergeant-at-Arms promptly.

2. Introduction of Bills and Resolutions

The policy that the Chair announced on January 3, 1983, with respect to the introduction and reference of bills and resolutions will continue to apply in the 114th Congress. The Chair has advised all officers and employees of the House who are involved in the processing of bills that every bill, resolution, memorial, petition or other material that is placed in the hopper must bear the signature of a Member. Where a bill or resolution is jointly sponsored, the signature must be that of the Member first named thereon. The bill clerk is instructed to return to the Member any bill which appears in the hopper without an original signature. This procedure was inaugurated in the 92d Congress. It has worked well, and the Chair thinks that it is essential to continue this practice to insure the integrity of the process by which legislation is introduced in the House.

3. Unanimous-Consent Requests for the Consideration of Legislation

The policy the Chair announced on January 6, 1999, with respect to recognition for unanimous-consent requests for the consideration of certain legislative measures will continue to apply in the 114th Congress. The Speaker will continue to follow the guidelines recorded in section 956 of the House Rules and Manual conferring recognition for unanimous-consent requests for the consideration of bills, resolutions, and other measures only when assured that the majority

and minority floor leadership and the relevant committee chairs and ranking minority members have no objection. Consistent with those guidelines and with the Chair's inherent power of recognition under clause 2 of rule XVII, the Chair, and any occupant of the chair appointed as Speaker pro tempore pursuant to clause 8 of rule I, will decline recognition for the unanimous-consent requests chronicled in section 956 without assurances that the request has been so cleared. This denial of recognition by the Chair will not reflect necessarily any personal opposition on the part of the Chair to orderly consideration of the matter in question, but will reflect the determination upon the part of the Chair that orderly procedures will be followed; that is, procedures involving consultation and agreement between floor and committee leadership on both sides of the aisle.

4. Recognition for One-Minute Speeches

ANNOUNCEMENT BY THE SPEAKER WITH RESPECT TO ONE-MINUTE SPEECHES

The Speaker's policy announced on August 8, 1984, with respect to recognition for one-minute speeches will apply during the 114th Congress. The Chair will alternate recognition for one-minute speeches between majority and minority Members, in the order in which they seek recognition in the well under present practice from the Chair's right to the Chair's left, with possible exceptions for Members of the leadership and Members having business requests. The Chair, of course, reserves the right to limit one-minute speeches to a certain period of time or to a special place in the program on any given day, with notice to the leadership.

5. Recognition for Special-Order Speeches

ANNOUNCEMENT BY THE SPEAKER WITH RESPECT TO SPECIAL-ORDER SPEECHES

The Speaker's policy with regard to special-order speeches announced on February 11, 1994, as clarified and reiterated by subsequent Speakers, will continue to apply in the 114th Congress, with the following modifications.

The Chair may recognize Members for special-order speeches for up to 4 hours. Such speeches may not extend beyond the 4–hour limit without the permission of the Chair, which may be granted only with advance consultation between the leaderships and notification to the House. However, the Chair will not recognize for any special-order speeches beyond 10 o'clock in the evening.

The 4-hour limitation will be divided between the majority and minority parties. Each party is entitled to reserve its first hour for respective leaderships or their designees. The second hour reserved to each party will be divided into two 30–minute periods. Recognition for one-hour periods and for 30–minute periods will alternate initially and subsequently between the parties each day. The Chair wishes to clarify for Members that any 60- or 30–minute period that is not claimed at the appropriate time will be considered to have expired; this includes the first 60–minute period of the day.

The allocation of time within each party's 2–hour period (or shorter period if prorated to end by 10 p.m.) will be determined by a list submitted to the Chair by the respective leaderships. Members may not sign up with their leadership for any special-order speeches earlier than one week prior to the special order. Additional guidelines may be established for such sign-ups by the respective leaderships.

Pursuant to clause 2(a) of rule V, the television cameras will not pan the Chamber, but a ''crawl'' indicating the conduct of morning-hour debate or that the House has completed its legislative business and is proceeding with special-order speeches will appear on the screen. The Chair may announce other adaptations during this period.

The continuation of this format for recognition by the Speaker is without prejudice to the Speaker's ultimate power of recognition under clause 2 of rule XVII and includes the ability to withdraw recognition for longer special-order speeches should circumstances warrant.

6. Decorum in Debate

The Chair's announced policies of January 7, 2003, January 4, 1995, and January 3, 1991, will apply in the 114th Congress. It is essential that the dignity of the proceedings of the House be preserved, not only to assure that the House conducts its business in an orderly fashion but also to permit Members to properly comprehend and participate in the business of the House. To this end, and in order to permit the Chair to understand and to correctly put the question on the numerous requests that are made by Members, the Chair requests that Members and others who have the privileges of the floor desist from audible conversation in the Chamber while the business of the House is being conducted. The Chair would encourage all Members to review rule XVII to gain a better understanding of the proper rules of decorum expected of them, and especially: to avoid ''personalities'' in debate with respect to references to other Members, the Senate, and the President; to address the Chair while standing and only during, and not beyond, the time recognized, and not to address the television or other imagined audience; to refrain from passing between the Chair and a Member speaking, or directly in front of a Member speaking from the well; to refrain from smoking in the Chamber; to wear appropriate business attire in the Chamber; and to generally display the same degree of respect to the Chair and other Members that every Member is due.

The Chair would like all Members to be on notice that the Chair intends to strictly enforce time limitations on debate. Furthermore, the Chair has the authority to immediately interrupt Members in debate who transgress rule XVII by failing to avoid ''personalities'' in debate with respect to references to the Senate, the President, and other Members, rather than wait for Members to complete their remarks.

Finally, it is not in order to speak disrespectfully of the Speaker; and under the precedents the sanctions for such violations transcend the ordinary requirements for timeliness of challenges. This separate treatment is recorded in volume 2 of Hinds' Precedents, at section 1248 and was reiterated on January 19, 1995.

7. Conduct of Votes by Electronic Device

The Speaker's policy announced on January 4, 1995, with respect to the conduct of electronic votes will continue in the 114th Congress with modifications as follows.

As Members are aware, clause 2(a) of rule XX provides that Members shall have not less than 15 minutes in which to answer an ordinary record vote or quorum call. The rule obviously establishes 15 minutes as a minimum. Still, with the cooperation of the Members, a vote can easily be completed in that time. The events of October 30, 1991, stand out as proof of this point. On that occasion, the House was considering a bill in the Committee of the Whole under a special rule that placed an overall time limit on the amendment process, including the time consumed by record votes. The Chair announced, and then strictly enforced, a policy of closing electronic votes as soon as possible after the guaranteed period of 15 minutes. Members appreciated and cooperated with the Chair's enforcement of the policy on that occasion.

The Chair desires that the example of October 30, 1991, be made the regular practice of the House. To that end, the Chair enlists the assistance of all Members in avoiding the unnecessary loss of time in conducting the business of the House. The Chair encourages all Members to depart for the Chamber promptly upon the appropriate bell and light signal. As in recent Congresses, the cloakrooms should not forward to the Chair requests to hold a vote by electronic device, but should simply apprise inquiring Members of the time remaining on the voting clock. Members should not rely on signals relayed from outside the Chamber to assume that votes will be held open until they arrive in the Chamber. Members will be given a reasonable amount of time in which to accurately record their votes, and the Chair will endeavor to assess the presence of the membership and the expectation of further votes prior to exercising his authority under clause 8(c)(2) of rule XX or clause 6(g)(2) of rule XVIII. No occupant of the Chair would prevent a Member who is in the well before the announcement of the result from casting his or her vote. The Speaker believes the best practice for presiding officers is to await the Clerk's certification that a vote tally is complete and accurate.

8. Use of Handouts on House Floor

The Speaker's policy announced on September 27, 1995, which was prompted by a misuse of handouts on the House floor and made at the bipartisan request of the Committee on Standards of Official Conduct, will continue in the 114th Congress. All handouts distributed on or adjacent to the House floor by Members during House proceedings must bear the name of the Member authorizing their distribution. In addition, the content of those materials must comport with standards of propriety applicable to words spoken in debate or inserted in the Record. Failure to comply with this admonition may constitute a breach of decorum and may give rise to a question of privilege.

The Chair would also remind Members that, pursuant to clause 5 of rule IV, staff is prohibited from engaging in efforts in the Hall of the House or rooms leading thereto to influence Members with regard to the legislation being amended. Staff cannot distribute handouts.

In order to enhance the quality of debate in the House, the Chair would ask Members to minimize the use of handouts.

9. Use of Electronic Equipment on House Floor

The Speaker's policy announced on January 27, 2000, as clarified on January 6, 2009, and as modified by the change in clause 5 of rule XVII in the 112th Congress, will continue in the 114th Congress. All Members and staff are reminded of the absolute prohibition contained in clause 5 of rule XVII against the use of mobile electronic devices that impair decorum. Those devices include wireless telephones and personal computers. The Chair wishes to note that electronic tablet devices do not constitute personal computers within the meaning of this policy and thus may be unobtrusively used in the Chamber. No device may be used for still photography or for audio or video recording.

The Chair requests all Members and staff wishing to receive or make wireless telephone calls to do so outside of the Chamber. The Chair further requests that all Members and staff refrain from wearing telephone

headsets in the Chamber and to deactivate any audible ring of wireless phones before entering the Chamber. To this end, the Chair insists upon the cooperation of all Members and staff and instructs the Sergeant-at-Arms, pursuant to clause 3(a) of rule II and clause 5 of rule XVII, to enforce this prohibition.

10. Use of Chamber

The Speaker's policy announced on January 6, 2009, with respect to use of the Chamber will continue in the 114th Congress.

The Chair will announce to the House the policy of the Speaker concerning appropriate comportment in the chamber when the House is not in session.

Under clause 3 of rule I, the Speaker is responsible to control the Hall of the House. Under clause 1 of rule IV, the Hall of the House is to be used only for the legislative business of the House, for caucus and conference meetings of its Members, and for such ceremonies as the House might agree to conduct there.

When the House stands adjourned, its chamber remains on static display It may accommodate visitors in the gallery or on the floor, subject to the needs of those who operate, maintain, and secure the chamber to go about their ordinary business. Because outside ''coverage'' of the chamber is limited to floor proceedings and is allowed only by accredited journalists, when the chamber is on static display no audio or video recording or transmitting devices are allowed. The long custom of disallowing even still photography in the chamber is based at least in part on the notion that an image having this setting as its backdrop might be taken to carry the imprimatur of the House.

The imprimatur of the House adheres to the Journal of its proceedings, which is kept pursuant to the Constitution. The imprimatur of the House adheres to the Congressional Record, which is kept as a substantially verbatim transcript pursuant to clause 8 of rule XVII. The imprimatur of the House adheres to the audio and visual transmissions and recordings that are made and kept by the television system administered by the Speaker pursuant to rule V. But the imprimatur of the House may not be appropriated to other, ad hoc accounts or compositions of events in its chamber.

APPOINTMENT—HOUSE OFFICE BUILDING COMMISSION

The SPEAKER pro tempore. The Chair announces the Speaker's appointment, pursuant to 2 U.S.C. 2001, and the order of the House of today, of the gentleman from California (Mr. MCCARTHY) and the gentlewoman from California (Ms. PELOSI) as members of the House Office Building Commission to serve with the Speaker.

APPOINTMENT OF MEMBER TO PERMANENT SELECT COMMITTEE ON INTELLIGENCE

The SPEAKER pro tempore. The Chair announces the Speaker's appointment, pursuant to clause 11 of rule X, clause 11 of rule I, and the order of the House of today, of the following Member to the Permanent Select Committee on Intelligence:

Mr. NUNES, California, Chairman

APPOINTMENT OF MEMBER TO SELECT COMMITTEE ON THE EVENTS SURROUNDING THE 2012 TERRORIST ATTACK IN BENGHAZI

The SPEAKER pro tempore. The Chair announces the Speaker's appointment, pursuant to section 4(a) of House Resolution 5, 114th Congress, and the order of the House of today, of the following Member to the Select Committee on the Events Surrounding the 2012 Terrorist Attack in Benghazi:

Mr. GOWDY, South Carolina, Chairman

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. The Chair announces that the Speaker has delivered to the Clerk a letter dated January 6, 2015, listing Members in the order in which each shall act as Speaker pro tempore under clause 8(b)(3) of rule I.

RECALL DESIGNEE

The SPEAKER pro tempore laid before the House the following communication from the Speaker:

THE SPEAKER'S ROOMS,
HOUSE OF REPRESENTATIVES,
Washington, DC, January 6, 2015.

Hon. KAREN L. HAAS,
Clerk of the House of Representatives, The Capitol, Washington, DC.

DEAR MADAM CLERK: I hereby designate Representative Kevin McCarthy of California to exercise any authority regarding assembly, reassembly, convening, or reconvening of the House pursuant to House Concurrent Resolution 1, clause 12 of rule I, and any concurrent resolutions of the current Congress as may contemplate my designation of Members to exercise similar authority.

In the event of the death or inability of that designee, the alternate Members of the House listed in the letter bearing this date that I have placed with the Clerk are designated, in turn, for the same purposes.

Sincerely,

JOHN A. BOEHNER,
Speaker.

APPOINTMENT OF MEMBERS TO ACT AS SPEAKER PRO TEMPORE TO SIGN ENROLLED BILLS AND JOINT RESOLUTIONS DURING THE 114TH CONGRESS

The SPEAKER pro tempore laid before the House the following communications from the Speaker:

THE SPEAKER'S ROOMS,
HOUSE OF REPRESENTATIVES,
Washington, DC, January 6, 2015.

I hereby appoint the Honorable Jeff Denham, the Honorable Mac Thornberry, the Honorable Fred Upton, the Honorable Andy Harris, the Honorable Barbara Comstock, and the Honorable Luke Messer to act as Speaker pro tempore to sign enrolled bills and joint resolutions through the remainder of the One Hundred Fourteenth Congress.

JOHN A. BOEHNER,
Speaker.

The SPEAKER pro tempore. Without objection, the appointments are approved.

There was no objection.

ANNOUNCEMENT BY THE SPEAKER PRO TEMPORE

The SPEAKER pro tempore. Under clause 5(d) of rule XX, the Chair announces to the House that the whole number of the House is 416.

LEAVE OF ABSENCE

By unanimous consent, leave of absence was granted to:

Mr. TONKO (at the request of Ms. PELOSI) for today on account of attending the funeral of Governor Cuomo.

ADJOURNMENT

Mr. ROKITA. Madam Speaker, I move that the House do now adjourn.

The motion was agreed to; accordingly (at 6 o'clock and 42 minutes p.m.), under its previous order, the House adjourned until tomorrow, Wednesday, January 7, 2015, at 10 a.m. for morning-hour debate.

EXECUTIVE COMMUNICATIONS, ETC.

Under clause 2 of rule XIV, executive communications were taken from the Speaker's table and referred as follows:

1. A letter from the Under Secretary, Comptroller, Department of Defense, transmitting a report of a violation of the Antideficiency Act, Navy case number 13-01, pursuant to 31 U.S.C. 1351; to the Committee on Appropriations.

2. A letter from the Clerk, U.S. House of Representatives, transmitting a list of reports created by the Clerk, pursuant to Rule II, clause 2(b), of the Rules of the House; (H. Doc. No. 114–4); to the Committee on House Administration and ordered to be printed.

3. A letter from the Chief, Publications and Regulations Branch, Internal Revenue Service, transmitting the Service's IRB only rule — 2014 Base Period T-Bill Rate (Rev. Rul. 2014-33) received January 5, 2015, pursuant to 5 U.S.C. 801(a)(1)(A); to the Committee on Ways and Means.

PUBLIC BILLS AND RESOLUTIONS

Under clause 2 of rule XII, public bills and resolutions of the following titles were introduced and severally referred, as follows:

By Mr. CRAMER (for himself, Mr. SHUSTER, Mr. UPTON, Mr. SESSIONS, Mr. BISHOP of Utah, Mr. RATCLIFFE, Mr. ROUZER, Mr. ZINKE, Mr. RODNEY DAVIS of Illinois, Mr. BARLETTA, Mr. WESTERMAN, Mr. MILLER of Florida, Mr. KELLY of Pennsylvania, Mr. MULLIN, Mr. GOSAR, Mr. FITZPATRICK, Mr. PEARCE, Mr. DENHAM, and Mrs. MILLER of Michigan):

H.R. 3. A bill to approve the Keystone XL Pipeline; to the Committee on Transportation and Infrastructure, and in addition to the Committees on Energy and Commerce, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SENSENBRENNER:

H.R. 21. A bill to provide for a comprehensive assessment of the scientific and technical research on the implications of the use

of mid-level ethanol blends, and for other purposes; to the Committee on Science, Space, and Technology, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. RODNEY DAVIS of Illinois (for himself, Ms. GABBARD, Mr. ROE of Tennessee, Mr. NEUGEBAUER, Mr. HUIZENGA of Michigan, Mr. JOYCE, Mrs. BLACK, Mr. GIBBS, Mr. ROSKAM, Mr. HULTGREN, Mr. LIPINSKI, Mr. MCKINLEY, Mrs. BLACKBURN, Mr. ROUZER, Mr. COSTELLO of Pennsylvania, Mrs. COMSTOCK, Mr. GOODLATTE, Mr. LAMALFA, Ms. JENKINS of Kansas, Mrs. HARTZLER, Mr. JENKINS of West Virginia, Mr. WALBERG, Mr. FARENTHOLD, Mr. COOK, Mr. GRIFFITH, Mr. WESTMORELAND, Mr. KELLY of Pennsylvania, Mr. HUDSON, Mr. WOODALL, Mr. GIBSON, Mr. RIGELL, Mr. HANNA, Mr. SHIMKUS, Mrs. WALORSKI, Mr. JONES, Mr. JOLLY, Mr. VALADAO, Mr. DENHAM, Mr. GUINTA, Mr. STIVERS, Mr. NUGENT, Mr. WILLIAMS, Mrs. MILLER of Michigan, Mr. MEEHAN, Mrs. ELLMERS, Mr. TIBERI, Mr. STEWART, Mr. MARINO, Mr. AMODEI, Mr. WOMACK, Mr. ZINKE, Mr. LAMBORN, Mr. EMMER, Mr. KING of Iowa, Mr. MACARTHUR, Mr. YOHO, Mr. WALDEN, Mr. BABIN, Mr. HILL, Mr. PALAZZO, Mr. RICE of South Carolina, Mr. THOMPSON of Pennsylvania, Mr. ASHFORD, Mr. COFFMAN, Mr. HARDY, Mr. FITZPATRICK, Mr. KLINE, Mr. BENISHEK, Mr. BRADY of Texas, Mr. FRANKS of Arizona, Mr. MILLER of Florida, Ms. MCSALLY, Mr. ZELDIN, Mr. BILIRAKIS, Mr. MULLIN, Mr. REED, Mr. ROSS, Mr. RENACCI, Mr. COLE, Mr. CURBELO of Florida, Mr. SENSENBRENNER, Mr. SCHOCK, Mr. LATTA, Mr. PEARCE, Mr. FINCHER, Mr. CHABOT, Mr. DUFFY, Mr. GOSAR, Mr. KINZINGER of Illinois, Mr. JOHNSON of Ohio, Mr. SESSIONS, Mrs. WAGNER, Mr. RUIZ, Mr. MCCLINTOCK, Mr. LONG, Mr. MESSER, Mr. DUNCAN of Tennessee, Mr. CRAMER, Mr. WHITFIELD, Mr. MCCAUL, Mr. WITTMAN, Mr. ROKITA, Mr. MICA, Mr. CRAWFORD, Mr. NEWHOUSE, Mr. BRAT, Mr. RATCLIFFE, Mr. SMITH of Missouri, Mr. BARR, Mr. HUNTER, Mr. BROOKS of Alabama, Mr. PITTENGER, Mr. BOUSTANY, Mr. CLAWSON of Florida, Mr. CALVERT, Mr. BARLETTA, Mr. WESTERMAN, Mr. FLEISCHMANN, and Mr. BOST):

H.R. 22. A bill to amend the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; to the Committee on Ways and Means. considered and passed. considered and passed.

By Mr. NEUGEBAUER (for himself, Ms. WILSON of Florida, Mr. SMITH of Texas, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. BUCSHON, Mr. LIPINSKI, Mr. HULTGREN, and Ms. ESTY):

H.R. 23. A bill to reauthorize the National Windstorm Impact Reduction Program, and for other purposes; to the Committee on Science, Space, and Technology, and in addition to the Committee on Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MASSIE (for himself, Mr. AMODEI, Mrs. BLACK, Mr. COLE, Mr. COLLINS of New York, Mr. CRAMER, Mr. CULBERSON, Mr. DENHAM, Mr. DUNCAN of South Carolina, Mr. FLEISCHMANN, Mr. FORTENBERRY, Mr. GARRETT, Mr. GIBSON, Mr. GOHMERT, Mr. GOODLATTE, Mr. GOSAR, Mr. GRIFFITH, Mr. GUTHRIE, Mr. HUELSKAMP, Mr. JONES, Mr. LANCE, Mr. MCCLINTOCK, Mr. MULVANEY, Mr. NEUGEBAUER, Mr. NUGENT, Mr. PEARCE, Mr. POSEY, Mr. ROE of Tennessee, Mr. ROGERS of Alabama, Mr. ROHRABACHER, Mr. SENSENBRENNER, Mr. TIPTON, Mr. WEBER of Texas, Mr. WESTMORELAND, Mr. YOHO, Mr. COLLINS of Georgia, Mr. BENISHEK, Mr. MEADOWS, Mr. GENE GREEN of Texas, Mr. WOMACK, Mrs. ELLMERS, Mr. LOBIONDO, Mr. DESANTIS, Mr. HARPER, Mr. ROTHFUS, Mr. TIBERI, Mr. SALMON, Mr. PALAZZO, Mrs. BLACKBURN, Mr. LAMALFA, Mr. BURGESS, Mr. GIBBS, Mr. BROOKS of Alabama, Mr. AMASH, Mr. CHABOT, Mr. THOMPSON of Pennsylvania, Mr. DUNCAN of Tennessee, Mr. BOUSTANY, Mr. FARENTHOLD, Mr. WALBERG, Mr. JOLLY, Mr. GRAYSON, Mr. CLAWSON of Florida, and Mr. BLUM):

H.R. 24. A bill to require a full audit of the Board of Governors of the Federal Reserve System and the Federal reserve banks by the Comptroller General of the United States, and for other purposes; to the Committee on Oversight and Government Reform.

By Mr. WOODALL (for himself, Mr. PRICE of Georgia, Mr. KING of Iowa, Mr. BISHOP of Utah, Mr. CONAWAY, Mr. KLINE, Mr. MCCAUL, Mr. MILLER of Florida, Mr. THORNBERRY, Mr. BRADY of Texas, Ms. JENKINS of Kansas, Mr. MARCHANT, Mr. CULBERSON, Mr. BILIRAKIS, Mr. WESTMORELAND, Mr. GRAVES of Georgia, Mr. LONG, Mr. MASSIE, Mr. POSEY, Mr. YODER, Mr. DESJARLAIS, Mr. MEADOWS, Mr. COLLINS of Georgia, Mr. HUELSKAMP, Mr. BRIDENSTINE, Ms. FOXX, Mr. MICA, Mr. MCCLINTOCK, Mr. SALMON, Mr. NEUGEBAUER, Mr. STUTZMAN, Mr. ROE of Tennessee, Mr. GRAVES of Missouri, Mr. POE of Texas, Mr. FRANKS of Arizona, Mr. CRENSHAW, Ms. GRANGER, Mr. NUGENT, Mr. DESANTIS, Mr. POMPEO, Mr. FLORES, Mr. DUNCAN of Tennessee, Mr. WALBERG, Mr. FARENTHOLD, Mr. OLSON, Mr. HARRIS, Mr. YOHO, Mr. DUNCAN of South Carolina, Mr. ROONEY of Florida, Mr. WITTMAN, Mr. LUCAS, Mr. MULLIN, Mr. CHABOT, Mr. RIBBLE, Mr. BRAT, Mr. LOUDERMILK, Mr. HICE of Georgia, and Mr. CARTER of Georgia):

H.R. 25. A bill to promote freedom, fairness, and economic opportunity by repealing the income tax and other taxes, abolishing the Internal Revenue Service, and enacting a national sales tax to be administered primarily by the States; to the Committee on Ways and Means.

By Mr. NEUGEBAUER (for himself and Mr. GOSAR):

H.R. 26. A bill to extend the termination date of the Terrorism Insurance Program established under the Terrorism Risk Insurance Act of 2002, and for other purposes; to the Committee on Financial Services, and in addition to the Committee on Agriculture, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GOODLATTE (for himself, Mr. MARINO, Mr. JOYCE, Mr. WALBERG, Mr. WILSON of South Carolina, Mr. FLORES, Mr. POE of Texas, Mr. PITTENGER, Mr. FRANKS of Arizona, Mr. MULVANEY, Mr. YOHO, Mr. JONES, Mr. CHABOT, Mr. DUNCAN of Tennessee, Mr. CHAFFETZ, Mr. ROE of Tennessee, Mr. LONG, Mr. SENSENBRENNER, Mr. BILIRAKIS, Mr. GARRETT, Mr. GRIFFITH, Mr. CULBERSON, Mr. AMASH, Mr. SCHWEIKERT, Mr. AMODEI, Mr. WESTMORELAND, Mrs. BLACKBURN, Mr. WEBER of Texas, Mr. FORBES, Mr. NEWHOUSE, Mr. GOSAR, and Mr. WOODALL):

H.R. 27. A bill to terminate the Internal Revenue Code of 1986; to the Committee on Ways and Means, and in addition to the Committee on Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. POE of Texas:

H.R. 28. A bill to approve the Keystone XL pipeline project permit; to the Committee on Transportation and Infrastructure, and in addition to the Committees on Energy and Commerce, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. POE of Texas (for himself, Mr. GARRETT, Mr. BROOKS of Alabama, Mrs. BLACK, Mr. DUNCAN of South Carolina, Mr. PITTENGER, Mr. ROE of Tennessee, Mr. SCHWEIKERT, Mr. DUNCAN of Tennessee, Mr. FRANKS of Arizona, Mr. COOK, Mr. MARINO, Mrs. BLACKBURN, Mr. WILSON of South Carolina, Mr. BILIRAKIS, Mr. BURGESS, Mr. PALAZZO, Mr. ROTHFUS, Mr. FINCHER, Mr. BYRNE, Mr. BARLETTA, and Mr. KLINE):

H.R. 29. A bill to prohibit the use of funds for granting deferred action or other immigration relief to aliens not lawfully present in the United States; to the Committee on the Judiciary.

By Mr. YOUNG of Indiana (for himself, Mr. LIPINSKI, Mr. KELLY of Pennsylvania, Mr. WALBERG, Mr. OLSON, Mr. RICE of South Carolina, Mr. FORBES, Mr. SMITH of Nebraska, Mr. WEBSTER of Florida, Mr. NEUGEBAUER, Mr. CRAWFORD, Mr. YOHO, Mr. HILL, Mr. TURNER, Mr. BISHOP of Utah, Mr. PAULSEN, Mr. WALDEN, Mr. SCHOCK, Mr. LUETKEMEYER, Mr. PITTS, Mr. PRICE of Georgia, Mr. PALAZZO, Mr. JONES, Mr. DUFFY, Mr. LANCE, Mr. BUCHANAN, Mr. HUDSON, Mr. WOMACK, Mr. WILLIAMS, Mr. YODER, Mr. FRELINGHUYSEN, Mr. VALADAO, Mr. SANFORD, Mr. GUINTA, Mr. GOSAR, Mr. HECK of Nevada, Mr. HUIZENGA of Michigan, Mr. SCHRADER, Mr. PETERSON, Ms. GRAHAM, Mr. ASHFORD, Mr. BRAT, Mr. WHITFIELD, Mr. MEADOWS, Mr. SAM JOHNSON of Texas, Mr. WOODALL, Mr. BARLETTA, Mr. KATKO, Mrs. WALORSKI, Mr. DESANTIS, Mr. PERRY, Mr. ROE of Tennessee, Mr. MULVANEY, Mr. BOUSTANY, Mr. WILSON of South Carolina, Mr. WESTMORELAND, Mr. BARR, Mr. STIVERS, Mr. ZELDIN, Mr. GIBBS, Mr. ROTHFUS, Mr. SCHWEIKERT, Mr. CRAMER, Mr. RIBBLE, Mr. MCCLINTOCK, Mr. LATTA, Mr. GIBSON, Mr. DUNCAN of Tennessee, Mr. JOLLY, Mr. THOMPSON of Pennsylvania, Mr. COOK, Mr. GRAVES of Missouri, Mr. REED, Mr. RODNEY DAVIS of Illinois, Mr. MCCAUL, Mrs. BLACK, Mr. ROONEY of Florida, Mr. STEWART, Mrs. WAGNER, Mr. MESSER, Ms. JENKINS of Kansas, Mr. BUCSHON, Mrs. BLACKBURN, Mr. YOUNG of Alaska, Mr. SESSIONS, Mr. MCKINLEY, Mr. MARINO, Mr. BRADY of Texas, Mr.

PEARCE, Mr. BENISHEK, Mr. COSTELLO of Pennsylvania, Mrs. NOEM, Mr. TIBERI, Mrs. BROOKS of Indiana, Mr. HUELSKAMP, Mr. MILLER of Florida, Mr. BURGESS, Mr. ROSKAM, Mr. TIPTON, Mr. FLEISCHMANN, Mr. ROHRABACHER, Mr. REICHERT, Mr. HURT of Virginia, Mr. WENSTRUP, Mrs. LUMMIS, Mr. JOYCE, Mr. BYRNE, Mr. DOLD, Mr. AMODEI, Mr. PITTENGER, Mr. HANNA, Mr. JOHNSON of Ohio, Mr. CHAFFETZ, Mr. FLORES, Mr. SHIMKUS, Mr. ROKITA, Mr. GRIFFITH, Mr. DIAZ-BALART, Mr. KLINE, Mr. POSEY, Mr. LAMBORN, Mr. COLE, Mr. NUNNELEE, Mrs. HARTZLER, Mr. CALVERT, Mr. ISSA, Mr. JORDAN, Mr. GUTHRIE, Mr. HOLDING, Mr. SMITH of New Jersey, Mr. FORTENBERRY, Mr. WESTERMAN, Mr. COLLINS of New York, Mr. MULLIN, Mr. RATCLIFFE, Mr. SMITH of Missouri, Mrs. ELLMERS, Ms. SINEMA, Mr. POLIQUIN, Mr. BROOKS of Alabama, Mr. FARENTHOLD, Mrs. MIMI WALTERS of California, Mr. ROGERS of Kentucky, Mr. STUTZMAN, Mr. DENHAM, Mr. HENSARLING, Mr. MARCHANT, and Mrs. MILLER of Michigan):

H.R. 30. A bill to amend the Internal Revenue Code of 1986 to repeal the 30-hour threshold for classification as a full-time employee for purposes of the employer mandate in the Patient Protection and Affordable Care Act and replace it with 40 hours; to the Committee on Ways and Means, and in addition to the Committee on the Budget, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mrs. ROBY:

H.R. 31. A bill to prohibit the use of funds to implement the immigration policies set forth in the memoranda issued by the Secretary of Homeland Security on November 20, 2014, or the memoranda issued by the President on November 21, 2014, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. BARLETTA:

H.R. 32. A bill to amend the Immigration and Nationality Act to expand the definition of an unauthorized alien to include aliens who have not been admitted to and are not lawfully present in the United States, and for other purposes; to the Committee on the Judiciary.

By Mr. BARLETTA:

H.R. 33. A bill to amend the Internal Revenue Code of 1986 to ensure that emergency services volunteers are not taken into account as employees under the shared responsibility requirements contained in the Patient Protection and Affordable Care Act; to the Committee on Ways and Means.

By Ms. BONAMICI (for herself, Mr. ROHRABACHER, Ms. EDDIE BERNICE JOHNSON of Texas, Mr. SMITH of Texas, Mr. SABLAN, Mr. DEFAZIO, and Mr. SCHRADER):

H.R. 34. A bill to authorize and strengthen the tsunami detection, forecast, warning, research, and mitigation program of the National Oceanic and Atmospheric Administration, and for other purposes; to the Committee on Science, Space, and Technology.

By Mr. HULTGREN (for himself, Mr. LIPINSKI, Mr. SMITH of Texas, Mr. SENSENBRENNER, Mr. POSEY, Mr. BUCSHON, and Mr. CRAMER):

H.R. 35. A bill to increase the understanding of the health effects of low doses of ionizing radiation; to the Committee on Science, Space, and Technology.

By Mr. FRANKS of Arizona (for himself and Mrs. BLACKBURN):

H.R. 36. A bill to amend title 18, United States Code, to protect pain-capable unborn children, and for other purposes; to the Committee on the Judiciary.

By Mr. FITZPATRICK (for himself, Mr. GOSAR, Mr. BARR, and Mr. FINCHER):

H.R. 37. A bill to make technical corrections to the Dodd-Frank Wall Street Reform and Consumer Protection Act, to enhance the ability of small and emerging growth companies to access capital through public and private markets, to reduce regulatory burdens, and for other purposes; to the Committee on Financial Services, and in addition to the Committee on Agriculture, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. YOHO (for himself, Mr. PITTENGER, Mr. COOK, Mr. HARRIS, Mr. DUNCAN of Tennessee, Mr. ROE of Tennessee, Mr. NUGENT, Mr. ROHRABACHER, Mr. OLSON, Mr. FORBES, Mr. YODER, Mr. MCCAUL, Mr. BARLETTA, Mr. MCCLINTOCK, Mr. PALAZZO, and Mr. JOLLY):

H.R. 38. A bill to prohibit the executive branch from exempting from removal categories of aliens considered under the immigration laws to be unlawfully present in the United States, and for other purposes; to the Committee on the Judiciary.

By Mrs. BLACKBURN (for herself, Mr. HENSARLING, Mr. FRANKS of Arizona, Mrs. BLACK, Mr. LAMALFA, Mr. COLLINS of Georgia, and Mr. JONES):

H.R. 39. A bill to make 1 percent across-the-board rescissions in non-defense, non-homeland-security, and non-veterans-affairs discretionary spending for each of the fiscal years 2015 and 2016; to the Committee on Appropriations.

By Mr. CONYERS:

H.R. 40. A bill to acknowledge the fundamental injustice, cruelty, brutality, and inhumanity of slavery in the United States and the 13 American colonies between 1619 and 1865 and to establish a commission to examine the institution of slavery, subsequently de jure and de facto racial and economic discrimination against African-Americans, and the impact of these forces on living African-Americans, to make recommendations to the Congress on appropriate remedies, and for other purposes; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 41. A bill to enhance Federal enforcement of hate crimes, and for other purposes; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 42. A bill to amend title XVIII of the Social Security Act to require hospitals reimbursed under the Medicare system to establish and implement security procedures to reduce the likelihood of infant patient abduction and baby switching, including procedures for identifying all infant patients in the hospital in a manner that ensures that it will be evident if infants are missing from the hospital; to the Committee on Ways and Means, and in addition to the Committees on the Judiciary, and Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 43. A bill to provide for emergency deployments of United States Border Patrol agents and to increase the number of DEA and ATF agents along the international border of the United States to increase resources to identify and eliminate illicit sources of firearms into Mexico for use by violent drug trafficking organizations and for other lawful activities, and for other purposes; to the Committee on Homeland Security, and in addition to the Committee on the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. BORDALLO (for herself, Mr. HOYER, Mr. PIERLUISI, Mr. SABLAN, Ms. NORTON, Mr. HONDA, and Ms. LEE):

H.R. 44. A bill to implement the recommendations of the Guam War Claims Review Commission; to the Committee on Natural Resources.

By Ms. JACKSON LEE:

H.R. 45. A bill to provide for research and education with respect to triple-negative breast cancer, and for other purposes; to the Committee on Energy and Commerce.

By Ms. JACKSON LEE:

H.R. 46. A bill to increase the evidentiary standard required to convict a person for a drug offense, to require screening of law enforcement officers or others acting under color of law participating in drug task forces, and for other purposes; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 47. A bill to ensure secure gun storage and gun safety devices; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 48. A bill to require a review of the completeness of the Terrorist Screening Database (TSDB) maintained by the Federal Bureau of Investigation and the derivative terrorist watchlist utilized by the Transportation Security Administration, and for other purposes; to the Committee on the Judiciary.

By Mrs. BLACKBURN:

H.R. 49. A bill to make 2 percent across-the-board rescissions in non-defense, non-homeland-security, and non-veterans-affairs discretionary spending for each of the fiscal years 2015 and 2016; to the Committee on Appropriations.

By Ms. FOXX (for herself and Ms. LORETTA SANCHEZ of California):

H.R. 50. A bill to provide for additional safeguards with respect to imposing Federal mandates, and for other purposes; to the Committee on Oversight and Government Reform, and in addition to the Committees on the Budget, Rules, and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 51. A bill to provide for the collection of data on traffic stops, and for other purposes; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 52. A bill to amend the Immigration and Nationality Act to comprehensively reform immigration law, and for other purposes; to the Committee on the Judiciary, and in addition to the Committees on Homeland Security, and Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 53. A bill to codify an office within the Department of Homeland Security with the mission of strengthening the capacity of the agency to attract and retain highly trained computer and information security professionals, and for other purposes; to the Committee on Education and the Workforce,

and in addition to the Committees on Science, Space, and Technology, and Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 54. A bill to enhance the security of chemical facilities and for other purposes; to the Committee on Homeland Security, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 55. A bill to require the Director of National Intelligence to conduct a study on the use of contractors for intelligence activities, and for other purposes; to the Committee on Intelligence (Permanent Select).

By Ms. JACKSON LEE:

H.R. 56. A bill to impose sanctions against persons who knowingly provide material support or resources to the Donbass People's Militia or its affiliates, associated groups, or agents, and for other purposes; to the Committee on the Judiciary, and in addition to the Committees on Foreign Affairs, and Financial Services, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 57. A bill to require that activities carried out by the United States in South Sudan relating to governance, reconstruction and development, and refugee relief and assistance will support the basic human rights of women and women's participation and leadership in these areas; to the Committee on Foreign Affairs.

By Mrs. BLACKBURN:

H.R. 58. A bill to make 5 percent across-the-board rescissions in non-defense, non-homeland-security, and non-veterans-affairs discretionary spending for each of the fiscal years 2015 and 2016; to the Committee on Appropriations.

By Ms. JACKSON LEE:

H.R. 59. A bill to provide for a reduction in the amount that may be awarded to a unit of local government under subpart 1 of part E of title I of the Omnibus Crime Control and Safe Streets Act of 1968 (42 U.S.C. 3750 et seq.) for a unit of local government that funds an amount that is greater than 18 percent of its operating budget using revenue generated from collecting fines and other fees related to violations of traffic laws, and for other purposes; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 60. A bill to require the Director of National Intelligence to conduct a study on the feasibility of establishing a Cyber Defense National Guard; to the Committee on Intelligence (Permanent Select).

By Ms. JACKSON LEE:

H.R. 61. A bill to preserve the access of victims of trafficking to information about their eligibility to receive SNAP benefits; to the Committee on Agriculture.

By Ms. JACKSON LEE:

H.R. 62. A bill to designate the facility of the United States Postal Service located at 1900 West Gray Street in Houston, Texas, as the ''Hazel Hainsworth Young Post Office Building''; to the Committee on Oversight and Government Reform.

By Ms. JACKSON LEE:

H.R. 63. A bill to direct the Secretary of Homeland Security to develop a database that shall serve as a central location for information from investigations relating to human trafficking for Federal, State, and local law enforcement agencies; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 64. A bill to encourage States to provide for enhanced sentencing penalties for persons convicted of committing, or attempting to commit, an act of domestic violence in the presence of minor children; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 65. A bill to require the Director of National Intelligence to conduct a study on the use of contractors for intelligence activities, and for other purposes; to the Committee on Intelligence (Permanent Select).

By Ms. JACKSON LEE:

H.R. 66. A bill to require the Attorney General to disclose each decision, order, or opinion of a Foreign Intelligence Surveillance Court that includes significant legal interpretation of section 501 or 702 of the Foreign Intelligence Surveillance Act of 1978 unless such disclosure is not in the national security interest of the United States and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Intelligence (Permanent Select), for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 67. A bill to establish a grant program to empower relatives, friends, and co-workers of domestic violence victims to create safety plans; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 68. A bill to amend the Omnibus Crime Control and Safe Streets Act of 1968 to enhance the use of Juvenile Accountability Block Grants for programs to prevent and address occurrences of bullying and to reauthorize the Juvenile Accountability Block Grants program; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 69. A bill to award a Congressional Gold Medal to Malala Yousafzai, a recipient of the Nobel Prize for Peace, in recognition of her devoted service to education, justice, and equality in Pakistan; to the Committee on Financial Services.

By Ms. JACKSON LEE:

H.R. 70. A bill to direct the Secretary of Interior and the Secretary of Commerce, acting through the National Oceanic and Atmospheric Administration, to initiate immediate action to create jobs in America, and for other purposes; to the Committee on Natural Resources, and in addition to the Committees on Science, Space, and Technology, and Transportation and Infrastructure, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 71. A bill to amend title 18, United States Code, to provide an alternate release date for certain nonviolent offenders, and for other purposes; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 72. A bill to establish a grant program for nebulizers in elementary and secondary schools; to the Committee on Education and the Workforce, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 73. A bill to establish a grant program for stipends to assist in the cost of compensation paid by employers to certain recent college graduates and to provide funding for their further education in subjects relating to mathematics, science, engineering, and technology; to the Committee on Education and the Workforce.

By Ms. JACKSON LEE:

H.R. 74. A bill to amend the Omnibus Crime Control and Safe Streets Act of 1968 to authorize the Attorney General to provide grants to States and units of local government for the video recording of custodial interrogations; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 75. A bill to prohibit States from carrying out more than one Congressional redistricting after a decennial census and apportionment; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 76. A bill to amend the Internal Revenue Code of 1986 to provide a tax credit to encourage private employers to hire veterans, to amend title 38, United States Code, to clarify the reasonable efforts an employer may make under the Uniformed Services Employment and Reemployment Rights Act with respect to hiring veterans, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Veterans' Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 77. A bill to provide for the appointment of additional immigration judges; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.R. 78. A bill to authorize the Secretary of Labor to make grants to States, units of local government, and Indian tribes to carry out employment training programs to assist long-term unemployed job hunters obtain the skills and training to reenter the workforce and fill jobs in high-growth sectors of the economy; to the Committee on Education and the Workforce.

By Ms. JACKSON LEE:

H.R. 79. A bill to conduct a study to ensure that enhanced communication is provided between commercial aircraft and air traffic control towers, and for other purposes; to the Committee on Transportation and Infrastructure.

By Ms. JACKSON LEE:

H.R. 80. A bill to amend title 49, United States Code, to establish an Ombudsman Office within the Transportation Security Administration for the purpose of enhancing transportation security by providing confidential, informal, and neutral assistance to address work-place related problems of Transportation Security Administration employees, and for other purposes; to the Committee on Homeland Security.

By Ms. JACKSON LEE:

H.R. 81. A bill to increase the number of Federal air marshals for certain flights, require criminal investigative training for such marshals, create an office and appoint an ombudsman for the marshals, and for other purposes; to the Committee on Homeland Security.

By Ms. JACKSON LEE:

H.R. 82. A bill to establish conditions under which the Secretary of Homeland Security may commence U.S. Customs and Border Protection security screening operations at a preclearance facility outside the United States, and for other purposes; to the Committee on Homeland Security.

By Ms. JACKSON LEE:

H.R. 83. A bill to assist States and local governments develop and implement emergency notification systems suitable for use on public recreational lands, and for other

purposes; to the Committee on Transportation and Infrastructure, and in addition to the Committee on Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Ms. JACKSON LEE:

H.R. 84. A bill to direct the Secretary of Transportation to take actions to ensure that not fewer than 2 air traffic controllers are on duty and physically situated within the air traffic control room or tower of certain airports at all times during periods of airfield operations, and for other purposes; to the Committee on Transportation and Infrastructure.

By Ms. JACKSON LEE:

H.R. 85. A bill to codify the objective of Presidential Policy Directive 21 to improve critical infrastructure security and resilience, and for other purposes; to the Committee on Homeland Security.

By Mr. MASSIE (for himself, Mr. BRIDENSTINE, Mr. DUNCAN of South Carolina, Mr. GOHMERT, and Mr. PALAZZO):

H.R. 86. A bill to repeal the Gun-Free School Zones Act of 1990 and amendments to that Act; to the Committee on the Judiciary.

By Mrs. BLACKBURN:

H.R. 87. A bill to modify the boundary of the Shiloh National Military Park located in Tennessee and Mississippi, to establish Parker's Crossroads Battlefield as an affiliated area of the National Park System, and for other purposes; to the Committee on Natural Resources.

By Mrs. BLACKBURN:

H.R. 88. A bill to amend subtitle IV of title 40, United States Code, regarding county additions to the Appalachian region; to the Committee on Transportation and Infrastructure.

By Mr. BRIDENSTINE:

H.R. 89. A bill to provide for expedited approval of exportation of natural gas to World Trade Organization countries, and for other purposes; to the Committee on Energy and Commerce.

By Ms. BROWNLEY of California:

H.R. 90. A bill to direct the Comptroller General of the United States to conduct reviews of certain budget requests of the President for the medical care accounts of the Department of Veterans Affairs; to the Committee on Veterans' Affairs.

By Mr. BUCHANAN:

H.R. 91. A bill to amend title 38, United States Code, to direct the Secretary of Veterans Affairs to issue, upon request, veteran identification cards to certain veterans; to the Committee on Veterans' Affairs.

By Mr. BUCHANAN (for himself, Mrs. BLACK, and Mr. YOHO):

H.R. 92. A bill to provide that rates of pay for Members of Congress shall not be adjusted under section 601(a)(2) of the Legislative Reorganization Act of 1946 in the year following any fiscal year in which outlays of the United States exceeded receipts of the United States; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CONNOLLY (for himself and Mr. CHABOT):

H.R. 93. A bill to prohibit United States Government recognition of Russia's annexation of Crimea; to the Committee on Foreign Affairs.

By Mr. CONNOLLY (for himself, Mr. POE of Texas, and Mr. QUIGLEY):

H.R. 94. A bill to permit the televising of Supreme Court proceedings; to the Committee on the Judiciary.

By Mr. CONYERS (for himself, Mr. COHEN, Ms. JACKSON LEE, and Mr. JOHNSON of Georgia):

H.R. 95. A bill to amend chapter 9 of title 11 of the United States Code to improve protections for employees and retirees in municipal bankruptcies; to the Committee on the Judiciary.

By Mr. CONYERS:

H.R. 96. A bill to amend title 18, United States Code, to provide for the protection of the general public, and for other purposes; to the Committee on the Judiciary.

By Mr. CONYERS (for himself, Mr. COHEN, Mr. DEUTCH, Ms. JACKSON LEE, Mr. JOHNSON of Georgia, Ms. LOFGREN, and Ms. LEE):

H.R. 97. A bill to amend title 11, United States Code, to improve protections for employees and retirees in business bankruptcies; to the Committee on the Judiciary.

By Mr. CONYERS (for himself, Ms. JACKSON LEE, Mr. JOHNSON of Georgia, Ms. LOFGREN, and Ms. NORTON):

H.R. 98. A bill to amend title 11 of the United States Code to dispense with the requirement of providing assurance of payment for utility services under certain circumstances; to the Committee on the Judiciary.

By Mr. CONYERS:

H.R. 99. A bill to prohibit anticompetitive activities and to provide that health insurance issuers and medical malpractice insurance issuers are subject to the antitrust laws of the United States, and for other purposes; to the Committee on the Judiciary.

By Mr. CONYERS (for himself, Mr. COHEN, and Mr. JOHNSON of Georgia):

H.R. 100. A bill to amend title 11 of the United States Code to stop abusive student loan collection practices in bankruptcy cases; to the Committee on the Judiciary.

By Mr. CONYERS (for himself, Mr. COHEN, Ms. JACKSON LEE, Mr. JOHNSON of Georgia, Mr. MCDERMOTT, and Mr. SCOTT of Virginia):

H.R. 101. A bill to amend title 11 of the United States Code with respect to modification of certain mortgages on principal residences, and for other purposes; to the Committee on the Judiciary.

By Mr. CONYERS:

H.R. 102. A bill to establish a corporate crime database, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. CONYERS (for himself, Mr. COHEN, Mr. JOHNSON of Georgia, Ms. LEE, and Ms. BROWNLEY of California):

H.R. 103. A bill to improve public safety through increased law enforcement presence and enhanced public safety equipment and programs, and for other purposes; to the Committee on the Judiciary.

By Mr. CONYERS (for himself and Mr. JOHNSON of Georgia):

H.R. 104. A bill to protect cyber privacy, and for other purposes; to the Committee on the Judiciary.

By Mr. CONYERS (for himself and Mr. BENISHEK):

H.R. 105. A bill to ensure and foster continued patient safety and quality of care by clarifying the application of the antitrust laws to negotiations between groups of health care professionals and health plans and health care insurance issuers; to the Committee on the Judiciary.

By Mr. CULBERSON:

H.R. 106. A bill to amend the Elementary and Secondary Education Act of 1965 to restore State sovereignty over public education and parental rights over the education of their children; to the Committee on Education and the Workforce.

By Mr. FITZPATRICK:

H.R. 107. A bill to amend title 18, United States Code, to increase from 1 to 2 years the post employment restrictions on Members of the House of Representatives; to the Committee on the Judiciary.

By Mr. FITZPATRICK:

H.R. 108. A bill to amend title 5, United States Code, to provide for the termination of further retirement coverage of Members of Congress, except for the right to participate in the Thrift Savings Plan, and for other purposes; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FITZPATRICK (for himself and Mr. GUINTA):

H.R. 109. A bill to provide that no pay adjustment for Members of Congress shall be made with respect to any pay period occurring during the One Hundred Fourteenth Congress; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FORBES:

H.R. 110. A bill to provide for rates of pay for Members of Congress to be adjusted as a function of changes in Government spending; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. FORBES:

H.R. 111. A bill to protect the Social Security and Medicare trust funds from the public debt limit, and for other purposes; to the Committee on Ways and Means.

By Mr. FORTENBERRY:

H.R. 112. A bill to amend title 31, United States Code, to restore the 10 year statute of limitations applicable to collection of debt by administrative offset, and for other purposes; to the Committee on the Judiciary.

By Mr. GARRETT:

H.R. 113. A bill to improve the accountability and transparency of the Board of Governors of the Federal Reserve System, and for other purposes; to the Committee on Financial Services.

By Mr. GARRETT:

H.R. 114. A bill to recognize Jerusalem as the capital of Israel, to relocate to Jerusalem the United States Embassy in Israel, and for other purposes; to the Committee on Foreign Affairs.

By Mr. GARRETT:

H.R. 115. A bill to prohibit the Transportation Security Administration from performing security screening operations for surface transportation, and for other purposes; to the Committee on Homeland Security.

By Mr. GARRETT:

H.R. 116. A bill to permit small business concerns operating in the United States to elect to be exempt from certain Federal rules and regulations, and for other purposes; to the Committee on Small Business.

By Mr. GARRETT:

H.R. 117. A bill to amend the Internal Revenue Code of 1986 to repeal the mandate that individuals purchase health insurance; to the Committee on Ways and Means.

By Mr. GARRETT:

H.R. 118. A bill to amend the Internal Revenue Code of 1986 to reduce the Federal tax on fuels by the amount of any increase in the rate of tax on such fuel by the States; to the Committee on Ways and Means.

By Mr. GARRETT:

H.R. 119. A bill to amend the Balanced Budget and Emergency Deficit Control Act of 1985 to increase transparency in Federal budgeting, and for other purposes; to the Committee on the Budget, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GARRETT:

H.R. 120. A bill to repeal the War Powers Resolution; to the Committee on Foreign Affairs, and in addition to the Committee on Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GARRETT:

H.R. 121. A bill to allow a State to opt out of K-12 education grant programs and the requirements of those programs, to amend the Internal Revenue Code of 1986 to provide a credit to taxpayers in such a State, and for other purposes; to the Committee on Ways and Means, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. AL GREEN of Texas (for himself, Mr. CUMMINGS, Ms. BROWN of Florida, Ms. EDDIE BERNICE JOHNSON of Texas, Ms. NORTON, Ms. CLARKE of New York, Ms. MOORE, Mr. CLEAVER, Ms. JACKSON LEE, Mr. CONYERS, Mr. CLYBURN, Ms. LEE, Mr. HONDA, Mr. LEWIS, Mr. JEFFRIES, Ms. FUDGE, and Mr. VEASEY):

H.R. 122. A bill to amend the Fair Labor Standards Act to provide for the calculation of the minimum wage based on the Federal poverty threshold for a family of 4, as determined by the Bureau of the Census; to the Committee on Education and the Workforce.

By Mr. AL GREEN of Texas (for himself and Ms. CHU of California):

H.R. 123. A bill to extend the pilot program under section 258 of the National Housing Act that establishes an automated process for providing alternative credit rating information for mortgagors and prospective mortgagors under certain mortgages; to the Committee on Financial Services.

By Mr. JONES:

H.R. 124. A bill to redesignate the Department of the Navy as the Department of the Navy and Marine Corps; to the Committee on Armed Services.

By Mr. AL GREEN of Texas:

H.R. 125. A bill to authorize a pilot program to improve asset recovery levels, asset management, and homeownership retention with respect to delinquent single-family mortgages insured under the FHA mortgage insurance programs by providing for in-person contact outreach activities with mortgagors under such mortgages, and for other purposes; to the Committee on Financial Services.

By Mr. AL GREEN of Texas (for himself and Mr. BRADY of Pennsylvania):

H.R. 126. A bill to direct the Election Assistance Commission to carry out a pilot program under which the Commission shall provide funds to local educational agencies for initiatives to provide voter registration information to secondary school students in the 12th grade; to the Committee on House Administration.

By Mr. AL GREEN of Texas (for himself, Mr. CONYERS, and Mr. VEASEY):

H.R. 127. A bill to amend title 49, United States Code, with respect to urbanized area formula grants, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. GENE GREEN of Texas:

H.R. 128. A bill to direct the Secretary of Labor to revise regulations concerning the recording and reporting of occupational injuries and illnesses under the Occupational Safety and Health Act of 1970; to the Committee on Education and the Workforce.

By Mr. SIMPSON:

H.R. 129. A bill to amend title 23, United States Code, with respect to the operation of longer combination vehicles on the Interstate System in the State of Idaho, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. GRIFFITH (for himself, Mr. ROE of Tennessee, and Mr. JOHNSON of Ohio):

H.R. 130. A bill to amend the Black Lung Benefits Act to provide equity for certain eligible survivors, and for other purposes; to the Committee on Education and the Workforce.

By Mr. GRIFFITH (for himself, Mr. HANNA, Mr. FRANKS of Arizona, Mr. JONES, Ms. JENKINS of Kansas, Mr. JOHNSON of Ohio, Mr. KINZINGER of Illinois, Mr. ROE of Tennessee, and Mrs. ELLMERS):

H.R. 131. A bill to amend chapter 44 of title 18, United States Code, to more comprehensively address the interstate transportation of firearms or ammunition; to the Committee on the Judiciary.

By Mr. KING of Iowa (for himself, Mr. BARR, Mr. BILIRAKIS, Mr. DUNCAN of South Carolina, Mr. DUNCAN of Tennessee, Mr. FRANKS of Arizona, Mr. GIBBS, Mr. HUELSKAMP, Mr. MASSIE, Mr. MEADOWS, Mr. NEWHOUSE, Mr. OLSON, Mr. ROTHFUS, Mr. SCHWEIKERT, Mr. YOHO, Mr. YOUNG of Iowa, Mr. ADERHOLT, Mr. WEBER of Texas, and Mr. COLLINS of Georgia):

H.R. 132. A bill to repeal the Patient Protection and Affordable Care Act and the Health Care and Education Reconciliation Act of 2010; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, Education and the Workforce, the Judiciary, Natural Resources, House Administration, Rules, and Appropriations, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRIFFITH:

H.R. 133. A bill to amend the Internal Revenue Code of 1986 to provide for waivers of user fees imposed with respect to applications for reinstatement of tax-exempt status of small, subsidiary tax-exempt organizations; to the Committee on Ways and Means.

By Mr. ISSA:

H.R. 134. A bill to designate the exclusive economic zone of the United States as the ''Ronald Wilson Reagan Exclusive Economic Zone of the United States''; to the Committee on Natural Resources.

By Mr. ISSA:

H.R. 135. A bill to amend the National Historic Preservation Act to provide that if the head of the agency managing Federal property objects to the inclusion of certain property on the National Register or its designation as a National Historic Landmark for reasons of national security, the Federal property shall be neither included nor designated until the objection is withdrawn, and for other purposes; to the Committee on Natural Resources.

By Mr. ISSA:

H.R. 136. A bill to designate the facility of the United States Postal Service located at 1103 USPS Building 1103 in Camp Pendleton, California, as the ''Camp Pendleton Medal of Honor Post Office''; to the Committee on Oversight and Government Reform.

By Mr. ISSA:

H.R. 137. A bill to require an adequate process in preplanned lethal operations that deliberately target citizens of the United States or citizens of strategic treaty allies of the United States, and for other purposes; to the Committee on Armed Services, and in addition to the Committees on Intelligence (Permanent Select), and the Judiciary, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. ISSA:

H.R. 138. A bill to repeal the Patient Protection and Affordable Care Act and the health care-related provisions in the Health Care and Education Reconciliation Act of 2010 and to amend title 5, United States Code, to establish a national health program administered by the Office of Personnel Management to offer Federal employee health benefits plans to individuals who are not Federal employees, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committees on Ways and Means, Oversight and Government Reform, Education and the Workforce, Natural Resources, the Judiciary, Rules, Appropriations, and House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. JOLLY (for himself and Mr. MURPHY of Florida):

H.R. 139. A bill to amend title 10, United States Code, to require that Federal, State, and local agencies to which surplus military equipment and personal property is sold or donated demonstrate that agency personnel are certified, trained, or licensed, as appropriate, in the proper operation of the equipment prior to the sale or donation; to the Committee on Armed Services.

By Mr. KING of Iowa (for himself, Mr. DUNCAN of Tennessee, and Mr. BROOKS of Alabama):

H.R. 140. A bill to amend section 301 of the Immigration and Nationality Act to clarify those classes of individuals born in the United States who are nationals and citizens of the United States at birth; to the Committee on the Judiciary.

By Mr. JOLLY (for himself, Ms. CASTOR of Florida, Mr. BILIRAKIS, Mr. MURPHY of Florida, Ms. FRANKEL of Florida, and Mr. CURBELO of Florida):

H.R. 141. A bill to ensure fairness in premium rates for coverage for business properties and second homes under the National Flood Insurance Program, and for other purposes; to the Committee on Financial Services.

By Mr. JOLLY:

H.R. 142. A bill to amend the Coast Guard Authorization Act of 1989 to expand the Coast Guard Junior Reserve Officers Training Program Pilot Program to include a Coast Guard unit at Pinellas Park High School in Pinellas Park, Florida, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. JOLLY:

H.R. 143. A bill to amend the Internal Revenue Code of 1986 to repeal the individual health insurance mandate; to the Committee on Ways and Means.

By Mr. JOLLY:

H.R. 144. A bill to amend the Internal Revenue Code of 1986 to establish a maximum

rate of Federal, State, and local tax imposed on taxpayers; to the Committee on Ways and Means.

By Mr. JOLLY:

H.R. 145. A bill to amend the Internal Revenue Code of 1986 to make permanent the work opportunity tax credit and to allow the transfer of such credit in the case of contracted veterans; to the Committee on Ways and Means.

By Mr. JONES:

H.R. 146. A bill to amend title 10, United States Code, to ensure that members of the Armed Forces serving on active duty who are diagnosed with post-traumatic stress disorder or traumatic brain injury have access to hyperbaric oxygen therapy at military medical treatment facilities; to the Committee on Armed Services.

By Mr. JONES:

H.R. 147. A bill to require the Secretary of Defense to determine and disclose the cost of any transportation provided by the Secretary to Members, officers, or employees of the House of Representatives or Senate who are carrying out official duties outside the United States, and for other purposes; to the Committee on Armed Services.

By Mr. JONES:

H.R. 148. A bill to amend title 10, United States Code, to ensure that every military chaplain has the prerogative to close a prayer outside of a religious service according to the dictates of the chaplain's own conscience; to the Committee on Armed Services.

By Mr. JONES:

H.R. 149. A bill to amend the Federal Election Campaign Act of 1971 to permit candidates for election for Federal office to designate an individual who will be authorized to disburse funds of the authorized campaign committees of the candidate in the event of the death of the candidate; to the Committee on House Administration.

By Mr. JONES:

H.R. 150. A bill to amend the Federal Election Campaign Act of 1971 to apply the prohibition against the conversion of contributions to personal use to contributions accepted by political committees; to the Committee on House Administration.

By Mr. JONES:

H.R. 151. A bill to correct the boundaries of the John H. Chafee Coastal Barrier Resources System Unit L06, Topsail, North Carolina; to the Committee on Natural Resources.

By Mr. JONES:

H.R. 152. A bill to direct the Secretary of the Interior to enter into an agreement to provide for management of the free-roaming wild horses in and around the Currituck National Wildlife Refuge; to the Committee on Natural Resources.

By Mr. JONES (for himself and Mr. HUDSON):

H.R. 153. A bill to restore the Free Speech and First Amendment rights of churches and exempt organizations by repealing the 1954 Johnson Amendment; to the Committee on Ways and Means.

By Mr. KILMER (for himself, Mr. CICILLINE, Mr. HIMES, Mr. MCDERMOTT, Mr. PETERS, Mr. DEUTCH, Ms. BONAMICI, and Mr. WELCH):

H.R. 154. A bill to repeal the provisions of the Consolidated and Further Continuing Appropriations Act, 2015, which amended the Federal Election Campaign Act of 1971 to establish separate contribution limits for contributions made to national parties to support Presidential nominating conventions, national party headquarters buildings, and recounts; to the Committee on House Administration.

By Mr. MARINO (for himself, Mr. HARPER, Mr. FRANKS of Arizona, Mr. POE of Texas, Mr. BYRNE, and Mr. ROTHFUS):

H.R. 155. A bill to provide that no funds appropriated or otherwise made available may be used to implement, administer, carry out, or enforce certain memoranda related to immigration; to the Committee on the Judiciary, and in addition to the Committee on Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MCCAUL (for himself, Mr. DUNCAN of South Carolina, Mr. POE of Texas, and Mr. BRIDENSTINE):

H.R. 156. A bill to repeal the crude oil export ban under the Energy Policy and Conservation Act, and for other purposes; to the Committee on Foreign Affairs, and in addition to the Committees on Natural Resources, Energy and Commerce, and Rules, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. MCGOVERN:

H.R. 157. A bill to limit the use of cluster munitions; to the Committee on Armed Services.

By Mrs. MILLER of Michigan (for herself and Mr. MCCAUL):

H.R. 158. A bill to clarify the grounds for ineligibility for travel to the United States regarding terrorism risk, to expand the criteria by which a country may be removed from the Visa Waiver Program, to require the Secretary of Homeland Security to submit a report on strengthening the Electronic System for Travel Authorization to better secure the international borders of the United States and prevent terrorists and instruments of terrorism from entering the United States, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Homeland Security, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PAULSEN (for himself and Ms. MOORE):

H.R. 159. A bill to stop exploitation through trafficking; to the Committee on the Judiciary, and in addition to the Committee on Education and the Workforce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. PAULSEN (for himself, Mr. KIND, Mr. STUTZMAN, Mr. COSTELLO of Pennsylvania, Mr. BRADY of Texas, Mrs. BLACKBURN, Mr. YOUNG of Indiana, Ms. JENKINS of Kansas, Mr. LANCE, Mr. SENSENBRENNER, Mr. ROE of Tennessee, Mr. WEBER of Texas, Mr. SCHWEIKERT, Mr. WOMACK, Mr. CHAFFETZ, Mr. DESJARLAIS, Mr. GUTHRIE, Mr. FARENTHOLD, Mr. CHABOT, Mr. VARGAS, Mr. BUCSHON, Mrs. NOEM, Mr. SMITH of New Jersey, Mr. SHIMKUS, Mr. KELLY of Pennsylvania, Mr. BURGESS, Mr. DIAZ-BALART, Mr. HARPER, Mrs. WALORSKI, Mr. BARR, Mr. TIBERI, Mrs. WAGNER, Mr. HECK of Nevada, Ms. CLARK of Massachusetts, Mr. COLLINS of New York, Mr. DENT, Mrs. BROOKS of Indiana, Mr. ADERHOLT, Mr. BARLETTA, Mr. BARTON, Mr. BENISHEK, Mr. BILIRAKIS, Mrs. BLACK, Mr. BOUSTANY, Mr. BROOKS of Alabama, Mr. BUCHANAN, Mr. CALVERT, Mr. COFFMAN, Mr. COLE, Mr. CONAWAY, Mr. COOK, Mr. CRAMER, Mr. CRAWFORD, Mr. CRENSHAW, Mr. CULBERSON, Mr. RODNEY DAVIS of Illinois, Mr. DENHAM, Mr. DESANTIS, Mr. DUFFY, Mr. DUNCAN of South Carolina, Mr. DUNCAN of Tennessee, Mr. ELLISON, Mr. FINCHER, Mr. RICE of South Carolina, Mr. PALAZZO, Ms. DELBENE, Mrs. MCMORRIS RODGERS, Mr. ROKITA, Mrs. BUSTOS, Mr. GRAVES of Georgia, Mr. GUINTA, Mr. MCCAUL, Mr. ROHRABACHER, Mrs. MILLER of Michigan, Mr. HUELSKAMP, Mr. JOYCE, Mr. AMODEI, Mr. COLLINS of Georgia, Mrs. ELLMERS, Mr. FITZPATRICK, Mr. FLORES, Ms. FOXX, Mr. FRELINGHUYSEN, Mr. GIBSON, Mr. GOODLATTE, Mr. GOSAR, Mr. GRAVES of Missouri, Mr. HOLDING, Mr. HUDSON, Mr. HUIZENGA of Michigan, Mr. HULTGREN, Mr. HURT of Virginia, Mr. ISSA, Mr. JOLLY, Mr. JONES, Mr. JORDAN, Mr. KING of New York, Mr. KING of Iowa, Mr. LAMBORN, Mr. LONG, Mr. MASSIE, Mr. MCHENRY, Mr. MEEHAN, Mr. MESSER, Mr. MULLIN, Mr. OLSON, Mr. PERRY, Mr. REED, Mr. REICHERT, Mr. RIBBLE, Mr. ROTHFUS, Mr. PETERSON, Mr. WEBSTER of Florida, Mr. GIBBS, Mr. BYRNE, Mr. BRAT, Mr. BRIDENSTINE, Mr. CLAWSON of Florida, Ms. MCCOLLUM, Mr. FLEISCHMANN, Mr. FLEMING, Mr. FORTENBERRY, Mr. FRANKS of Arizona, Mr. GARRETT, Ms. GRANGER, Mr. HANNA, Mr. HARRIS, Mrs. HARTZLER, Mr. HENSARLING, Ms. HERRERA BEUTLER, Mr. HUNTER, Mr. SAM JOHNSON of Texas, Mr. KINZINGER of Illinois, Mr. KLINE, Mr. LABRADOR, Mr. LAMALFA, Mr. LATTA, Mr. LUCAS, Mr. LUETKEMEYER, Mrs. LUMMIS, Mr. MARCHANT, Mr. MARINO, Mr. MCCLINTOCK, Mr. MCKINLEY, Mr. MEADOWS, Mr. NEUGEBAUER, Mr. NUNES, Mr. PEARCE, Mr. PITTS, Mr. POE of Texas, Mr. POMPEO, Mr. POSEY, Mr. RENACCI, Mr. ROGERS of Kentucky, Mr. ROONEY of Florida, Mr. ROSKAM, Mr. ROSS, Mr. ROYCE, Mr. SALMON, Mr. SCALISE, Mr. SCHOCK, Ms. SINEMA, Mr. SMITH of Missouri, Mr. STEWART, Mr. STIVERS, Mr. THOMPSON of Pennsylvania, Mr. THORNBERRY, Mr. TIPTON, Mr. TURNER, Mr. UPTON, Mr. VALADAO, Mr. WALBERG, Mr. WALDEN, Mr. WENSTRUP, Mr. WESTMORELAND, Mr. WILLIAMS, Mr. WILSON of South Carolina, Mr. WITTMAN, Mr. WOODALL, Mr. YODER, Mr. PITTENGER, Mr. FORBES, Mr. GRIFFITH, Mr. JOHNSON of Ohio, Mr. LIPINSKI, Mr. MURPHY of Pennsylvania, Mr. RIGELL, Mrs. ROBY, Mr. ROGERS of Alabama, Ms. ROS-LEHTINEN, Mr. SANFORD, Mr. SESSIONS, Mr. SHUSTER, Mr. SIMPSON, Mr. SMITH of Texas, Mr. WALZ, Mr. GOWDY, Mr. PRICE of Georgia, Mr. NUGENT, Mr. SMITH of Nebraska, Mr. YOHO, Mr. LOEBSACK, Mr. LOBIONDO, Mr. MICA, Mr. MILLER of Florida, Mr. AMASH, Mr. MULVANEY, Mr. LYNCH, Mr. KILMER, Mr. EMMER, Mr. KATKO, Mr. MURPHY of Florida, Mr. RATCLIFFE, Mr. WESTERMAN, Mr. DOLD, Mrs. MIMI WALTERS of California, Ms. BROWNLEY of California, Mr. KNIGHT, Ms. STEFANIK, Mrs. COMSTOCK, Mr. MACARTHUR, Mr. BOST, Mr. PETERS, Mr. BISHOP of Utah, Mr. HURD of Texas, Mr. ROUZER, Mr. MOONEY of West Virginia, Mr. CARTER of Georgia, Mr. ZELDIN, Mr. HILL, Mr. CURBELO of Florida, Mr. ASHFORD, Mr. BABIN, Mr. WHITFIELD, Mr. HICE of Georgia, Mr. ALLEN, Mr. BERA, Ms. GRAHAM, Mr. MOOLENAAR, Mrs. LOVE, Mr. BUCK, Mr. POLIQUIN, Mr. TROTT, Mr. BLUM, Ms. SEWELL of Alabama, Mr. KEATING, Mr. YOUNG of

Iowa, Mrs. DAVIS of California, and Ms. KUSTER):

H.R. 160. A bill to amend the Internal Revenue Code of 1986 to repeal the excise tax on medical devices; to the Committee on Ways and Means.

By Mr. POMPEO (for himself, Mr. OLSON, Mr. MCKINLEY, Mr. JOHNSON of Ohio, and Mr. COLLINS of New York):

H.R. 161. A bill to provide for the timely consideration of all licenses, permits, and approvals required under Federal law with respect to the siting, construction, expansion, or operation of any natural gas pipeline projects; to the Committee on Energy and Commerce.

By Mr. SCHWEIKERT:

H.R. 162. A bill to amend the Truth in Lending Act to allow certain loans that are not fully amortizing to be used in seller carryback financing on residential mortgage loans; to the Committee on Financial Services.

By Mr. SCHWEIKERT:

H.R. 163. A bill to require the Board of Governors of the Federal Reserve System to collect, publish, and keep current an objective index of dollar-denominated loan interest rates of various maturities, and for other purposes; to the Committee on Financial Services.

By Mr. SCHWEIKERT:

H.R. 164. A bill to require that the United States Government prioritize all obligations on the debt held by the public, Social Security benefits, and military pay in the event that the debt limit is reached, and for other purposes; to the Committee on Ways and Means.

By Mr. SCHWEIKERT:

H.R. 165. A bill to provide that the President shall submit to Congress a report detailing the priority of Federal spending if the statutory debt limit is reached, and for other purposes; to the Committee on Ways and Means.

By Mr. SIMPSON:

H.R. 166. A bill to amend title 28, United States Code, to provide for the appointment of additional Federal circuit judges, to divide the Ninth Judicial Circuit of the United States into two judicial circuits, and for other purposes; to the Committee on the Judiciary.

By Mr. SIMPSON (for himself and Mr. SCHRADER):

H.R. 167. A bill to provide for adjustments to discretionary spending under section 251(b)(2) of the Balanced Budget and Emergency Deficit Control Act of 1985 to support wildfire suppression operations, and for other purposes; to the Committee on the Budget, and in addition to the Committees on Agriculture, and Natural Resources, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SIMPSON:

H.R. 168. A bill to authorize an additional district judgeship for the district of Idaho; to the Committee on the Judiciary.

By Mr. SMITH of Nebraska (for himself, Mr. WALDEN, Mr. LOEBSACK, and Mr. YOUNG of Indiana):

H.R. 169. A bill to amend title XVIII of the Social Security Act to remove the 96-hour physician certification requirement for inpatient critical access hospital services; to the Committee on Ways and Means.

By Mr. SMITH of Nebraska:

H.R. 170. A bill to extend the nonenforcement instruction for the Medicare direct supervision requirement for therapeutic hospital outpatient services insofar as it applies to critical access hospitals and rural hospitals, to require a study of the impact on critical access hospitals and rural hospitals of a failure to extend such instruction, and for other purposes; to the Committee on Energy and Commerce, and in addition to the Committee on Ways and Means, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. SMITH of Nebraska:

H.R. 171. A bill to repeal the Dodd-Frank Wall Street Reform and Consumer Protection Act; to the Committee on Financial Services, and in addition to the Committees on Agriculture, Energy and Commerce, the Judiciary, the Budget, Oversight and Government Reform, Ways and Means, and Small Business, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. THOMPSON of Mississippi:

H.R. 172. A bill to designate the United States courthouse located at 501 East Court Street in Jackson, Mississippi, as the ''R. Jess Brown United States Courthouse''; to the Committee on Transportation and Infrastructure.

By Mr. THORNBERRY (for himself, Mr. MCCLINTOCK, Mr. SESSIONS, Mr. LAMALFA, Mr. COOK, Mr. CRAMER, Mr. HUIZENGA of Michigan, Mr. FRANKS of Arizona, Mr. OLSON, Ms. GRANGER, Mr. LANCE, Mr. CONAWAY, Mr. GOSAR, Mr. TURNER, Mr. WOMACK, Mr. YOHO, Mr. MASSIE, Mr. WILSON of South Carolina, Mr. JONES, Mr. CULBERSON, Mr. GOODLATTE, Mr. BILIRAKIS, and Mr. MILLER of Florida):

H.R. 173. A bill to repeal the Federal estate and gift taxes; to the Committee on Ways and Means.

By Mr. WITTMAN:

H.R. 174. A bill to provide that the salaries of Members of a House of Congress will be held in escrow if that House has not agreed to a concurrent resolution on the budget for fiscal year 2016 by April 15, 2015; to the Committee on House Administration.

By Mr. WOMACK:

H.R. 175. A bill to provide for the revision of certification requirements for the labeling of certain electronic products under the Energy Star program; to the Committee on Energy and Commerce.

By Mr. WOMACK:

H.R. 176. A bill to amend the Water Resources Development Act of 1992 to permit the collection of user fees by non-Federal entities in connection with the challenge cost-sharing program for management of recreation facilities, and for other purposes; to the Committee on Transportation and Infrastructure.

By Mr. WOMACK (for himself and Mr. AMODEI):

H.R. 177. A bill to amend title 10, United States Code, to continue the national security exemption from emissions regulations when an excess Department of Defense vehicle covered by the exemption is transferred to a firefighting agency in a State or to any other State agency; to the Committee on Armed Services, and in addition to the Committee on Energy and Commerce, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. WOMACK (for himself, Mr. DUNCAN of Tennessee, and Mr. PITTENGER):

H.R. 178. A bill to amend section 349(a) of the Immigration and Nationality Act to add certain acts of allegiance to a foreign terrorist organization to the list of acts for which nationals of the United States lose nationality, and for other purposes; to the Committee on the Judiciary, and in addition to the Committee on Foreign Affairs, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. YODER:

H.R. 179. A bill to amend the Legislative Reorganization Act of 1946 to reduce the rates of pay of Members of Congress by 5 percent and eliminate future cost-of-living adjustments in such rates of pay; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. YODER:

H.R. 180. A bill to amend title 5, United States Code, to provide for the termination of further retirement benefits for Members of Congress, except the right to continue participating in the Thrift Savings Plan; to the Committee on House Administration, and in addition to the Committee on Oversight and Government Reform, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GOODLATTE (for himself, Mrs. MCMORRIS RODGERS, Mr. KING of Iowa, Mr. DUNCAN of Tennessee, Mr. FRANKS of Arizona, Mr. WALBERG, Mr. LANCE, Mr. SMITH of Texas, Mr. POLIQUIN, Mr. SENSENBRENNER, Mr. PALAZZO, Mr. HURT of Virginia, Mr. DUNCAN of South Carolina, Mrs. MILLER of Michigan, Mr. CHABOT, Mr. ROUZER, Mr. PEARCE, Mr. ROYCE, Mr. RIBBLE, Mr. FORBES, Mr. RATCLIFFE, Mr. CULBERSON, Mr. MULVANEY, Mr. MARINO, Mr. YOHO, Mr. WEBER of Texas, Mr. MURPHY of Pennsylvania, Mr. NEWHOUSE, Mr. GUINTA, Mr. COLLINS of Georgia, Mr. WESTERMAN, Mr. TIPTON, Mr. GRIFFITH, Mr. GROTHMAN, Mr. GOHMERT, Mr. SALMON, and Mr. POE of Texas):

H.J. Res. 1. A joint resolution proposing a balanced budget amendment to the Constitution of the United States; to the Committee on the Judiciary.

By Mr. GOODLATTE (for himself, Mr. DEFAZIO, Mrs. MCMORRIS RODGERS, Mr. KING of Iowa, Mr. DUNCAN of Tennessee, Mr. FRANKS of Arizona, Mr. WALBERG, Mr. LANCE, Mr. SMITH of Texas, Mr. POLIQUIN, Mr. SENSENBRENNER, Mr. PALAZZO, Mr. HURT of Virginia, Mr. DUNCAN of South Carolina, Mrs. MILLER of Michigan, Mr. CHABOT, Mr. ROUZER, Mr. PEARCE, Mr. ROYCE, Mr. RIBBLE, Mr. FORBES, Mr. TURNER, Mr. CULBERSON, Mr. MULVANEY, Mr. MARINO, Mr. GIBSON, Mr. AMODEI, Mr. WEBER of Texas, Mr. MURPHY of Pennsylvania, Mr. NEWHOUSE, Mr. GUINTA, Mr. WESTERMAN, Mrs. BLACK, Mr. TIPTON, Mr. BARLETTA, Mr. RATCLIFFE, Mr. ALLEN, Mr. YOUNG of Iowa, Mr. BISHOP of Michigan, Mr. POE of Texas, Mr. FORTENBERRY, and Mr. SALMON):

H.J. Res. 2. A joint resolution proposing a balanced budget amendment to the Constitution of the United States; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H.J. Res. 3. A joint resolution expressing support for designation of September 2015 as ''Gospel Music Heritage Month'' and honoring gospel music for its valuable and long-standing contributions to the culture of the

United States; to the Committee on Oversight and Government Reform.

By Mr. BUCHANAN (for himself and Mr. LONG):

H.J. Res. 4. A joint resolution proposing an amendment to the Constitution of the United States relative to balancing the budget; to the Committee on the Judiciary.

By Mr. CULBERSON:

H.J. Res. 5. A joint resolution proposing an amendment to the Constitution of the United States regarding the effect of treaties, Executive orders, and agreements with other nations or groups of nations; to the Committee on the Judiciary.

By Mr. FITZPATRICK:

H.J. Res. 6. A joint resolution proposing an amendment to the Constitution of the United States to limit the number of terms that a Member of Congress may serve to 4 in the House of Representatives and 2 in the Senate; to the Committee on the Judiciary.

By Mr. LANCE:

H.J. Res. 7. A joint resolution proposing a balanced budget amendment to the Constitution of the United States; to the Committee on the Judiciary.

By Mr. SCHWEIKERT:

H.J. Res. 8. A joint resolution proposing an amendment to the Constitution of the United States requiring that the Federal budget be balanced and that an increase in the Federal debt requires approval from a majority of the legislatures of the several States; to the Committee on the Judiciary.

By Mr. WOMACK (for himself, Mr. FORTENBERRY, Mr. CRAMER, Mr. JOHNSON of Ohio, Mr. ROE of Tennessee, and Mrs. BLACKBURN):

H.J. Res. 9. A joint resolution proposing an amendment to the Constitution of the United States giving Congress power to prohibit the physical desecration of the flag of the United States; to the Committee on the Judiciary.

By Mr. SESSIONS:

H. Con. Res. 1. Concurrent resolution regarding consent to assemble outside the seat of government; considered and agreed to. considered and agreed to.

By Mr. AL GREEN of Texas (for himself, Mr. HASTINGS, Mr. CLYBURN, Mr. BISHOP of Georgia, Ms. NORTON, Mr. BUTTERFIELD, Mr. RICHMOND, Ms. JACKSON LEE, Ms. CLARKE of New York, Mr. CARSON of Indiana, Ms. EDWARDS, Ms. EDDIE BERNICE JOHNSON of Texas, Ms. WILSON of Florida, Mr. JOHNSON of Georgia, Mr. THOMPSON of Mississippi, Ms. LEE, Mr. LEWIS, Ms. BASS, Ms. FUDGE, Mr. JEFFRIES, Mr. SCOTT of Virginia, Mr. CONYERS, Mr. VEASEY, and Ms. MOORE):

H. Con. Res. 2. Concurrent resolution honoring and praising the National Association for the Advancement of Colored People on the occasion of its 106th anniversary; to the Committee on the Judiciary.

By Ms. JACKSON LEE:

H. Con. Res. 3. Concurrent resolution expressing the sense of Congress that a commemorative postage stamp should be issued in honor of George Thomas ''Mickey'' Leland; to the Committee on Oversight and Government Reform.

By Mr. MILLER of Florida:

H. Con. Res. 4. Concurrent resolution authorizing the use of Emancipation Hall in the Capitol Visitor Center for a ceremony to present the Congressional Gold Medal to the First Special Service Force, in recognition of its superior service during World War II; to the Committee on House Administration.

By Mrs. MCMORRIS RODGERS:

H. Res. 1. A resolution electing officers of the House of Representatives; considered and agreed to. considered and agreed to.

By Mr. MCCARTHY:

H. Res. 2. A resolution to inform the Senate that a quorum of the House has assembled and of the election of the Speaker and the Clerk; considered and agreed to. considered and agreed to.

By Mr. MCCARTHY:

H. Res. 3. A resolution authorizing the Speaker to appoint a committee to notify the President of the assembly of the Congress; considered and agreed to. considered and agreed to.

By Mr. LEWIS:

H. Res. 4. A resolution authorizing the Clerk to inform the President of the election of the Speaker and the Clerk; considered and agreed to. considered and agreed to.

By Mr. MCCARTHY:

H. Res. 5. A resolution adopting rules for the One Hundred Fourteenth Congress; considered and agreed to. considered and agreed to.

By Mrs. MCMORRIS RODGERS:

H. Res. 6. A resolution electing Members to certain standing committees of the House of Representatives; considered and agreed to. considered and agreed to.

By Mr. BECERRA:

H. Res. 7. A resolution electing Members to certain standing committees of the House of Representatives; considered and agreed to. considered and agreed to.

By Mr. BECERRA:

H. Res. 8. A resolution providing for the designation of certain minority employees; considered and agreed to. considered and agreed to.

By Mr. SESSIONS:

H. Res. 9. A resolution fixing the daily hour of meeting of the First Session of the One Hundred Fourteenth Congress; considered and agreed to. considered and agreed to.

By Ms. JACKSON LEE:

H. Res. 10. A resolution expressing the sense of the House of Representatives that the Transportation Security Administration should, in accordance with existing law, enhance security against terrorist attack and other security threats to our Nation's rail and mass transit systems and other modes of surface transportation; and for other purposes; to the Committee on Homeland Security.

By Mr. BROOKS of Alabama (for himself, Mr. BARLETTA, Mr. CRAMER, Mr. GOHMERT, Mr. GOSAR, Mr. GRIFFITH, Mr. KING of Iowa, Mr. MCCLINTOCK, Mr. NUGENT, and Mr. SMITH of Texas):

H. Res. 11. A resolution providing for authority to initiate litigation for actions by the President or other executive branch officials inconsistent with their duties under the Constitution of the United States with respect to the implementation of the immigration laws; to the Committee on Rules, and in addition to the Committee on House Administration, for a period to be subsequently determined by the Speaker, in each case for consideration of such provisions as fall within the jurisdiction of the committee concerned.

By Mr. GRAVES of Missouri (for himself and Mr. CONNOLLY):

H. Res. 12. A resolution expressing the sense of the House of Representatives that the United States Postal Service should take all appropriate measures to ensure the continuation of its 6-day mail delivery service; to the Committee on Oversight and Government Reform.

By Mr. AL GREEN of Texas (for himself, Mr. HASTINGS, Mr. CLYBURN, Mr. BISHOP of Georgia, Ms. NORTON, Mr. BUTTERFIELD, Mr. RICHMOND, Ms. JACKSON LEE, Ms. CLARKE of New York, Mr. CARSON of Indiana, Ms. EDWARDS, Ms. EDDIE BERNICE JOHNSON of Texas, Ms. WILSON of Florida, Mr. JOHNSON of Georgia, Mr. THOMPSON of Mississippi, Ms. LEE, Mr. LEWIS, Ms. BASS, Ms. FUDGE, Mr. JEFFRIES, Mr. SCOTT of Virginia, Mr. CONYERS, Mr. VEASEY, and Ms. MOORE):

H. Res. 13. A resolution recognizing the significance of Black History Month; to the Committee on Education and the Workforce.

By Mr. JONES (for himself, Mr. LYNCH, and Mr. MASSIE):

H. Res. 14. A resolution urging the president to release information regarding the September 11, 2001, terrorist attacks upon the United States; to the Committee on Intelligence (Permanent Select).

By Mr. LARSON of Connecticut (for himself and Mr. KING of New York):

H. Res. 15. A resolution congratulating Pope Francis on his election and recognizing his inspirational statements and actions; to the Committee on Foreign Affairs.

By Mr. SCHWEIKERT:

H. Res. 16. A resolution amending the Rules of the House of Representatives to prohibit the consideration of any bill or joint resolution carrying more than one subject; to the Committee on Rules.

By Mr. WITTMAN:

H. Res. 17. A resolution amending the Rules of the House of Representatives to prohibit the consideration of a concurrent resolution to provide for a recess of the House after July 31 of any year unless the House has approved each regular appropriation bill for the next fiscal year; to the Committee on Rules.

CONSTITUTIONAL AUTHORITY STATEMENT

Pursuant to clause 7 of rule XII of the Rules of the House of Representatives, the following statements are submitted regarding the specific powers granted to Congress in the Constitution to enact the accompanying bill or joint resolution.

By Mr. CRAMER:

H.R. 3.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution, specifically Clause 3 (related to regulation of Commerce with foreign nations and among the several States).

By Mr. SENSENBRENNER:

H.R. 21.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution

By Mr. RODNEY DAVIS of Illinois:

H.R. 22.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the United States Constitution.

By Mr. NEUGEBAUER:

H.R. 23.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3. To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;

Article I, Section 8, Clause 18

The Congress shall have Power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by the Constitution in the Government of the United States or in any Department or Officer thereof.

By Mr. MASSIE:

H.R. 24.

Congress has the power to enact this legislation pursuant to the following:

This legislation is authorized by Article I, Section 8 of the Constitution: ''To coin money, regulate the value thereof, and of foreign coin, and fix the standards of weights and measures'' and ''to provide for the punishment of counterfeiting the securities and current coin of the United States.''

By Mr. WOODALL:

H.R. 25.

Congress has the power to enact this legislation pursuant to the following:

Clause 1, Section 8 of Article 1 of the United States Constitution which reads: ''The Congress shall have Power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defense and General Welfare of the United States; but all Duties and Imposts and Excises shall be uniform throughout the United States.''

By Mr. NEUGEBAUER:

H.R. 26.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3. The Congress shall have Power * * * To regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes.

By Mr. GOODLATTE:

H.R. 27.

Congress has the power to enact this legislation pursuant to the following:

Clause 1 Section 8 of Article 1 of the United States Constitution and Amendment XVI of the United States Constitution.

By Mr. POE of Texas:

H.R. 28.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3

By Mr. POE of Texas:

H.R. 29.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 Clause 4

By Mr. YOUNG of Indiana:

H.R. 30.

Congress has the power to enact this legislation pursuant to the following:

U.S. Const. art. I, Sec. 8, cl. 1.

Within the Enumerated Powers of the U.S. Constitution, Congress is granted the power to lay and collect taxes. This provision grants Congress the authority over this particular piece of legislation.

By Mrs. ROBY:

H.R. 31.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 4.

By Mr. BARLETTA:

H.R. 32.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clauses 4 and 18

By Mr. BARLETTA:

H.R. 33.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clauses 1 and 18

By Ms. BONAMICI:

H.R. 34.

Congress has the power to enact this legislation pursuant to the following:

Article I, section 8 of the Constitution of the United States.

By Mr. HULTGREN:

H.R. 35.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3—''Congress shall have the Power to regulate Commerce with Foreign nations and among the several States, and with the Indian Tribes;'' and Article I, Section 8, Clause 18—''Congress shall have Power to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof''

By Mr. FRANKS of Arizona:

H.R. 36.

Congress has the power to enact this legislation pursuant to the following:

Congress has authority to extend protection to pain-capable unborn children under the Supreme Court's Commerce Clause precedents and under the Constitution's grants of powers to Congress under the Equal Protection, Due Process, and Enforcement Clauses of the Fourteenth Amendment.

By Mr. FITZPATRICK:

H.R. 37.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

Article I, Section 8, Clause 18

By Mr. YOHO:

H.R. 38.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 4 of the Constitution of the United States, which grants Congress the Power ''To establish an uniform Rule of Naturalization . . .''

By Mrs. BLACKBURN:

H.R. 39.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 states that Congress shall have the power ''to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. CONYERS:

H.R. 40.

Congress has the power to enact this legislation pursuant to the following:

Pursuant to Section 5 of the Fourteenth Amendment to the United States Constitution, Congress shall have the power to enact appropriate laws protecting the civil rights of all Americans.

By Ms. JACKSON LEE:

H.R. 41.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 42.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 43.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.

By Ms. BORDALLO:

H.R. 44.

Congress has the power to enact this legislation pursuant to the following:

To make all rules and regulations respecting the Territories and possessions as enumerated in Article IV, Section 3, Clause 2 of the United States Constitution

By Ms. JACKSON LEE:

H.R. 45.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 1 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 46.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 47.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 1 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 48.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.

By Mrs. BLACKBURN:

H.R. 49.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 states that Congress shall have the power ''to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Ms. FOXX:

H.R. 50.

Congress has the power to enact this legislation pursuant to the following:

The authority to enact this bill is derived from, but may not be limited to, Article I, Section 8, Clause 3 of the United States Constitution, and Article I, Section 8, Clause 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 51.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 52.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 4 and 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 53.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 54.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 55.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 3 of the United States Constitution.

By Ms. JACKSON LEE:

H.R. 56.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Sections 8, Clauses 1, 10, and 18 of the United States Constitution.

By Ms. JACKSON LEE:
H.R. 57.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.
By Mrs. BLACKBURN:
H.R. 58.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 states that Congress shall have the power ''to make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''
By Ms. JACKSON LEE:
H.R. 59.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 60.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 61.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 4, and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 62.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 63.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 3 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 64.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 65.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 66.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 67.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 68.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 3 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 69.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 70.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 71.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 1 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 72.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 73.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 3 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 74.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 3 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 75.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 4 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 76.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 77.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 4, and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 78.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 3 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 79.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 80.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 1 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 81.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 1 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 82.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clause 3 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 83.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 84.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1, 3, and 18 of the United States Constitution.
By Ms. JACKSON LEE:
H.R. 85.
Congress has the power to enact this legislation pursuant to the following:
This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, Clauses 1 and 18 of the United States Constitution.
By Mr. MASSIE:
H.R. 86.
Congress has the power to enact this legislation pursuant to the following:
This Act is justified by the lack of a mandate or assertion of authority in the United States Constitution for the federal government to establish the laws affected by this Act; by Article One of the United States Constitution that grants legislative powers; by the Second Amendment to the United States Constitution that recognizes the right to bear arms; and by the Ninth and Tenth Amendments to the United States Constitution, which recognize that rights and powers are retained and reserved by the people and to the States.
By Mrs. BLACKBURN:
H.R. 87.
Congress has the power to enact this legislation pursuant to the following:
Article IV, Section 3, Clause 2 of the Constitution provides that ''The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States,. . .''
By Mrs. BLACKBURN:
H.R. 88.
Congress has the power to enact this legislation pursuant to the following:
Article IV, Section 3, Clause 2 of the Constitution provides that ''The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States,. . .''

By Mr. BRIDENSTINE:
H.R. 89.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause III: ''The Congress shall have power to regulate commerce with foreign nations . . .''
By Ms. BROWNLEY of California:
H.R. 90.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the U.S. Constitution.
By Mr. BUCHANAN:
H.R. 91.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8 of the Constitution of the United States.
By Mr. BUCHANAN:
H.R. 92.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority on which this joint resolution rests is the power of Congress as enumerated in Article I, Section 9 of the United States Constitution.
By Mr. CONNOLLY:
H.R. 93.
Congress has the power to enact this legislation pursuant to the following:
This bill is introduced pursuant to the authority delineated in Article I, Section I, which includes an implied power for the Congress to regulate the conduct of the United States with respect to foreign affairs.
By Mr. CONNOLLY:
H.R. 94.
Congress has the power to enact this legislation pursuant to the following:
The ''necessary and proper'' clause of Article 1, Section 8 of the United States Constitution.
By Mr. CONYERS:
H.R. 95.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 4.
By Mr. CONYERS:
H.R. 96.
Congress has the power to enact this legislation pursuant to the following:
U.S. Constitution, Article I, Section 8, Clause 3
By Mr. CONYERS:
H.R. 97.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 4.
By Mr. CONYERS:
H.R. 98.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 4.
By Mr. CONYERS:
H.R. 99.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3
By Mr. CONYERS:
H.R. 100.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 4.
By Mr. CONYERS:
H.R. 101.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, clause 4.
By Mr. CONYERS:
H.R. 102.
Congress has the power to enact this legislation pursuant to the following:
U.S. Constitution, Article I, Section 8, Clause 3
By Mr. CONYERS:
H.R. 103.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, clauses 1 and 18.
By Mr. CONYERS:
H.R. 104.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3, U.S. Constitution.
By Mr. CONYERS:
H.R. 105.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3
By Mr. CULBERSON:
H.R. 106.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 1 and Section 9. This legislation changes the terms and conditions for receipt of federal dollars in order to reaffirm and restore the autonomous sovereign authority of the States over public education. The Constitution contains no reference to public education. Therefore, under the Tenth Amendment and the structure and text of the Constitution, control over public education is reserved to the States and the people of the United States.
By Mr. FITZPATRICK:
H.R. 107.
Congress has the power to enact this legislation pursuant to the following:
the Necessary and Proper Clause, Art. I, Sec. 8, Cl. 18.
By Mr. FITZPATRICK:
H.R. 108.
Congress has the power to enact this legislation pursuant to the following:
Clause 1 of Section 6 of Article I of the Constitution, which states ''The Senators and Representatives shall receive a compensation for their services, to be ascertained by Law, and paid out of the treasury of the United States.''
By Mr. FITZPATRICK:
H.R. 109.
Congress has the power to enact this legislation pursuant to the following:
Clause 1 of Section 6 of Article I of the Constitution, which states ''The Senators and Representatives shall receive a Compensation for their Services, to be ascertained by Law, and paid out of the Treasury of the United States.'' and clause 1 of Section 1 of Article I, which states ''All legislative Powers herein granted shall be vested in a Congress of the United States, which shall consist of a Senate and House of Representatives.''
By Mr. FORBES:
H.R. 110.
Congress has the power to enact this legislation pursuant to the following:
Article I, Sec. 6 and Amendment XXVII
By Mr. FORBES:
H.R. 111.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 9, Clause 7
By Mr. FORTENBERRY:
H.R. 112.
Congress has the power to enact this legislation pursuant to the following:
The constitutional authority for this bill is pursuant to Article I, Section 8, Clause 18 of the United States Constitution.
By Mr. GARRETT:
H.R. 113.
Congress has the power to enact this legislation pursuant to the following:
Article 1, Section 8, Clause 3 (To regulate commerce with foreign nations, and among the several states, and with the Indian tribes); Article I, Section 8, Clause 5 (To coin money, regulate the value thereof, and of foreign coin, and fix the standard of weights and measures); Article I, Section 8, Clause 6 (To provide for the punishment of counterfeiting the securities and current coin of the United States); and Article I, Section 8, Clause 18 (To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department thereof).
By Mr. GARRETT:
H.R. 114.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1 (The Congress shall have Power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;), Article I, Section 9, Clause 7 (No Money shall be drawn from the Treasury, but in consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time), and Article I, Section 8, Clause 18 (To make all Laws which shall be necessary and proper for carrying into execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department of Officer thereof). This legislation authorizes appropriations for ''Acquisition and Maintenance of Buildings Abroad'' for the Department of State, such sums as may be necessary to establish a United States Embassy in Israel in the capital of Jerusalem.
By Mr. GARRETT:
H.R. 115.
Congress has the power to enact this legislation pursuant to the following:
The Fourth Amendment to the Constitution (''The right of the people to be secure in their persons, houses, papers, and effects, against unreasonable searches and seizures, shall not be violated, and no Warrants shall issue, but upon probably cause, supported by Oath of affirmation, and particularly describing the place to be searched, and the persons or things to be seized.'')
By Mr. GARRETT:
H.R. 116.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 3 (Congress shall have power to regulate Commerce with foreign Nations, and among the several States, and with the Indian Tribes;) and Article I, Section 8, Clause 18 (To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested). This legislation, through Congress's power to regulate commerce with foreign powers and among the several states, gives small businesses the option to alleviate the burdens of onerous regulations that the federal government has imposed.
By Mr. GARRETT:
H.R. 117.
Congress has the power to enact this legislation pursuant to the following:
Article I, Section 8, Clause 1 (The Congress shall have Power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts and provide for the common Defence and general Welfare of the United States; but all Duties, Imposts and Excises shall be uniform throughout the United States;), Article I, Section 9, Clause 5 (No Capitation, or other direct, Tax shall be laid unless in Proportion to the Census or Enumeration herein before directed to be taken), and Article I, Section 8, Clause 18 (To make all Laws which shall be necessary and proper for carrying into execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department of Officer thereof). In National Federation of Independent Business v.

Sebelius, the Supreme Court ruled that the financial penalty for failing to purchase health insurance as mandated by the Affordable Care Act is a tax that Congress may impose through the taxing power. Even if the penalty imposed by the Affordable Care Act must be construed to be a tax, it does not satisfy the three types of taxes—income, excise, or direct—that are listed as valid in the Constitution. The penalty is not assessed on income so it is not a valid income tax. The penalty is not assessed uniformly and is triggered by economic inactivity so it is not a valid excise tax. Finally, the penalty is not apportioned among the states by population and therefore is not a valid direct tax. The tax imposed by the Affordable Care Act, by every measure, extends beyond the taxing power granted to Congress by the Constitution and it is only necessary and proper that Congress repeal the individual mandate.

By Mr. GARRETT:

H.R. 118.

Congress has the power to enact this legislation pursuant to the following:

Tenth Amendment to the Constitution ''The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.''

By Mr. GARRETT:

H.R. 119.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 9, Clause 7.

By Mr. GARRETT:

H.R. 120.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 11 (The Congress shall have power . . . to declare War, grant Letters of Marque and Reprisal, and make Rules concerning Captures on Land and Water).

By Mr. GARRETT:

H.R. 121.

Congress has the power to enact this legislation pursuant to the following:

The Tenth Amendment to the Constitution: ''The powers not delegated to the United States by the Constitution, nor prohibited by it to the States, are reserved to the States respectively, or to the people.''

By Mr. AL GREEN of Texas:

H.R. 122.

Congress has the power to enact this legislation pursuant to the following:

Commerce Clause (Art. 1 sec. 8 cl. 3)

Necessary and Proper Clause (Art. 1 sec. 8 cl. 18)

By Mr. AL GREEN of Texas:

H.R. 123.

Congress has the power to enact this legislation pursuant to the following:

Necessary and Proper Clause (Art. 1 sec. 8 cl. 18)

By Mr. JONES:

H.R. 124.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8, of the U.S. Constitution (clauses 12, 13, 14, and 16) which grants Congress the powere to raise and support an Army; to provide and maintain a Navy; to make rules for the government and regulation of the land and naval forces; and to provide for organizing, arming, and disciplining the militia.

By Mr. AL GREEN of Texas:

H.R. 125.

Congress has the power to enact this legislation pursuant to the following:

Necessary and Proper Clause (Art. 1 sec. 8 cl. 18)

By Mr. AL GREEN of Texas:

H.R. 126.

Congress has the power to enact this legislation pursuant to the following:

Commerce Clause (Art. 1 sec. 8 cl. 3)

Necessary and Proper Clause (Art. 1 sec. 8 cl. 18)

By Mr. AL GREEN of Texas:

H.R. 127.

Congress has the power to enact this legislation pursuant to the following:

Commerce Clause (Art. 1 sec. 8 cl. 3)

Necessary and Proper Clause (Art. 1 sec. 8 cl. 18)

By Mr. GENE GREEN of Texas:

H.R. 128.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the U.S. Constitution (''the Commerce Clause'').

By Mr. SIMPSON:

H.R. 129.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article I, Section 8 of the United States Constitution, specifically clause 3 (relating to the authority to regulate commerce among the several states).

By Mr. GRIFFITH:

H.R. 130.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8 of the United States Constitution.

By Mr. GRIFFITH:

H.R. 131.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8 of the United States Constitution.

By Mr. KING of Iowa:

H.R. 132.

Congress has the power to enact this legislation pursuant to the following:

Clause 1, Section 8 of Article 1 of the United States Constitution, which reads: ''The Congress shall have Power to lay and collected Taxes, Duties, Imposts, and Excises.'' Therefore, Congress' taxing power would be the authority to repeal ObamaCare's individual mandate.

In addition, this bill makes specific changes to existing law in a manner that returns power to the States and to the People, consistent with Amendment X of the United States Constitution.

By Mr. GRIFFITH:

H.R. 133.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 8 of the United States Constitution.

By Mr. ISSA:

H.R. 134.

Congress has the power to enact this legislation pursuant to the following:

Article IV Section III: ''The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States.''

By Mr. ISSA:

H.R. 135.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 1 of the United States Constitution which empowers Congress ''To . . . provide for the common defence [sic] and general Welfare of the United States;'' Article 1, Section 8, Clauses 11 through 16 which give Congress additional authorities to ensure the national security of the United States; and Article 1, Section 8, Clause 18, which empowers Congress to ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. ISSA:

H.R. 136.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 7.

By Mr. ISSA:

H.R. 137.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 14 of the United States Constitution which empowers Congress ''To make Rules for the Government and Regulation of the land and naval Forces'' and Article 1, Section 8, Clause 18, which empowers Congress to ''To make all Laws which shall be necessary and proper for carrying into Execution the foregoing Powers, and all other Powers vested by this Constitution in the Government of the United States, or in any Department or Officer thereof.''

By Mr. ISSA:

H.R. 138.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8, Clause 3.

By Mr. JOLLY:

H.R. 139.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8

The Congress shall have power . . .

To make all laws which shall be necessary and proper for carrying into execution the foregoing powers, and all other powers vested by this Constitution in the government of the United States, or in any department or officer thereof.

By Mr. KING of Iowa:

H.R. 140.

Congress has the power to enact this legislation pursuant to the following:

Section 5 of the Amendment XIV to the Constitution and Section 8 of Article I of the Constitution

By Mr. JOLLY:

H.R. 141.

Congress has the power to enact this legislation pursuant to the following:

Clause 1, Section 8, Article 1

The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts and excises shall be uniform throughout the United States;

By Mr. JOLLY:

H.R. 142.

Congress has the power to enact this legislation pursuant to the following:

Clause 1, Section 8 of Article 1 of the United States Constitution which reads: ''The Congress shall have the power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defense and General Welfare of the United States; but all duties and Imposts and Excises shall be uniform throughout the United States.''

By Mr. JOLLY:

H.R. 143.

Congress has the power to enact this legislation pursuant to the following:

Clause 1, Section 8, Article 1

The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts and excises shall be uniform throughout the United States;

By Mr. JOLLY:

H.R. 144.

Congress has the power to enact this legislation pursuant to the following:

Clause I, Section 8 of Article 1 of the United States Constitution which reads: ''The Congress shall have Power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defense and General Welfare of the United States; but all Duties and Imposts and Excises shall be uniform throughout the United States.''

By Mr. JOLLY:

H.R. 145.

Congress has the power to enact this legislation pursuant to the following:

Clause 1, Section 8, Article 1

The Congress shall have power to lay and collect taxes, duties, imposts and excises, to pay the debts and provide for the common defense and general welfare of the United States; but all duties, imposts and excises shall be uniform throughout the United States;

By Mr. JONES:

H.R. 146.

Congress has the power to enact this legislation pursuant to the following:

By Article 1, Section 8 of the United States Constitution (clause 14), which grants Congress the power to make rules for the government and regulation of the land and naval forces.

By Mr. JONES:

H.R. 147.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article I, Section 5, of the U.S. Constitution which grants Congress the authority to determine the rules of its own proceedings, and Article 1, Section 8 of the U.S. Constitution, which grants Congress the authority to make rules for the government and regulation of the armed forces.

By Mr. JONES:

H.R. 148.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article 1, section 8 of the United States Constitution (clauses 12, 13, 14, and 16), which grants Congress the power to raise and support an Army; to provide and maintain a Navy; to make rules for the government and regulation of the land and naval forces; and to provide for organizing, arming, and disciplining the militia.

By Mr. JONES:

H.R. 149.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 4 of the U.S. Constitution, which grants Congress the authority to make laws governing the time, places and manner of holding federal elections.

By Mr. JONES:

H.R. 150.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 4 of the U.S. Constitution, which states that ''Congress may at any time by Law make or alter such Regulations'' regarding the ''Times, Places and Manner of holding elections.''

By Mr. JONES:

H.R. 151.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the United States Constitution.

By Mr. JONES:

H.R. 152.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, and Article IV, Section 3, of the Constitution of the United States.

By Mr. JONES:

H.R. 153.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by the First Amendment of the United States Constitution, which states that, among other things, Congress shall make no law prohibiting the free exercise of religion.

By Mr. KILMER:

H.R. 154.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 1 of the U.S. Constitution under the General Welfare Clause.

By Mr. MARINO:

H.R. 155.

Congress has the power to enact this legislation pursuant to the following:

The Appropriations Clause, Article I, Section 9, Clause 7 of the Constitution of the United States of America, which grants to Congress the authority necessary to limit or control spending by the federal government.

By Mr. McCAUL:

H.R. 156.

Congress has the power to enact this legislation pursuant to the following:

Article I, Sec. 8, Clause 3: Congress has the power . . . ''To regulate Commerce with foreign Nations.''

By Mr. MCGOVERN:

H.R. 157.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, clause 1 (to provide for the common Defense and general Welfare); Article I, Section 8, Clause 14 (to make Rules for the government and regulation of the land and naval Forces); and Article I, Section 8, Clause 18 (to make laws necessary and proper . . . in the Government of the United States or in any Department or Officer thereof).

By Mrs. MILLER of Michigan:

H.R. 158.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8 of the Constitution of the United States.

By Mr. PAULSEN:

H.R. 159.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution

By Mr. PAULSEN:

H.R. 160.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 8 of the U.S. Constitution

By Mr. POMPEO:

H.R. 161.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3

By Mr. SCHWEIKERT:

H.R. 162.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 of the Constitution

By Mr. SCHWEIKERT:

H.R. 163.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 of the Constitution

By Mr. SCHWEIKERT:

H.R. 164.

Congress has the power to enact this legislation pursuant to the following:

Article 1 Section 8 of the Constitution

By Mr. SCHWEIKERT:

H.R. 165.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 9, Clause 7. Which states: ''No Money shall be drawn from the Treasury, but in Consequence of Appropriations made by Law; and a regular Statement and Account of the Receipts and Expenditures of all public Money shall be published from time to time ''

By Mr. SIMPSON:

H.R. 166.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article I, section 8 of the United States Constitution, specifically clause 9, which states ''The Congress shall have Power . . . To constitute Tribunals inferior to the supreme Court.''

In addition, Article III, Section 1 states that ''The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish.''

By Mr. SIMPSON:

H.R. 167.

Congress has the power to enact this legislation pursuant to the following:

''The constitutional authority of Congress to enact legislation is provided by Article I, Section 8 of the United States Constitution, specifically clause 1 (relating to the power of Congress to provide for the general welfare of the United States) and clause 18 (relating to the power to make all laws necessary and proper for carrying out the powers vested in Congress), and Article IV, section 3, clause 2 (relating to the power of Congress to dispose of and make all needful rules and regulations respecting the territory or other property belonging to the United States).''

By Mr. SIMPSON:

H.R. 168.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority of Congress to enact this legislation is provided by Article I, Section 8 of the United States Constitution, specifically clause 9, which states ''The Congress shall have Power . . . To constitute Tribunals inferior to the supreme Court.''

In addition, Article III, Section 1 states that ''The judicial Power of the United States, shall be vested in one supreme Court, and in such inferior Courts as the Congress may from time to time ordain and establish.''

By Mr. SMITH of Nebraska:

H.R. 169.

Congress has the power to enact this legislation pursuant to the following:

Ariticle 1, Section 8, Clause 1

By Mr. SMITH of Nebraska:

H.R. 170.

Congress has the power to enact this legislation pursuant to the following:

Ariticle 1, Section 8, Clause 1

By Mr. SMITH of Nebraska:

H.R. 171.

Congress has the power to enact this legislation pursuant to the following:

Just as Congress is empowered to regulate interstate commerce under Article I, Section 8 of the Constitution, it has the power to repeal such regulations.

By Mr. THOMPSON of Mississippi:

H.R. 172.

Congress has the power to enact this legislation pursuant to the following:

Clause 2 of Section 3 of Article IV of the Constitution: The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States; and nothing in this Constitution shall be so construed as to Prejudice any Claims of the United States, or of any particular State.

By Mr. THORNBERRY:

H.R. 173.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to Article I, Section 8 of the United States Constitution.

By Mr. WITTMAN:

H.R. 174.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 6 of the Constitution of the United States.

By Mr. WOMACK:

H.R. 175.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 3 of the United States Constitution

By Mr. WOMACK:

H.R. 176.

Congress has the power to enact this legislation pursuant to the following:

Article 4, Section 3, Clause 2—The Congress shall have Power to dispose of and make all needful Rules and Regulations respecting the Territory or other Property belonging to the United States.

By Mr. WOMACK:

H.R. 177.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Clause 1, Section 8 of the United States Constitution which reads: ''The Congress shall have Power to lay and collect Taxes, Duties, Imposts, and Excises, to pay the Debts, and provide for the common Defense and General Welfare of the United States; but all Duties and Imposts and Excises shall be uniform throughout the United States.''

By Mr. WOMACK:

H.R. 178.

Congress has the power to enact this legislation pursuant to the following:

Article I, Section 8, Clause 4: To establish a uniform rule of naturalization, and uniform laws on the subject of bankruptcies throughout the United States.

Article I, Section 9, Clause 1: The migration or importation of such persons as any of the states now existing shall think proper to admit, shall not be prohibited by the Congress prior to the year one thousand eight hundred and eight, but a tax or duty may be imposed on such importation, not exceeding ten dollars for each person.

By Mr. YODER:

H.R. 179.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 6

The Senators and Representatives shall receive a compensation for their services, to be ascertained by law, and paid out of the treasury of the United States.

By Mr. YODER:

H.R. 180.

Congress has the power to enact this legislation pursuant to the following:

Article 1, Section 6

The Senators and Representatives shall receive a compensation for their services, to be ascertained by law, and paid out of the treasury of the United States.

By Mr. GOODLATTE:

H.J. Res. 1.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this joint resolution is based is found in Article V of the Constitution, which grants Congress the authority, whenever two thirds of both chambers deem it necessary, to propose amendments to the Constitution.

By Mr. GOODLATTE:

H.J. Res. 2.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this joint resolution is based is found in Article V of the Constitution, which grants Congress the authority, whenever two thirds of both chambers deem it necessary, to propose amendments to the Constitution.

By Ms. JACKSON LEE:

H.J. Res. 3.

Congress has the power to enact this legislation pursuant to the following:

This bill is enacted pursuant to the power granted to Congress under Article 1, Section 8, Clause 1 of the United States Constitution.

By Mr. BUCHANAN:

H.J. Res. 4.

Congress has the power to enact this legislation pursuant to the following:

The constitutional authority on which this joint resolution rests is the power of Congress as enumerated in Article V or the United States Constitution.

By Mr. CULBERSON:

H.J. Res. 5.

Congress has the power to enact this legislation pursuant to the following:

Article V of the Constitution of the United States.

By Mr. FITZPATRICK:

H.J. Res. 6.

Congress has the power to enact this legislation pursuant to the following:

Article V.

By Mr. LANCE:

H.J. Res. 7.

Congress has the power to enact this legislation pursuant to the following:

Article V of the Constitution.

By Mr. SCHWEIKERT:

H.J. Res. 8.

Congress has the power to enact this legislation pursuant to the following:

Article 5 of the Constitution states: The Congress, whenever two thirds of both houses shall deem it necessary, shall propose amendments to this Constitution, or, on the application of the legislatures of two thirds of the several states, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of the Constitution, when ratified by the legislatures of three fourths of the several states, or by conventions in three fourths thereof, as the one or the other mode of ratification may be proposed by the Congress; provided that no amendment which may be made prior to the year one thousand eight hundred and eight shall in any manner affect the first and fourth clauses in the ninth section of the first article; and that no state, without its consent, shall be deprived of its equal suffrage in the Senate.

By Mr. WOMACK:

H.J. Res. 9.

Congress has the power to enact this legislation pursuant to the following:

Article V: The Congress, whenever two thirds of both houses shall deem it necessary, shall propose amendments to this Constitution, or, on the application of the legislatures of two thirds of the several states, shall call a convention for proposing amendments, which, in either case, shall be valid to all intents and purposes, as part of this Constitution, when ratified by the legislatures of three fourths of the several states, or by conventions in three fourths thereof, as the one or the other mode of ratification may be proposed by the Congress; provided that no amendment which may be made prior to the year one thousand eight hundred and eight shall in any manner affect the first and fourth clauses in the ninth section of the first article; and that no state, without its consent, shall be deprived of its equal suffrage in the Senate.

CONGRESSIONAL EARMARKS, LIMITED TAX BENEFITS, OR LIMITED TARIFF BENEFITS

Under clause 9 of rule XXI, lists or statements on congressional earmarks, limited tax benefits, or limited tariff benefits were submitted as follows:

OFFERED BY MR. BISHOP OF UTAH

The provisions that warranted a referral to the Committee on Natural Resources in H.R. 3, the Keystone XL Pipeline Act do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. SHUSTER

H.R. 3 does not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. UPTON

The provisions that warranted a referral to the Committee on Energy and Commerce in H.R. 3 do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

OFFERED BY MR. RYAN OF WISCONSIN

The provisions that warranted a referral to the Committee on the Ways and Means in H.R. 30 do not contain any congressional earmarks, limited tax benefits, or limited tariff benefits as defined in clause 9 of rule XXI.

United States
of America

Congressional Record

PROCEEDINGS AND DEBATES OF THE 114th CONGRESS, FIRST SESSION

Vol. 161 WASHINGTON, TUESDAY, JANUARY 6, 2015 *No. 1*

Senate

The sixth day of January being the day prescribed by Public Law 113–201 for the meeting of the 1st Session of the 114th Congress, the Senate assembled in its Chamber at the Capitol and at 12:08 p.m. was called to order by the Vice President (Mr. BIDEN).

PRAYER

The Chaplain, Dr. Barry C. Black, offered the following prayer:

Let us pray.

Almighty God, Lord of our lives and sovereign of our beloved Nation, as we begin this 114th Congress, guide our lawmakers, old and new, on the right road. We confess our need for Your supernatural power to provide them with insight, innovation, and inspiration to solve the problems we face.

Lord, give to our Senators uncommon guidance as they seek to do what is best for this land we love. Enable them to develop a slow exploratory wisdom, neither of the heart only nor of the head only, so that they will act with an integrity that will bring them to Your desired destination. May they not run from disquieting considerations but instead claim Your promise that the truth shall set us free.

We pray in Your omnipotent Name. Amen.

PLEDGE OF ALLEGIANCE

The Vice President led the Pledge of Allegiance, as follows:

I pledge allegiance to the Flag of the United States of America, and to the Republic for which it stands, one nation under God, indivisible, with liberty and justice for all.

CERTIFICATES OF ELECTION

The VICE PRESIDENT. The Chair lays before the Senate one certificate of election to fulfill an unexpired term and the certificates of election for 33 Senators elected for 6-year terms beginning January 3, 2015. All certificates, the Chair is advised, are in the form suggested by the Senate or contain all the requirements of the form suggested by the Senate. If there is no objection, the reading of the certificates will be waived and they will be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

THE STATE OF TENNESSEE

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify, that on the 4th day of November, 2014, Lamar Alexander was duly chosen by the qualified electors of the State of Tennessee a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Bill Haslam, and our seal hereto affixed at Nashville this 2nd day of December, in the year of our Lord 2014.

By the Governor:

BILL HASLAM,
Governor.
TRE HARGETT,
Secretary of State.

[State Seal Affixed]

STATE OF NEW JERSEY

CERTIFICATE OF ELECTION

To the President of the Senate of the United States:

This is to certify that on the fourth day of November, 2014, Cory Booker, was duly chosen by the qualified electors of the State of New Jersey, a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the third day of January, 2015.

Given, under my hand and the Great Seal of the State of New Jersey, this second day of December two thousand and fourteen.

By the Governor:

CHRIS CHRISTIE,
Governor.

Attest:

KIMBERLY M. GUADAGNO,
Lt. Governor / Secretary of State.

[State Seal Affixed]

STATE OF WEST VIRGINIA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the fourth day of November, Two Thousand Fourteen, Shelley Moore Capito was duly chosen by the qualified electors of the State of West Virginia a Senator from said State to represent said State in the Senate of the United States for the term of six years beginning on the third day of January, Two Thousand Fifteen.

Witness: His Excellency our governor, Earl Ray Tomblin, and our seal hereto affixed at Charleston this tenth day of December, in the year of our Lord, Two Thousand Fourteen.

By the Governor:

EARL RAY TOMBLIN,
Governor.
NATALIE E. TENNANT,
Secretary of State.

[State Seal Affixed]

STATE OF LOUISIANA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 6th day of December, 2014, ''Bill'' Cassidy was duly chosen by the qualified electors of the State of Louisiana a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Bobby Jindal, and our seal hereto affixed at Baton Rouge, Louisiana, this 16th day of December, in the year of our Lord 2014.

By the Governor:

BOBBY JINDAL,
Governor of Louisiana.
TOM SCHEDLER,
Secretary of State.

[State Seal Affixed]

STATE OF MISSISSIPPI

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November 2014, Thad Cochran was duly chosen by the qualified electors of the State of Mississippi a Senator from Mississippi to represent Mississippi in the Senate of the United States for the term of six years, beginning on the 3rd day of January, Two Thousand Fifteen.

● This "bullet" symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Printed on recycled paper.

Given under my hand, and our seal affixed hereto, at the City of Jackson, this the 8th day of December in the year of our Lord, Two Thousand Fourteen.

PHIL BRYANT,
Governor.

Attest:

C. DELBERT HOSEMANN, JR.,
Secretary of State.

[State Seal Affixed]

STATE OF MAINE

Greeting:

To the President of the Senate of the United States:

Know Ye, That this is to certify, that on the fourth day of November, in the year Two Thousand and Fourteen, Susan M. Collins was duly chosen by the qualified electors of the State of Maine, a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the third day of January, in the year Two Thousand and Fifteen.

Witness: His excellency our Governor, Paul R. LePage, and our seal hereto affixed at Augusta, Maine this fifth day of December, in the year of our Lord Two Thousand and Fourteen.

By the Governor:

PAUL R. LEPAGE,
Governor.

MATTHEW DUNLAP,
Secretary of State.

[State Seal Affixed]

STATE OF DELAWARE

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day November, 2014, Christopher A. Coons was duly chosen by the qualified electors of the State of Delaware a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3d day of January 2015.

Witness: His excellency our Governor Jack Markell, and our seal hereto affixed at 11:00 a.m. this 9th day of November, in the year of our Lord 2014.

JACK A. MARKELL,
Governor of Delaware.

JEFFREY W. BULLOCK,
Secretary of State.

[State Seal Affixed]

STATE OF TEXAS

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, John Cornyn was duly chosen by the qualified electors of the State of Texas, a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Rick Perry, and our seal hereto affixed at Austin, Texas this 1st day of December, in the year of our Lord 2014.

In testimony Whereof, I have hereto signed my name and have officially caused the Seal of State to be affixed at my Office in the City of Austin, this the 1st day of December, 2014.

By the Governor:

RICK PERRY,
Governor.

Attest:

NANDITA BERRY,
Secretary of State.

[State Seal Affixed]

STATE OF ARKANSAS

CERTIFICATION OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, the Honorable Tom Cotton was duly chosen by the qualified electors of the State of Arkansas a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His Excellency, our Governor, the Honorable Mike Beebe, and our seal hereto affixed at the State Capitol in Little Rock, Arkansas, this 21st day of November, in the year of our Lord 2014.

By the Governor:

MIKE BEEBE,
Governor.

MARK MARTIN
Secretary of State.

[State Seal Affixed]

IN THE NAME AND BY THE AUTHORITY OF THE STATE OF MONTANA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM TO THE UNITED STATES SENATE

I, Linda McCulloch, Secretary of State of the State of Montana, do hereby certify that Steve Daines was duly chosen on November 4th, 2014, by the qualified electors of the State of Montana as a United States Senator from said State to represent said State in the United States Senate. The six-year term commences on January 3rd, 2015.

Witness: His Excellency our Governor Steve Bullock, and the official seal hereunto affixed at the City of Helena, the Capital, this 25th day of November, in the year of our Lord 2014.

By the Governor:

STEVE BULLOCK,
Governor.

Attest:

LINDA MCCULLOCH,
Secretary of State.

[State Seal Affixed]

STATE OF ILLINOIS

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Richard J. Durbin was duly chosen by the qualified electors of the State of Illinois a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the third day of January, 2015.

Witness: His Excellency Our Governor, Pat Quinn, and our seal hereto affixed at the City of Springfield, Illinois, this 2nd day of December, in the year of our Lord 2014.

By the Governor:

PAT QUINN,
Governor.

JESSE WHITE,
Secretary of State.

[State Seal Affixed]

STATE OF WYOMING

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November 2014, Mike Enzi was duly chosen by the qualified electors of the State of Wyoming, a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January 2015.

Witness: His Excellency our governor, Matthew H. Mead, and our seal hereto affixed at the Wyoming State Capitol, Cheyenne, Wyoming, this 10th day of November, in the year of our Lord 2014.

By the governor:

MATTHEW H. MEAD,
Governor.

MAX MAXFIELD,
Secretary of State.

[State Seal Affixed]

STATE OF IOWA

CERTIFICATE OF ELECTION TO THE SENATE OF THE UNITED STATES FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November 2014, Joni Ernst was duly elected as Senator to the Senate of the United States to represent the State of Iowa beginning on the 3rd day of January 2015.

In Testimony Whereof, I have hereunto subscribed my name and caused the Great Seal of the State of Iowa to be affixed. Done at Des Moines this 1st day of December in the year of our Lord two thousand fourteen.

TERRY BRANSTAD,
Governor of Iowa.

Attest:

MATT SCHULTZ,
Secretary of State.

[State Seal Affixed]

STATE OF MINNESOTA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the fourth day of November, 2014, Al Franken was duly chosen by the qualified electors of the State of Minnesota a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Mark Dayton, and our seal hereto affixed at Saint Paul, Minnesota this 19th day of December, in the year of our Lord 2014.

By the Governor:

MARK DAYTON,
Governor.

MARK RITCHIE,
Secretary of State.

[State Seal Affixed]

STATE OF COLORADO

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the fourth day of November, 2014, Cory Gardner was duly chosen by the qualified electors of the State of Colorado a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the third day of January, 2015.

Witness: His Excellency our Governor John Hickenlooper, and our seal hereto affixed at Denver, Colorado this eighth day of December, in the year of our Lord 2014.

By the Governor:

JOHN HICKENLOOPER,
Governor.

SCOTT GESSLER,
Secretary of State.

[State Seal Affixed]

THE STATE OF SOUTH CAROLINA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the fourth day of November A.D. 2014 Lindsey Graham was duly chosen by the qualified electors of the State of South Carolina a Senator from said state to represent said state in the Senate of the United States for the term of six years, beginning on the third day of January 2015.

Witness: Her excellency our Governor Nikki R. Haley and our seal hereto affixed at

Columbia, South Carolina, this twenty-fourth day of November in the year of our Lord 2014.

NIKKI R. HALEY,
Governor.
MARK HAMMOND,
Secretary of State.

[State Seal Affixed]

STATE OF OKLAHOMA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Jim Inhofe was duly chosen by the qualified electors of the State of Oklahoma a Senator from said State to represent Oklahoma in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: Her Excellency our Governor Mary Fallin, and our seal hereto affixed at Oklahoma City, Oklahoma this 12th day of November, in the year of our Lord 2014.

By the Governor:

MARY FALLIN,
Governor.
CHRIS BENGE,
Secretary of State.

[State Seal Affixed]

STATE OF OKLAHOMA

CERTIFICATE OF ELECTION FOR AN UNEXPIRED TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, James Lankford was duly chosen by the qualified electors of the State of Oklahoma a Senator for the unexpired term ending at noon on the 3rd day of January, 2017, to fill the vacancy in the representation from said State in the Senate of the United States caused by the resignation of Tom Coburn.

Witness: Her Excellency our Governor Mary Fallin, and our seal hereto affixed at Oklahoma City, Oklahoma this 1st day of December, in the year of our Lord 2014.

By the Governor:

MARY FALLIN,
Governor.
CHRIS BENGE,
Secretary of State.

[State Seal Affixed]

THE COMMONWEALTH OF MASSACHUSETTS

To the President of the Senate of the United States:

This is to certify that on the fourth day of November, two thousand and fourteen Edward J. Markey was duly chosen by the qualified electors of the Commonwealth of Massachusetts a Senator from said Commonwealth to represent said Commonwealth in the Senate of the United States for the term of six years, beginning on the third day of January, two thousand and fifteen.

Witness: His Excellency the Governor, Deval L. Patrick, and Our Great Seal hereto affixed at Boston, this third day of December in the year of Our Lord two thousand and fourteen.

By His Excellency the Governor:

DEVAL PATRICK,
Governor.
WILLIAM FRANCIS GALVIN,
Secretary of the Commonwealth.

[State Seal Affixed]

COMMONWEALTH OF KENTUCKY

Steven L. Beshear

Governor

To all Whom These Presents Shall Come, Greeting: Know Ye That Honorable Mitch McConnell having been duly certified, that on November 4, 2014 was duly chosen by the qualified electors of the Commonwealth of Kentucky a Senator from said state to represent said state in the Senate of the United States for the term of six years, beginning the 3rd day of January 2015.

I hereby invest the above named with full power and authority to execute and discharge the duties of the said office according to law. And to have and to hold the same, with all the rights and emoluments thereunto legally appertaining, for and during the term prescribed by law.

In testimony whereof, I have caused these letters to be made patent, and the seal of the Commonwealth to be hereunto affixed. Done at Frankfort, the 18th day of November in the year of our Lord two thousand and fourteen and in the 223rd year of the Commonwealth.

By the Governor:

STEVE BESHEAR,
Governor.
ALISON LUNDERGAN GRIMES,
Secretary of State.

[State Seal Affixed]

STATE OF OREGON

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Jeff Merkley was duly chosen by the qualified electors of the State of Oregon, a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our Governor, John Kitzhaber, and our seal hereto affixed at Salem, Oregon this 4th day of December, 2014.

JOHN A KITZHABER, MD,
Governor.
KATE BROWN,
Secretary of State.

[State Seal Affixed]

STATE OF GEORGIA

By His Excellency

Nathan Deal

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, David Alfred Perdue, Jr. was duly chosen by the qualified electors of the State of Georgia, a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our Governor Nathan Deal, and the Great Seal of the State of Georgia hereto affixed at the Capitol, in the city of Atlanta, the tenth day of November, in the year of our Lord Two Thousand and Fourteen.

By the Governor:

NATHAN DEAL,
Governor.
BRIAN P. KEMP,
Secretary of State.

[State Seal Affixed]

STATE OF MICHIGAN

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Gary Peters was duly chosen by the qualified electors of the State of Michigan a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Given under my hand and the Great Seal of the state of Michigan this 1st day of December, in the Year of our Lord Two Thousand Fourteen.

By the Governor:

RICHARD D. SNYDER,
Governor.
RUTH JOHNSON,
Secretary of State.

[State Seal Affixed]

STATE OF RHODE ISLAND AND PROVIDENCE PLANTATIONS

CERTIFICATE OF ELECTION

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, John F. Reed was duly chosen by the qualified electors of the State of Rhode Island and Providence Plantations a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His Excellency our Governor Lincoln D. Chafee, and our seal hereto affixed at this 20th day of November, in the year of our Lord 2014.

By the Governor:

LINCOLN D. CHAFEE,
Governor.
A. RALPH MOLLIS,
Secretary of State.

[State Seal Affixed]

STATE OF IDAHO

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, James E. Risch was duly chosen by the qualified electors of the State of Idaho a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor C.L. ''Butch'' Otter, and our seal hereto affixed at Boise this 19th day of November, in the year of our Lord 2014.

By the Governor:

C.L. ''BUTCH'' OTTER,
Governor.
BEN YSURSA,
Secretary of State.

[State Seal Affixed]

STATE OF KANSAS

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Pat Roberts was duly chosen by the qualified electors of the State of Kansas a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Sam Brownback, and our seal hereto affixed at Topeka, Kansas this 26th day of November, in the year of our Lord 2014.

By the governor:

SAM BROWNBACK,
Governor.
KRIS W. KOBACH,
Secretary of State.

[State Seal Affixed]

STATE OF SOUTH DAKOTA

Office of the Secretary of State

CERTIFICATE OF ELECTION

This is to Certify that on the fourth day of November, 2014, at a general election, Mike Rounds was elected by the qualified voters of the State of South Dakota to the office of United States Senator for the term of six

years, beginning on the third day of January, 2015.

In Witness Whereof, We have hereunto set our hands and caused the Seal of the State to be affixed at Pierre, the Capital, this 13th day of November, 2014.

DENNIS DAUGAARD,
Governor.

Attested by:

JASON GANT,
Secretary of State.

[State Seal Affixed]

STATE OF NEBRASKA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the United States:

This is to certify that on the 4th day of November, 2014, Ben Sasse was duly chosen by the qualified electors of the State of Nebraska a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His Excellency our Governor Dave Heineman, and our seal hereto affixed at 1:26 p.m. this 1st day of December, in the year of our Lord 2014.

DAVE HEINEMAN,
Governor.
JOHN A. GALE,
Secretary of State.

[State Seal Affixed]

STATE OF ALABAMA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Jefferson B. Sessions, III, was duly chosen by the qualified electors of the State of Alabama a Senator from said State to represent said State in the Senate of the United States for the term of six years beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Robert Bentley, and our seal hereto affixed at Montgomery this 24th day of November, in the year of our Lord 2014.

By the Governor:

ROBERT BENTLEY,
Governor.
JIM BENNETT,
Secretary of State.

[State Seal Affixed]

STATE OF NEW HAMPSHIRE

Executive Department

To the President of the Senate of the United States:

This is to certify that on the fourth day of November, two thousand and fourteen Jeanne Shaheen was duly chosen by the qualified electors of the State of New Hampshire to represent said State in the Senate of the United States for the term of six years beginning on the third day of January, two thousand and fifteen.

Witness, Her Excellency, Governor Margaret Wood Hassan and the Seal of the State of New Hampshire hereto affixed at Concord, this third day of December, in the year of Our Lord two thousand and fourteen.

By the Governor, with advice of the Council:

MARGARET WOOD HASSAN,
Governor.
WILLIAM M. GARDNER,
Secretary of State.

[State Seal Affixed]

STATE OF ALASKA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Dan Sullivan was duly chosen by the qualified electors of the State of Alaska a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Sean R. Parnell, and our seal hereto affixed at Juneau this 1st day of December, in the year of our Lord 2014.

By the Governor:

SEAN R. PARNELL,
Governor.

By the Lieutenant Governor:

MEAD TREADWELL,
Lieutenant Governor.

[State Seal Affixed]

STATE OF NORTH CAROLINA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Thomas Roland Tillis was duly chosen by the qualified electors of the State of North Carolina, a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

In witness whereof, I have hereunto signed my name and caused to be affixed the Great Seal of the State, at the Capital City of Raleigh this the 1st day of December, 2014.

PAT MCCRORY,
Governor.
ELAINE F. MARSHALL,
Secretary of State.

[State Seal Affixed]

THE CANVASSING BOARD OF THE STATE OF NEW MEXICO

To the President of the Senate of the United States:

This is to certify that on the 9th day of December, 2014, Tom Udall was duly chosen by the qualified electors of the State of New Mexico a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January 2015.

Witness: Her excellency our governor Susana Martinez, and our seal hereto affixed at Santa Fe, NM this 9th day of December, in the year of our Lord 2014.

SUSANA MARTINEZ,
Governor.
DIANNA DURAN,
Secretary of State.

[State Seal Affixed]

COMMONWEALTH OF VIRGINIA

CERTIFICATE OF ELECTION FOR SIX-YEAR TERM

To the President of the Senate of the United States:

This is to certify that on the 4th day of November, 2014, Mark R. Warner was duly chosen by the qualified electors of the State of Virginia a Senator from said State to represent said State in the Senate of the United States for the term of six years, beginning on the 3rd day of January, 2015.

Witness: His excellency our governor Terence R. McAuliffe, and our seal hereto affixed at Richmond, Virginia this 10th day of December, in the year of our Lord 2014.

TERRY MCAULIFFE,
Governor of Virginia.
LEVAR STONEY,
Secretary of the Commonwealth.

[State Seal Affixed]

ADMINISTRATION OF OATH OF OFFICE

The VICE PRESIDENT. If the Senators to be sworn will now present themselves at the desk in groups of four as their names are called in alphabetical order the Chair will administer the oath of office.

The clerk will read the names of the first group of Senators.

The legislative clerk called the names of Mr. ALEXANDER of Tennessee, Mr. BOOKER of New Jersey, Mrs. CAPITO of West Virginia, and Mr. CASSIDY of Louisiana.

These Senators, escorted by Mr. Frist, Mr. Brock, Mr. CORKER, Mr. MENENDEZ, and Mr. MANCHIN, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the second group of Senators.

The legislative clerk called the names of Mr. COCHRAN of Mississippi, Ms. COLLINS of Maine, Mr. COONS of Delaware, and Mr. CORNYN of Texas.

These Senators, escorted by Mr. WICKER, Mr. KING, Mr. CRUZ, and Mr. CARPER, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the next group of Senators.

The legislative clerk called the names of Mr. COTTON of Arkansas, Mr. DAINES of Montana, Mr. DURBIN of Illinois, and Mr. ENZI of Wyoming.

These Senators, escorted by Mr. BOOZMAN, Mr. TESTER, Mr. Levin, Mr. KIRK, and Mr. BARRASSO, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the next group of Senators.

The legislative clerk called the names of Mrs. ERNST of Iowa, Mr. FRANKEN of Minnesota, Mr. GARDNER of Colorado, and Mr. GRAHAM of South Carolina.

These Senators, escorted by Mr. GRASSLEY, Mr. Harkin, Ms. KLOBUCHAR, Vice President Mondale, Mr. BENNET, and Mr. SCOTT, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the next group of Senators.

The legislative clerk called the names of Mr. INHOFE of Oklahoma, Mr. LANKFORD of Oklahoma, Mr. MARKEY of Massachusetts, and Mr. MCCONNELL of Kentucky.

These Senators, escorted by Ms. WARREN and Mr. PAUL, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the next group of Senators.

The legislative clerk called the names of Mr. MERKLEY of Oregon, Mr. PERDUE of Georgia, Mr. PETERS of Michigan, and Mr. REED of Rhode Island.

These Senators, escorted by Mr. Harkin, Mr. Chambliss, Mr. ISAKSON, Ms. STABENOW, Mr. Levin, and Mr. WHITEHOUSE, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the next group of Senators.

The legislative clerk called the names of Mr. RISCH of Idaho, Mr. ROBERTS of Kansas, Mr. ROUNDS of South Dakota, and Mr. SASSE of Nebraska.

These Senators, escorted by Mr. CRAPO, Mr. THUNE, Mr. JOHNSON, and Mrs. FISCHER, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the next group of Senators.

The legislative clerk called the names of Mr. SESSIONS of Alabama, Mrs. SHAHEEN of New Hampshire, Mr. SULLIVAN of Alaska, and Mr. TILLIS of North Carolina.

These Senators, escorted by Mr. SHELBY, Ms. AYOTTE, Ms. MURKOWSKI, and Mr. BURR, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

The VICE PRESIDENT. The clerk will read the names of the final group of Senators.

The legislative clerk called the names of Mr. UDALL of New Mexico and Mr. WARNER of Virginia.

These Senators, escorted by Mr. HEINRICH and Mr. KAINE, respectively, advanced to the desk of the Vice President; the oath prescribed by law was administered to them by the Vice President; and they severally subscribed to the oath in the Official Oath Book.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

RECOGNITION OF THE MAJORITY LEADER

The VICE PRESIDENT. The majority leader is recognized.

QUORUM CALL

Mr. MCCONNELL. Mr. President, I suggest the absence of a quorum.

The VICE PRESIDENT. The absence of a quorum having been suggested, the clerk will call the roll.

The legislative clerk proceeded to call the roll, and the following Senators entered the Chamber and answered to their names:

[Quorum No. 1 Leg.]

Alexander	Fischer	Nelson
Ayotte	Flake	Paul
Baldwin	Franken	Perdue
Barrasso	Gardner	Peters
Bennet	Graham	Portman
Blunt	Grassley	Reed
Booker	Hatch	Risch
Boozman	Heinrich	Roberts
Burr	Hirono	Rounds
Cantwell	Hoeven	Rubio
Capito	Inhofe	Sanders
Cardin	Isakson	Sasse
Carper	Johnson	Schatz
Casey	Kaine	Schumer
Cassidy	King	Scott
Coats	Kirk	Sessions
Cochran	Klobuchar	Shaheen
Collins	Lankford	Shelby
Coons	Leahy	Stabenow
Corker	Lee	Sullivan
Cornyn	Manchin	Tester
Cotton	Markey	Thune
Crapo	McCain	Tillis
Cruz	McConnell	Udall
Daines	Menendez	Vitter
Donnelly	Merkley	Warner
Durbin	Mikulski	Warren
Enzi	Murkowski	Whitehouse
Ernst	Murphy	Wicker
Feinstein	Murray	

The VICE PRESIDENT. A quorum is present.

LIST OF SENATORS BY STATES

Alabama—Richard C. Shelby and Jeff Sessions

Alaska—Lisa Murkowski and Dan Sullivan

Arizona—John McCain and Jeff Flake

Arkansas—John Boozman and Tom Cotton

California—Dianne Feinstein and Barbara Boxer

Colorado—Michael F. Bennet and Cory Gardner

Connecticut—Richard Blumenthal and Christopher Murphy

Delaware—Thomas R. Carper and Christopher A. Coons

Florida—Bill Nelson and Marco Rubio

Georgia—Johnny Isakson and David Perdue

Hawaii—Brian Schatz and Mazie K. Hirono

Idaho—Mike Crapo and James E. Risch

Illinois—Richard J. Durbin and Mark Kirk

Indiana—Daniel Coats and Joe Donnelly

Iowa—Chuck Grassley and Joni Ernst

Kansas—Pat Roberts and Jerry Moran

Kentucky—Mitch McConnell and Rand Paul

Louisiana—David Vitter and Bill Cassidy

Maine—Susan M. Collins and Angus S. King, Jr.

Maryland—Barbara A. Mikulski and Benjamin L. Cardin

Massachusetts—Elizabeth Warren and Edward J. Markey

Michigan—Debbie Stabenow and Gary C. Peters

Minnesota—Amy Klobuchar and Al Franken

Mississippi—Thad Cochran and Roger F. Wicker

Missouri—Claire McCaskill and Roy Blunt

Montana—Jon Tester and Steve Daines

Nebraska—Deb Fischer and Ben Sasse

Nevada—Harry Reid and Dean Heller

New Hampshire—Jeanne Shaheen and Kelly Ayotte

New Jersey—Robert Menendez and Cory A. Booker

New Mexico—Tom Udall and Martin Heinrich

New York—Charles E. Schumer and Kirsten E. Gillibrand

North Carolina—Richard Burr and Thom Tillis

North Dakota—John Hoeven and Heidi Heitikamp

Ohio—Sherrod Brown and Rob Portman

Oklahoma—James M. Inhofe and James Lankford

Oregon—Ron Wyden and Jeff Merkley

Pennsylvania—Robert P. Casey, Jr. and Patrick J. Toomey

Rhode Island—Jack Reed and Sheldon Whitehouse

South Carolina—Lindsey Graham and Tim Scott

South Dakota—John Thune and Mike Rounds

Tennessee—Lamar Alexander and Bob Corker

Texas—John Cornyn and Ted Cruz

Utah—Orrin G. Hatch and Mike Lee

Vermont—Patrick J. Leahy and Bernard Sanders

Virginia—Mark R. Warner and Tim Kaine

Washington—Patty Murray and Maria Cantwell

West Virginia—Joe Manchin III and Shelley Moore Capito

Wisconsin—Ron Johnson and Tammy Baldwin

Wyoming—Michael B. Enzi and John Barrasso

RECOGNITION OF THE ACTING MINORITY LEADER

The VICE PRESIDENT. The acting Democratic leader is recognized.

ABSENCE OF DEMOCRATIC LEADER

Mr. DURBIN. Mr. President, the Democratic leader is necessarily absent. I will be acting in his stead until his return.

INFORMING THE PRESIDENT OF THE UNITED STATES THAT A QUORUM OF EACH HOUSE IS ASSEMBLED

Mr. MCCONNELL. Mr. President, I have a resolution at the desk, and I ask for its immediate consideration.

The VICE PRESIDENT. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 1) informing the President of the United States that a quorum of each House is assembled.

The VICE PRESIDENT. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 1) reads as follows:

S. RES. 1

Resolved, That a committee consisting of two Senators be appointed to join such committee as may be appointed by the House of Representatives to wait upon the President of the United States and inform him that a quorum of each House is assembled and that the Congress is ready to receive any communication he may be pleased to make.

Mr. MCCONNELL. Mr. President, I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. Mr. President, I move to lay that motion on the table.

The motion to lay on the table was agreed to.

The VICE PRESIDENT. Pursuant to S. Res. 1, the Chair appoints the Senator from Kentucky, Mr. MCCONNELL, and the Senator from Illinois, Mr. DURBIN, as a committee to join the committee on the part of the House of Representatives to wait upon the President of the United States and inform him that a quorum is assembled and the Congress is ready to receive any communication that he may be pleased to make.

INFORMING THE HOUSE OF REPRESENTATIVES THAT A QUORUM OF THE SENATE IS ASSEMBLED

Mr. MCCONNELL. Mr. President, I have a resolution at the desk and ask for its immediate consideration.

The VICE PRESIDENT. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 2) informing the House of Representatives that a quorum of the Senate is assembled.

The VICE PRESIDENT. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 2) reads as follows:

S. RES. 2

Resolved, That the Secretary inform the House of Representatives that a quorum of the Senate is assembled and that the Senate is ready to proceed to business.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

ELECTING ORRIN G. HATCH TO BE PRESIDENT PRO TEMPORE OF THE SENATE OF THE UNITED STATES

Mr. MCCONNELL. Mr. President, I have a resolution at the desk and ask for its immediate consideration.

The VICE PRESIDENT. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 3) to elect ORRIN G. HATCH, a Senator from the State of Utah, to be President pro tempore of the Senate of the United States.

The VICE PRESIDENT. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 3) reads as follows:

S. RES. 3

Resolved, That Orrin G. Hatch, a Senator from the State of Utah, be, and he is hereby, elected President of the Senate pro tempore.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

The VICE PRESIDENT. Senator HATCH will be escorted to the desk.

Senator ORRIN G. HATCH, escorted by Mr. MCCONNELL and Mr. LEAHY, respectively, advanced to the desk of the Vice President, and the oath prescribed by law was administered to him by the Vice President.

The VICE PRESIDENT. Congratulations.

(Applause, Senators rising.)

NOTIFYING THE PRESIDENT OF THE UNITED STATES OF THE ELECTION OF A PRESIDENT PRO TEMPORE OF THE UNITED STATES SENATE

Mr. MCCONNELL. I have a resolution at the desk and ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 4) notifying the President of the United States of the election of a President pro tempore.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 4) reads as follows:

S. RES. 4

Resolved, That the President of the United States be notified of the election of the Honorable Orrin G. Hatch as President of the Senate pro tempore.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

NOTIFYING THE HOUSE OF REPRESENTATIVES OF THE ELECTION OF A PRESIDENT PRO TEMPORE OF THE UNITED STATES SENATE

Mr. MCCONNELL. I have a resolution at the desk and ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 5) notifying the House of Representatives of the election of a President pro tempore.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 5) reads as follows:

S. RES. 5

Resolved, That the House of Representatives be notified of the election of the Honorable Orrin G. Hatch as President of the Senate pro tempore.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

EXPRESSING THE THANKS OF THE SENATE TO THE HONORABLE PATRICK J. LEAHY FOR HIS SERVICE AS PRESIDENT PRO TEMPORE OF THE UNITED STATES SENATE AND TO DESIGNATE SENATOR LEAHY AS PRESIDENT PRO TEMPORE EMERITUS OF THE UNITED STATES SENATE

Mr. MCCONNELL. I have a resolution at the desk and ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 6) expressing the thanks of the Senate to the Honorable PATRICK J. LEAHY for his service as President Pro Tempore of the United States Senate and to designate Senator LEAHY as President Pro Tempore Emeritus of the United States Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 6) reads as follows:

S. RES. 6

Resolved, That the United States Senate expresses its deepest gratitude to Senator Patrick J. Leahy for his dedication and commitment during his service to the Senate as the President Pro Tempore.

Further, as a token of appreciation of the Senate for his long and faithful service, Senator Patrick J. Leahy is hereby designated President Pro Tempore Emeritus of the United States Senate.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

FIXING THE HOUR OF DAILY MEETING OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk, and I ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 7) fixing the hour of daily meeting of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 7) reads as follows:

S. RES. 7

Resolved, That the daily meeting of the Senate be 12 o'clock meridian unless otherwise ordered.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

ELECTING JULIE ADAMS AS SECRETARY OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk, and I ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 8) electing Julie Adams as Secretary of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 8) reads as follows:

S. RES. 8

Resolved, That Julie E. Adams of Iowa be, and she is hereby, elected Secretary of the Senate.

Mr. MCCONNELL. Mr. President, I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

Julie E. Adams, escorted by Mr. MCCONNELL, advanced to the desk of the Vice President, and the oath prescribed by law was administered to her by the President pro tempore.

(Applause, Senators rising.)

NOTIFYING THE PRESIDENT OF THE UNITED STATES OF THE ELECTION OF A SECRETARY OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk and ask that it be considered.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 9) notifying the President of the United States of the election of the Secretary of the Senate.

The PRESIDENT PRO TEMPORE. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 9) reads as follows:

S. RES. 9

Resolved, That the President of the United States be notified of the election of the Honorable Julie E. Adams as Secretary of the Senate.

NOTIFYING THE HOUSE OF REPRESENTATIVES OF THE ELECTION OF A SECRETARY OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk and I ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 10) notifying the House of Representatives of the election of the Secretary of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 10) was agreed to, as follows:

S. RES. 10

Resolved, That the House of Representatives be notified of the election of the Honorable Julie E. Adams as Secretary of the Senate.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

ELECTING FRANK J. LARKIN AS SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk and ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 11) electing Frank Larkin as Sergeant at Arms and Doorkeeper of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 11) reads as follows:

S. RES. 11

Resolved, That Frank J. Larkin of Maryland be, and he is hereby, elected Sergeant at Arms and Doorkeeper of the Senate.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

NOTIFYING THE PRESIDENT OF THE UNITED STATES OF THE ELECTION OF A SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk, and I ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 12) notifying the President of the United States of the election of a Sergeant at Arms and Doorkeeper of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 12) reads as follows:

S. RES. 12

Resolved, That the President of the United States be notified of the election of the Honorable Frank J. Larkin as Sergeant at Arms and Doorkeeper of the Senate.

Mr. MCCONNELL. Mr. President, I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

NOTIFYING THE HOUSE OF REPRESENTATIVES OF THE ELECTION OF A SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk, and I ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 13) notifying the House of Representatives of the election of a Sergeant at Arms and Doorkeeper of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 13) reads as follows:

S. RES. 13

Resolved, That the House of Representatives be notified of the election of the Honorable Frank J. Larkin as Sergeant at Arms and Doorkeeper of the Senate.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

ELECTING LAURA C. DOVE AS SECRETARY FOR THE MAJORITY OF THE SENATE

Mr. MCCONNELL. Mr. President, I have a resolution at the desk, and I ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 14) electing Laura C. Dove, of Virginia, as Secretary for the Majority of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 14) reads as follows:

S. RES. 14

Resolved, That Laura C. Dove of Virginia be, and she is hereby, elected Secretary for the Majority of the Senate.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

ELECTING GARY B. MYRICK AS SECRETARY FOR THE MINORITY OF THE SENATE

Mr. DURBIN. Mr. President, I have a resolution at the desk, and I ask for its immediate consideration.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 15) electing Gary B. Myrick, of Virginia, as Secretary for the Minority of the Senate.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 15) reads as follows:

S. RES. 15

Resolved, That Gary B. Myrick of Virginia be, and he is hereby, elected Secretary for the Minority of the Senate.

Mr. DURBIN. I move to reconsider the vote by which the resolution was agreed to.

Mr. MCCONNELL. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

APPOINTMENT OF SENATE LEGAL COUNSEL

The PRESIDENT pro tempore. The President pro tempore, pursuant to Public Law 95–521, appoints Patricia Mack Bryan as Senate legal counsel for a term of service to expire at the end of the 115th Congress.

The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 16) to make effective appointment of Senate Legal Counsel.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 16) reads as follows:

S. RES. 16

That the appointment of Patricia Mack Bryan of Virginia to be Senate Legal Counsel made by the President pro tempore this day, is effective as of January 3, 2015, and the term of service of the appointee shall expire at the end of the One Hundred Fifteenth Congress.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

APPOINTMENT OF DEPUTY SENATE LEGAL COUNSEL

The PRESIDENT pro tempore. The President pro tempore, pursuant to Public Law 95–521, appoints Morgan J. Frankel as deputy Senate legal counsel for a term of service to expire at the end of the 115th Congress.

The clerk will report the resolution by title.

The legislative clerk read as follows:

A resolution (S. Res. 17) to make effective appointment of Deputy Senate Legal Counsel.

The PRESIDENT pro tempore. Without objection, the resolution is considered and agreed to.

The resolution (S. Res. 17) reads as follows:

S. RES. 17

That the appointment of Morgan J. Frankel of the District of Columbia to be Deputy Senate Legal Counsel, made by the President pro tempore this day, is effective as of January 3, 2015, and the term of service of the appointee shall expire at the end of the One Hundred Fifteenth Congress.

Mr. MCCONNELL. I move to reconsider the vote by which the resolution was agreed to.

Mr. DURBIN. I move to lay that motion on the table.

The motion to lay on the table was agreed to.

UNANIMOUS CONSENT AGREEMENTS

Mr. MCCONNELL. Mr. President, I send to the desk, en bloc, 11 unanimous consent requests and I ask for their immediate consideration, en bloc, and the motion to reconsider the adoption of these requests be laid upon the table, and that they appear separately in the RECORD.

Before the Chair rules, I would like to point out that these requests are routine and done at the beginning of each new Congress.

Mr. President, I ask unanimous consent that for the duration of the 114th Congress, the Ethics Committee be authorized to meet during the session of the Senate.

Mr. President, I ask unanimous consent that for the duration of the 114th Congress, there be a limitation of 15 minutes each upon any rollcall vote, with the warning signal to be sounded at the midway point, beginning at the last 7½ minutes, and when rollcall votes are of 10-minute duration, the warning signal be sounded at the beginning of the last 7½ minutes.

Mr. President, I ask unanimous consent that during the 114th Congress, it be in order for the Secretary of the Senate to receive reports at the desk when presented by a Senator at any time during the day of the session of the Senate.

Mr. President, I ask unanimous consent that the majority and minority leaders may daily have up to 10 minutes each on each calendar day following the prayer and disposition of the reading of, or the approval of, the Journal.

Mr. President, I ask unanimous consent that notwithstanding the provisions of rule XXVIII, conference reports and statements accompanying them not be printed as Senate reports when such conference reports and statements have been printed as a House report unless specific request is made in the Senate in each instance to have such a report printed.

Mr. President, I ask unanimous consent that the Committee on Appropriations be authorized during the 114th Congress to file reports during the adjournments or recesses of the Senate on appropriations bills, including joint resolutions, together with any accompanying notices of motions to suspend rule XVI, pursuant to rule V, for the purpose of offering certain amendments to such bills or joint resolutions, which proposed amendments shall be printed.

Mr. President, I ask unanimous consent that, for the duration of the 114th Congress, the Secretary of the Senate be authorized to make technical and clerical corrections in the engrossments of all Senate-passed bills and joint resolutions, Senate amendments to House bills and resolutions, Senate amendments to House amendments to Senate bills and resolutions, and Senate amendments to House amendments to Senate amendments to House bills or resolutions.

Mr. President, I ask unanimous consent that, for the duration of the 114th Congress, when the Senate is in recess or adjournment the Secretary of the Senate is authorized to receive messages from the President of the United States, and—with the exception of House bills, joint resolutions and concurrent resolutions—messages from the House of Representatives; and that they be appropriately referred; and that the President of the Senate, the President pro tempore, and the Acting

President pro tempore be authorized to sign duly enrolled bills and joint resolutions.

Mr. President, I ask unanimous consent that, for the duration of the 114th Congress, Senators be allowed to leave at the desk with the Journal clerk the names of two staff members who will be granted the privilege of the floor during the consideration of the specific matter noted, and that the Sergeant-at-Arms be instructed to rotate staff members as space allows.

Mr. President, I ask unanimous consent that, for the duration of the 114th Congress, it be in order to refer treaties and nominations on the day when they are received from the President, even when the Senate has no executive session that day.

Mr. President, I ask unanimous consent that, for the duration of the 114th Congress, Senators may be allowed to bring to the desk bills, joint resolutions, concurrent resolutions and simple resolutions, for referral to appropriate committees.

The PRESIDENT pro tempore. Is there objection?

Without objection, it is so ordered.

WELCOMING MEMBERS OF THE SENATE AND WISHING SENATOR REID A SPEEDY RECOVERY

Mr. MCCONNELL. Mr. President, today is an important day for our country. Many Senators took the oath this afternoon—13 for the first time—and the new Republican majority accepted its new responsibility. We recognize the enormity of the task before us. We know a lot of hard work awaits. We know many important opportunities await as well.

I am really optimistic about what we can accomplish. I will have much more to say about that tomorrow. For now, I just want to welcome back all of our returning Members. I want to congratulate the many new ones, and I want to say a word about our colleague from Nevada.

Senator REID is a former boxer. He is tough. I know he will be back in fighting form soon enough. We all wish him a speedy recovery and I wish him the very best.

To all of you, enjoy the ceremonies today. Tomorrow is back to work.

I yield the floor.

The PRESIDENT pro tempore. The acting minority leader.

THE NEW CONGRESS

Mr. DURBIN. Mr. President, I thank the majority leader for those kind words. I am happy to report the Democratic leader of the Senate, Senator REID, is making a speedy recovery from his New Year's run-in with some exercise equipment. His face and ribs are still sore. He is eager to get back to work. We met with him this morning, and we can expect him back in the Senate very soon.

In the meantime, it is a privilege on behalf of the Democratic Caucus to welcome our old colleagues back to work and welcome our new colleagues and their families to the U.S. Senate. I also want to wish Leader MCCONNELL, as he takes up the new duties of the majority leader, the very best. Senator Dirksen was a Senator from my home State of Illinois who served as a Republican leader of the Senate from 1959 to 1969. He famously said, ''I am a man of fixed and unbending principles, the first of which is to be flexible at all times.''

That may sound comical, even contradictory. But Senator Dirksen's ability on flexible tactics and firmness on principles helped produce historic legislation such as the Civil Rights Act of 1964, one of the greatest achievements in our Nation's history. I am sure we all will remember that with fondness and pride.

The American people need us to work together to solve problems and create opportunities. For their sake, let us all try to remember that what we are about is honorable compromise. The Constitution of the United States and the Senate itself are the results of just such a compromise.

One other point. One hundred years ago this week, an American industrialist and entrepreneur stunned the world by announcing he would start paying his workers double the industry average and cut the hours. That man, of course, was Henry Ford. He committed to pay his workers a minimum wage.

As we begin this new Congress, let us dedicate ourselves to the working men and women across America, the taxpayers of this country, and the men and women which we so proudly serve. I hope that we will show flexibility and principle. We can't solve America's challenges with the same old thinking. We have to address the problems with mutual respect and with a positive attitude.

I look forward to, on this side of the aisle, working with Senator REID and my colleagues to achieve that end.

Congratulations to Leader MCCONNELL.

UNANIMOUS CONSENT REQUEST—ENERGY AND NATURAL RESOURCES COMMITTEE

Mr. MCCONNELL. I thank my friend the acting minority leader. We are anxious to get to work here. In that regard, I ask unanimous consent that it be in order for the Energy and Natural Resources Committee to meet on January 7, tomorrow, for the purpose of hearing testimony on the Keystone Pipeline; that the meeting be chaired by Senator MURKOWSKI, with Senator CANTWELL as ranking member; that the following Senators not currently serving on the committee be considered Members of the committee for the purpose of this meeting: Senators DAINES, CASSIDY, GARDNER, CAPITO, HIRONO, KING, and WARREN; I further ask that the meeting be considered to comport with all Senate rules relating to the conduct of committees and that customary and authorized expenses be permitted.

The PRESIDENT pro tempore. Is there objection?

Mr. DURBIN. Mr. President, reserving the right to object. Under the traditions and rules of the Senate, all of the Senate committees are organized in a resolution, which we anticipate will be offered tomorrow for the organization of the committee structure of the U.S. Senate.

I say to the majority leader, we will continue this conversation in a positive manner in an effort to come up with a mutually agreeable approach to consider this legislation and others, but for that reason I must object.

The PRESIDENT pro tempore. Objection is heard.

Mr. MCCONNELL. If I may, let me just say again, nobody's rights would have been in any way impaired by going forward a day earlier. We are going to pass the committee resolution tomorrow. We all know that one of the things the Senate is best at is not doing much. I hope we can work this out so we can get started. Everyone knows the first measure that is going to be up is going to come out of the energy committee. I would say to my friends on the minority side, it is open for amendment. Why don't we get started? Hopefully Senator MURKOWSKI and Senator CANTWELL can work through this and we can get going and do the people's business. We are anxious to get started.

MORNING BUSINESS

REMEMBERING SYLVIA GARCIA RICKARD

Mr. HATCH. Mr. President, it is with a heavy heart that I rise to convey to my colleagues news of the tragic death of Sylvia Rickard—one of the Nation's top breast cancer advocates—a woman so full of life and joy, so deeply immersed in the science of her passion, that it is impossible to imagine this sad, sad occurrence.

Sylvia was truly an amazing person who touched many lives. I first met Sylvia when she visited my office so many years ago to educate me on the need for more breast cancer research, for better breast cancer screening, and for better patient navigation. Sylvia, herself a two-time survivor of breast cancer, and later of ocular melanoma, made sure that my staff and I, and indeed all of the Utah and Idaho delegations, regardless of party, were kept apprised of the latest developments in breast cancer research. She patiently walked us through the science behind the research—a science she made it her business to know in great detail.

Sylvia was such a good advocate because she had fought this dread disease, and won. Not once, but twice.

Moreover, Sylvia, and her husband Rick, became friends to all—to me, my staff, and to my former staff—here in Washington, and in our beloved State of Utah. She always had a smile and a hug for everyone.

Sylvia made it her business not just to talk the talk, but also to walk the walk. She was a past president of the Women's State Legislative Council in Utah, a bipartisan group of women who meet to discuss issues of importance to Utah and the Nation. She also was the founder of the Utah Breast Cancer Network, and the president of the Hispanic Health Care Task Force in Utah. Sylvia became involved in building awareness at the local level, as well as the national level. Indeed, she was very proud to have been selected to be an advisor to the National Institutes of Health—a remarkable recognition of her top-ranked talent. She was involved at all levels in advocating for better biomedical research, better support for that research, and for a nonpartisan, commonsense approach to a disease that is now expected to affect one in eight women over their lifetimes.

I recall the twinkle in Sylvia's eye when top experts at the Huntsman Cancer Center in Salt Lake City sought her knowledge about eye cancer, after she was treated successfully. She had found a surgeon in another State who could treat her without the certain loss of her eye, and she helped to connect the physicians so they could learn from each other.

It was a great loss to Utah when Rick Rickard built Sylvia the house of their dreams for retirement in Boise, ID this past fall. But we were all happy they had achieved their dream. I heard she was absolutely delighted to cook in her new kitchen. I am so pleased she at least got to spend a few months in their new home, one they had worked for so hard over so many years finally to achieve.

So our hearts go out to the Rickard and Garcia families, to Sylvia and Rick's two sons, Richard, Jr. and David, and to the many millions of others whose lives have been made better by the significant achievements of my friend, Sylvia Rickard.

MESSAGES FROM THE HOUSE SUBSEQUENT TO SINE DIE ADJOURNMENT

ENROLLED BILLS SIGNED

Under the order of the Senate of January 3, 2013, the Secretary of the Senate, on December 17, 2014, subsequent to the sine die adjournment of the Senate, received a message from the House of Representatives announcing that the Speaker pro tempore (Mr. HARRIS) has signed the following enrolled bills:

H.R. 1206. An act to grant the Secretary of the Interior permanent authority to authorize States to issue electronic duck stamps, and for other purposes.

H.R. 1378. An act to designate the United States Federal Judicial Center located at 333 West Broadway in San Diego, California, as the ''John Rhoades Federal Judicial Center'' and to designate the United States courthouse located at 333 West Broadway in San Diego, California, as the ''James M. Carter and Judith N. Keep United States Courthouse''.

H.R. 2754. An act to amend the Hobby Protection Act to make unlawful the provision of assistance or support in violation of that Act, and for other purposes.

H.R. 3027. An act to designate the facility of the United States Postal Service located at 442 Miller Valley Road in Prescott, Arizona, as the ''Barry M. Goldwater Post Office''.

H.R. 3572. An act to revise the boundaries of certain John H. Chafee Coastal Barrier Resources System units.

H.R. 3979. An act to authorize appropriations for fiscal year 2015 for military activities of the Department of Defense, for military construction, and for defense activities of the Department of Energy, to prescribe military personnel strengths for such fiscal year, and for other purposes.

H.R. 4276. An act to extend and modify a pilot program on assisted living services for veterans with traumatic brain injury.

H.R. 4416. An act to redesignate the facility of the United States Postal Service located at 161 Live Oak Street in Miami, Arizona, as the ''Staff Sergeant Manuel V. Mendoza Post Office Building''.

H.R. 4651. An act to designate the facility of the United States Postal Service located at 601 West Baker Road in Baytown, Texas, as the ''Specialist Keith Erin Grace, Jr. Memorial Post Office''.

H.R. 5050. An act to repeal the Act of May 31, 1918, and for other purposes.

H.R. 5185. An act to reauthorize the Young Women's Breast Health Education and Awareness Requires Learning Young Act of 2009.

H.R. 5331. An act to designate the facility of the United States Postal Service located at 73839 Gorgonio Drive in Twentynine Palms, California, as the ''Colonel M.J. 'Mac' Dube, USMC Post Office Building''.

H.R. 5562. An act to designate the facility of the United States Postal Service located at 801 West Ocean Avenue in Lompoc, California, as the ''Federal Correctional Officer Scott J. Williams Memorial Post Office Building''.

H.R. 5687. An act to designate the facility of the United States Postal Service located at 101 East Market Street in Long Beach, California, as the ''Juanita Millender-McDonald Post Office''.

H.R. 5816. An act to extend the authorization for the United States Commission on International Religious Freedom.

Under the authority of the order of the Senate of January 3, 2013, the enrolled bills were signed on December 17, 2014, subsequent to sine die adjournment of the Senate, by the President pro tempore (Mr. LEAHY).

Under the authority of the order of the Senate of January 3, 2013, the enrolled bill (H.R. 3979) was signed on December 18, 2014, subsequent to sine die adjournment of the Senate, by the Acting President pro tempore (Mr. LEVIN).

ENROLLED BILLS SIGNED

Under the order of the Senate of January 3, 2013, the Secretary of the Senate, on December 18, 2014, subsequent to the sine die adjournment of the Senate, received a message from the House of Representatives announcing that the Speaker pro tempore (Mr. THORNBERRY) has signed the following enrolled bills:

H.R. 1068. An act to enact title 54, United States Code, ''National Park Service and Related Programs'', as positive law.

H.R. 2901. An act to strengthen implementation of the Senator Paul Simon Water for the Poor Act of 2005 by improving the capacity of the United States Government to implement, leverage, and monitor and evaluate programs to provide first-time or improved access to safe drinking water, sanitation, and hygiene to the world's poorest on an equitable and sustainable basis, and for other purposes.

H.R. 3608. An act to amend the Act of October 19, 1973, concerning taxable income to members of the Grand Portage Band of Lake Superior Chippewa Indians.

H.R. 4030. An act to designate the facility of the United States Postal Service located at 18640 NW 2nd Avenue in Miami, Florida, as the ''Father Richard Marquess-Barry Post Office Building''.

H.R. 5771. An act to amend the Internal Revenue Code of 1986 to extend certain expiring provisions and make technical corrections, to amend the Internal Revenue Code of 1986 to provide for the tax treatment of ABLE accounts established under State programs for the care of family members with disabilities, and for other purposes.

Under the authority of the order of the Senate of January 3, 2013, the enrolled bills were signed on December 18, 2014, subsequent to sine die adjournment of the Senate, by the President pro tempore (Mr. LEAHY).

MEASURES READ THE FIRST TIME

The following bill was read the first time:

S. 1. A bill to approve the Keystone XL Pipeline.

MEASURES HELD OVER/UNDER RULE

The following resolutions were read, and held over, under the rule:

S. Res. 18. A resolution making majority party appointments for the 114th Congress.

S. Res. 20. A resolution limiting certain uses of the filibuster in the Senate to improve the legislative process.

ENROLLED BILLS PRESENTED, 113TH CONGRESS

The Secretary of the Senate reported that on December 17, 2014, she had presented to the President of the United States the following enrolled bills:

S. 2338. An act to reauthorize the United States Anti-Doping Agency, and for other purposes.

S. 3008. An act to extend temporarily the extended period of protection for members of uniformed services relating to mortgages, mortgage foreclosure, and eviction, and for other purposes.

INTRODUCTION OF BILLS AND JOINT RESOLUTIONS

The following bills and joint resolutions were introduced, read the first and second times by unanimous consent, and referred as indicated:

By Mr. HOEVEN (for himself, Mr. MANCHIN, Ms. MURKOWSKI, Mr. DONNELLY, Mr. MCCONNELL, Ms.

HEITKAMP, Mr. THUNE, Mr. TESTER, Mr. BARRASSO, Mrs. MCCASKILL, Mr. BLUNT, Mr. WARNER, Mr. GRAHAM, Mr. HATCH, Mr. WICKER, Mr. SHELBY, Mr. JOHNSON, Mr. CORNYN, Mr. CRUZ, Mr. ISAKSON, Mr. KIRK, Mr. PORTMAN, Mr. HELLER, Mr. FLAKE, Mr. RUBIO, Mr. ROBERTS, Mr. INHOFE, Mr. TOOMEY, Mr. BOOZMAN, Mr. RISCH, Mr. MORAN, Mr. SCOTT, Mr. LEE, Ms. COLLINS, Mr. BURR, Mr. ALEXANDER, Mr. CORKER, Mr. CRAPO, Mrs. FISCHER, Mr. VITTER, Mr. GRASSLEY, Mr. COATS, Mr. MCCAIN, Mr. SESSIONS, Mr. COCHRAN, Mr. ENZI, Mr. PAUL, Ms. AYOTTE, Mr. DAINES, Mr. COTTON, Mr. CASSIDY, Mr. ROUNDS, Mr. SULLIVAN, Mr. LANKFORD, Mrs. CAPITO, Mr. GARDNER, Mr. PERDUE, Mrs. ERNST, Mr. TILLIS, and Mr. SASSE):

S. 1. A bill to approve the Keystone XL Pipeline; read the first time.

By Mr. BLUNT (for himself, Mr. BOOZMAN, Mr. COATS, Mr. CRAPO, Mr. INHOFE, Mr. JOHNSON, Ms. MURKOWSKI, Mr. ROBERTS, Mrs. FISCHER, Ms. AYOTTE, Mr. ENZI, Mr. GRAHAM, Mr. ISAKSON, Mr. CORNYN, Mr. HATCH, Mr. MORAN, Mr. SCOTT, Mr. COCHRAN, and Mr. PAUL):

S. 11. A bill to protect the separation of powers in the Constitution of the United States by ensuring that the President takes care that the laws be faithfully executed, and for other purposes; to the Committee on the Judiciary.

By Mr. BLUNT (for himself, Ms. AYOTTE, Mr. BOOZMAN, Mr. BURR, Mr. COCHRAN, Ms. COLLINS, Mr. CORNYN, Mr. ENZI, Mrs. FISCHER, Mr. HATCH, Mr. KIRK, Mr. MCCAIN, Mr. MORAN, Ms. MURKOWSKI, Mr. PORTMAN, Mr. ROBERTS, Mr. SCOTT, Mr. THUNE, Mr. TOOMEY, Mr. INHOFE, Mr. VITTER, and Mr. HOEVEN):

S. 12. A bill to amend the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act; to the Committee on Finance.

By Mr. HATCH:

S. 13. A bill to establish the Hurricane Sand Dunes National Recreation Area in the State of Utah, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. HATCH:

S. 14. A bill to authorize the Secretary of the Interior to convey certain interest in Federal land acquired for the Scofield Project in Carbon County, Utah; to the Committee on Energy and Natural Resources.

By Mr. HATCH:

S. 15. A bill to amend the Mineral Leasing Act to recognize the authority of States to regulate oil and gas operations and promote American energy security, development, and job creation, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. VITTER (for himself and Mr. CRUZ):

S. 16. A bill to amend the Patient Protection and Affordable Care Act to apply the provisions of the Act to certain Congressional staff and members of the executive branch; to the Committee on Finance.

By Mr. VITTER (for himself and Mrs. MCCASKILL):

S. 17. A bill to repeal the provision of law that provides automatic pay adjustments for Members of Congress; to the Committee on Homeland Security and Governmental Affairs.

By Mr. VITTER:

S. 18. A bill to prohibit authorized committees and leadership PACs from employing the spouse or immediate family members of any candidate or Federal office holder connected to the committee; to the Committee on Rules and Administration.

By Mr. VITTER:

S. 19. A bill to appropriately manage the debt of the United States by limiting the use of extraordinary measures; to the Committee on Homeland Security and Governmental Affairs.

By Mr. VITTER:

S. 20. A bill to establish a procedure to safeguard the Social Security Trust Funds; to the Committee on the Budget.

By Mr. VITTER:

S. 21. A bill to ensure efficiency and fairness in the awarding of Federal contracts in connection with natural disaster reconstruction efforts; to the Committee on Homeland Security and Governmental Affairs.

By Mr. SCHUMER:

S. 22. A bill for the relief of Alemseghed Mussie Tesfamical; to the Committee on the Judiciary.

By Mr. LEAHY (for himself, Mr. MARKEY, Mr. COONS, Mr. WHITEHOUSE, Mr. FRANKEN, and Mrs. BOXER):

S. 23. A bill to amend title 17, United States Code, with respect to the definition of ''widow'' and ''widower'', and for other purposes; to the Committee on the Judiciary.

By Mrs. FEINSTEIN (for herself and Mr. LEE):

S. 24. A bill to clarify that an authorization to use military force, a declaration of war, or any similar authority shall not authorize the detention without charge or trial of a citizen or lawful permanent resident of the United States; to the Committee on the Judiciary.

By Mrs. SHAHEEN (for herself and Ms. AYOTTE):

S. 25. A bill to improve the coordination of export promotion programs and to facilitate export opportunities for small businesses, and for other purposes; to the Committee on Banking, Housing, and Urban Affairs.

By Mr. MURPHY (for himself, Mr. BLUMENTHAL, Mr. BROWN, Mr. MERKLEY, and Mr. COONS):

S. 26. A bill to amend title 10, United States Code, to require contracting officers to consider information regarding domestic employment before awarding a Federal defense contract, and for other purposes; to the Committee on Armed Services.

By Mrs. FEINSTEIN (for herself and Mr. GRAHAM):

S. 27. A bill to make wildlife trafficking a predicate offense under racketeering and money laundering statutes and the Travel Act, to provide for the use for conservation purposes of amounts from civil penalties, fines, forfeitures, and restitution under such statutes based on such violations, and for other purposes; to the Committee on the Judiciary.

By Mrs. FEINSTEIN (for herself, Mrs. BOXER, Mr. CARDIN, Mr. DURBIN, Mr. FRANKEN, Ms. KLOBUCHAR, Mr. LEAHY, Mrs. MURRAY, Mr. UDALL, Mr. WHITEHOUSE, and Mr. WYDEN):

S. 28. A bill to limit the use of cluster munitions; to the Committee on Foreign Relations.

By Mrs. FEINSTEIN (for herself, Ms. BALDWIN, Mr. BENNET, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. BROWN, Ms. CANTWELL, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mr. FRANKEN, Mrs. GILLIBRAND, Mr. HEINRICH, Ms. HIRONO, Mr. KAINE, Mr. KING, Ms. KLOBUCHAR, Mr. LEAHY, Mr. MARKEY, Mrs. MCCASKILL, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mr. MURPHY, Mrs. MURRAY, Mr. PETERS, Mr. REED, Mr. REID, Mr. SANDERS, Mr. SCHATZ, Mr. SCHUMER, Mrs. SHAHEEN, Ms. STABENOW, Mr. TESTER, Mr. UDALL, Mr. WARNER, Ms. WARREN, Mr. WHITEHOUSE, and Mr. WYDEN):

S. 29. A bill to repeal the Defense of Marriage Act and ensure respect for State regulation of marriage; to the Committee on the Judiciary.

By Ms. COLLINS (for herself, Mr. DONNELLY, Ms. MURKOWSKI, and Mr. MANCHIN):

S. 30. A bill to amend the Internal Revenue Code of 1986 to modify the definition of full-time employee for purposes of the employer mandate in the Patient Protection and Affordable Care Act; to the Committee on Finance.

By Ms. KLOBUCHAR (for herself, Mr. SANDERS, Mrs. SHAHEEN, Mr. KAINE, Mr. KING, and Mr. BLUMENTHAL):

S. 31. A bill to amend part D of title XVIII of the Social Security Act to require the Secretary of Health and Human Services to negotiate covered part D drug prices on behalf of Medicare beneficiaries; to the Committee on Finance.

By Mrs. FEINSTEIN (for herself, Mr. UDALL, Mr. BLUMENTHAL, Ms. KLOBUCHAR, Mr. GRASSLEY, and Ms. HEITKAMP):

S. 32. A bill to provide the Department of Justice with additional tools to target extraterritorial drug trafficking activity, and for other purposes; to the Committee on Finance.

By Mr. BARRASSO (for himself, Mr. HEINRICH, Mr. GARDNER, Ms. HEITKAMP, Mr. HOEVEN, Mr. KAINE, Mrs. CAPITO, and Mr. BENNET):

S. 33. A bill to provide certainty with respect to the timing of Department of Energy decisions to approve or deny applications to export natural gas, and for other purposes; to the Committee on Energy and Natural Resources.

By Mr. PAUL:

S. 34. A bill to prohibit assistance to the Palestinian Authority until it withdraws its request to join the International Criminal Court; to the Committee on Foreign Relations.

By Mr. TESTER (for himself and Mr. DAINES):

S. 35. A bill to extend the Federal recognition to the Little Shell Tribe of Chippewa Indians of Montana, and for other purposes; to the Committee on Indian Affairs.

By Mrs. FEINSTEIN (for herself, Mrs. SHAHEEN, Ms. AYOTTE, Mr. SCHUMER, Mr. BLUMENTHAL, Ms. KLOBUCHAR, Mrs. BOXER, Mr. PORTMAN, and Mr. WHITEHOUSE):

S. 36. A bill to address the continued threat posed by dangerous synthetic drugs by amending the Controlled Substances Act relating to controlled substance analogues; to the Committee on the Judiciary.

By Mr. REED (for himself and Mr. BROWN):

S. 37. A bill to amend the Elementary and Secondary Education Act of 1965 to provide for State accountability in the provision of access to the core resources for learning, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

By Mr. VITTER (for himself, Mr. JOHNSON, Mr. TOOMEY, Mr. LEE, Mr. RUBIO, Mr. CRUZ, Mrs. FISCHER, Mr. SASSE, Mr. PERDUE, and Mr. DAINES):

S.J. Res. 1. A joint resolution proposing an amendment to the Constitution of the United States relative to limiting the number of terms that a Member of Congress may serve; to the Committee on the Judiciary.

By Mr. LEE:

S.J. Res. 2. A joint resolution proposing an amendment to the Constitution of the

United States requiring that the Federal budget be balanced; to the Committee on the Judiciary.

SUBMISSION OF CONCURRENT AND SENATE RESOLUTIONS

The following concurrent resolutions and Senate resolutions were read, and referred (or acted upon), as indicated:

By Mr. MCCONNELL:

S. Res. 1. A resolution informing the President of the United States that a quorum of each House is assembled; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 2. A resolution informing the House of Representatives that a quorum of the Senate is assembled; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 3. A resolution to elect Orrin G. Hatch, a Senator from the State of Utah, to be President pro tempore of the Senate of the United States; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 4. A resolution notifying the President of the United States of the election of a President pro tempore; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 5. A resolution notifying the House of Representatives of the election of a President pro tempore; considered and agreed to.

By Mr. MCCONNELL (for Mr. REID):

S. Res. 6. A resolution expressing the thanks of the Senate to the Honorable PATRICK J. LEAHY for his service as President Pro Tempore of the United States Senate and to designate Senator LEAHY as President Pro Tempore Emeritus of the United States Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 7. A resolution fixing the hour of daily meeting of the Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 8. A resolution electing Julie Adams as Secretary of the Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 9. A resolution notifying the President of the United States of the election of the Secretary of the Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 10. A resolution notifying the House of Representatives of the election of the Secretary of the Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 11. A resolution electing Frank Larkin as Sergeant at Arms and Doorkeeper of the Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 12. A resolution notifying the President of the United States of the election of a Sergeant at Arms and Doorkeeper of the Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 13. A resolution notifying the House of Representatives of the election of a Sergeant at Arms and Doorkeeper of the Senate; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 14. A resolution electing Laura C. Dove, of Virginia, as Secretary for the Majority of the Senate; considered and agreed to.

By Mr. DURBIN (for Mr. REID):

S. Res. 15. A resolution electing Gary B. Myrick, of Virginia, as Secretary for the Minority of the Senate; considered and agreed to.

By Mr. MCCONNELL (for himself and Mr. REID):

S. Res. 16. A resolution to make effective appointment of Senate Legal Counsel; considered and agreed to.

By Mr. MCCONNELL (for himself and Mr. REID):

S. Res. 17. A resolution to make effective appointment of Deputy Senate Legal Counsel; considered and agreed to.

By Mr. MCCONNELL:

S. Res. 18. A resolution making majority party appointments for the 114th Congress; submitted and read.

By Mr. MCCONNELL (for himself, Mr. REID, Ms. WARREN, Mr. MARKEY, Mr. ALEXANDER, Ms. AYOTTE, Ms. BALDWIN, Mr. BARRASSO, Mr. BENNET, Mr. BLUMENTHAL, Mr. BLUNT, Mr. BOOKER, Mr. BOOZMAN, Mrs. BOXER, Mr. BROWN, Mr. BURR, Ms. CANTWELL, Mrs. CAPITO, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Mr. CASSIDY, Mr. COATS, Mr. COCHRAN, Ms. COLLINS, Mr. COONS, Mr. CORKER, Mr. CORNYN, Mr. COTTON, Mr. CRAPO, Mr. CRUZ, Mr. DAINES, Mr. DONNELLY, Mr. DURBIN, Mr. ENZI, Mrs. ERNST, Mrs. FEINSTEIN, Mrs. FISCHER, Mr. FLAKE, Mr. FRANKEN, Mr. GARDNER, Mrs. GILLIBRAND, Mr. GRAHAM, Mr. GRASSLEY, Mr. HATCH, Mr. HEINRICH, Ms. HEITKAMP, Mr. HELLER, Ms. HIRONO, Mr. HOEVEN, Mr. INHOFE, Mr. ISAKSON, Mr. JOHNSON, Mr. KAINE, Mr. KING, Mr. KIRK, Ms. KLOBUCHAR, Mr. LANKFORD, Mr. LEAHY, Mr. LEE, Mr. MANCHIN, Mr. MCCAIN, Mrs. MCCASKILL, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mr. MORAN, Ms. MURKOWSKI, Mr. MURPHY, Mrs. MURRAY, Mr. NELSON, Mr. PAUL, Mr. PERDUE, Mr. PETERS, Mr. PORTMAN, Mr. REED, Mr. RISCH, Mr. ROBERTS, Mr. ROUNDS, Mr. RUBIO, Mr. SANDERS, Mr. SASSE, Mr. SCHATZ, Mr. SCHUMER, Mr. SCOTT, Mr. SESSIONS, Mrs. SHAHEEN, Mr. SHELBY, Ms. STABENOW, Mr. SULLIVAN, Mr. TESTER, Mr. THUNE, Mr. TILLIS, Mr. TOOMEY, Mr. UDALL, Mr. VITTER, Mr. WARNER, Mr. WHITEHOUSE, Mr. WICKER, and Mr. WYDEN):

S. Res. 19. A resolution relative to the death of Edward W. Brooke, III, former United States Senator for the Commonwealth of Massachusetts; considered and agreed to.

By Mr. UDALL (for himself, Mr. MERKLEY, Mr. BLUMENTHAL, Mr. WHITEHOUSE, Mr. HEINRICH, Mrs. SHAHEEN, Mr. FRANKEN, and Ms. KLOBUCHAR):

S. Res. 20. A resolution limiting certain uses of the filibuster in the Senate to improve the legislative process; submitted and read.

STATEMENTS ON INTRODUCED BILLS AND JOINT RESOLUTIONS

By Mr. LEAHY (for himself, Mr. MARKEY, Mr. COONS, Mr. WHITEHOUSE, Mr. FRANKEN, and Mrs. BOXER):

S. 23. A bill to amend title 17, United States Code, with respect to the definition of ''widow'' and ''widower'', and for other purposes; to the Committee on the Judiciary.

Mr. LEAHY. Mr. President, over the past few years we have seen remarkable progress in one of the defining civil rights issues of our era—ensuring that all lawfully married couples are treated equally under the law. In 2011, when I chaired the first Congressional hearing to repeal the Defense of Marriage Act, only 5 States, including Vermont, recognized same-sex marriage. With today's lifting of Florida's unconstitutional same-sex marriage ban, couples in 36 States and the District of Columbia now have the freedom to marry. This is welcome progress, and I hope we will see similar advancements in even more States this year so that all Americans can marry the one they love.

Despite this tremendous progress, there is still more to be done to ensure that no person faces discrimination based on who they marry or wish to marry. As I said when the Supreme Court struck down Section 3 of the Defense of Marriage Act, ''All couples who are lawfully married under state law, including in Vermont, should be entitled to the same Federal protections afforded to all other married couples.'' Court challenges will continue this year in the remaining States that do not recognize marriage equality. But in Congress, there are several steps we can take immediately to help ensure our Federal laws treat all marriages equally.

Surprisingly, the Copyright Act, which protects our Nation's diverse creative voices, still bears vestiges of discrimination. A provision in the Act grants rights to the surviving spouse of a copyright owner only if the marriage is recognized in the owner's State of residence at the time he or she dies. This means that a writer who lawfully marries his or her partner in Vermont or California is not a ''spouse'' under the Copyright Act if they move to Michigan, Georgia, or one of the other States that do not currently recognize their marriage.

Congress should close this discriminatory loophole to ensure our Federal statutes live up to our Nation's promise of equality under the law. As the Supreme Court recognized in striking down key portions of the Defense of Marriage Act, it is wrong for the Federal Government to deny benefits or privileges to couples who have lawfully wed.

Today I am reintroducing the Copyright and Marriage Equality Act in the Senate to correct this problem. The bill, which I introduced in the Senate last Congress and which a bipartisan group of lawmakers including Representatives DEREK KILMER, ILEANA ROS-LEHTINEN, and JARED POLIS plans to reintroduce in the House of Representatives soon, amends the Copyright Act to look simply at whether a couple is lawfully married—not where a married couple happens to live when the copyright owner dies. It will ensure that the rights attached to the works of our Nation's gay and lesbian authors, musicians, painters, photographers, and other creators pass to their widows and widowers. Artists are part of the creative lifeblood of our Nation, and our laws should protect their families equally.

When I introduced this bill last year, it failed to get the support of a single Republican in the Senate. I hope that in this Congress, Republicans will consider joining this effort to correct

these remnants of discrimination in our Federal laws. On the issue of marriage equality, the arc of history is at long last bending towards justice, so that all Americans one day will be free to marry the one they love. Statutes like the Copyright Act, or laws governing the Social Security Administration and Department of Veterans Affairs which also contain remnants of discrimination, are no place for inequality in our country. I urge the Senate to take up and pass this important piece of legislation.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

Mr. President, I ask unanimous consent that the text of the bill be printed in the RECORD.

There being no objection, the text of the bill was ordered to be printed in the RECORD, as follows:

S. 23

Be it enacted by the Senate and House of Representatives of the United States of America in Congress assembled,

SECTION 1. SHORT TITLE.

This Act may be cited as the ''Copyright and Marriage Equality Act''.

SEC. 2. DEFINITION OF WIDOW AND WIDOWER IN TITLE 17, UNITED STATES CODE.

(a) IN GENERAL.—Section 101 of title 17, United States Code, is amended by striking the definition of '' 'widow' or 'widower' '' and inserting the following:

''An individual is the 'widow' or 'widower' of an author if the courts of the State in which the individual and the author were married (or, if the individual and the author were not married in any State but were validly married in another jurisdiction, the courts of any State) would find that the individual and the author were validly married at the time of the author's death, whether or not the spouse has later remarried.''.

(b) EFFECTIVE DATE.—The amendment made by subsection (a) shall apply with respect to the death of any author that occurs on or after the date of the enactment of this Act.

By Mrs. FEINSTEIN (for herself and Mr. LEE):

S. 24. A bill to clarify that an authorization to use military force, a declaration of war, or any similar authority shall not authorize the detention without charge or trial of a citizen or lawful permanent resident of the United States; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, today I rise to introduce the Due Process Guarantee Act, which passed the Senate in 2012 with 67 votes as an amendment to the Defense Authorization Act for fiscal year 2013.

Unfortunately, the amendment was taken out in the Conference Committee that year. It is my hope that the Senate will pass this legislation again this year, and this time the House will support it so that it can finally be enacted into law to protect Americans from being detained indefinitely.

The bipartisan bill I am introducing today, with Senator LEE as the lead cosponsor, is almost identical to the amendment that passed the Senate in December 2012 with 67 votes. The previous version of this bill had a hearing in the Judiciary Committee on February 29, 2012.

This legislation is necessary to prevent the U.S. Government from detaining its citizens indefinitely.

Unfortunately, indefinite detention has been a part of America's not-too-distant past. The internment of Japanese-Americans during World War II remains a dark spot on our Nation's legacy, and is something we should never repeat.

To ensure that this reprehensible experience would never happen again, Congress passed and President Nixon signed into law the Non-Detention Act of 1971, which repealed a 1950 statue that explicitly allowed the indefinite detention of U.S. citizens.

The Non-Detention Act of 1971 clearly states:

No citizen shall be imprisoned or otherwise detained the United States except pursuant to an act of Congress.

Despite the shameful history of indefinite detention of Americans and the legal controversy over the issue since 9/11, during debate on the defense authorization bill in past years, some in the Senate have advocated for allowing the indefinite detention of U.S. citizens.

Proponents of indefinitely detaining U.S. citizens argue that the Authorization for Use of Military Force, AUMF, that was enacted shortly after 9/11 is, quote, ''an act of Congress,'' in the language of the Non-Detention Act of 1971, that authorizes the indefinite detention of American citizens regardless of where they are captured.

They further assert that their position is justified by the U.S. Supreme Court's plurality decision in the 2004 case of Hamdi v. Rumsfeld. However, the Hamdi case involved an American captured on the battlefield in Afghanistan.

Yaser Esam Hamdi was a U.S. citizen who took up arms on behalf of the Taliban and was captured on the battlefield in Afghanistan. The divided Court did effectively uphold his military detention, so some of my colleagues use this case to argue that the military can indefinitely detain even American citizens who are arrested domestically here on U.S. soil, far from the battlefield of Afghanistan.

However, the Supreme Court's opinion in the Hamdi case was a muddled decision by a four-vote plurality that recognized the power of the government to detain U.S. citizens captured in such circumstances as ''enemy combatants'' for some period, but otherwise repudiated the government's broad assertions of executive authority to detain citizens without charge or trial.

In particular, the Court limited its holding to citizens captured in an area of, quote, ''active combat operations'', unquote, and concluded that even in those circumstances the U.S. Constitution and the Due Process Clause guarantees U.S. citizens certain rights, including the ability to challenge their enemy combatant status before an impartial judge.

The plurality's opinion stated:

It [the Government] has made clear, however, that, for purposes of this case, the 'enemy combatant' that it is seeking to detain is an individual who, it alleges, was 'part of or supporting forces hostile to the United States or coalition partners' in Afghanistan and who '' 'engaged in an armed conflict against the United States'' there. Brief for Respondents 3. We therefore answer only the narrow question before us: whether the detention of citizens falling within that definition is authorized.''

The opinion goes on to say at page 517 that ''we conclude that the AUMF is explicit congressional authorization for the detention of individuals in the narrow category we describe . . .''

Indeed, the plurality later emphasized that it was discussing a citizen captured on a foreign battlefield. Criticizing Justice Scalia's dissenting opinion, the opinion says, ''Justice Scalia largely ignores the context of this case: a United States citizen captured in a foreign combat zone.'' The plurality italicized and emphasized the word ''foreign'' in that sentence.

Thus, to the extent the Hamdi case permits the government to detain a U.S. citizen ''until the end of hostilities,'' it does so only under a very limited set of circumstances, namely citizens taking an active part in hostilities, who are captured in Afghanistan, and who are afforded certain due process protections, at a minimum.

Additionally, decisions by the lower courts have contributed to the current state of legal ambiguity when it comes to the indefinite detention of U.S. citizens, such as Jose Padilla, a U.S. citizen who was arrested in Chicago in 2002. He was initially detained pursuant to a material witness warrant based on the 9/11 terrorist attacks and later designated as an ''enemy combatant'' who conspired with al-Qaeda to carry out terrorist attacks including a plot to detonate a ''dirty bomb'' inside the U.S.

Padilla was transferred to the military brig in South Carolina where he was detained for three and a half years while seeking habeas corpus relief. Padilla was never charged with attempting to carry out the ''dirty bomb'' plot. Instead, Padilla was released from military custody in November 2005 and transferred to Federal civilian custody in Florida where he was indicted on other charges in Federal court related to terrorist plots overseas.

While he was indefinitely detailed by the military, Padilla filed a habeas corpus petition which was litigated at first in the Second Circuit Court of Appeals, and then in the Fourth Circuit Court of Appeals. In a 2003 decision by the Second Circuit known as Padilla v. Rumsfeld, the Court of Appeals held that the AUMF did not authorize his detention, saying: ''we conclude that clear congressional authorization is required for detentions of American citizens on American soil because 18 U.S.C.

§4001(a) the ''Non-Detention Act'', prohibits such detentions absent specific congressional authorization. Congress's Authorization for Use of Military Force Joint Resolution, . . . passed shortly after the attacks of September 11, 2001, is not such an authorization.''

This requirement for ''clear congressional authorization'' to detain is known as the Second Circuit's ''Clear Statement Rule.''

However, the Fourth Circuit Court of Appeals reached the opposite conclusion, finding that the AUMF did authorize his detention. It is worth pointing out, however, that their analysis turned entirely on the disputed claims that ''Padilla associated with forces hostile to the United States in Afghanistan,'' and, ''like Hamdi, Padilla took up arms against United States forces in that country in the same way and to the same extent as did Hamdi.''

Facing an impending Supreme Court challenge and mounting public criticism for holding a U.S. citizen arrested inside the U.S. as an enemy combatant, the Bush administration relented, and ordered Padilla transferred to civilian custody to face criminal conspiracy and material support for terrorism charges in Federal court.

I believe that the time is now to end the legal ambiguities, and have Congress state clearly, once and for all, that the AUMF or other authorities do not authorize indefinite detention of Americans apprehended in the U.S.

To accomplish this, we are introducing legislation again this year which affirms and strengthens the principles behind the Non-Detention Act of 1971.

It amends the Non-Detention Act to provide clearly that no military authorization allows the indefinite detention of U.S. citizens or Green Card holders who are apprehended inside the U.S.

Like the amendment that passed with 67 votes in 2012, the bill creates a new subsection (b) of the Non-Detention Act which clearly states: ''A general authorization to use military force, a declaration of war, or any similar authority, on its own, shall not be construed to authorize the imprisonment or detention without charge or trial of a citizen or lawful permanent resident of the United States apprehended in the United States.''

Like the previous version, this bill amends the Non-Detention Act to codify the Second Circuit's ''Clear Statement Rule'' from the Padilla case. So new subsection (a) will read, ''No citizen or lawful permanent resident of the United States shall be imprisoned or otherwise detained by the United States except consistent with the Constitution and pursuant to an act of Congress that expressly authorizes such imprisonment or detention.''

Making the Clear Statement Rule part of subsection (a) strengthens the Non-Detention Act even more by requiring Congress to be explicit if it wants to detain U.S. citizens indefinitely. Subsection (b) clarifies that an authorization to use military force, a declaration of war, or any similar authority does not authorize the indefinite detention of a U.S. citizen or a Lawful Permanent Resident of the U.S., also known as a Green Card holder.

Some may ask why this legislation protects Green Card holders as well as citizens. And others may ask why the bill does not protect all persons'' apprehended in the U.S. from indefinite detention.

Let me make clear that I would support providing the protections in this amendment to all persons in the United States, whether lawfully or unlawfully present. But the question comes, is there enough political support to expand this amendment to cover others besides U.S. citizens and Green Card holders?

Wherever we draw the line on who should be covered by this legislation, I believe it violates fundamental American rights to allow anyone apprehended on U.S. soil to be detained without charge or trial.

The FBI and other law enforcement agencies have proven, time and again, that they are up to the challenge of detecting, stopping, arresting, and convicting terrorists found on U.S. soil, having successfully arrested, detained and convicted hundreds of these heinous people, both before and after 9/11.

Specifically, there have been 556 terrorism-related convictions in federal criminal court between 9/11 and the end of 2013, according to the Department of Justice.

Also, it is important to understand that suspected terrorists who may be in the U.S. illegally can be detained within the criminal justice system using at least the following 4 options:

They can be charged with a Federal or State crime and held; they can be held for violating immigration laws; they can be held as material witnesses as part of Federal grand jury proceedings; and they can be held for up to 6 months under Section 412 of the Patriot Act.

I want to be very clear about what this bill is and is not about. It is not about whether citizens such as Hamdi and Padilla, or others who would do us harm, should be captured, interrogated, incarcerated, and severely punished. They should be.

But what about an innocent American? What about someone in the wrong place at the wrong time? The beauty of our Constitution is that it gives everyone in the United States basic due process rights to a trial by a jury of their peers.

As President Obama said when referring to the indefinite detention of non-Americans at Guantanamo:

''Imagine a future—10 years from now or 20 years from now—when the United States of America is still holding people who have been charged with no crime on a piece of land that is not part of our country. . . . Is that who we are? Is that something that our Founders foresaw? Is that the America we want to leave to our children? Our sense of justice is stronger than that.''

The same questions could be asked of those who would indefinitely detain Americans arrested on U.S. soil.

Is that who we are?

Does that reflect the America we want to leave to our children?

Now is the time to clarify U.S. law to state unequivocally that the government cannot indefinitely detain American citizens and Green Card holders captured inside this country without trial or charge.

The Federal Government experimented with indefinite detention of U.S. citizens during World War II, a mistake we now recognize as a betrayal of our core values.

Let us not repeat it. I urge my colleagues to support this legislation.

By Mrs. FEINSTEIN (for herself and Mr. GRAHAM):

S. 27. A bill to make wildlife trafficking a predicate offense under racketeering and money laundering statutes and the Travel Act, to provide for the use for conservation purposes of amounts from civil penalties, fines, forfeitures, and restitution under such statutes based on such violations, and for other purposes; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, I rise today to introduce the Wildlife Trafficking Enforcement Act of 2015, which I authored along with my colleague Senator LINDSEY GRAHAM.

This bill will allow the Federal Government to crack down on poachers and transnational criminal organizations involved in the global trade in illegal wildlife products.

Wildlife trafficking has become a global crime that the State Department estimates is valued at between $8 to $10 billion annually. This ranks it as one of the most lucrative types of organized crime in the world, along with drug and human trafficking.

Besides being a major international crime, wildlife trafficking is a morally repugnant practice that threatens some of our world's most iconic species with extinction.

The most disturbing example is that of elephants and rhinoceroses. A recent study estimates that over 100,000 elephants were illegally poached in Africa from 2010 to 2012. At this rate, the African elephant is being killed faster than the species can reproduce, putting it at risk of being wiped off the face of the earth.

Most disturbingly, poachers are slaughtering very young and juvenile elephants for their tusks due to the record high demand for ivory in places like China and the United States.

But the illicit ivory trade is not just a threat to African elephants; it is also a problem for global security. The State Department reports that there is increasing evidence that wildlife trafficking is funding armed insurgencies like Al Shabaab and the Lord's Resistance Army. The illegal ivory trade fuels corruption and violence in Africa.

The rhinoceros has also been decimated by poaching due to record high demand for its horn. Conservation organizations estimate that hundreds of rhinoceroses are illegally slaughtered in Africa each year. It is deeply concerning that the poaching rate for rhinoceroses in Africa appears to be increasing.

Some populations of rhinoceroses are on the brink of extinction. The population of the Sumatran rhinoceros has plummeted by over 50 percent in the last two decades due to poaching, and it is estimated that only about 100 remain in existence. It is estimated that fewer than 10 Northern White Rhinoceroses remain alive in the wild.

The problem is not just confined to elephants and rhinoceroses. Tigers, leopards, endangered sea turtles, and many other wildlife species are being decimated by poaching.

At its core, this legislation increases criminal penalties for wildlife trafficking crimes. The federal government needs stiffer penalties in order to go after organized and high volume traffickers. The President asked for this authority in the National Strategy to Combat Wildlife Trafficking released last year.

Specifically, this bill makes violations of the Endangered Species Act, the African Elephant Conservation Act, and the Rhinoceros and Tiger Conservation Act that involve more than $10,000 of illegal wildlife products predicate offenses under the money laundering and racketeering statutes and the Travel Act.

Currently, each of these wildlife laws carries a maximum prison sentence of only one year for a violation. Under this bill, wildlife trafficking violations can be subject to up to a 20-year prison sentence, as well as increased fines and penalties of up to $500,000 for an offense.

These new penalties will allow the government to change the equation on wildlife crimes. Wildlife trafficking has increased at dramatic rates because the crime is high value and low risk due to weak penalties across the world. Under the new authorities, the Federal Government will have a full range of tools to prosecute the worst wildlife trafficking offenders and to put them behind bars with significant sentences. The new authorities will also act as a deterrent to the criminal organizations currently trafficking illicit wildlife products into and through the United States.

As one of the largest markets for products of illicit poaching in the world, the United States has a responsibility to step up and help to combat this scourge. With this legislation, the United States will set an example for other countries on the need for each country to strengthen penalties for wildlife trafficking. It is critical that other nations around the world with large markets for illicit wildlife products step up to tackle this global problem.

The Wildlife Trafficking Enforcement Act of 2015 will also allow fines, penalties, forfeitures, and restitution recovered through use of the bill's new authorities to be transferred to established conservation funds at the Departments of the Interior and of Commerce. This will enable the Federal Government to use the monetary penalties from a wildlife trafficking conviction to benefit the species that was harmed. Thus, the bill will both act to punish and deter criminals while supporting the conservation of those species that are directly harmed by poaching.

Addressing the issue of wildlife trafficking speaks to our values and morals as a Nation. We have a responsibility to help prevent these endangered species, which have existed for thousands of years, from becoming extinct in our lifetime. It is also clear that Federal law's weak penalties for wildlife crimes have been exploited by poachers and transnational criminals.

I therefore ask all of my colleagues on both sides of the aisle to work with me to enact this legislation this year. The stakes for endangered species like elephants, tigers, and rhinoceroses could not be higher. If we don't crack down on wildlife trafficking, we will be complicit in the slaughter.

By Mrs. FEINSTEIN (for herself, Mrs. BOXER, Mr. CARDIN, Mr. DURBIN, Mr. FRANKEN, Ms. KLOBUCHAR, Mr. LEAHY, Mrs. MURRAY, Mr. UDALL, Mr. WHITEHOUSE, and Mr. WYDEN):

S. 28. A bill to limit the use of cluster munitions; to the Committee on Foreign Relations.

Mrs. FEINSTEIN. Mr. President, I rise today with my colleagues Senators LEAHY, BOXER, DURBIN, KLOBUCHAR, MURRAY, UDALL, FRANKEN, WYDEN and WHITEHOUSE to introduce the Cluster Munitions Civilian Protection Act of 2015.

Our legislation places common sense restrictions on the use of cluster munitions. It prevents any funds from being spent to use cluster munitions that have a failure rate of more than one percent.

In addition, the rules of engagement must specify that: cluster munitions will only be used against clearly defined military targets; and will not be used where civilians are known to be present or in areas normally inhabited by civilians.

Our legislation also includes a national security waiver that allows the President to waive the prohibition on the use of cluster munitions with a failure rate of more than one percent if he determines it is vital to protect the security of the United States to do so.

However, if the President decides to waive the prohibition, he must issue a report to Congress within 30 days on the failure rate of the cluster munitions used and the steps taken to protect innocent civilians.

Cluster munitions are large bombs, rockets, or artillery shells that contain up to hundreds of small submunitions, or individual ''bomblets.''

They are intended for attacking enemy troop and armor formations spread over a wide area.

But, in reality, they pose a far more deadly threat to innocent civilians.

According to the Cluster Munitions Monitor, over the past fifty years, there have been 19,419 documented cluster munitions deaths in 31 nations. The estimated number of total cluster munitions casualties, however, is an astonishing 55,000 people.

While cluster munitions are intended for military targets, in actuality civilians have accounted for 94% of cluster munition casualties.

Death and injury from unexploded ordnance left behind by cluster munitions continues to kill civilians to this day. Today, 23 States remain contaminated by unexploded ordnance left from cluster munitions.

Last year, nine of these countries suffered casualties from unexploded ordnance. They were: Croatia, Iraq, Laos, Lebanon, Cambodia, South Sudan, Sudan, Syria and Vietnam.

More tragically, despite the risk they pose to civilians, cluster bombs continue to be used in conflicts.

Since July 2012, Syrian government forces have used cluster munitions in 10 of the country's 14 governates.

Human Rights Watch has documented that the Syrian government has used seven types of cluster munitions to date, six of which were manufactured in the former Soviet Union and the seventh of which is Egyptian-made.

In 2012 and 2013, the Landmine and Cluster Munition Monitor recorded 1,584 deaths from government-launched cluster munitions in Syria. Approximately 97 percent of the deaths directly linked to cluster munitions were civilians.

For the first time, Human Rights Watch has also obtained evidence that the Islamic State of Iraq and the Levant, known as ISIL, has also used cluster bombs.

According to witness testimony and photographic evidence, ISIL used cluster bombs on at least two occasions near the besieged town of Kobani.

Terrorist groups and other non-state actors would not be able to obtain and use cluster bombs if the world adopted the Oslo Treaty on Cluster munitions.

The Oslo Treaty bans the production, sale, stockpiling and use of cluster munitions. It came into effect in 2010 and to date has been ratified by 88 nations.

Under the Treaty, 22 nations have destroyed 1.16 million cluster bombs and nearly 140 million submunitions.

Unfortunately, the United States is neither a signatory nor state party to the Oslo Treaty.

In fact, the United States maintains a stockpile of 5.5 million cluster munitions containing 728 million submunitions. These bomblets have an estimated failure rate of between 5 and 15 percent.

Rather than adopting the increasing international consensus that cluster bombs should be banned, the Pentagon continues to assert that they are ''legitimate weapons with clear military utility in combat.''

I respectfully disagree. The benefit of using cluster bombs is outweighed by the continuing threat they pose to civilians long after the cessation of hostilities.

The Cluster Munitions Civilian Protection Act would immediately ban cluster bombs with unacceptable unexploded ordnance rates and in areas where civilians are known to be present.

Passing this legislation would move the United States closer to abiding by the requirements of the Oslo Treaty, which has been ratified by many of our allies, including the United Kingdom, France and Germany.

Since 2008 the Congress has banned the export of cluster munitions with a greater than one percent unexploded ordnance rate. While banning the export of these indiscriminate weapons was a positive first step, I strongly believe the United States can do better.

This body cannot compel the administration to sign the Oslo Treaty. However, we can surely take steps to abide by its spirit. Passing the Cluster Munitions Civilian Protection Act would do exactly that.

I urge my colleagues to support this bill.

By Mrs. FEINSTEIN (for herself, Ms. BALDWIN, Mr. BENNET, Mr. BLUMENTHAL, Mr. BOOKER, Mrs. BOXER, Mr. BROWN, Ms. CANTWELL, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Mr. COONS, Mr. DURBIN, Mr. FRANKEN, Mrs. GILLIBRAND, Mr. HEINRICH, Ms. HIRONO, Mr. KAINE, Mr. KING, Ms. KLOBUCHAR, Mr. LEAHY, Mr. MARKEY, Mrs. MCCASKILL, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mr. MURPHY, Mrs. MURRAY, Mr. PETERS, Mr. REED, Mr. REID, Mr. SANDERS, Mr. SCHATZ, Mr. SCHUMER, Mrs. SHAHEEN, Ms. STABENOW, Mr. TESTER, Mr. UDALL, Mr. WARNER, Ms. WARREN, Mr. WHITEHOUSE, and Mr. WYDEN):

S. 29. A bill to repeal the Defense of Marriage Act and ensure respect for State regulation of marriage; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, I rise today to introduce a bill to fully repeal the Defense of Marriage Act, DOMA, and ensure that married same-sex couples are accorded equal treatment by the federal government.

When I first introduced this bill in 2011, only 5 States and the District of Columbia recognized same-sex marriage.

Today, due to a combination of actions by legislatures, voters, and the courts, 36 States and D.C. recognize same-sex marriage. Florida joined the group just this week.

This progress is nothing short of amazing. Over 70 percent of Americans now live in a State where same-sex couples can marry.

The Supreme Court's landmark decision in United States v. Windsor, which struck down Section 3 of DOMA, has caused most federal agencies to accord equal rights and responsibilities to married same-sex couples.

But, despite this progress, the mission of ensuring full equality under Federal law for married same-sex couples is still unaccomplished.

This bill will accomplish that mission. It will strike DOMA from Federal law, and ensure that legally married same-sex couples are treated equally by the federal government, period.

I want to thank my 41 colleagues who have cosponsored this bill.

For my colleagues who have not yet supported this bill: if you believe that couples who are married should be treated that way by the federal government, you should cosponsor this bill. It is as simple as that.

Two major agencies, which serve millions and millions of Americans—the Social Security Administration and Department of Veterans Affairs—still deny benefits to some married couples depending on where the couple has lived. This bill would fix that problem.

Let me address Social Security first. An example of the discrimination married same-sex couples still face is the case of Kathy Murphy and Sara Barker. According to a legal filing, this couple married in Massachusetts and shared a ranch house in Texas for nearly 30 years.

In 2010, when Sara was 60 years old, she was diagnosed with an aggressive form of cancer. Sara went through several surgeries and chemotherapy, and Kathy was Sara's caregiver.

Sara passed away on March 10, 2012. As the complaint states: ''Kathy lost her partner of more than thirty years and the love of her life.''

In July 2014—over a year after she applied—Kathy's application for survivor's benefits from Social Security was denied because they lived in Texas together, and Texas does not recognize them as married.

This cost her an estimated $1,200 per month in Federal survivor's benefits.

Veterans and active-duty military personnel in same-sex marriages also are being denied equal treatment by the Department of Veterans Affairs.

Many of these brave individuals have served our country overseas or in war zones, but they may nevertheless be denied a huge range of benefits our nation grants to those who have served in the Armed Forces.

A court filing by the American Military Partners Association explains that:

> lesbian and gay veterans and their spouses and survivors . . . will be denied or disadvantaged in obtaining spousal veterans benefits such as disability compensation, death pension benefits, home loan guarantees, and rights to burial together in national cemeteries.

This is wrong. Our married gay and lesbian soldiers put their lives on the line for our country the same way other soldiers do.

We owe them the same debt of gratitude we owe to all other men and women who serve, and this bill would ensure that we fulfill that solemn obligation.

Continued discrimination against married same-sex couples is not limited to these benefits programs.

Other Federal laws are not part of programs administered by agencies, but they nevertheless are designed to protect families, including spouses.

Let me just give one example—Section 115 of Title 18. Among other things, this law makes it a crime to assault, kidnap, or murder a spouse of Federal law enforcement officer, with the intent to influence or retaliate against the officer.

This law protects the ability of people like FBI agents and federal prosecutors to serve the public knowing there is protection from violence against their families.

These agents and prosecutors investigate and prosecute people like drug kingpins, terrorists, and organized crime figures.

But, even today, it is not clear whether this vital protection for these officers covers those in lawful same-sex marriages everywhere in the country.

These public servants, who protect all of us, should not have to worry that they lack the full protection we provide to their colleagues—but that is the situation we confront today. This bill would fix it.

In addition, Section 2 of DOMA—which was not expressly addressed by the Supreme Court—continues to pose a serious risk to legal relief received by victims of crime and civil wrongs. This bill would repeal it.

Section 2 of DOMA is the full faith and credit provision of DOMA, and it has been the subject of many misconceptions.

When DOMA was enacted, some claimed Section 2 was designed to prevent the Full Faith and Credit Clause of the Constitution from forcing a state to recognize a marriage from another state.

But states have never needed permission from Congress to decide whether to recognize an out-of-state marriage. States have done that under their own laws, subject to other constitutional guarantees like the Equal Protection Clause.

Thus, repealing Section 2 of DOMA simply would not force a State, or a religious institution, to recognize a particular marriage.

While it is on the books, Section 2 may have a very serious impact: it may nullify legal relief awarded to victims of crime and other civil wrongs.

There is a general rule that the judgments of one state's courts will be enforced in another state's courts.

But Section 2 purports to exempt any ''right or claim arising from'' a same-sex marriage from this rule.

Imagine a woman killed by a drunk driver. Her surviving spouse would have a civil claim for wrongful death, or might obtain restitution in a criminal case.

But DOMA could prevent the court judgments in those cases from being enforced in the perpetrator's home State, allowing him to avoid the consequences of his actions.

The same problem could arise in numerous types of cases, such as assaults, batteries, and insurance claims.

Same-sex married couples are the only class of people who are burdened by this sort of legal disability, which hinders the court system from protecting them the same way that it does other citizens.

This is wrong, and it must be repealed.

As a Senator from California, I come to this bill with a strong sense of history.

In 1948, the California Supreme Court became the first state court to find that a ban on interracial marriage violates the Equal Protection Clause. At the time, 29 states still prohibited interracial marriage.

Prohibitions on interracial marriage then were eliminated in 13 other states, so that when the Supreme Court decided Loving v. Virginia in 1967, only 16 states retained bans on interracial marriage.

I very much hope that is where we are today on same-sex marriage.

People of all stripes have come to believe that loving and committed same-sex couples are worthy of the same dignity and respect other couples receive. Public opinion has changed dramatically, and 36 states now recognize same-sex marriage.

The tide has shifted, I hope irreversibly so.

But here, in Congress, we still have work to do.

We must end the discrimination married same-sex couples continue to face at the federal level.

DOMA remains on the books, where it should never have been placed. It could be revived by a different Supreme Court majority.

A future administration also could interpret other laws differently than this Administration has done, potentially restricting the availability of key benefits even further.

The solution is simple: pass this bill, which would eliminate DOMA and accord equal treatment under Federal law for married same-sex couples.

Let me again thank my cosponsors for joining me in this effort, and to urge my other colleagues on both sides of the aisle to support this legislation.

By Ms. COLLINS (for herself, Mr. DONNELLY, Ms. MURKOWSKI, and Mr. MANCHIN):

S. 30. A bill to amend the Internal Revenue Code of 1986 to modify the definition of full-time employee for purposes of the employer mandate in the Patient Protection and Affordable Care Act; to the Committee on Finance.

Ms. COLLINS. Mr. President, today, Senator DONNELLY and I are reintroducing the Forty Hours is Full-time Act to correct a serious flaw in the Affordable Care Act, also known as Obamacare, that is already causing workers to have their hours reduced and their pay cut. We are pleased to be joined in this bipartisan effort by Senators MURKOWSKI and MANCHIN. Our legislation would raise the threshold for ''full-time'' work in Obamacare to the standard 40 hours a week. This is consistent with the threshold for overtime eligibility under the Fair Labor Standards Act, and the common-sense understanding of ''full-time'' work.

Under Obamacare, an employee working just 30 hours a week is defined as ''full-time,'' a definition that is completely out-of-step with standard employment practices in the U.S. today. According to a survey published by the Bureau of Labor Statistics, the average American actually works 8.7 hours per day, which equates to roughly 44 hours a week. The Obamacare definition is nearly one-third lower than actual practice.

Similarly, the Obamacare definition of ''full-time'' employee is ten hours a week fewer than the 40 hours per week used by the GAO in its study of the budget and staffing required by the IRS to implement Obamacare. In that report, the GAO described a ''full-time equivalent'' as: ''a measure of staff hours equal to those of an employee who works 2,080 hours per year, or 40 hours per week. . . .'' Even the Office of Management and Budget recognizes that 30–hours is not ''full-time.'' A circular it issued to Federal agencies actually directs them to calculate staffing levels using more than 40 hours a week as a ''full-time equivalent.''

The effect of using the 30–hour a week threshold is to artificially drive-up the number of ''full-time'' workers for purposes of calculating the penalties to which employers are exposed under Obamacare. These penalties begin at $40,000 for businesses with 50 employees, plus $2,000 for each additional ''full-time equivalent'' employee. While these draconian penalities were scheduled to begin in January of last year, we have yet to feel their full effect because the Obama administration delayed their implementation through 2014, perhaps knowing the negative impact that will result. But that artificial grace-period expired January 1 for employers with 100 or more workers and will end for employers with between 50 and 99 employees in January of next year.

Needless to say, these penalties will force many employers to restrict or reduce the hours their employees are allowed to work, so they are no longer considered ''full-time'' for the purposes of the law. In addition, these penalties will discourage employers from growing or adding jobs, particularly those close to the 50–job trigger.

These are not hypothetical concerns. According to the Investors Business Daily, more than 450 employers had cut work hours or staffing levels in response to Obamacare as of September of last year. Employees of for-profit businesses are not the only ones threatened by Obamacare's illogical definition of full-time work. Public sector employees and those who work for non-profits are also affected.

I am concerned that educators, school employees, and students will be particularly hard hit. As the ASAA, the School Superintendents Association, explained in a letter in support of our bill, Obamacare's 30–hour threshold puts an ''undue burden on school systems across the Nation, many of [which] will struggle to staff their schools to meet their educational mission'' while complying with this requirement.

For example, the school superintendent of Bangor, ME, has told me that Obamacare will require that school district to reduce substitute teacher hours to make sure they don't exceed 29 hours a week. This will harm not only the substitute teachers who want and need more work, but it will also harm students by causing unnecessary disruption in the classroom.

Likewise, in Indiana, a county school district had to reduce the hours of part-time school bus drivers to make sure they do not work more than the 30–hour threshold. As a result, the school district has been forced to cut field trips and transportation to athletic events, and employees who used to work more than 30 hours total in two jobs have been forced to give up one of their jobs, hurting their financial security.

The 30–hour rule will also affect our Nation's institutions of higher education. According to the College and University Professional Association for Human Resources, Obamacare's full-time work definition has already caused 122 schools to announce new policies capping hours for students and faculty.

It is troubling that the 30–hour threshold will also harm delivery of home care services. The requirement will likely result in reduced access to needed services for some of our Nation's most vulnerable citizens: homebound seniors, individuals with disabilities, and recently discharged hospital and nursing home patients. Information provided to my office by the Home Care & Hospice Alliance of Maine shows that many of its member organizations will be forced to reduce work hours for employees or even to cease operations due to Obamacare's definition of ''full-time'' work. If that happens, hundreds of home care workers could lose their jobs, and a thousand seniors could lose access to home care services—in Maine alone.

Data from Maine's Medicaid program show that home care services are extremely cost-effective compared to alternatives. Thus, by making it harder for home care service providers to give their workers the hours they need,

Obamacare's definition of ''full-time'' work will end up reducing the home care services available to seniors, depriving them of care or forcing them into costlier care, driving up Federal costs.

Before I close, I would like to read a few lines from a letter I recently received from Randy Wadleigh, the owner of a well-known and much-loved restaurant institution in Maine called ''Governor's.'' Randy's letter sums up what Maine employers have always told me—their employees are the heart and souls of their businesses, and are the face of their companies to the public. As Randy puts it, businesses recognize the importance of their workers ''because without GREAT employees, businesses really don't have anything. [The 30–hour threshold] is hurting many of our employees. They don't understand it, they can't afford it and they just want to work more hours.''

The bipartisan bill we are introducing today will protect these workers by changing the definition of ''full-time'' work in the ACA to 40 hours a week, and making a corresponding change in the definition of ''full-time equivalent'' employee to 174 hours per month. This is a sensible definition in keeping with actual practice.

Among the many organizations that have endorsed our bill are: the College & University Professional Association for Human Resources, the National Association for Home Care & Hospice, the American Hotel & Lodging Association, the American Staffing Association, the Asian American Hotel Owners Association, the Associated Builders and Contractors, the Food Marketing Institute, the International Franchise Association, the National Association of Convenience Stores, the National Association of Health Underwriters, the American Rental Association, the National Association of Manufacturers, the National Association of Theatre Owners, the National Grocers Association, the National Federation of Independent Business, the National Restaurant Association, the National Retail Federation, the Retail Industry Leaders Association, ASAA, the School Superintendents Association, the Society for Human Resource Management, and the U.S. Chamber of Commerce.

Regardless of the varying views of Senators on the Affordable Care Act, surely we ought to be able to agree to fix this problem in the law that is hurting workers' paychecks and creating chaos for employers. I urge my colleagues to support this bipartisan legislation.

Mr. President, I ask unanimous consent that the letters of support be printed in the RECORD.

There being no objection, the material was ordered to be printed in the RECORD, as follows:

DECEMBER 19, 2014.

U.S. SENATE,
Washington, DC.

DEAR SENATOR COLLINS: On behalf of AASA: The School Superintendents Association, the Association of Educational Service Agencies, the National Rural Education Association and the National Rural Education Advocacy Coalition, I write to express our support for the Forty Hours is Full Time Act. Collectively, we represent public school superintendents, educational service agency administrators and school system leaders across the country, as well as our nation's rural schools and communities. We have followed closely the Affordable Care Act and stand ready to implement the law, and see your proposed legislation as one way to alleviate an unnecessarily burdensome regulation.

The Forty House is Full Time Act would change the definition of ''full time'' in the Affordable Care Act (ACA) to 40 hours per week and the number of hours counted toward a ''full time equivalent'' employee to 174 hours per month. The current ACA arbitrarily sets the bar for a full work week to 30 hours. This is inconsistent with how most Americans think: full-time is a 40 hour work week. The current definition causes confusion among employers who struggle to understand and comply with the new requirements, especially ones that are in conflict with long-standing practices built on the long-standing 40-hour work week premise.

We welcome the opportunity to ensure our employees have a positive work environment and we remain committed to providing a robust set of work benefits. We are concerned that the ACA, as currently written, puts additional, undue burden on school systems across the nation, many of whom will struggle to staff their schools to meet their educational mission while meeting the strict 30-hour regulation.

We applaud your continued leadership on this issue and look forward to seeing the Forty Hours is Full Time Act move forward.

Sincerely,

NOELLE M. ELLERSON,
AASA, The School Superintendents Association, Associate Executive Director, Policy & Advocacy, AESA, NREA and NREAC Legislative Liaison.

GOVERNOR'S RESTAURANT & BAKERY, GOVERNOR'S MANAGEMENT COMPANY, INC.,
Old Town, ME, December 22, 2014.

Re Definition of full time hours for the ACA

Hon. SUSAN COLLINS,
413 Dirksen Office Building,
Washington, DC.

DEAR SUSAN: Governor's Restaurants have been a staple in Maine since 1959. We have 6 locations and employ over 300 full and part time fine Maine folks while serving the great people of Maine. In general, we've had longevity because we pay attention to business and play by the rules dictated to us by local, state and federal agencies. In a nutshell, we take pride in doing the right things.

As our company's CEO, I recently conducted health insurance enrollment meetings at all of our locations for those 100+ eligible full time employees (as currently defined at 30 hours per week}. We are strongly in favor of changing the current definition of a full time employee from 30 hours to 40 hours . . . but not necessarily for the reason(s} you may think.

On behalf of our employees, we've just got to increase the threshold to 40 hours. Our offered health plan is defined as affordable and meets minimum standards as defined by the law, but when you express to the employee that they must contribute +/−$30 per week it becomes a heartfelt choice to pay for food, child care, rent OR pay for health care. On more than one occasion, I had employees (all of whom worked less than 32 hours per week} break down in tears because they just can't afford coverage. At the same time, those that worked over 38 hours, were more likely to participate and in fact could afford coverage.

When ACA was first introduced, I could never understand why the law defined 30 hours per week. Our company has had to make dramatic cuts in hours to some staffers to reduce exposure. But once again this hurts the employee.

So you see the obvious selfish thing to do as a business person is to cry foul about the health care law and how it affects our bottom line. But our company takes a bit of a different approach. We recognize the importance of our people because without GREAT employees, business owners really don't have anything. This law is hurting many of our employees. They don't understand it, they can't afford it and they just want to work more hours. 30 hours is too restrictive to them. 40 would be better for them and ultimately for business and such change would benefit both the employee and the employer.

Thanks for your great work in Washington.

Sincerely,

RANDY WADLEIGH,
Owner and CEO,
Governor's Management Company.

By Mrs. FEINSTEIN (for herself, Mr. UDALL, Mr. BLUMENTHAL, Ms. KLOBUCHAR, Mr. GRASSLEY, and Ms. HEITKAMP):

S. 32. A bill to provide the Department of Justice with additional tools to target extraterritorial drug trafficking activity, and for other purposes; to the Committee on Finance.

Mrs. FEINSTEIN. Mr. President, I am pleased to introduce the Transnational Drug Trafficking Act of 2015 with my colleagues and friends, Senators CHARLES GRASSLEY, RICHARD BLUMENTHAL, HEIDI HEITKAMP, AMY KLOBUCHAR and TOM UDALL.

This bill, which passed the Senate unanimously in the last Congress, supports the Obama Administration's Strategy to Combat Transnational Organized Crime by providing the Department of Justice with crucial tools to combat the international drug trade. As drug traffickers find new and innovative ways to avoid prosecution, we cannot allow them to exploit loopholes because our laws lag behind.

This legislation has three main components. First, it puts in place penalties for extraterritorial drug trafficking activity when individuals have reasonable cause to believe that illegal drugs will be trafficked into the United States. Current law says that drug traffickers must know that illegal drugs will be trafficked into the United States and this legislation would lower the knowledge threshold to reasonable cause to believe.

The Department of Justice has informed my office that, it sees drug traffickers from countries like Colombia, Bolivia and Peru who produce cocaine but then outsource transportation of the cocaine to the United States to violent Mexican drug trafficking organizations. Under current law, our ability to prosecute source-nation traffickers from these countries is limited since there is often no direct evidence of their knowledge that illegal drugs were intended for the United

States. But let me be clear: drugs produced in these countries fuel violent crime throughout the Western Hemisphere as well as addiction and death in the United States.

Second, this bill puts in place penalties for precursor chemical producers from foreign countries, such as those producing pseudoephedrine used for methamphetamine, who illegally ship precursor chemicals into the United States knowing that these chemicals will be used to make illegal drugs.

Third, this bill makes a technical fix to the Counterfeit Drug Penalty Enhancement Act, which increases penalties for the trafficking of counterfeit drugs. The fix, requested by the Department of Justice, puts in place a ''knowing'' requirement which was unintentionally left out of the original bill. The original bill makes the mere sale of a counterfeit drug a Federal felony offense regardless of whether the seller knew the drug was counterfeit. Under the original bill, a pharmacist could be held criminally liable if he or she unwittingly sold counterfeit drugs to a customer. Adding a ''knowing'' requirement corrects this problem.

As Co-Chair of the Senate Caucus on International Narcotics Control and as a public servant who has focused on narcotics issues for many years, I know that we cannot sit idly by as drug traffickers find new ways to circumvent our laws. The illegal drug trade is constantly evolving and it is critical that our legal framework keeps pace. We must provide the Department of Justice with all of the tools it needs to prosecute drug kingpins both here at home and abroad.

By Mrs. FEINSTEIN (for herself, Mrs. SHAHEEN, Ms. AYOTTE, Mr. SCHUMER, Mr. BLUMENTHAL, Ms. KLOBUCHAR, Mrs. BOXER, Mr. PORTMAN, and Mr. WHITEHOUSE):

S. 36. A bill to address the continued threat posed by dangerous synthetic drugs by amending the Controlled Substances Act relating to controlled substance analogues; to the Committee on the Judiciary.

Mrs. FEINSTEIN. Mr. President, I am pleased to introduce the Protecting Our Youth from Dangerous Synthetic Drugs Act of 2015, with my colleagues, Senators KELLY AYOTTE, RICHARD BLUMENTHAL, BARBARA BOXER, AMY KLOBUCHAR, ROB PORTMAN, CHARLES SCHUMER, JEANNE SHAHEEN and SHELDON WHITEHOUSE. This legislation addresses the significant harm that synthetic drugs cause our communities.

When Congress outlawed several synthetic drugs in 2012, traffickers did not stop producing them. Instead, they slightly altered the drugs' chemical structure to skirt the law, producing ''controlled substance analogues'' which are dangerous, chemically similar to Schedule I substances, and mimic the effects of drugs like ecstasy, cocaine, PCP, and LSD.

Manufacturers of synthetic drugs often prey upon youth, selling products such as Scooby Snax, Potpourri, and Joker Herbal. But make no mistake: these products are dangerous. In the first ten months of 2014 alone, poison centers nationwide responded to approximately 3,900 calls related to synthetic drugs.

Under current law, determining whether a substance meets the vague legal criteria of a ''controlled substance analogue'' results in a ''battle of experts'' inside the courtroom. Significantly, a substance ruled to be an analogue in one case is not automatically an analogue in a second case.

The Protecting Our Youth from Dangerous Synthetics Drug Act addresses these issues. This bill creates an interagency committee of scientists that will establish and maintain an administrative list of controlled substance analogues. The Committee is structured to respond quickly when new synthetic drugs enter the market.

Because virtually all of these controlled substance analogues arrive in bulk from outside our borders, the bill makes it illegal to import a controlled substance analogue on the list unless the importation is intended for nonhuman use.

Finally, the bill directs the U.S. Sentencing Commission to review, and if appropriate, amend the Federal sentencing guidelines for violations of the Controlled Substances Act pertaining to controlled substance analogues.

In sum, this bill sends a strong message to drug traffickers who attempt to circumvent our Nation's laws: no matter how you alter the chemical structure of synthetic drugs to try to get around the law, we will ban these substances to keep them away from our children.

By Mr. REED (for himself and Mr. BROWN):

S. 37. A bill to amend the Elementary and Secondary Education Act of 1965 to provide for State accountability in the provision of access to the core resources for learning, and for other purposes; to the Committee on Health, Education, Labor, and Pensions.

Mr. REED. Mr. President, today, I am pleased to reintroduce the Core Opportunity Resources for Equity and Excellence Act with my colleague Senator Brown. I would also like to thank Representative Fudge for introducing companion legislation in the House of Representatives. This year, we will be commemorating the 50th anniversary of the Elementary and Secondary Education Act. Now is the time to reaffirm our commitment to educational equity, and in the words of President Johnson ''bridge the gap between helplessness and hope.''

As we embark upon reauthorizing this landmark legislation, we must ensure that our accountability systems in education measure our progress towards equity and excellence for all children. The CORE Act will help advance that goal by requiring states to include fair and equitable access to the core resources for learning in their accountability systems.

More than 60 years after the landmark decision of Brown v. Board of Education, one of the great challenges still facing this nation is stemming the tide of rising inequality. We have seen the rich get richer while middle class and low-income families have lost ground. We see disparities in opportunity starting at birth and growing over a lifetime. With more than one in five school-aged children living in families in poverty, according to Department of Education statistics, we cannot afford nor should we tolerate a public education system that fails to provide resources and opportunities for the children who need them the most.

We should look to hold our education system accountable for results and resources. And we know that resources matter. A recent study by researchers at Northwestern University and the University of California at Berkeley found that increasing per pupil spending by 20 percent for low-income students over the course of their K–12 schooling results in greater high school completion, higher levels of educational attainment, increased lifetime earnings, and reduced adult poverty.

In addition to funding, there are other opportunity gaps that we need to address. Survey data from the Department of Education's Office of Civil Rights show troubling disparities, such as the fact that Black, Latino, American Indian, Native Alaskan students, and English learners attend schools with higher concentrations of inexperienced teachers; nationwide, one in five high schools lacks a school counselor; and between 10 and 25 percent of high schools across the nation do not offer more than one of the core courses in the typical sequence of high school math and science, such as Algebra I and II, geometry, biology, and chemistry.

We are reintroducing the CORE Act to ensure that equity remains at the center of our federal education policy. Specifically, the CORE Act will require state accountability plans and state and district report cards to include measures on how well the state and districts provide the core resources for learning to their students. These resources include: high quality instructional teams, including licensed and profession-ready teachers, principals, school librarians, counselors, and education support staff; rigorous academic standards and curricula that lead to college and career readiness by high school graduation and are accessible to all students, including students with disabilities and English learners; equitable and instructionally appropriate class sizes; up-to-date instructional materials, technology, and supplies; effective school library programs; school facilities and technology, including physically and environmentally sound buildings and well-equipped instructional space, including laboratories and libraries; specialized instructional support teams, such as counselors, social

workers, nurses, and other qualified professionals; and effective family and community engagement programs.

These are things that parents in well-resourced communities expect and demand. We should do no less for children in economically disadvantaged communities. We should do no less for minority students or English learners or students with disabilities.

Under the CORE Act, States that fail to make progress on resource equity would not be eligible to apply for competitive grants authorized under the Elementary and Secondary Education Act. For school districts identified for improvement, the State would have to identify gaps in access to the core resources for learning and develop an action plan in partnership with the local school district to address those gaps.

The CORE Act is supported by a diverse group of organizations, including the American Association of Colleges of Teacher Education, American Federation of Teachers, American Library Association, Coalition for Community Schools, Education Law Center, Fair Test, First Focus Campaign for Children, League of United Latin American Citizens, National Association of School Psychologists, National Education Association, National Latino Education Research and Policy Project, Opportunity Action, Public Advocacy for Kids, Public Advocates, Inc., Southeast Asia Resource Action Center, and the Texas Center for Education Policy.

Working with this strong group of advocates and my colleagues in the Senate and in the House, it is my hope that we can build the support to include the CORE Act in the reauthorization of the Elementary and Secondary Education Act. I urge my colleagues to join us by cosponsoring this legislation.

SUBMITTED RESOLUTIONS

SENATE RESOLUTION 1—INFORMING THE PRESIDENT OF THE UNITED STATES THAT A QUORUM OF EACH HOUSE IS ASSEMBLED

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 1

Resolved, That a committee consisting of two Senators be appointed to join such committee as may be appointed by the House of Representatives to wait upon the President of the United States and inform him that a quorum of each House is assembled and that the Congress is ready to receive any communication he may be pleased to make.

SENATE RESOLUTION 2—INFORMING THE HOUSE OF REPRESENTATIVES THAT A QUORUM OF THE SENATE IS ASSEMBLED

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 2

Resolved, That the Secretary inform the House of Representatives that a quorum of the Senate is assembled and that the Senate is ready to proceed to business.

SENATE RESOLUTION 3—TO ELECT ORRIN G. HATCH, A SENATOR FROM THE STATE OF UTAH, TO BE PRESIDENT PRO TEMPORE OF THE SENATE OF THE UNITED STATES

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 3

Resolved, That Orrin G. Hatch, a Senator from the State of Utah, be, and he is hereby, elected President of the Senate pro tempore.

SENATE RESOLUTION 4—NOTIFYING THE PRESIDENT OF THE UNITED STATES OF THE ELECTION OF A PRESIDENT PRO TEMPORE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 4

Resolved, That the President of the United States be notified of the election of the Honorable Orrin G. Hatch as President of the Senate pro tempore.

SENATE RESOLUTION 5—NOTIFYING THE HOUSE OF REPRESENTATIVES OF THE ELECTION OF A PRESIDENT PRO TEMPORE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 5

Resolved, That the House of Representatives be notified of the election of the Honorable Orrin G. Hatch as President of the Senate pro tempore.

SENATE RESOLUTION 6—EXPRESSING THE THANKS OF THE SENATE TO THE HONORABLE PATRICK J. LEAHY FOR HIS SERVICE AS PRESIDENT PRO TEMPORE OF THE UNITED STATES SENATE AND TO DESIGNATE SENATOR LEAHY AS PRESIDENT PRO TEMPORE EMERITUS OF THE UNITED STATES SENATE

Mr. MCCONNELL (for Mr. REID of Nevada) submitted the following resolution; which was considered and agreed to:

S. RES. 6

Resolved, That the United States Senate expresses its deepest gratitude to Senator Patrick J. Leahy for his dedication and commitment during his service to the Senate as the President Pro Tempore.

Further, as a token of appreciation of the Senate for his long and faithful service, Senator Patrick J. Leahy is hereby designated President Pro Tempore Emeritus of the United States Senate.

SENATE RESOLUTION 7—FIXING THE HOUR OF DAILY MEETING OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 7

Resolved, That the daily meeting of the Senate be 12 o'clock meridian unless otherwise ordered.

SENATE RESOLUTION 8—ELECTING JULIE ADAMS AS SECRETARY OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 8

Resolved, That Julie E. Adams of Iowa be, and she is hereby, elected Secretary of the Senate.

SENATE RESOLUTION 9—NOTIFYING THE PRESIDENT OF THE UNITED STATES OF THE ELECTION OF THE SECRETARY OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 9

Resolved, That the President of the United States be notified of the election of the Honorable Julie E. Adams as Secretary of the Senate.

SENATE RESOLUTION 10—NOTIFYING THE HOUSE OF REPRESENTATIVES OF THE ELECTION OF THE SECRETARY OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 10

Resolved, That the House of Representatives be notified of the election of the Honorable Julie E. Adams as Secretary of the Senate.

SENATE RESOLUTION 11—ELECTING FRANK LARKIN AS SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 11

Resolved, That Frank J. Larkin of Maryland be, and he is hereby, elected Sergeant at Arms and Doorkeeper of the Senate.

SENATE RESOLUTION 12—NOTIFYING THE PRESIDENT OF THE UNITED STATES OF THE ELECTION OF A SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 12

Resolved, That the President of the United States be notified of the election of the Honorable Frank J. Larkin as Sergeant at Arms and Doorkeeper of the Senate.

SENATE RESOLUTION 13—NOTIFYING THE HOUSE OF REPRESENTATIVES OF THE ELECTION OF A SERGEANT AT ARMS AND DOORKEEPER OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 13

Resolved, That the House of Representatives be notified of the election of the Honorable Frank J. Larkin as Sergeant at Arms and Doorkeeper of the Senate.

SENATE RESOLUTION 14—ELECTING LAURA C. DOVE, OF VIRGINIA, AS SECRETARY FOR THE MAJORITY OF THE SENATE

Mr. MCCONNELL submitted the following resolution; which was considered and agreed to:

S. RES. 14

Resolved, That Laura C. Dove of Virginia be, and she is hereby, elected Secretary for the Majority of the Senate.

SENATE RESOLUTION 15—ELECTING GARY B. MYRICK, OF VIRGINIA, AS SECRETARY FOR THE MINORITY OF THE SENATE

Mr. DURBIN (for Mr. REID of Nevada) submitted the following resolution; which was considered and agreed to:

S. RES. 15

Resolved, That Gary B. Myrick of Virginia be, and he is hereby, elected Secretary for the Minority of the Senate.

SENATE RESOLUTION 16—TO MAKE EFFECTIVE APPOINTMENT OF SENATE LEGAL COUNSEL

Mr. MCCONNELL (for himself and Mr. REID of Nevada) submitted the following resolution; which was considered and agreed to:

S. RES. 16

That the appointment of Patricia Mack Bryan of Virginia to be Senate Legal Counsel, made by the President pro tempore this day, is effective as of January 3, 2015, and the term of service of the appointee shall expire at the end of the One Hundred Fifteenth Congress.

SENATE RESOLUTION 17—TO MAKE EFFECTIVE APPOINTMENT OF DEPUTY SENATE LEGAL COUNSEL

Mr. MCCONNELL (for himself and Mr. REID of Nevada) submitted the following resolution; which was considered and agreed to:

S. RES. 17

That the appointment of Morgan J. Frankel of the District of Columbia to be Deputy Senate Legal Counsel, made by the President pro tempore this day, is effective as of January 3, 2015, and the term of service of the appointee shall expire at the end of the One Hundred Fifteenth Congress.

SENATE RESOLUTION 18—MAKING MAJORITY PARTY APPOINTMENTS FOR THE 114TH CONGRESS

Mr. MCCONNELL submitted the following resolution; which was submitted and read:

S. RES. 18

Resolved, That the following be the majority membership on the following committees for the remainder of the 114th Congress, or until their successors are appointed:

COMMITTEE ON AGRICULTURE, NUTRITION, AND FORESTRY: Mr. Cochran, Mr. McConnell, Mr. Roberts, Mr. Boozman, Mr. Hoeven, Mr. Perdue, Mrs. Ernst, Mr. Tillis, Mr. Sasse, Mr. Grassley, Mr. Thune.

COMMITTEE ON APPROPRIATIONS: Mr. Cochran, Mr. McConnell, Mr. Shelby, Mr. Alexander, Ms. Collins, Ms. Murkowski, Mr. Graham, Mr. Kirk, Mr. Blunt, Mr. Moran, Mr. Hoeven, Mr. Boozman, Mrs. Capito, Mr. Cassidy, Mr. Lankford, Mr. Daines.

COMMITTEE ON ARMED SERVICES: Mr. McCain, Mr. Inhofe, Mr. Sessions, Mr. Wicker, Ms. Ayotte, Mrs. Fischer, Mr. Cotton, Mr. Rounds, Mrs. Ernst, Mr. Tillis, Mr. Sullivan, Mr. Lee, Mr. Graham, Mr. Cruz.

COMMITTEE ON BANKING, HOUSING, AND URBAN AFFAIRS: Mr. Shelby, Mr. Crapo, Mr. Corker, Mr. Vitter, Mr. Toomey, Mr. Kirk, Mr. Heller, Mr. Scott, Mr. Sasse, Mr. Cotton, Mr. Rounds, Mr. Moran.

COMMITTEE ON THE BUDGET: Mr. Grassley, Mr. Enzi, Mr. Sessions, Mr. Crapo, Mr. Graham, Mr. Portman, Mr. Toomey, Mr. Johnson, Ms. Ayotte, Mr. Wicker, Mr. Corker, Mr. Perdue.

COMMITTEE ON COMMERCE, SCIENCE, AND TRANSPORTATION: Mr. Thune, Mr. Wicker, Mr. Blunt, Mr. Rubio, Ms. Ayotte, Mr. Cruz, Mrs. Fischer, Mr. Moran, Mr. Sullivan, Mr. Johnson, Mr. Heller, Mr. Gardner, Mr. Daines.

COMMITTEE ON ENERGY AND NATURAL RESOURCES: Ms. Murkowski, Mr. Barrasso, Mr. Risch, Mr. Lee, Mr. Flake, Mr. Daines, Mr. Cassidy, Mr. Gardner, Mr. Portman, Mr. Hoeven, Mr. Alexander, Mrs. Capito.

COMMITTEE ON ENVIRONMENT AND PUBLIC WORKS: Mr. Inhofe, Mr. Vitter, Mr. Barrasso, Mrs. Capito, Mr. Crapo, Mr. Boozman, Mr. Sessions, Mr. Wicker, Mrs. Fischer, Mr. Rounds, Mr. Sullivan.

COMMITTEE ON FINANCE: Mr. Hatch, Mr. Grassley, Mr. Crapo, Mr. Roberts, Mr. Enzi, Mr. Cornyn, Mr. Thune, Mr. Burr, Mr. Isakson, Mr. Portman, Mr. Toomey, Mr. Coats, Mr. Heller, Mr. Scott.

COMMITTEE ON FOREIGN RELATIONS: Mr. Corker, Mr. Risch, Mr. Rubio, Mr. Johnson, Mr. Flake, Mr. Gardner, Mr. Perdue, Mr. Isakson, Mr. Paul, Mr. Barrasso.

COMMITTEE ON HEALTH, EDUCATION, LABOR, AND PENSIONS: Mr. Enzi, Mr. Alexander, Mr. Burr, Mr. Isakson, Mr. Paul, Ms. Collins, Ms. Murkowski, Mr. Kirk, Mr. Scott, Mr. Hatch, Mr. Roberts, Mr. Cassidy.

COMMITTEE ON HOMELAND SECURITY AND GOVERNMENTAL AFFAIRS: Mr. McCain, Mr. Johnson, Mr. Portman, Mr. Paul, Mr. Lankford, Ms. Ayotte, Mr. Enzi, Mrs. Ernst, Mr. Sasse.

COMMITTEE ON THE JUDICIARY: Mr. Hatch, Mr. Grassley, Mr. Sessions, Mr. Graham, Mr. Cornyn, Mr. Lee, Mr. Cruz, Mr. Vitter, Mr. Flake, Mr. Perdue, Mr. Tillis.

COMMITTEE ON RULES AND ADMINISTRATION: Mr. Alexander, Mr. McConnell, Mr. Cochran, Mr. Roberts, Mr. Shelby, Mr. Blunt, Mr. Cruz, Mrs. Capito, Mr. Boozman, Mr. Wicker.

COMMITTEE ON SMALL BUSINESS AND ENTREPRENEURSHIP: Mr. Vitter, Mr. Risch, Mr. Rubio, Mr. Paul, Mr. Scott, Mrs. Fischer, Mr. Gardner, Mrs. Ernst, Ms. Ayotte, Mr. Enzi.

COMMITTEE ON VETERANS' AFFAIRS: Mr. Isakson, Mr. Moran, Mr. Boozman, Mr. Heller, Mr. Cassidy, Mr. Rounds, Mr. Tillis, Mr. Sullivan.

COMMITTEE ON INDIAN AFFAIRS: Mr. McCain, Ms. Murkowski, Mr. Barrasso, Mr. Hoeven, Mr. Lankford, Mr. Daines, Mr. Crapo, Mr. Moran.

SELECT COMMITTEE ON ETHICS: Mr. Roberts, Mr. Isakson, Mr. Risch.

SELECT COMMITTEE ON INTELLIGENCE: Mr. Burr, Mr. Risch, Mr. Coats, Mr. Rubio, Ms. Collins, Mr. Blunt, Mr. Lankford, Mr. Cotton.

SPECIAL COMMITTEE ON AGING: Ms. Collins, Mr. Hatch, Mr. Kirk, Mr. Flake, Mr. Scott, Mr. Corker, Mr. Heller, Mr. Cotton, Mr. Perdue, Mr. Tillis, Mr. Sasse.

JOINT ECONOMIC COMMITTEE: Mr. Coats, Mr. Lee, Mr. Cotton, Mr. Sasse, Mr. Cruz, Mr. Cassidy.

SENATE RESOLUTION 19—RELATIVE TO THE DEATH OF EDWARD W. BROOKE, III, FORMER UNITED STATES SENATOR FOR THE COMMONWEALTH OF MASSACHUSETTS

Mr. MCCONNELL (for himself, Mr. REID of Nevada, Ms. WARREN, Mr. MARKEY, Mr. ALEXANDER, Ms. AYOTTE, Ms. BALDWIN, Mr. BARRASSO, Mr. BENNET, Mr. BLUMENTHAL, Mr. BLUNT, Mr. BOOKER, Mr. BOOZMAN, Mrs. BOXER, Mr. BROWN, Mr. BURR, Ms. CANTWELL, Mrs. CAPITO, Mr. CARDIN, Mr. CARPER, Mr. CASEY, Mr. CASSIDY, Mr. COATS, Mr. COCHRAN, Ms. COLLINS, Mr. COONS, Mr. CORKER, Mr. CORNYN, Mr. COTTON, Mr. CRAPO, Mr. CRUZ, Mr. DAINES, Mr. DONNELLY, Mr. DURBIN, Mr. ENZI, Mrs. ERNST, Mrs. FEINSTEIN, Mrs. FISCHER, Mr. FLAKE, Mr. FRANKEN, Mr. GARDNER, Mrs. GILLIBRAND, Mr. GRAHAM, Mr. GRASSLEY, Mr. HATCH, Mr. HEINRICH, Ms. HEITKAMP, Mr. HELLER, Ms. HIRONO, Mr. HOEVEN, Mr. INHOFE, Mr. ISAKSON, Mr. JOHNSON, Mr. KAINE, Mr. KING, Mr. KIRK, Ms. KLOBUCHAR, Mr. LANKFORD, Mr. LEAHY, Mr. LEE, Mr. MANCHIN, Mr. MCCAIN, Mrs. MCCASKILL, Mr. MENENDEZ, Mr. MERKLEY, Ms. MIKULSKI, Mr. MORAN, Ms. MURKOWSKI, Mr. MURPHY, Mrs. MURRAY, Mr. NELSON, Mr. PAUL, Mr. PERDUE, Mr. PETERS, Mr. PORTMAN, Mr. REED of Rhode Island, Mr. RISCH, Mr. ROBERTS, Mr. ROUNDS, Mr. RUBIO, Mr. SANDERS, Mr. SASSE, Mr. SCHATZ, Mr. SCHUMER, Mr. SCOTT, Mr. SESSIONS, Mrs. SHAHEEN, Mr. SHELBY, Ms. STABENOW, Mr. SULLIVAN, Mr. TESTER, Mr. THUNE, Mr. TILLIS, Mr. TOOMEY, Mr. UDALL, Mr. VITTER, Mr. WARNER, Mr. WHITEHOUSE, Mr. WICKER, and Mr. WYDEN) submitted the following resolution; which was considered and agreed to:

S. RES. 19

Whereas Edward W. Brooke, III, was born in Washington, D.C. in 1919, graduated from Howard University in 1941 and Boston University Law College in 1948;

Whereas Edward W. Brooke, III, served in the United States Army during World War II, earning the rank of Captain, a Bronze Star, and a Distinguished Service Award;

Whereas Edward W. Brooke, III, was elected to the office of Attorney General of the Commonwealth of Massachusetts in 1962 and served as the first African American attorney general in the United States;

Whereas Edward W. Brooke, III, was first elected to the United States Senate in 1966 and served two terms as a Senator from the Commonwealth of Massachusetts;

Whereas Edward W. Brooke, III, was the first African American to be elected to the Senate by popular vote;

Whereas Edward W. Brooke, III, was a pioneer and champion of civil rights;

Whereas Edward W. Brooke, III, was awarded the Presidential Medal of Freedom on June 23, 2004, and the Congressional Gold Medal on July 1, 2008: Now, therefore, be it

Resolved, That the Senate has heard with profound sorrow and deep regret the announcement of the death of the Edward W. Brooke, III, former member of the United States Senate.

Resolved, That the Secretary of the Senate communicate these resolutions to the House of Representatives and transmit an enrolled copy thereof to the family of the deceased.

Resolved, That when the Senate adjourns today, it stand adjourned as a further mark of respect to the memory of the Edward W. Brooke, III.

SENATE RESOLUTION 20—LIMITING CERTAIN USES OF THE FILIBUSTER IN THE SENATE TO IMPROVE THE LEGISLATIVE PROCESS

Mr. UDALL (for himself, Mr. MERKLEY, Mr. BLUMENTHAL, Mr. WHITEHOUSE, Mr. HEINRICH, Mrs. SHAHEEN, Mr. FRANKEN, and Ms. KLOBUCHAR) submitted the following resolution; which was submitted and read:

S. RES. 20

Resolved,

SECTION 1. MOTIONS TO PROCEED.

Paragraph 1 of rule XXII of the Standing Rules of the Senate is amended by inserting at the end the following new paragraph:

''Other than a motion made during the first 2 hours of a new legislative day as described in paragraph 2 of rule VIII, consideration of a motion to proceed to the consideration of any debatable matter, including debate on any debatable motion or appeal in connection therewith, shall be limited to not more than 2 hours, to be equally divided between, and controlled by, the Majority Leader and the Minority Leader or their designees. This paragraph shall not apply to motions considered nondebatable by the Senate pursuant to rule or precedent.''.

SEC. 2. EXTENDED DEBATE.

Paragraph 2 of rule XXII of the Standing Rules of the Senate is amended by striking the second undesignated paragraph and inserting the following:

''Is it the sense of the Senate that the debate shall be brought to a close? And if that question shall be decided in the affirmative by three-fifths of the Senators duly chosen and sworn, except on a measure or motion to amend the Senate rules, in which case the necessary affirmative vote shall be two-thirds of the Senators voting, a quorum being present, then cloture has been invoked.

''If that question is on disposition of a bill or joint resolution, a resolution or concurrent resolution, a substitute amendment for a bill or resolution, a motion with respect to amendments between the Houses, a conference report, or advice and consent to a nomination or treaty, and if such question shall be decided in the affirmative by a majority of Senators voting, a quorum being present, but less than three-fifths of the Senators duly chosen and sworn (or less than two-thirds of the Senators voting, a quorum being present, in the case of a measure or motion to amend the Senate rules), then it shall be in order for the Majority Leader (or his or her designee) to initiate a period of extended debate upon the measure, motion, or other matter pending before the Senate, or the unfinished business, in relation to which the motion to close debate was offered, in which case the period of extended debate shall begin one hour later.

''During a period of extended debate, such measure, motion, or other matter pending before the Senate, or the unfinished business, shall be the unfinished business to the exclusion of all other business, except on action or motion by the Majority Leader (or his or her designee).

''During a period of extended debate it shall not be in order for a Senator other than the Majority Leader (or his or her designee) to raise a question as to the presence of a quorum, except immediately prior to a vote or when it has been more than forty-eight hours since a quorum was demonstrated. If upon a roll call it shall be ascertained that a quorum is not present, then the Senate shall adjourn to a time previously decided by order of the Senate or, if no such time has been established, then to a time certain determined by the Majority Leader, after consultation with the Minority Leader.

''During a period of extended debate a motion to adjourn or recess shall not be in order, unless made by the Majority Leader (or his or her designee) or if the absence of a quorum has been demonstrated. Notwithstanding paragraph 1 of rule XIX, there shall be no limit to the number of times a Senator may speak upon any question during a period of extended debate.

''If, during the course of extended debate, the Presiding Officer puts any question to a vote, the Majority Leader (or his or her designee) may postpone any such vote, which shall occur at a time determined by the Majority Leader, after consultation with the Minority Leader, but not later than the time at which a quorum is next demonstrated.

''If at any time during a period of extended debate no Senator seeks recognition, then the Presiding Officer shall inquire as to whether any Senator seeks recognition. If no Senator seeks recognition, then the Presiding Officer shall again put the question as to bringing debate to a close (and the Majority Leader or his or her designee may postpone such vote in accordance with the preceding paragraph), which shall be decided without further debate or intervening motion. If that question shall be decided in the affirmative by a majority of Senators voting, a quorum being present, then cloture has been invoked and the period of extended debate has ended. If that question shall be decided in the negative by a majority of Senators voting, a quorum being present, then the period of extended debate has ended.

''If cloture is invoked, then the measure, motion, other matter pending before the Senate, or the unfinished business, in relation to which the motion to close debate was offered, shall remain the unfinished business to the exclusion of all other business until disposed of.''.

SEC. 3. POST-CLOTURE DEBATE ON NOMINATIONS.

Paragraph 2 of rule XXII of the Standing Rules of the Senate is amended by striking ''After no more than thirty hours of consideration of the measure, motion, or other matter on which cloture has been invoked, the Senate shall proceed, without any further debate on any question, to vote on'' in the fourth undesignated paragraph and inserting ''After no more than 30 hours of consideration of the measure, motion, or other matter on which cloture has been invoked, except on the question of advice and consent to a nomination other than a nomination to a position as Justice of the Supreme Court in which case consideration shall be limited to 2 hours, the Senate shall proceed, without any further debate on any question, to vote on''.

SEC. 4. CONFERENCE MOTIONS.

Rule XXVIII of the Standing Rules of the Senate is amended by—

(1) redesignating paragraphs 1 through 9 as paragraphs 2 through 10, respectively;

(2) redesignating any reference to paragraphs 1 through 9 as paragraph 2 through 10, respectively; and

(3) inserting before paragraph 2, as redesignated, the following:

''1. A nondivisible motion to disagree to a House amendment or insist upon a Senate amendment, to request a committee of conference with the House or to agree to a request by the House for a committee of conference, and to authorize the Presiding Officer to appoint conferees (or to appoint conferees), is in order and consideration of such a motion, including consideration of any debatable motion or appeal in connection therewith, shall be limited to not more than 2 hours.''.

SEC. 5. RIGHT TO OFFER AMENDMENTS.

Paragraph 2 of rule XXII of the Standing Rules of the Senate is amended by inserting at the end the following:

''After debate has concluded under this paragraph but prior to final disposition of the pending matter, the Majority Leader and the Minority Leader may each offer not to exceed 3 amendments identified as leadership amendments if they have been timely filed under this paragraph and are germane to the matter being amended. Debate on a leadership amendment shall be limited to 1 hour equally divided. A leadership amendment may not be divided.''.

RESOLUTION OVER, UNDER THE RULE—S. RES. 18

Mr. MCCONNELL. Mr. President, I have a resolution at the desk.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 18) making majority party appointments for the 114th Congress.

Mr. MCCONNELL. I ask for its immediate consideration, and to send the resolution over, under the rule, and I object to my own request.

The PRESIDENT pro tempore. Objection is heard.

The resolution will go over, under the rule.

ORDER FOR RECORD TO REMAIN OPEN

Mr. MCCONNELL. I ask unanimous consent that notwithstanding the adjournment of the Senate, the RECORD be kept open until 4 p.m. today for the introduction of bills and resolutions, statements, and cosponsor requests.

The PRESIDENT pro tempore. Is there objection?

Without objection, it is so ordered.

RELATIVE TO THE DEATH OF EDWARD W. BROOKE, III, FORMER UNITED STATES SENATOR FOR THE COMMONWEALTH OF MASSACHUSETTS

Mr. MCCONNELL. I ask unanimous consent that the Senate now proceed to the consideration of S. Res. 19, which was introduced earlier today.

The PRESIDENT pro tempore. The clerk will report the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 19) relative to the death of Edward W. Brooke, III, former United States Senator for the Commonwealth of Massachusetts.

There being no objection, the Senate proceeded to consider the resolution.

Mr. MCCONNELL. I ask unanimous consent that the resolution be agreed to, the preamble be agreed to, and the motions to reconsider be laid upon the table.

The PRESIDENT pro tempore. Without objection, it is so ordered.

The resolution (S. Res. 19) was agreed to.

The preamble was agreed to.

(The resolution, with its preamble, is printed in today's RECORD under ''Submitted Resolutions.'')

MEASURE READ THE FIRST TIME—S. 1

Mr. MCCONNELL. Mr. President, I understand there is a bill at the desk, and I ask for its first reading.

The PRESIDENT pro tempore. The clerk will read the bill by title for the first time.

The assistant legislative clerk read as follows:

A bill (S. 1) to approve the Keystone XL Pipeline.

Mr. MCCONNELL. I now ask for a second reading on this measure, and in order to place the bill on the calendar under the provisions of rule XIV, I object to my own request.

The PRESIDENT pro tempore. Objection is heard.

The bill will be read for the second time on the next legislative day.

ORDERS FOR WEDNESDAY, JANUARY 7, 2015

Mr. MCCONNELL. Mr. President, I ask unanimous consent that when the Senate completes its business today, it adjourn until 9:30 a.m. tomorrow, Wednesday, January 7, 2015; that following the prayer and pledge, the morning hour be deemed expired, the Journal of proceedings be approved to date, and the time for the two leaders be reserved for their use later in the day; that following any leader remarks, the Senate proceed to a period of morning business, with Senators permitted to speak therein for up to 10 minutes each; further, that the Senate recess from 12:30 p.m. until 2:15 p.m.to allow for the weekly conference meetings.

The PRESIDENT pro tempore. Without objection, it is so ordered.

ORDER FOR ADJOURNMENT

Mr. MCCONNELL. If there is no further business to come before the Senate, I ask unanimous consent that it adjourn under the provisions of S. Res. 19 as a further mark of respect to the memory of the late Senator Edward William Brooks III, of Massachusetts, following the remarks of Senator UDALL for 15 minutes and Senator MERKLEY for 15 minutes.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. MCCONNELL. Mr. President, I suggest the absence of a quorum.

The PRESIDING OFFICER. The clerk will call the roll.

The legislative clerk proceeded to call the roll.

Mr. UDALL. Mr. President, I ask unanimous consent that the order for the quorum call be rescinded.

The PRESIDING OFFICER (Mr. GRASSLEY). Without objection, it is so ordered.

RESOLUTION OVER, UNDER THE RULE—S. RES. 20

Mr. UDALL. Mr. President, I have a resolution at the desk of which Senator MERKLEY and I are cosponsors.

The PRESIDING OFFICER. The clerk will read the resolution by title.

The assistant legislative clerk read as follows:

A resolution (S. Res. 20) limiting certain uses of the filibuster in the Senate to improve the legislative process.

Mr. UDALL. I ask for its immediate consideration and to send the resolution over, under the rule, I, therefore, object to my own request.

The PRESIDING OFFICER. Objection is heard.

The resolution will go over, under the rule.

Mr. UDALL. Mr. President, I rise today to talk about our continuing effort to change the Senate rules as we begin the 114th Congress. This is the same process Senators MERKLEY, Harkin, and I used at the beginning of the last Congress when we introduced a similar resolution. At that time, Majority Leader REID wanted to have the debate about reforming our rules after the inauguration.

He was willing to work with us and protect our interests until we could debate our proposal. By doing so, he preserved the right of a simple majority of this body to amend the rules in accordance with article I, section 5 of the Constitution.

I hope Majority Leader MCCONNELL will extend to us this same courtesy if he chooses to address other issues before rules reform.

It has been the tradition at the beginning of many Congresses that a majority of the Senate has asserted its right to adopt or amend the rules. Just as Senators of both parties have done in the past, we do not acquiesce to any provision of Senate rules—adopted by a previous Congress—that would deny the majority that right.

The resolution I am offering today is based on proposals we introduced at the start of the 112th and 113th Congresses. At that time, many called our efforts a power grab by the majority. But we were very clear. We would support these changes even if we were in the minority, and here we are today, reintroducing the reform package as Members of the minority.

These changes do not strip minority rights. They allow the body to function as our Founders intended. The heart of our proposal is the talking filibuster. The filibuster once was a tool that was used sparingly. It allowed the minority to be heard. Today it is abused too often and far too easily.

I have said many times that the Senate has become a graveyard for good ideas. The shovel is the broken filibuster and other procedural tactics.

The system is broken. But in the last election I think the message was clear. The electorate said: Fix it, do your job, and make the government work. That is what our resolution is intended to do.

Our reforms were not adopted in the last Congress, but we made some progress. Strong support for fixing the Senate led leaders REID and MCCONNELL to address the dysfunction in the Senate and make some moderate changes.

Unfortunately, it did not take long for the leaders' gentlemen's agreement to break down. In November 2013 the abuse of the rules—and the obstruction—reached a tipping point, and so the majority acted within the precedence of the Senate. We changed the rules to prevent the minority from abusing the rules and obstructing scores of qualified nominees for judicial and executive appointments.

I believe that drastic step was unfortunate, but it was also necessary. The minority has a right to voice objections but not to abuse the rules to obstruct justice by preventing judges from being confirmed or by preventing the President from getting his team in place.

By changing the rules, the 113th Senate was able to confirm 96 judges. In fact, it confirmed more judges than any modern Congress since 1980.

The 113th Congress also confirmed 293 executive nominations in 2014—the most since 2010.

That is an incredible change. It was a bold but necessary action. But it also led to even greater polarization in the Senate. That polarization could have been prevented if the Senate had adopted our reforms at the beginning of the 113th Congress.

That is why I strongly urge the new majority leader to continue the change

that was adopted in November. It allows most judicial and executive branch appointees to be confirmed by a straight majority vote. I urge him to continue the progress we made last Congress and adopt the rest of our proposed reforms at the start of this Congress.

Anyone who has watched this Senate try to legislate in the past few years knows we still are hobbled by dysfunction. We voted on cloture 218 times just over the past 2 years. To put that in perspective, the Senate voted on cloture only 38 times in the 50 years after the rule was adopted in 1917. We cannot continue down this path.

The unprecedented use of the filibuster and other procedural tactics by both parties has prevented the Senate from getting its work done. The Senate needs to return to its his historical practice and function as a deliberative yet majoritarian body, when filibusters were rare and bipartisanship was the norm.

We believe the proposed rule changes in our resolution provide commonsense reforms. This will restore the best traditions of the Senate and allow it to conduct the business the American people expect.

We have one goal, whether we are in the majority or in the minority: to give the American people the government they expect and deserve, a government that works.

We said before, and we say it again, that we can do this—with respect for the minority, with respect for differing points of view, with respect for this Chamber, but, most of all with respect for the people who send us here.

The right to change the rules at the beginning of a new Congress is supported by history and by the Constitution. Article I, section 5 is very clear. The Senate can adopt and amend its rules at the beginning of the new Congress by a simple majority vote. This is known as the constitutional option, and it is well named.

It has been used numerous times—often with bipartisan support—since the cloture provision was adopted in 1917.

Opponents of the Constitutional Option say that the rules can only be changed with a two-thirds supermajority, as the current filibuster rule requires. And they have repeatedly said any attempt to amend the rules by a simple majority is ''breaking the rules to change the rules.'' This simply is not true.

The supermajority requirement to change Senate rules is in direct conflict with the U.S. Constitution. Article I Section 5 of the Constitution states that, ''Each House may determine the Rules of its Proceedings, punish its Members for disorderly Behavior, and, with the Concurrence of two thirds, expel a Member.'' When the Framers required a supermajority, they explicitly stated so, as they did for expelling a member. On all other matters, such as determining the chamber's rules, a majority requirement is clearly implied.

There have been three rulings by Vice Presidents, sitting as President of the Senate, on the meaning of Article I Section 5 as it applies to the Senate. In 1957, Vice President Nixon ruled definitively:

> [W]hile the rules of the Senate have been continued from one Congress to another, the right of a current majority of the Senate at the beginning of a new Congress to adopt its own rules, stemming as it does from the Constitution itself, cannot be restricted or limited by rules adopted by a majority of a previous Congress. Any provision of Senate rules adopted in a previous Congress which has the expressed or practical effect of denying the majority of the Senate in a new Congress the right to adopt the rules under which it desires to proceed is, in the opinion of the Chair, unconstitutional.

Vice-Presidents Rockefeller and Humphrey made similar rulings at the beginning of later Congresses.

In 1979, when others were arguing that the rules could only be amended in accordance with the previous Senate's rules, Majority Leader Byrd said the following on the floor:

> There is no higher law, insofar as our Government is concerned, than the Constitution. The Senate rules are subordinate to the Constitution of the United States. The Constitution in Article I, Section 5, says that each House shall determine the rules of its proceedings. Now we are at the beginning of Congress. This Congress is not obliged to be bound by the dead hand of the past.

In addition to the clear language of the Constitution, there is also a long-standing common law principle, upheld in the Supreme Court, that one legislature cannot bind its successors. For example, if the Senate passed a bill with a requirement that it takes 75 votes to repeal it in the future, that would violate this principle and be unconstitutional. Similarly, the Senate of one Congress cannot adopt procedural rules that a majority of the Senate in the future cannot amend or repeal.

Many of my Republican colleagues have made the same argument. For example, in 2003 Senator JOHN CORNYN wrote in a law review article:

> Just as one Congress cannot enact a law that a subsequent Congress could not amend by majority vote, one Senate cannot enact a rule that a subsequent Senate could not amend by majority vote. Such power, after all, would violate the general common law principle that one parliament cannot bind another.

So amending our rules at the beginning of a Congress is not ''breaking the rules to change the rules.'' It is reaffirming that the U.S. Constitution is superior to the Senate rules, and that when there is a conflict between them, we follow the Constitution.

And I would like to make clear that by moving on to other business, we are not waiving our constitutional right to amend the Senate's rules with a majority vote. In 1975, when the cloture threshold was reduced from two-thirds to three-fifths, the reform effort lasted until March. But on the first day of that Congress, Senator Mondale introduced his resolution and unequivocally stated that he was reserving his right to call for a majority vote at a later date.

Senator Mondale made the following statement on that first day:

> Mr. President, I wish to state, as has been traditional at the commencement of efforts to amend rule XXII, that, by operating under the Standing Rules of the Senate the supporters of this resolution do not acquiesce to the applicability of certain of those rules to the effort to amend rule XXII; nor do they waive any rights which they may obtain under the Constitution, the practice of this body, or certain rulings of previous Vice Presidents to amend rule XXII, uninhibited by rules in effect during previous Congresses.

Today, I take the same position as Senator Mondale and many other reformers did over the years. I understand that Majority Leader MCCONNELL may move on to other business, but I am not acquiescing to any provision in the Senate rules that prevents a majority from amending those rules. We can, and should, take time to debate our proposal and have an up or down vote. I know other colleagues also have reform proposals. They all deserve consideration.

This is not just about rules. It is about the norms and traditions of the Senate. They have collapsed under the weight of the filibusters.

Neither side is 100-percent pure. Both sides have used the rules for obstruction. No doubt they have had their reasons, but I don't think the American people care about that. They don't want a history lesson or a lesson in parliamentary procedure. They want a government that is reasonable and that works.

I hope all my colleagues, especially the new Senators, give special consideration to reform. We do not need to win every legislative or nomination vote, but we need to have a real debate—and an open process—to ensure we are, actually, the greatest deliberative body in the world.

We changed the rule regarding nominations. That was an important start, but it was the beginning—not the end. We still need to reform the Senate rules.

Mr. President, I ask unanimous consent that Senator FRANKEN be added as a cosponsor to S. Res. 20.

The PRESIDING OFFICER. Without objection, it is so ordered.

Mr. UDALL. I yield the floor.

The PRESIDING OFFICER. The Senator from Oregon is recognized.

Mr. MERKLEY. Today we are at the start of a new Congress, and every new Congress provides the opportunity for a fresh start of the work we do on behalf of the American people. Congratulations to our newly elected Members and congratulations to our returning elected Members.

It is appropriate at this moment, at the start of a new, 2-year Congress, that we ponder how to make this institution work for the American people, work well within our constitutional framework and our responsibility for

advice and consent on nominations, and work well in terms of our responsibility for legislation that will address the big issues facing our Nation.

Since I came to the Senate in 2009, it has been a pleasure to work with my colleague from New Mexico. My colleague from New Mexico came to the Senate from the House. I came here from the State of Oregon but with memories of how the Senate worked many years before when I first came to the Senate as an intern in 1976.

I must say, in the 1970s, this body worked very much in the manner that one might anticipate. A bill was put forward. There was no filibuster of a motion to proceed. The bill was debated. A group of Senators would be ready to call upon the President of the Senate to submit their amendment.

Whoever was called on first—that amendment was debated. That amendment was debated, and in a short period of time it was voted on and then the Senators would vie for the opportunity to present the next amendment.

What I saw in 2009 when I came back as a Senator was a very different Chamber, a Chamber where long periods of time would be spent debating what bills to debate. The motion to proceed would be filibustered. So we would waste the energy of this institution not upon delving into the complexities of an issue and how to best address it but simply on the procedural issue of whether we were going to start debate on a particular bill.

This situation has certainly been observed by the American public. The American public's esteem for our institution has declined steadily over the past several decades as the paralysis of this institution has increased.

Observers of Congress report that the past two Congresses have been among the least productive in modern history—too few amendments getting considered, paralysis even after a bill has come to the floor on which amendment to address first, and too many filibusters—filibusters not of the type of old in which a Senator would delay action on a bill by holding forth as long as his energies would enable him or her to stand on this floor and carry forth, but filibusters of the silent kind, the kind in which there is simply an objection to closing debate. But then this Chamber is filled with silence because no one has anything left to say on it, and no one is willing to spend the time and energy to even declare to the American people: I am here on this floor speaking at length because I want to block this bill. There is no accountability to the public in that fashion—no transparency. So the silent filibuster has come to haunt this hall.

Well, that is a very different Senate than the Senate in the mid-1970s and one that my colleague from New Mexico and I are determined to change—to restore this Chamber to being a great deliberative body. We can have all the interesting policy ideas in the world, and we can have, certainly, insights on how to make things work better, but if the machinery for this body to consider those ideas is broken, then, certainly, those abilities are not put into their best opportunity or framework. Many folks, when we have been debating the functionality of the Senate, have said: But, remember, it was George Washington who said that the Senate should be a cooling saucer—in other words, saying that the dysfunction and paralysis of the Senate is just exactly the way it was designed to be.

That is certainly a misreading of the comment attributed, perhaps apocryphally, to George Washington. George Washington was referring to the fact that the Senate was designed with a constitutional framework of 6 years, of one-third of the Members rotating every 2 years, of a Chamber that was initially elected indirectly by the States—rather than by popular election—and that this would give it more chance to be thoughtful and reflective on the issues that come before the Nation.

This thoughtfulness, this ability to gain reflexion, is, in fact, exactly what the Senate should be. It is the quality that led to the Senate being described as the world's greatest deliberative body. But the filibuster, and the abuse of it, has changed that. And certainly the inability of the minority and the majority to be able to put forth amendments in a timely fashion and to debate them has changed.

I think back to what Alexander Hamilton said early in the history of our Nation. He said that the real operation of the filibuster ''. . . is to embarrass the administration, to destroy the energy of government, to substitute the pleasure, caprice and artifices of an insignificant, turbulent or corrupt junto to the regular deliberations and decisions of a respectable majority.''

That phrase, isn't that what we need to restore in this body, the regular deliberations and decisions of a respectable majority?

This is all part of this cycle of a democracy in which citizens vote for an individual who they feel reflects what needs to be done in our Nation, and those individuals come to this [chamber/Chamber] and they proceed to have an agenda. That agenda, if it is part of the majority agenda or a bipartisan majority agenda, gets implemented and those ideas get tested. Those ideas that work well can be kept and those ideas that work poorly can be thrown out. But if this Chamber is locked in paralysis, that cycle of testing ideas and of citizens voting for a vision and seeing that vision implemented and tested is broken. That is much where we are now.

Alexander Hamilton went on to say that when the majority must conform to the views of the minority, the consequence is '' . . . tedious delays; continual negotiation and intrigue; contemptible compromises of the public good.''

I think that is exactly what we have seen too much of in this Chamber, whether it be one party in charge or the other party in charge. As my colleague noted, this is not a partisan issue. The ideas we put forward when in the majority we are now putting forward in the minority. Isn't that the test of whether an idea is in fact designed for the good of this institution, rather than the advantage of the moment?

Our Senate is broken. The American people know that. And it is our responsibility as Senators to work to change that. That is why there should now be a full debate among the Members on the best ideas on how to enable this Chamber to work better. Those ideas should come from the right of the aisle, from the left of the aisle, and ideas in partnership between colleagues on both sides of the aisle. Again, this shouldn't be about the advantage of the moment, it should be about the successful function of our beloved Senate.

One of the things we have seen in the course of this broken Senate is our failure to adequately dispose of our responsibility for advice and consent on nominations under the Constitution. That responsibility is designed to be a check on outrageous potential nominations from the President. It is not designed to be a way for one coequal branch of government—that is the Congress—to seek to systematically undermine other branches of the government, be it the judiciary or the executive. So we need to have a timely and systematic way of considering nominations. That certainly has fallen apart in the course of the poisonous and partisan nature of deliberations here over the last few years. But we can change that.

Indeed, we stepped forward a year ago November to test a rule to close debate on most nominations with a simple majority. The result has been quite spectacular. The number of district judges who have been considered on the floor of this Chamber has more than doubled—has almost tripled. Judicial vacancies have been cut in half—extremely important to a fair and capable judiciary. Executive nominations roughly doubled.

It should not be the goal of this Chamber, whether the majority or the minority, to disable the executive branch by preventing the positions from being filled in the executive branch. If a majority says a person is reasonable, then that nomination should proceed expeditiously.

Senator UDALL and I have put forward, as he noted, a resolution that is in keeping with the package of ideas we worked on in 2011 and 2013, so we are presenting those ideas here in 2015. But my encouragement is for people to put forward their ideas, individual Senators, to add their ideas or put forward individual components that will contribute to this dialogue.

One of the ideas we have, and I will be offering to this body, is to create a process to consider rule changes at the start of each legislative session—a detailed way of addressing that, since

currently we have no pattern, no guide, to holding a debate about how the Senate functions.

A second will be to consider the expedited consideration of most nominations. We made a rule change a couple of years ago—well, November a year ago. And also, before that, we made some minor changes in timing in January 2013. That came out of the debate just 2 years ago. Those January 2013 changes are expiring. Those timelines are expiring. So that goes away. Should those be adopted as part of the standing rules rather than simply the standing orders which expire with the change of a Congress?

A third idea is to end the filibuster on the motion to proceed to legislation. Think about how this has changed. If you take the 10-year period between 1973 and 1982, a 10-year period that embraces when I first came here as an intern, there were 14 times there was a filibuster on a motion to proceed. If you take 10 years from roughly 2003 to 2012, that number went up to about 160—more than a tenfold increase in the paralysis of getting bills to the floor to be discussed.

Why should there be filibusters at all on a conference committee? If the House has put forward an idea and passed it, and the same bill has been passed by the Senate, isn't it common sense to enable a delegation from each Chamber to meet together to work out a compromise? We did make a modest improvement in this procedure, but there is much more work to be done on this.

In fact, I was mystified when I came here in 2009 as to why there weren't conference committees going on. First I heard: Well, it is easier for Chairs of committees to get together informally and try to work out something behind the scenes. But then, as I asked more questions, the answer became: Because there are three steps required, and all three of which enable a filibuster, and that paralysis just isn't worth entertaining the time on the floor. Well, let us restore conference committees. Let us get rid of filibusters on conference committees.

And certainly we must improve floor debate by ensuring amendments can be introduced and debated. The minority has said in recent years that this is a deep disadvantage to them. But I can tell you as a Member of the previous majority that it was a disadvantage to majority Members as well not to be able to introduce and debate amendments.

We also certainly must replace the silent filibuster with the talking filibuster so there is transparency and accountability to the use of this instrument on final passage of a bill.

Let us not let this opportunity pass. Let us not continue on autopilot from one Congress to the next. Let us take this moment of opportunity to start on this path to restoring the U.S. Senate to being the world's greatest deliberative body in order to address the big issues before us and for the betterment of our Nation.

Mr. President, I yield the floor.

ADJOURNMENT UNTIL 9:30 A.M. TOMORROW

The PRESIDING OFFICER. The Senate stands adjourned until 9:30 a.m. tomorrow, and does so as a further mark of respect to the memory of the late Senator Edward William Brooke, III, of the Commonwealth of Massachusetts.

Thereupon, the Senate, at 1:40 p.m., adjourned until Wednesday, January 7, 2015, at 9:30 a.m.

EXTENSIONS OF REMARKS

MEMORANDA OF UNDERSTANDING BETWEEN THE COMMITTEE ON THE JUDICIARY AND THE COMMITTEES ON AGRICULTURE, ENERGY AND COMMERCE, AND WAYS AND MEANS

HON. JOHN A. BOEHNER

OF OHIO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. BOEHNER. Mr. Speaker, I submit the following memoranda of understanding.

MEMORANDUM OF UNDERSTANDING

On January 6, 2015, the House agreed to H. Res. 5, establishing the rules of the House for the 114th Congress. Section 2(a)(2)(A) of H. Res. 5 contained a provision adding '' criminalization'' to the jurisdictional statement of the Committee on the Judiciary.

The Committee on the Judiciary and the Committee on Agriculture jointly acknowledge as the authoritative source of legislative history concerning section 2(a)(2)(A) of H. Res. 5 the description printed in the Congressional Record and submitted by Rules Committee Chair Pete Sessions.

By this memorandum, the committees record their further mutual understandings by providing the following example, which will supplement the statement cited above.

In general, this change is not intended to cover measures that make changes to a regulatory or revenue collection scheme without making changes to the specific conduct that triggers a criminal penalty that is part of the enforcement regime.

For instance, where a statute prohibits unauthorized movement of certain prohibited plants or animals without the proper permit and imposes a criminal sanction for a violation of the permit, a measure which simply makes changes to the permitting process would not fall within the scope of this rules change, even in the case where a criminal penalty applies broadly to the statute in question. It is the conduct of moving the prohibited item, not the permitting process, which gives rise to the Committee on the Judiciary's jurisdictional interest.

This example is intended to be merely illustrative rather than exclusive or exhaustive. Nothing in this memorandum precludes a further agreement between the committees with regard to the implementation of this provision.

BOB GOODLATTE,
Chair, Committee on the Judiciary.
K. MICHAEL CONAWAY,
Chair, Committee on Agriculture.

MEMORANDUM OF UNDERSTANDING

On January 6, 2015, the House agreed to H. Res. 5, establishing the rules of the House for the 114th Congress. Section 2(a)(2)(A) of H. Res. 5 contained a provision adding '' criminalization'' to the jurisdictional statement of the Committee on the Judiciary.

The Committee on the Judiciary and the Committee on Energy and Commerce jointly acknowledge as the authoritative source of legislative history concerning section 2(a)(2)(A) of H. Res. 5 the description printed in the Congressional Record and submitted by Rules Committee Chair Pete Sessions.

By this memorandum, the committees record their further mutual understandings by providing the following examples, which will supplement the statement cited above.

In general, this change is not intended to cover measures that make changes to a regulatory or revenue collection scheme without making changes to the specific conduct that triggers a criminal penalty that is part of the enforcement regime.

For instance, where there is a regulatory statute that prohibits discharge of a pollutant without a permit or in a manner inconsistent with that permit and which imposes a criminal sanction for a violation thereof, and a measure adds another substance to the list of pollutants, that would not fall within the scope of this change. It is the conduct of discharging the pollutant, not the identification of the pollutant, which gives rise to the Committee on the Judiciary's jurisdictional interest.

This example is intended to be merely illustrative rather than exclusive or exhaustive. Nothing in this memorandum precludes a further agreement between the committees with regard to the implementation of this provision.

BOB GOODLATTE,
Chair, Committee on the Judiciary.
FRED UPTON,
Chair, Committee on Energy and Commerce.

MEMORANDUM OF UNDERSTANDING

On January 6, 2015, the House agreed to H. Res. 5, establishing the rules of the House for the 114th Congress. Section 2(a)(2)(A) of H. Res. 5 contained a provision adding ''criminalization'' to the jurisdictional statement of the Committee on the Judiciary.

The Committee on the Judiciary and the Committee on Ways and Means jointly acknowledge as the authoritative source of legislative history concerning section 2(a)(2)(A) of H. Res. 5 the description printed in the Congressional Record and submitted by Rules Committee Chair Pete Sessions.

By this memorandum, the committees record their further mutual understandings by providing the following example, which will supplement the statement cited above.

In general, this change is not intended to cover measures that make changes to a regulatory or revenue collection scheme without making changes to the specific conduct that triggers a criminal penalty that is part of the enforcement regime.

For instance, where a statute prohibits evasion of taxes or tariffs, and imposes a criminal sanction for a violation thereof, a modification of, repeal of, or addition to a substantive provision that is used to determine taxes (and, if applicable, interest) or tariffs owed would not fall within the scope of this rules change because it would not by itself address a specific element relating to its criminal enforcement. It is the conduct of evading taxes or tariffs, not the imposition or calculation of the tax or tariff itself, which gives rise to the Committee on the Judiciary's jurisdictional interest.

This example is intended to be merely illustrative rather than exclusive or exhaustive. Nothing in this memorandum precludes a further agreement between the committees with regard to the implementation of this provision.

BOB GOODLATTE,
Chair, Committee on the Judiciary.
PAUL RYAN,
Chair, Committee on Ways and Means.

RECOGNIZING TENNANT TRUCK LINES FOR ITS PARTICIPATION IN WREATHS ACROSS AMERICA

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mrs. BUSTOS. Mr. Speaker, I rise today to recognize the work of Tennant Truck Lines of Colona, Illinois. For the last five years, Tennant Truck Lines has participated in the Wreaths Across America program, which honors veterans by coordinating wreath laying ceremonies throughout all 50 states.

I had the honor of participating in the Wreaths Across America ceremony on December 13, 2014, at the Rock Island National Cemetery, in my home district in Illinois. This was the 10th Wreaths Across America ceremony held at the Cemetery, one of thousands of ceremonies held across the nation.

Tennant Truck Lines played a vital role in transporting wreaths, volunteering their trucks and manpower to move 3,072 wreaths to over 900 veteran ceremonies by December 13. Two trucks from Tennant Truck Lines drove all the way to Arlington National Cemetery, and many more played a vital role in transporting wreaths within the Midwest as they traveled from Maine to California.

Mr. Speaker, I am extremely proud of the work Tennant Truck Lines and CEO Aaron Tennant have done to remember and honor the veterans who bravely served our country. It is my honor to recognize them today.

''TAX CODE TERMINATION ACT''

HON. BOB GOODLATTE

OF VIRGINIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. GOODLATTE. Mr. Speaker, I rise today to re-introduce the ''Tax Code Termination Act,'' legislation that will abolish the Internal Revenue Code by December 31, 2019, and call on Congress to approve a new Federal tax system by July of the same year.

There is no denying that our current tax system has spiraled out of control. Americans devote countless hours each year to comply with the tax code and it is very clear we need tax simplification. Today's tax code is unfair, discourages savings and investment, and is impossibly complex. Businesses and families need relief from uncertainty and the burdensome task of complying with the tax code. However, the problem is Congress won't act on fundamental tax reform unless it is compelled to do so. The Tax Code Termination

● This ''bullet'' symbol identifies statements or insertions which are not spoken by a Member of the Senate on the floor.

Matter set in this typeface indicates words inserted or appended, rather than spoken, by a Member of the House on the floor.

Act will finally force Congress to debate and address fundamental tax reform.

Once the Tax Code Termination Act becomes law, today's oppressive tax code would survive for only four more years, at which time it would expire and be replaced with a new tax code that will be determined by Congress, the President, and the American people. The Tax Code Termination Act will allow us, as a nation, to collectively decide what the new tax system should look like. Having a date-certain to end the current tax code will force the issue to the top of the national agenda, where it will remain until Congress finishes writing the new tax law.

This legislation has gained wide support in past Congresses and had 122 bipartisan cosponsors in the 113th Congress. In fact, similar legislation has already been passed twice by the House of Representatives, first in 1998 and then in 2000.

Although many questions remain about the best way to reform our tax system, if Congress is forced to address the issue we can create a tax code that is simpler, fairer, and better for our economy than the one we are forced to comply with today. Congress won't reach a consensus on such a contentious issue unless it is forced to do so. The Tax Code Termination Act will force Congress to finally debate and address fundamental tax reform.

America's future partially depends on overcoming the impairment that is our current tax code. There is a widespread consensus that the current system is broken, and keeping it is not in America's best interest. I urge my colleagues to support this legislation and end the broken tax system that exists today and provide a tax code that the American people deserve.

STOPPING ABUSIVE STUDENT LOAN COLLECTION PRACTICES IN BANKRUPTCY ACT OF 2015

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, the ''Stopping Abusive Student Loan Collection Practices in Bankruptcy Act of 2015'' targets ruthless collection tactics employed by some student loan creditors against debtors who have sought bankruptcy relief, as documented by the New York Times in its cover story last year.

Specifically, my legislation bill would empower a bankruptcy judge to award costs and reasonable attorney's fees to a debtor who successfully obtained the discharge of his or her liability for a student loan debt based on undue hardship if: (1) the creditor's position was not substantially justified, and (2) there are no special circumstances that would make such award unjust. The Bankruptcy Code already grants identical authority to a bankruptcy judge to award costs and reasonable attorney's fees to debtor where a creditor requests the determination of dischargeability of a consumer debt based on the allegation that it was fraudulently incurred and the court thereafter finds that the creditor's position was not substantially justified and there are no special circumstances that would make such award unjust.

Although parties typically do and should pay their own attorney's fees in litigation, dischargeability determinations concerning student loan debts present compelling factors that warrant the relief provided by this legislation. Under current bankruptcy law, debtors must meet a very high burden of proof, namely, that repayment of the student loan debt will present an undue hardship on the debtor and the debtor's dependents. The litigation typically requires extensive discovery, trial-like procedures, and legal analysis.

Unfortunately, some student loan debt collectors engage in abusive litigation tactics that exponentially drive up the potential cost of legal representation for a debtor. As a result, debtors, who may legally qualify for the Bankruptcy Code's undue hardship dischargeability exception for student loans, may be unable to obtain such relief because of the potential risk of excessive and unaffordable legal fees that the debtor may have to incur not only to meet the high standard of proof, but also to combat an abusive litigation stance taken by a well-funded adversary.

The ''Stopping Abusive Student Loan Collection Practices in Bankruptcy Act of 2015'' will help level the playing field for debtors overwhelmed by student loan debts, the repayment of which would present an undue hardship for themselves and their families. It is my hope that should this measure become law, bankruptcy judges will not hesitate to award debtors attorney's fees in appropriate cases of abusive litigation engaged in by student loan creditors.

GOVERNOR JAMES B. EDWARDS SERVICE

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. WILSON of South Carolina. Mr. Speaker, at the Service of Worship Celebrating the Life of James Burrows Edwards at historic St. Philip Episcopal Church of Charleston (American statesman John C. Calhoun is buried in the St. Philips Churchyard), his beloved son-in-law Kenneth B. Wingate, Sr., Esq. delivered the following Reflections.

REFLECTIONS

I'm Jim's son-in-law, and I want to reflect on the life of James Burrows Edwards, the Charming Captain of our Ship.

Jim Edwards was a great man, by any possible measure. Webster defines ''great'' as eminent or excellent. Jim accomplished more in a lifetime than any other 10 people combined. He served the nation in the Merchant Marines as a 17 year-old during World War II, crossing the Atlantic 11 times, carrying equipment and supplies to England, France and Germany, and returning each time with wounded American soldiers. By the end of the war, Jim had ascended in rank from dishwasher to able-bodied seaman to quartermaster. He studied hard while off duty, and ultimately earned his third-mate's license which authorized him to guide ships ''of any tonnage, on any waters of the world.'' And guide ships he did, all of his life.

Jim paid his way through the College of Charleston, working summer jobs such as transporting general cargo to ports of call around Europe, South America, and the Caribbean. Not your typical undergraduate student at the College, was he, President McConnell?

Jim married his childhood sweetheart, Ann Darlington, in 1951, though not everyone in her family could see the potential in this young man. Ann's step-grandmother, ''Gran'' was at home shortly before their wedding. Jim dropped by and asked Gran what she thought of all this commotion. She replied, ''I guess it's okay, but Ann sure could do better than that little boy from Rifle Range Road!'' Jim said, ''I think so, too.''

Jim and Ann worked their way through dental school at the University of Louisville. Ann worked for the Red Cross in the hills of Kentucky as a nurse, while Jim ran for and was elected president of the student body in his spare time. These early ventures honed his impressive personal skills, teaching him how to break down barriers, build rapport, pull together a team. Jim also worked odd jobs, such as selling mint juleps at the Kentucky Derby. One year at the Derby, while selling concessions, Jim bet $6 on Dark Star, a long-shot at odds of 25–1, simply because the horse had trained in South Carolina. Dark Star won the race, and Jim took home a fat purse, and a lesson on long-shot victories.

I don't intend to drag you through each of his fascinating and successful careers in oral surgery, in state politics, in serving on President Reagan's cabinet as Secretary of Energy, and then returning to the Medical University of South Carolina for 17 years as president. You were all there with him and with Ann, his forever first lady, at every memorable and enjoyable step of the way.

Not only was Jim a great man, but far more importantly he was a good man. The Bible only refers to two people, Barnabas and Joseph of Arimethea, as ''good.'' The biblical definition of good is generous, with a willingness to put other's interests above one's own. It's rare to find a great man; it is more rare to find a good man. But it is exceedingly rare to find a great man who is good.

Jim had three specific qualities that endeared him to us all:

First was his HUMOR; that quick wit, often self-deprecating, never vulgar. He loved to tell the true story of being in the hardware store in Moncks Corner, wearing his old hunting clothes, when a woman going up and down the aisles kept staring at him. Finally, she came over and said, ''Has anyone ever told you you look like Jim Edwards?''. He said, yes, and before he could say anything else, she said, ''Makes you mad as hops, doesn't it?''

Even the name of O' Be Joyful, his magnificent home overlooking Charleston harbor is a whimsical, double-entendre. Yes, it's intended to reflect the biblical encouragement to live each moment joyfully. But it's also a reminder of how Jim and Ann got the house. A widow, Kathryn McNulta, owned the home but was reluctant to sell it. Periodically Jim and Ann would go sit with her on the piazza, and she would offer them a drink called an O' Be Joyful—a can of limeade, a can of light rum, a can of dark rum, and the white of an egg. Ann would look at Jim quietly and say, ''I can't drink that!'' And he said, ''You will if you want the house!''

Jim's second endearing quality was his HUMANITY; he had a genuine concern for the well-being of others. He always looked for the best in people, but cast a patient and sympathetic eye when they fell short. His care for others could be seen in his lifelong commitment to improvements in healthcare and in education. One of the landmark pieces of legislation while he was governor was the Education Finance Act, which altered the way funds were distributed to schools across South Carolina. And of course his thirty

years of service as president and then president emeritus of his beloved Medical University. He continued fundraising for MUSC literally to the end of his life. After his stroke in 2013, when he could no longer take potential donors out to restaurants, he and Ann would entertain them at home. As recently as three weeks ago, he attended the ribbon-cutting ceremony for the refurbished College of Nursing.

Jim's humanity could be seen in his legendary generosity, as well as his friendliness and hospitality to all. He never met a stranger, never turned down a request for help, and never let race or creed or party affiliation color his love for people. Though he held his Republican ideals closely, he embraced everyone across the aisle. He loved and served with Ronald Reagan, George H. W. Bush, and Strom Thurmond, but he also loved and served with Bob McNair, Rembert Dennis, and Fritz Hollings. He was always collegial, always the statesman.

Finally, Jim will be remembered for his HUMILITY. He never let success go to his head. Though he had many titles (third mate, lieutenant commander, doctor, chairman, senator, governor, secretary, president—in fact, he often joked he couldn't keep a steady job) his favorite title was just plain Jim. His beautiful Limerick Plantation was simply ''the farm.'' His favorite vehicle was always his old truck, which always had a few dents. Though he walked with kings and presidents, and sat with captains of industry and commerce, he never forgot his roots on Rifle Range Road. He often quipped that when you leave office, you go from ''who's who'' to ''who's he?'' very quickly. He was never pretentious.

I guess in a word, Jim was a Renaissance man—he could do anything, and do it well. He could repair engines, recite poetry, build furniture, design jewelry, grow luscious vegetables and flowers, win elections, shoot the lights out with a shotgun, navigate by the stars, negotiate a deal, close a sale, cast a vision and recruit a team to transform an institution or a party or a state. And he could make his grandchildren laugh. His ''joi de vie'' was contagious, and he infected all of us with his charm.

A few months ago, sitting in O' Be Joyful at the magnificent table he built with his own hands, Jim and I talked about what I should say to you today. First he asked me to exhort you in your faith. Jim first placed his trust in Jesus Christ at age 5, sitting on the knee of his grandfather, Joseph Hooker Hieronymus, an itinerant Methodist minister in the hills of eastern Kentucky. Jim always treasured this little Bible given to him by his grandfather at that time, and had this tucked inside a larger Bible when he was sworn in as governor. After Jim's stroke last year, we spent many evenings as a family reading and discussing the parables of Jesus, how we enter, grow, live and finish in the kingdom of God. And finish in faith Jim has done.

Second, he asked me to encourage you, especially Ann, and Jim, and Cathy, and you grandchildren, not to grieve as others do who have no hope. For we believe that Jesus died and rose again, and even so will return one day and will bring with him those who have fallen asleep, and that we will always be together with them who trust Christ and loved his coming. We declare this by the word of the Lord. May it be so, for each of us today.

The Sermon was lovingly delivered by the Right Reverend Dr. C. Fitz Simons Allison.

SERMON

Rarely have I had such an encouraging experience as helping to plan this funeral service with the family of Jim Edwards. They knew exactly what they and Jim wanted. They knew because their Christian faith was continually expressed within their family and at family gatherings. If you want to know what Jim Edwards believed, examine carefully this funeral service. The psalms, hymns, lessons, and prayers, The Old Rugged Cross truly express his faith. They told me right away that Jim's favorite biblical text was Micah 6:6–8.

''And what does the Lord require of you but to do justly, to love mercy, and to walk humbly with your God.''

''Doing justly'' is enormously difficult. In medicine, when a life is at stake, justice does not allow ineptness, incompetence, carelessness, or sloth. Instead discipline, rigor, warnings, and possibly terminations are needed. Surely Jim had to face such decisions continually in his public life.

Loving mercy seemed to come easily to Jim and many of us have experienced his encouragement that we did not deserve. Mercy is at the heart of all graceful relationships, but inappropriate mercy can lead to inefficiency, poor performance, and sentimentality. Sentimentality is long range cruelty. Good bedside manners are desirable but not at the expense of knowledge and rigorous training. I am sure that Jim faced uncertain and complex issues of mercy. Doing justly and loving mercy can be very difficult and frustrating.

Walking humbly with God is a key to dealing with decisions of justice and mercy, not unlike issues we all face daily. Walking humbly with God is an acknowledgement that our truth is only partial and inadequate. Only God's truth is perfect. My physician father used to say, ''Deliver me from people who are certain they are right.'' Walking humbly with God as expressed by Abraham Lincoln, ''with malice toward none; with charity for all; with firmness in the right, as God gives us to see that right.''

The humility that is required for the decisions of justice and mercy is clearly expressed by the phrase ''as God gives us to see the right.'' Jim certainly faced many frustrations and difficulties in his leadership. I remember General James Grimsley, when he was President of the Citadel, asking Jim what was the difference between his experience in professional politics and that of academic politics. Jim's answer was that professional politics was Sunday school sin; academic politics was graduate school sin.''

Jim's humor was an essential part of his humility. He could laugh at frustration and laugh at himself. He knew something of Christopher Frey's wisdom: ''Comedy is an escape, escape not from truth, but from despair, a narrow escape into faith.'' Walking humbly with God enables us to see the laughableness of human pretension and the joy of knowing and trusting in the benevolent truth beyond ourselves, in God's truth. If I think my opinion is absolute with no higher truth over it, my truth becomes my God. My opinions become dogmas. If I am a doctor there is no check on my view short of the morgue. Or in the case of politics, without humility, we will have stagnation, chaos, or tyranny.

Jim and Ann, the two names come naturally together after 63 years of marriage. A trained nurse and childhood sweetheart, she became a partner in all activities whether politics, administration, fund raising, entertainment, or whatever needed attention. But above all she shares his faith.

Recently Martha and I had lunch with them. Jim's concern for the health and morality of our society was uppermost on his mind. He seemed to sense that absence of humility in these times, and the lack the of ''walking with God,'' the underpining of our society. The result being society's unbecoming commitment to certainties, about what is really uncertain, and uncertain about what is really certain.

Cathy and Ken told me that he knew that his favorite text from Micah ''do justly, love mercy, and walk humbly with your God'' was an ideal that needs the gospel to make it effective. ''I am the way the truth and the light.'' This text is only understood when one realizes that the Christian God is perfect, and we are not. We cannot as sinners stand in his presence. And ''no one comes to the father except by me'' is not meant to be discourteous to other religions but to express the Christian commitment to the majestic perfection of God. Only by God's word, his only begotten Son, can a Christian stand in his presence.

Our problems were diagnosed years ago by J. B. Philips in his very short book, Your God is Too Small. Jim's God was not a small God but a God before whom we are all sinners. As a sinner himself Jim could have compassion for other sinners and knowing he was a forgiven sinner his life could be lived with compassion for others. This produced the charm and diplomacy so well and widely described in our newspapers.

But the journalists failed to mention that his extraordinary gifts, love and consideration for others, were rooted in his realization that he was a forgiven sinner. It nurtured and influenced all his commendable activities.

Psalm 103, the family's choice, was the fruit of their family devotions in which they recited the Psalm antiphonally. They knew it by heart: ''He has not dealt with us according to our sins, nor punished us according to our iniquities.'' This verse can help us walk humbly with our God.

The Gospel also makes it abundantly clear that Christ has gone to prepare a place for us. Where our goodness falls short, his goodness stands in our stead. The secular dogma, that this world is all there is ism, in Reinhold Niehuher's phrase, leaves us bereft of true hope.

The secular hope is that nature is no longer creation revealing the awesome majesty of God but a mere object of random chance without design or purpose. One of the most accomplished and attractive leaders of secular belief is the psychiatrist, Allen Wheelis. In his later years he is now unpersuaded by his earlier attempts to make death a meaningful conclusion rather than a fated inescapable and meaningless end. He now protests: ''A symphony has a climax, a poem builds to a burst of meaning but we are unfinished usiness. No coming together of strands. The game is called because of darkness.'' The seculaar hope ends with the dark oblivion of death. This is the unacknowledged cry of the world for a deeper and meaningful hope.

CONGRATULATING LAGOMARCINO'S IN MOLINE, ILLINOIS FOR BEING DESIGNATED AS AN OFFICIAL ''ENJOY ILLINOIS: DELICIOUS DESTINATION''

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mrs. BUSTOS. Mr. Speaker, I rise today to congratulate Lagomarcino's in Moline, Illinois, for achieving the distinction of an official ''Enjoy Illinois: Delicious Destination.''

Lagomarcino's became a member of the select group to receive this honor from the Illinois Office of Tourism—one of only 19 restaurants to date. The award recognizes local

restaurants around our state for being beloved destinations for both visitors and locals alike. Lagomarcino's earned this honor because of its long-standing customer services and tasty treats that attract visitors from all over the globe.

Lagomarcino's, a beloved ice cream parlor in downtown Moline, is famous for its hot fudge sundaes, sponge candy, filled chocolate eggs, and hand-dipped cones. The turn-of-the-century parlor features mahogany booths custom built by Moline Furniture Works, Tiffany lamps designed in New York, and the terrazzo floor was installed by Cassini Tile of Rock Island. In 1997, Lagomarcino's expanded and opened a second location in the Village of East Davenport, Iowa, and fans from all over the world can order delectable treats online.

Angelo Lagomarcino, an immigrant from Italy, opened Lagomarcino's Confectionery in Moline in 1908 after obtaining a secret recipe for hot fudge sauce from a traveling salesman in the early 1900s. Against his wife's wishes, he paid $25 dollars for that recipe—a price that clearly paid off for the restaurant's many, many fans. That same recipe is used today and Lagomarcino's sauce has earned national and international recognition from food editors and culinary magazines.

Mr. Speaker, I again want to congratulate Lagomarcino's for achieving this honored distinction and wish them even more success in the future.

HONORING KEN VOGEL

HON. JEFF DENHAM

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. DENHAM. Mr. Speaker, I rise today to acknowledge and honor San Joaquin County Supervisor Ken Vogel and to thank him for his leadership and dedication to the citizens of San Joaquin County.

Ken Vogel was born in Stockton, California on March 9, 1945, and moved to the Linden/Waterloo area in 1947. Mr. Vogel's family has been in the area since 1852 when his great-great grandparents came to the Jackson Valley in Amador County, and in the early 1900s, moved to the Stockton/Lodi area.

Ken graduated from Linden High School in 1963, then went on to receive a BA, MA, and Teaching and Administrative credentials from Fresno State University. He worked as a teacher, vice principal, and principal in the Lodi Unified School District from 1980 until retirement in 2004 but continued as a substitute principal until his election to the San Joaquin County Board of Supervisors.

Ken has had the honor of receiving the Lodi Lodge #256 of Masons Award for Outstanding Professional Service to Students of Public Schools and the John Terry Award from the Lodi School Administrators Association for Outstanding Educator. In 2001, he was named Boss of the Year by the Lodi CSEA group of classified employees.

Ken raises over a hundred acres of walnuts and cherries in the Linden and Farmington areas and has farmed in the area for over 30 years, marketing walnuts and cherries through local companies. In 2004, he received an award from Diamond Walnut as the Outstanding Hartley Walnut Grower of the area for that year. He has been an active member of the San Joaquin County Cherry Growers Association and a Farm Bureau member for many years and, as a Supervisor, continues to attend Farm Bureau meetings regularly.

Ken's community involvement activities include: Trustee and Past President of the Board of the Linden Unified School District from 1992–2006, Trustee and Vice President of the Board of the Lodi Public Library from 2003–2006, Member and Past Director of the San Joaquin County Farm Bureau, Member of the San Joaquin Farm Bureau Water Committee, Member and Past Director of the Kiwanis of Greater Lodi, Member of the Escalon Kiwanis Club, Member of the Ripon Chamber of Commerce. Member of the Linden Chamber of Commerce, Member of the Linden Athletic Boosters Club, Member of the Friends of the Linden Library, Member of the Morada Area Association, Member of the Stockton Chamber of Commerce, Member of the Lodi Chamber of Commerce, Member of the Clements-Lockeford Chamber of Commerce, Member of the Historical Society of the Germans from Russia, Member of the San Joaquin County Historical Society, Member of the Lockeford Historical Society, Member of the Escalon Historical Society, Member of the Ripon Historical Society, and Member of the Lodi American Legion Post #22. He also served in the United States Army Reserve from 1968–2000 and was honorably discharged with the rank of Captain.

Ken is has always been committed to the economic development of his community, including the protection and expansion of our large agricultural industry. In addition, water has been one of his most focused areas of involvement as a member of the San Joaquin County Board of Supervisors.

Mr. Speaker, please join me in honoring and commending Ken Vogel, San Joaquin County Supervisor, for his numerous years of selfless service to the betterment of our community.

IN RECOGNITION OF BOB MERWIN

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Bob Merwin, the Chief Executive Officer of Mills-Peninsula Health Services, who is retiring after a remarkable 27-year-career there and a lifelong career in health care. Bob knew early on that hospital administration would be his future and his passion.

Under his leadership for almost three decades Bob proved what he often said—that he is not afraid of change. He led Mills-Peninsula through major changes and transitions and is leaving it prepared for a long and strong future.

Bob came to Mills-Peninsula in 1987 as the Executive Vice President, rose to Chief Operating Officer and then in 1991 to CEO. One of his biggest and most recent accomplishments was the building and opening of the state-of-the-art Mills-Peninsula Medical Center in 2011. The 241-bed, 450,000 square foot hospital features private rooms with 21st century patient life technology, electronic charting and online capabilities that allow for efficient communication, family sleeping accommodations, advanced earthquake technology designed to withstand an 8.5 quake, and a top-notch emergency department. It also has its own chef preparing sustainably and locally grown food for patients, staff and for special events for the public.

Looking at the 241-bed hospital today, it is humbling to remember its beginnings. Founded by Elizabeth Mills Reid, the Church of St. Matthew Red Cross Guild opened in San Mateo in 1908 with just six beds. It was later renamed Mills Memorial Hospital. Due to significant growth during the following decades, Peninsula Hospital opened in 1954 in Burlingame. In 1985, Mills and Peninsula merged into Mills-Peninsula Health Services. Bob oversaw the integration of both hospitals. He was also at the helm for the next large merger with Sutter Health System in 1996 striving to further strengthening the system of care.

Under Bob's leadership, Mills-Peninsula developed and opened the first community hospital Breast Center with advanced diagnostic technologies, the Mack E. Mickelson Arthritis Center, the Family Birth Center, the Dorothy E. Schneider Cancer Center, the Women's Center, and a Behavioral Health facility. During the years leading up to national health reform, Bob kept his optimism and focus on building an organization that cares for its community.

In his career and in life, Bob has had a strong partner equally committed to health care. He married to Jean Merwin, a nurse for Sutter Care at Home, in 1999. The two first met in the early 70s when they both worked at Long Beach Community Hospital. Bob went on to earn his Master's Degree in Hospital Administration from UCLA and become the Senior Vice President and Chief Operating Officer at Pacific Presbyterian Medical Center in San Francisco. Jean moved to the Mendocino Coast and worked as an administrator for a non-profit clinic. Nearly 20 years later, Bob and Jean re-connected at a conference on the Mendocino Coast. Between the two of them they have three children, two grandchildren and one great-grandchild.

In their well-deserved retirement, Bob and Jean are looking forward to spending more time with family and pursue their common passion for golf.

Mr. Speaker, I ask the House of Representatives to rise with me to honor Bob Merwin for his remarkable career and dedication to health care. He has built Mills-Peninsula Health Services into an organization that will serve patients, provide jobs and advance our health care system for decades to come.

PREVENTING TERMINATION OF UTILITY SERVICES IN BANKRUPTCY ACT OF 2015

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, utility companies provide many basic and life-saving services, such as electricity to light our homes, water to drink, and gas to heat our homes. Sometimes, however, individuals, through no fault of their own, struggle to pay for these services often in the face of devastating medical debt, job loss, or economic disruption

caused by divorce. While resorting to bankruptcy provides some relief from financial distress, current law permits utility companies to force these debtors to pay security deposits for continued service even if they were current on their bills before filing for bankruptcy or if they promise to be current on their bills after bankruptcy. Utility companies typically insist that debtors pay at least two months or more of their average bills as a deposit—in addition to requiring that they remain current on their utility bills after bankruptcy—in exchange for the utility continuing to supply service.

The ''Preventing Termination of Utility Service in Bankruptcy Act of 2015'' corrects this injustice. It provides that if the debtor remains current on his or her utility bills after filing for bankruptcy relief, the debtor should not have to pay a deposit to the utility to continue service.

In Detroit, for example, families across the city have seen their water rates increase by 119% over the past decade. During the same period, the Nation generally and Detroit in particular suffered in the aftermath of a global financial crisis that left one-in-five local residences in foreclosure and sent local unemployment rates skyrocketing.

Fortunately, we are incrementally recovering from the Great Recession of 2008. For those individuals who must seek bankruptcy relief, however, we should ensure that their ability to pay their utility bills going forward is not hindered by unnecessary demands for deposits if these debtors remain current on their payments to these companies.

Terminating a family's access to such lifesaving services that keeps the lights on, warms our homes, and ensures that they can bathe, hydrate, and prepare meals is simply wrong if these utility bills are being paid on time.

This legislation is part of a range of solutions that are needed to address the still pervasive adverse impacts of the Great Recession of 2008. I continue to work with my colleagues in Congress, state and federal officials, and my constituents to defend the right to water and protect public health. I will not tolerate the notion that—in the 21st Century, in the wealthiest nation on earth—families should go without access to affordable public water and sanitation services.

COMMEMORATING THE CLOSING OF THE ICE CREAM PALACE IN SILVIS, ILLINOIS AFTER 50 YEARS IN BUSINESS

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mrs. BUSTOS. Mr. Speaker, I rise today to recognize the Ice Cream Palace in Silvis, Illinois, owned by Mr. Umberto ''Red'' Ponce, which closed on December 27th after 50 years of business and service to our community.

The Ice Cream Palace has been a staple for the community of Silvis for the past five decades. Despite its name, Ice Cream Palace is known for serving favorite traditional Mexican cuisine dishes like the popular carne-de-res burritos since 1965. The dishes served come from authentic recipes from Mr. Ponce's mother, Celia Ponce, who was initially a partner in the business and worked there for the restaurants' first 25 years.

Locals who began frequenting the restaurant as children now bring their own families to enjoy both the food and the close-knit relationships between staff and regulars. Some can even remember the days that the Ice Cream Palace served up chilly treats and say that the great tasting food has not changed a bit over 50 years thanks to Mr. Ponce's loyalty to his mother's original recipes. Locals young and old alike have all expressed sadness for the end of such a long-lasting part of their community. Mr. Ponce is looking forward to spending more time with his children and grandchildren during his retirement and says he will miss the friends he has made over the years in his staff and customers.

Mr. Speaker, I again want to recognize the Ice Cream Palace, and am glad that places like this exist, helping to create traditions and bonds within our communities and families.

APPRECIATION OF GOVERNOR JAMES B. EDWARDS

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. WILSON of South Carolina. Mr. Speaker, the State newspaper of Columbia, South Carolina, on December 27, 2014, published an article of statements issued upon learning of Governor Edwards' death.

WHAT THEY ARE SAYING ABOUT GOV. EDWARDS

A COLLECTION OF REMARKS AND REMEMBRANCES ABOUT FORMER S.C. GOV. JAMES EDWARDS, WHO PASSED AWAY FRIDAY AT AGE 87:

Glenn McConnell, president of College of Charleston and former S.C. Senate president pro tempore: ''As an alumnus of our institution, Gov. Edwards represents the best traits of a College of Charleston education: leadership and a passion for lifelong learning. On a personal note, Gov. Edwards was a mentor and a dear friend to me. He helped launch my career in public service and inspired me, through his tireless and selfless efforts, on how to best serve the people of South Carolina. In every facet of his life, he believed in making things better for others.''

U.S. Sen. Lindsey Graham, R–Seneca: ''He was truly one of the most decent men to have ever served as governor of South Carolina. He was a pioneer for the Republican Party and continued to stay involved in party building activities throughout his life.''

U.S. Sen. Tim Scott, R–North Charleston: ''Jim was an early mentor of mine as I entered public service, and I am forever thankful for his advice and encouragement. From the dedication of Patriot's Point during his time as governor to his efforts expanding MUSC while serving as president, Gov. Edwards has left an important legacy in our state.''

U.S. Rep. Joe Wilson, R–Springdale: ''Dr. Edwards was a tireless stalwart for conservative limited government to expand freedom. In high school, I would visit his dental office for Goldwater materials, in his capacity as Charleston County Republican Chairman. . . . Dr. Edwards' vision of an inclusive Republican Party came to fulfillment this month with the U.S. Senate victory in Louisiana, from his start with no elected statewide Republican officials in the five-state Deep South, and now all statewide officials are Republicans.''

Medical University of South Carolina President David Cole: ''With his leadership and vision MUSC started to transform and grow in scope, scale, and quality. As an individual he was universally liked and respected—he had a personality that filled the room—truly he never met anyone that he did not like. I had the privilege of joining the faculty as an assistant professor of surgery in 1994, and from day one he made me feel respected, included, and at times like I quite possibly was his long lost younger brother.''

S.C. Senate President Pro Tempore Hugh Leatherman, R-Florence: ''A Palmetto gentleman who sought only the best solutions for his community, state, and nation. I know that the entire Senate of South Carolina joins me in sending our deepest condolences to the Edwards family. The Medical University of South Carolina, South Carolina, and the United States are a better place because of his leadership.''

S.C. Republican Party Chairman Matt Moore: ''Gov. Edwards made an incredible mark on South Carolina history. His legacy will live on through the countless lives he touched as governor, dentist and particularly as a man of faith.''

Former congressman and federal judge John Napier: ''Jim Edwards was a giant force for good in everything he ever did. A mentor and creator of the modern Republican Party. Pam and I express our deepest sympathy to Anne and the family.''

Rusty DePass, campaign manager of Edwards' 1974 gubernatorial win: ''He was laid back, easygoing. He was opinionated, but he did not have a hard edge to him and didn't have a mean bone in his body. And he was the same person in private as he was in public.''

IN RECOGNITION OF ROBERT ROSS

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor Robert Ross, a successful business owner, exceptional law enforcement officer and dedicated public servant who is retiring from the San Mateo City Council after five years of service. He was the Mayor in 2014 and Deputy Mayor in 2013. Robert is a genuine, hard-working and deeply committed city council member and will truly be missed.

Robert was first elected to the council in 2009 after a 27-year-career as a police officer in San Mateo. His experience in law enforcement made security and sustainability one of his priorities for the city. As a real estate agent for 25 years, Robert also brought substantial business experience to the Council, guiding the city toward financial stability.

While on the Council, Robert served on the City Council Audit and Budget Committee, the City Council Legislative Committee, the Community Development Department Audit Committee, the Grand Boulevard Task Force, the North B Street Improvement Initiative and the Planning Commission. In addition, he was very active in the Association of Bay Area Governments, the League of California Cities, San Mateo County Council of Cities, the San Mateo-Foster City Elementary School Board, the San Mateo Oversight Board, the San

Mateo Union High School District Board, the Sister City Association and the South Bayside Waste Management Authority.

Robert received his Police Officers Standard & Training at the Modesto College Police Academy and his BSBA in Business Administration from the University of Phoenix. He started his law enforcement career as a police officer in Hayward in 1979 and transferred to the San Mateo Police Department in 1981 where he rose through the ranks to Police Lieutenant in 2003. His professionalism and proactive approach have been recognized and he has been commended on numerous occasions. For example, in the late 1980s, then Corporal Ross was in charge of setting up a task force to fight drug crimes in San Mateo. The group became known as ''Ross' Raiders'' and their effective anti-drug campaign was lauded by the City Council, San Mateo County Board of Supervisors, the District Attorney, the San Mateo County Trial Lawyers Association and the late Congressman Tom Lantos.

Among the many awards Robert received was a Lieutenant's Commendation for proactive policing, the San Carlos/Belmont Exchange Club Officer of the Year Award, Employee of the Quarter by past Police Chief Don Phipps for ongoing leadership and proactive policing, the Trial Lawyers Association's Police Officer of the Year Award, the Peninsula Lions Club's Police Award for outstanding service to the community, the Gordon Joinville Special Merit Award for day-to-day excellence in policing, and the Medal of Honor, the Police Department's highest award for saving a life during a fire.

Whether in his capacity as a city council member, a peace officer, a small business owner or a San Mateo resident, Robert has always seized opportunities to help his community. He has given countless presentations at our schools to help troubled and underprivileged youths find a positive direction in their lives. He has visited homes of at-risk youth gang members during the holidays handing out presents. He has worked with the Peninsula Conflict Resolution Center and the Tongan Interfaith Council to prevent and solve conflicts. He has worked with Samaritan House to assist needy families. He is a member of the San Mateo Lion's Club which supports local and international charities.

It is obvious from this long list of accomplishments and engagements that Robert Ross has a heart of gold and an inexhaustible drive to help others. Because of his vision and commitment, San Mateo is a better place. I feel privileged to count Robert as a friend and colleague and wish him well as he shifts his focus to his personal and family life.

Mr. Speaker, I ask the House of Representatives to rise with me to recognize the lasting contributions Robert Ross has made while serving as Mayor, City Councilmember and law enforcement officer. He will always be a role model and inspiration to his fellow San Mateo residents.

THE HOME FORECLOSURE REDUCTION ACT OF 2015

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, I submit the following:

SUMMARY

The ''Home Foreclosure Reduction Act of 2015'' would permit a bankruptcy judge, with respect to certain home mortgages, to reduce the principal amount of such mortgages to the fair market value of the homes securing such indebtedness. My legislation will encourage homeowners to make their mortgage payments and help stem the endless cycle of foreclosures that further depresses home values. It also would authorize the mortgage's repayment period to be extended so that monthly mortgage payments are more affordable. In addition, the bill would allow exorbitant mortgage interest rates to be reduced to a level that will keep the mortgage affordable over the long-term. And, it would authorize the waiver of prepayment penalties and excessive fees. Further, the bill would eliminate hidden fees and unauthorized costs.

This bill addresses a fundamental problem: homeowners in financial distress simply lack the leverage to make mortgage lenders and servicers engage in meaningful settlement negotiations, even when in the interest of all parties. My legislation would empower a homeowner, under certain circumstances, to *force* his or her lender to modify the terms of the mortgage by allowing the principal amount of the mortgage to be reduced to the home's fair market value. And, the implementation of this measure will not cost taxpayers a *single penny*.

The ''Home Foreclosure Reduction Act of 2015'' is identical to H.R. 101 (introduced in the 113th Congress) and H.R. 1587 (introduced in the 112th Congress). It contains similar provisions included in H.R. 1106, which the House passed nearly six years ago. Unfortunately, those provisions were removed in the Senate and not included in the final version of the bill that was subsequently enacted into law.

SECTION-BY-SECTION EXPLANATION OF PROVISIONS

Section 1. Short Title. Section 1 sets forth the short title of this Act as the ''Home Foreclosure Reduction Act of 2015.''

Section 2. Definition. Bankruptcy Code section 101 defines various terms. Section 2 amends this provision to add a definition of ''qualified loan modification,'' which is defined as a loan modification agreement made in accordance with the guidelines of the Obama Administration's Homeowner Affordability and Stability Plan, as implemented on March 4, 2009 with respect to a loan secured by a senior security interest in the debtor's principal residence. To qualify as such, the agreement must reduce the debtor's mortgage payment (including principal and interest) and payments for various other specified expenses (i.e., real estate taxes, hazard insurance, mortgage insurance premium, homeowners' association dues, ground rent, and special assessments) to a percentage of the debtor's income in accordance with such guidelines. The payment may not include any period of negative amortization and it must fully amortize the outstanding mortgage principal. In addition, the agreement must not require the debtor to pay any fees or charges to obtain the modification. Further, the agreement must permit the debtor to continue to make these payments as if he or she had not filed for bankruptcy relief.

Section 3. Eligibility for Relief. Section 3 amends Bankruptcy Code section 109, which specifies the eligibility criteria for filing for bankruptcy relief, in two respects. First, it amends Bankruptcy Code section 109(e), which sets forth secured and unsecured debt limits to establish a debtor's eligibility for relief under chapter 13. Section 3 amends this provision to provide that the computation of debts does not include the secured or unsecured portions of debts secured by the debtor's principal residence, under certain circumstances. The exception applies if the value of the debtor's principal residence as of the date of the order for relief under chapter 13 is less than the applicable maximum amount of the secured debt limit specified in section 109(e). Alternatively, the exception applies if the debtor's principal residence was sold in foreclosure or the debtor surrendered such residence to the creditor and the value of such residence as of the date of the order for relief under chapter 13 is less than the secured debt limit specified in section 109(e). This amendment is not intended to create personal liability on a debt if there would not otherwise be personal liability on such debt.

Second, section 3 amends Bankruptcy Code section 109(h), which requires a debtor to receive credit counseling within the 180-day period prior to filing for bankruptcy relief, with limited exception. Section 3 amends this provision to allow a chapter 13 debtor to satisfy this requirement within 30 days *after* filing for bankruptcy relief if he or she submits to the court a certification that the debtor has received notice that the holder of a claim secured by the debtor's principal residence may commence a foreclosure proceeding.

Section 4. Prohibiting Claims Arising from Violations of the Truth in Lending Act. Under the Truth in Lending Act, a mortgagor has a right of rescission with respect to a mortgage secured by his or her residence, under certain circumstances. Bankruptcy Code section 502(b) enumerates various claims of creditors that are not entitled to payment in a bankruptcy case, subject to certain exceptions. Section 4 amends Bankruptcy Code section 502(b) to provide that a claim for a loan secured by a security interest in the debtor's principal residence is not entitled to payment in a bankruptcy case to the extent that such claim is subject to a remedy for rescission under the Truth in Lending Act, notwithstanding the prior entry of a foreclosure judgment. In addition, section 4 specifies that nothing in this provision may be construed to modify, impair, or supersede any other right of the debtor.

Section 5. Authority to Modify Certain Mortgages. Under Bankruptcy Code section 1322(b)(2), a chapter 13 plan may not modify the terms of a mortgage secured solely by real property that is the debtor's principal residence. Section 5 amends Bankruptcy Code section 1322(b) to create a limited exception to this prohibition. As amended, the exception only applies to a mortgage that: (1) originated before the effective date of this amendment; and (2) is the subject of a notice that a foreclosure may be (or has been) commenced with respect to such mortgage.

In addition, the debtor must certify pursuant to new section 1322(h) that he or she contacted—not less than 30 days before filing for bankruptcy relief—the mortgagee (or the entity collecting payments on behalf of such mortgagee) regarding modification of the mortgage. The debtor must also certify that he or she provided the mortgagee (or the entity collecting payments on behalf of such mortgagee) a written statement of the debtor's current income, expenses, and debt in a format that substantially conforms with the schedules required under Bankruptcy Code section 521 or with such other form as promulgated by the Judicial Conference of the United States. Further, the certification must include a statement that the debtor considered any qualified loan modification offered to the debtor by the mortgagee (or the entity collecting payments on behalf of such holder). This requirement does not apply if the foreclosure sale is scheduled to

occur within 30 days of the date on which the debtor files for bankruptcy relief. If the chapter 13 case is pending at the time new section 1322(h) becomes effective, then the debtor must certify that he or she attempted to contact the mortgagee (or the entity collecting payments on behalf of such mortgagee) regarding modification of the mortgage before either: (1) filing a plan under Bankruptcy Code section 1321 that contains a modification pursuant to new section 1322(b)(11); or (2) modifying a plan under Bankruptcy Code section 1323 or section 1329 to contain a modification pursuant to new section 1322(b)(11).

Under new section 1322(b)(11), the debtor may propose a plan modifying the rights of the mortgagee (and the rights of the holder of any claim secured by a subordinate security interest in such residence) in several respects. It is important to note that the intent of new section 1322(b)(11) is permissive. Accordingly, a chapter 13 may propose a plan that proposes any or all types of modification authorized under section 1322(b)(11).

First, the plan may provide for payment of the amount of the allowed secured claim as determined under section 506(a)(1). In making such determination, the court, pursuant to new section 1322(i), must use the fair arket value of the property at the date that such value is determined. If the issue of value is contested, the court must determine such value in accordance with the appraisal rules used by the Federal Housing Administration.

Second, the plan may prohibit, reduce, or delay any adjustable interest rate applicable on, and after, the date of the filing of the plan.

Third, it may extend the repayment period of the mortgage for a period that is not longer than the longer of 40 years (reduced by the period for which the mortgage has been outstanding) or the remaining term of the mortgage beginning on the date of the order for relief under chapter 13.

Fourth, the plan may provide for the payment of interest at a fixed annual rate equal to the applicable average prime offer rate as of the date of the order for relief under chapter 13, as determined pursuant to certain specified criteria. The rate must correspond to the repayment term determined under new section 1322(b)(11)(C)(i) as published by the Federal Financial Institutions Examination Council in its table entitled, ''Average Prime Offer Rates—Fixed.'' In addition, the rate must include a reasonable premium for risk.

Fifth, the plan, pursuant to new section 1322(b)(11)(D), may provide for payments of such modified mortgage directly to the holder of the claim or, at the discretion of the court, through the chapter 13 trustee during the term of the plan. The reference in new section 1322(b)(11)(D) to ''holder of the claim'' is intended to include a servicer of such mortgage for such holder. It is anticipated that the court, in exercising its discretion with respect to allowing the debtor to make payments directly to the mortgagee or by requiring payments to be made through the chapter 13 trustee, will take into consideration the debtor's ability to pay the trustee's fees on payments disbursed through the trustee.

New section 1322(g) provides that a claim may be reduced under new section 1322(b)(11)(A) only on the condition that the debtor agrees to pay the mortgagee a stated portion of the net proceeds of sale should the home be sold before the completion of all payments under the chapter 13 plan or before the debtor receives a discharge under section 1328(b). The debtor must pay these proceeds to the mortgagee within 15 days of when the debtor receives the net sales proceeds.

If the residence is sold in the first year following the effective date of the chapter 13 plan, the mortgagee is to receive 90 percent of the difference between the sales price and the amount of the claim as originally determined under section 1322(b)(11) (plus costs of sale and improvements), but not to exceed the unpaid amount of the allowed secured claim determined as if such claim had not been reduced under new section 1322(b)(11)(A). If the residence is sold in the second year following the effective date of the chapter 13 plan, then the applicable percentage is 70 percent. If the residence is sold in the third year following the effective date of the chapter 13 plan, then the applicable percentage is 50 percent. If the residence is sold in the fourth year following the effective date of the chapter 13 plan, then the applicable percentage is 30 percent. If the residence is sold in the fifth year following the effective date of the chapter 13 plan, then the applicable percentage is ten percent. It is the intent of this provision that if the unsecured portion of the mortgagee's claim is partially paid under this provision it should be reconsidered under 502(j) and reduced accordingly.

Section 6. Combating Excessive Fees. Section 6 amends Bankruptcy Code section 1322(c) to provide that the debtor, the debtor's property, and property of the bankruptcy estate are not liable for a fee, cost, or charge that is incurred while the chapter 13 case is pending and that arises from a claim for debt secured by the debtor's principal residence, unless the holder of the claim complies with certain requirements. It is the intent of this provision that its reference to a fee, cost, or charge includes an increase in any applicable rate of interest for such claim. It also applies to a change in escrow account payments.

To ensure such fee, cost, or charge is allowed, the claimant must comply with certain requirements. First, the claimant must file with the court and serve on the chapter 13 trustee, the debtor, and the debtor's attorney an annual notice of such fee, cost, or charge (or on a more frequent basis as the court determines) before the earlier of either: one year of when such fee, cost, or charge was incurred, or 60 days before the case is closed. Second, the fee, cost, or charge must be lawful under applicable nonbankruptcy law, reasonable, and provided for in the applicable security agreement. Third, the value of the debtor's principal residence must be greater than the amount of such claim, including such fee, cost or charge.

If the holder fails to give the required notice, such failure is deemed to be a waiver of any claim for such fees, costs, or charges for all purposes. Any attempt to collect such fees, costs, or charges constitutes a violation of the Bankruptcy Code's discharge injunction under section 524(a)(2) or the automatic stay under section 362(a), whichever is applicable.

Section 6 further provides that a chapter 13 plan may waive any prepayment penalty on a claim secured by the debtor's principal residence.

Section 7. Confirmation of Plan. Bankruptcy Code section 1325 sets forth the criteria for confirmation of a chapter 13 plan. Section 7 amends section 1325(a)(5) (which specifies the mandatory treatment that an allowed secured claim provided for under the plan must receive) to provide an exception for a claim modified under new section 1322(b)(11). The amendment also clarifies that payments under a plan that includes a modification of a claim under new section 1322(b)(11) must be in equal monthly amounts pursuant to section 1325(a)(5)(B)(iii)(I).

In addition, section 7 specifies certain protections for a creditor whose rights are modified under new section 1322(b)(11). As a condition of confirmation, new section 1325(a)(10) requires a plan to provide that the creditor must retain its lien until the later of when: (1) the holder's allowed secured claim (as modified) is paid; (2) the debtor completes all payments under the chapter 13 plan; or (3) if applicable, the debtor receives a discharge under section 1328(b).

Section 7 also provides standards for confirming a chapter 13 plan that modifies a claim pursuant to new section 1322(b)(11). First, the debtor cannot have been convicted of obtaining by actual fraud the extension, renewal, or refinancing of credit that gives rise to such modified claim. Second, the modification must be in good faith. Lack of good faith exists if the debtor has no need for relief under this provision because the debtor can pay all of his or her debts and any future payment increases on such debts without difficulty for the foreseeable future, including the positive amortization of mortgage debt. In determining whether a modification under section 1322(b)(11) that reduces the principal amount of the loan is made in good faith, the court must consider whether the holder of the claim (or the entity collecting payments on behalf of such holder) has offered the debtor a qualified loan modification that would enable the debtor to pay such debts and such loan without reducing the principal amount of the mortgage.

Section 7 further amends section 1325 to add a new provision. New section 1325(d) authorizes the court, on request of the debtor or the mortgage holder, to confirm a plan proposing to reduce the interest rate lower than that specified in new section 1322(b)(11)(C)(ii), provided:

(1) the modification does not reduce the mortgage principal; (2) the total mortgage payment is reduced through interest rate reduction to the percentage of the debtor's income that is the standard for a modification in accordance with the Obama Administration's Homeowner Affordability and Stability Plan, as implemented on March 4, 2009; (3) the court determines that the debtor can afford such modification in light of the debtor's financial situation, after allowance of expense amounts that would be permitted for a debtor subject to section 1325(b)(3), regardless of whether the debtor is otherwise subject to such paragraph, and taking into account additional debts and fees that are to be paid in chapter 13 and thereafter; and (4) the debtor is able to prevent foreclosure and pay a fully amortizing 30-year loan at such reduced interest rate without such reduction in principal. If the mortgage holder accepts a debtor's proposed modification under this provision, the plan's treatment is deemed to satisfy the requirements of section 1325(a)(5)(A) and the proposal should not be rejected by the court.

Section 8. Discharge. Bankruptcy Code section 1328 sets forth the requirements by which a chapter 13 debtor may obtain a discharge and the scope of such discharge. Section 8 amends section 1328(a) to clarify that the unpaid portion of an allowed secured claim modified under new section 1322(b)(11) is not discharged. This provision is not intended to create a claim for a deficiency where such a claim would not otherwise exist.

Section 9. Standing Trustee Fees. Section 9(a) amends 28 U.S.C. § 586(e)(1)(B)(i) to provide that a chapter 13 trustee may receive a commission set by the Attorney General of no more than four percent on payments made under a chapter 13 plan and disbursed by the chapter 13 trustee to a creditor whose claim was modified under Bankruptcy Code section 1322(b)(11), unless the bankruptcy court waives such fees based on a determination that the debtor has income less than 150 percent of the official poverty line applicable to the size of the debtor's family and payment

of such fees would render the debtor's plan infeasible.

With respect to districts not under the United States trustee system, section 9(b) makes a conforming revision to section 302(d)(3) of the Bankruptcy Judges, United States Trustees, and Family Farmer Bankruptcy Act of 1986.

Section 10. Effective Date; Application of Amendments. Section 10(a) provides that this measure and the amendments made by it, except as provided in subsection (b), take effect on the Act's date of enactment.

Section 10(b)(1) provides, except as provided in paragraph (2), that the amendments made by this measure apply to cases commenced under title 11 of the United States Code before, on, or after the Act's date of enactment. Section 10(b)(2) specifies that paragraph (1) does not apply with respect to cases that are closed under the Bankruptcy Code as of the date of the enactment of this Act.

Section 11. GAO Study. Section 11 requires the Government Accountability Office to complete a study and to submit a report to the House and Senate Judiciary Committees within two years from the enactment of this Act. The report must contain the results of the study of: (1) the number of debtors who filed cases under chapter 13, during the one-year period beginning on the date of the enactment of this Act for the purpose of restructuring their principal residence mortgages; (2) the number of mortgages restructured under this Act that subsequently resulted in default and foreclosure; (3) a comparison between the effectiveness of mortgages restructured under programs outside of bankruptcy, such as Hope Now and Hope for Homeowners, and mortgages restructured under this Act; (4) the number of appeals in cases where mortgages were restructured under this Act; (5) the number of such appeals where the bankruptcy court's decision was overturned; and (6) the number of bankruptcy judges disciplined as a result of actions taken to restructure mortgages under this Act. In addition, the report must include a recommendation as to whether such amendments should be amended to include a sunset clause.

Section 12. Report to Congress. Not later than 18 months after the date of enactment of this Act, the Government Accountability Office, in consultation with the Federal Housing Administration, must submit to Congress a report containing: (1) a comprehensive review of the effects of the Act's amendments on bankruptcy courts; (2) a survey of whether the types of homeowners eligible for the program should be limited; and (3) a recommendation on whether such amendments should remain in effect.

RECOGNIZING DUANE BURLINGAME OF FREEPORT, ILLINOIS

HON. CHERI BUSTOS

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mrs. BUSTOS. Mr. Speaker, I rise today to talk about Mr. Duane Burlingame of Freeport, Illinois.

Duane Burlingame is a tremendous athlete and is currently one of the top master powerlifters in the world. He has won six world titles and recently achieved best lifter heavyweight honors at the 18th annual Welker Engineering World Association of Bench Pressers and Deadlifters Championships in Las Vegas. He has accomplished all of this despite previous injuries, and while serving his community.

Duane Burlingame truly lives his life for others while doing what he loves to do. Over his 17 year career, he has raised funds for SIDS, the American Cancer Society, and St. Jude Children's Hospital through asking friends and supporters to pledge money per pound he lifts. By lifting 551 pounds for one of his most recent competitions, he made it clear that he is putting his talent to work for the benefit of those in need in a very big way. This year, Duane Burlingame will be sending toys to children at St. Judes' for Christmas. He explained that he was "much more excited going out and buying toys to send to children" than when he went to the World Championships. He believes that by giving back during difficult times we can all make a big difference. Duane also runs a personal training business and has previously provided fitness and nutrition plans free of charge to those in his community in need.

Mr. Speaker, I'd like to thank Duane Burlingame for his dedication to our community and for supporting important organizations that help to keep all of our communities healthy.

HONORING NAMM'S DEALER OF THE YEAR THE CANDYMAN STRINGS & THINGS

HON. BEN RAY LUJÁN

OF NEW MEXICO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. BEN RAY LUJÁN of New Mexico. Mr. Speaker, I rise today to recognize the National Association of Music Merchants (NAMM) Dealer of the Year, The Candyman Strings & Things of Santa Fe.

The Candyman Strings & Things, owned by Rand and Cindy Cook, has been a staple in the Santa Fe community since they opened its doors in 1969, and was awarded Dealer of the Year for its innovative and effective practices, as well as for setting an outstanding example for its peers in the musical instrument and products industry. Additionally, Candyman was also given the Music Makes a Difference award for promoting music in its community. Candyman serves to inspire its industry and also aspires to serve its community through numerous educational and scholarship programs. Through its charitable contributions and outreach work, Candyman has made a difference in the lives of customers, schools, and children.

Small businesses are an important part of local communities. Candyman is an example of a small business that has been successful and has had a positive impact in Northern New Mexico. While I applaud Candyman's efforts to ensure a high level of service to its customers, I am even more impressed by its service to the community and efforts to provide mentoring and learning opportunities for young music enthusiasts. Once again, I congratulate The Candyman Strings & Things for being awarded both the Dealer of the Year and Music Makes a Difference awards, and thank the entire team for its exceptional service to our community.

HONORING FRANK ''LARRY'' RUHSTALLER

HON. JEFF DENHAM

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. DENHAM. Mr. Speaker, I rise today to acknowledge and honor San Joaquin County Supervisor Frank "Larry" Ruhstaller on his retirement from the San Joaquin County Board of Supervisors and to thank him for his dedicated, life-long spirit of community service.

Mr. Ruhstaller was born in San Francisco on April 3, 1948. He is a third generation Stocktonian and a graduate of the University of California at Berkeley where he earned his Bachelors of Arts in US History emphasizing in US City Planning. Larry was a Lieutenant Junior Grade in the U.S. Navy.

Currently, Larry is serving his eighth year on the San Joaquin County Board of Supervisors representing the 2nd District, which encompasses most of central and northern Stockton.

During his tenure as Supervisor, Larry has been instrumental in creating a green purchasing policy for the county departments and has been a strong advocate for a comprehensive Delta restoration plan, serving the Chairman of the Delta Protection Commission and as a member of the Delta Stewardship Council and the 5 Delta Counties Coalition. Supervisor Ruhstaller also serves on the Board of Directors of the Health Plan of San Joaquin, the Mental Health Board and Hospital Medical Executive Committee, overseeing the San Joaquin General Hospital operations. In addition, Larry serves as the Board Representative on the Local Agency Formation Commission and as Chairman of the San Joaquin Flood Control Agency.

Prior to his election to the Board, Larry served two terms on the Stockton City Council from 1997–2004. His community involvement includes time as the Chairman of the Stockton Asparagus Festival and President of the Board of Directors of the Stockton Visitors and Convention Bureau.

Frank and his wife, Kitty, have been married 28 years. They have 3 children and 4 grandchildren.

Mr. Speaker, please join me in honoring San Joaquin County Supervisor Larry Ruhstaller on his retirement and thank him for his exemplary leadership and service to the community.

REMEMBERING CLINT REIF

HON. MIKE QUIGLEY

OF ILLINOIS

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. QUIGLEY. Mr. Speaker, I rise today to remember and honor the life of an important and respected member of the Chicago community.

On December 21st, we lost a vital asset and key individual to the Chicago Blackhawks team, with the passing of Clint Reif.

In his ninth season with the Blackhawks and sixth as assistant equipment manager, Clint ensured that his team was suited up and ready to play to the best of their ability day in and day out.

Arriving early and leaving late, Clint had one of the all-important duties of maintaining and repairing equipment. And we all know how gentle hockey players are on their equipment. Because of Clint's attention to detail and professionalism, no Blackhawks player was ever left on the ice without exactly what he needed.

But beyond that, he was a family man, with four charming children—Florence, C.J., Aislynn and Colette—and his loving wife, Kelly. He was also devoted to his community, spearheading the team's initiative to outfit the Wounded Warriors hockey team with brand new equipment this past March. The Wounded Warriors Project (WWP) aims to raise awareness and enlist the public's generosity for the needs of injured service members. Clint respected and admired those brave men and women who fought to ensure our freedoms and gave back in true Clint fashion—with hockey equipment.

Another great sports influence in the city of Chicago, Phil Jackson, once said, ''The strength of the team is each individual member. The strength of each member is the team.'' With the passing of Clint, the Chicago Blackhawks lost an irreplaceable individual from their team, one that helped lead them to two Stanley Cup Championships.

A one of a kind guy, Clint will be greatly missed by the Blackhawks, the City of Chicago and the entire hockey community.

I ask my colleagues to join me in honoring and celebrating his life.

INTRODUCTION OF A BILL TO PROTECT THE PRIVACY OF CONSUMERS AND REDUCE THEIR VULNERABILITY TO IDENTITY THEFT

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, today, I am introducing the ''Cyber Privacy Fortification Act of 2014.'' This bill would provide criminal penalties for the failure to comply with federal or state obligations to report security breaches of the sensitive personally identifiable information of individuals. Certain breaches would also be required to be reported to the FBI or the Secret Service. The bill would also require federal agencies engaged in rulemaking related to personally identifiable information to publish privacy impact statements relating to the impact of the proposed rule.

One of the main motivators for cybercrime and computer network intrusions is financial gain. Intrusions into networks of financial institutions and businesses may yield information, often on a large scale, about customers such as credit and debit card numbers, Social Security numbers, birth dates, account passwords, and other personally identifiable information. Information obtained through such data breaches may be used to steal from the accounts of the customers, use their credit cards, hack into their personal communications, or the information may be sold to others who commit these crimes or compile provides about individuals which others might find valuable.

With constant revelations about new data breaches impacting millions of Americans, we must take additional steps to protect the sensitive information of consumers maintained on corporate databases. This bill will provide a greater incentive for companies to provide notice of breaches consumers' sensitive information such as Social Security numbers and financial account numbers. This protects the privacy of our citizens and allows them to be vigilant against identity theft.

TRIBUTES FOR GOV. JAMES B. EDWARDS

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. WILSON of South Carolina. Mr. Speaker, the hometown, Charleston Lowcountry daily newspaper of the Post and Courier recognized Doctor Edwards with a thoughtful editorial and heartfelt columns were provided by former staffers Robert G. Liming and Ron Brinson.

[From The Post and Courier, Dec. 27, 2014]

JAMES B. EDWARDS

James B. Edwards exhibited, among many other positive attributes, a keen sense of the politically possible. So when the oral surgeon from Mount Pleasant launched his 1974 gubernatorial bid, he knew it was a very long shot.

Yet he also knew something few politicians or pundits of that time realized: A powerful public demand for limited government and fiscal responsibility—and for a more conservative Republican party to lead that charge—was on the rise.

It was made to order for Dr. Edwards' political philosophy. And his engaging personal style helped him advance those goals on behalf of the public he served so well for so long as, among other jobs, governor of South Carolina and president of the Medical University of South Carolina.

His death Friday at age 87 warrants a fresh recognition of his remarkable, admirable legacy—in and out of elective office.

How stacked did the deck look against Dr. Edwards' 1974 run for governor?

It had been less than two years since he had won his first elective office as a state senator. It had been three years since he had lost his run for the 1st District congressional seat, though he did win the GOP nonmination in that race.

And it had been 100 years since South Carolinians had elected a Republican governor. Dr. Edwards' GOP primary opponent, retired Gen. William Westmoreland, had a huge name-recognition edge. And even after Dr. Edwards won that primary, he again was the underdog in the general election.

But Democratic primary winner Charles ''Pug'' Ravenel was removed as his party's nominee on a residency challenge, elevating runner-up William Jennings Bryan Dorn to the ballot. Dr. Edwards made 20th century history by defeating the 13-term congressman from the 3rd District.

During his 1975–79 gubernatoral tenure, Dr. Edwards further established himself as a major player in the GOP's shift to the right. After initially supporting former Texas Gov. John Connally, Gov. Edwards became a prominent supporter of Ronald Reagan's 1976 bid for the party's presidential nomination against incumbent Gerald Ford. Though that effort fell short, it set the stage for Mr. Reagan's successful 1980 run.

Despite his solid conservative credentials, Gov. Edwards established himself as a master of crossing party lines. As governor, he worked with the Democratic-controlled Senate and House to expand South Carolina's industrial base with assorted incentives, uplift poor school districts with the Education Finance Act and protect the state's long-term financial stability with a ''rainy day'' fund.

Gov. Edwards also advanced the reorganization of state government. One of his allies in Columbia, Carroll Campbell, later became an effective champion of that cause during his two terms as governor (1987–95).

S.C. governors were limited to a single term when Dr. Edwards served in that position. So after Mr. Reagan won the presidency in 1980, Dr. Edwards became U.S. energy secretary.

He and President Reagan advocated eliminating the department. As then-Secretary Edwards warned: ''There is only one thing that produces energy, and that's the private sector, which government has hamstrung.''

Secretary Edwards and his boss pushed to fold the agency into the Department of Commerce. Though Congress wouldn't go along with that, Energy Secretary Edwards did manage to deeply cut the agency's budget and reduce its staff by 2,000.

He stepped up to another challenge in 1996, joining fellow former Govs. Campbell, John West, Robert McNair and Dick Riley in bipartisan backing of Gov. David Beasley's courageous call to remove the Confederate battle flag from the Statehouse dome.

And under his 1982–99 leadership as MUSC president, the size of the campus more than tripled from 1.5 million square feet to 5 million square feet. Along the expanding way, MUSC's reputation for providing both high-quality medical education and health care grew, too. In that ongoing process, the school has attracted top medical, research and teaching talent.

MUSC paid fitting tribute to its former leader in 2010 when it dedicated the James B. Edwards College of Dental Medicine. At the time of the dental college dedication, Dr. Jack Sanders, dean of that school, offered this accurate assessment of Dr. Edwards' lasting contributions:

''His entire life stands as a testament to the values of integrity and service, which we hope to instill in each of our students.''

James B. Edwards' legacy in South Carolina, at MUSC and beyond will long live on.

[From The Post and Courier, Dec. 27, 2014]

JIM EDWARDS HAD TRANSFORMATIVE ROLE IN S.C. SHIFT TO GOP

(By Robert G. Liming)

He wasn't a four-star general, legendary Old South congressman or media-savvy Wall Street investment broker, yet he forever transformed Palmetto State politics.

James Burrows Edwards was the exception to every rule in predictable partisan politics. The affable oral surgeon was given no chance of being elected as he paid his filing fee at GOP Headquarters on Columbia's Harden Street in spring of 1974.

He defied backroom dealmakers in the then fledgling Republican Party by thrashing their hand-picked contender, West Pointer Gen. William C. Westmoreland, in the Republican primary.

Democratic Party bosses were so fearful of a Westmoreland candidacy they failed to notice the meteoric rise of Wall Street whiz Charles D. ''Pug'' Ravenel who used slick television ads and media manipulation to stunningly defeat their anointed, veteran Greenwood congressman, William Jennings Bryan Dorn, in a bitterly contested primary.

Dorn surprisingly became the eventual Democratic nominee after a tumultuous legal battle resulting in a Supreme Court ruling disqualifying Ravenel because he failed to meet the state's legal residency requirement. The court's decision paved the

way for Edwards' implausible November election win. His cash-starved campaign's upset signaled the end of the Democratic death-grip dominance over the state's 46 county courthouses.

Jim Edwards took the oath on a frigid January morning in 1975 and rocked the very political foundation of the Statehouse. Defying political pundits and power brokers, he became the first Republican chief executive since the Union troops fled Columbia, leaving then-Gov. Daniel Chamberlain holding his empty carpetbag.

Most current ''life-long'' Republican officeholders never met Jim, and those who did can hardly grasp the fact they owe their very opportunity to serve to his courage, character and dedication to public service. There were less than two dozen Republicans in the legislature in 1974, and Nikki Haley was only three years old the evening Jim gave his first state of the State address.

I was a brash and flippant political reporter when I accepted the role as his official spokesman, a hard choice for him since he really didn't know me well. But like so many decisions he made, Jim took his time, weighed all the facts, sought the advice of others and made the final decision on his own. We grew closer and soon our inner office humor abounded, I recall how I coined his nickname as ''veto king'' and he labeled me as ''Dr. No'' because of the effort I put into composing the veto messages he signed on numerous pieces of legislation. As a Republican it was his strongest weapon against a Democratic-dominated General Assembly when compromise became impossible.

In today's atmosphere of instant assessment, weblogs of every ilk, and babbling talking heads few if any will recall his countless accomplishments. Jim's strongest skill was his personal ability to sit down one on one and resolve issues, a talent so sadly missing today in Columbia and Washington. Jim was the leader in establishing the state's ''rainy day'' reserve fund to cover budget shortfalls and unforeseen emergencies; he championed the Education Finance Act to ensure equal funding options for all public schools; led the fight for the state's first tidelands protection laws; and pioneered the reform of the state's festeringly inefficient and ineffective cash-devouring welfare system.

He had no political hit list and he held no grudges. Jim was guided by the wisdom and character he learned from his school teacher parents; the patriotism he shared as a Merchant Marine and later Navy officer; the caring he learned as a surgeon; and his abiding faith and trust in God.

His first love was for his forever first lady, Ann, their precious daughter and son, Catherine and James Jr., and the beloved grandchildren. Yet there was always a special place in his heart for the people of South Carolina, including the Allendale dyed-in-the-wool Democrat farmer who Jim always trusted because he voted for the other guy!

As I recall Jim, this verse will always come to mind: Mark 1:11. We will miss you and your wonderful smile; you were an extraordinary governor, wonderful boss and a dear friend.

[From The Post and Courier]

FUNDAMENTAL GOODNESS WAS THE ESSENCE OF JIM EDWARDS

(By Ron Brinson)

Jim Edwards has died, and there is a void in the heart and soul and political spirit of his beloved South Carolina.

This good man was an American patriot, a principled leader.

His gracious humility framed his soaring intellect.

His life was anchored by those simple old-fashioned American values of education and enterprise, of caring for your family and your neighbors and your country—and always translating that ''care'' with meaningful commitments and achievement.

He was my friend. He was everyone's friend.

History's bare facts will describe Dr. Edwards as one of those upstart Goldwater Republicans who back in the '60s forged a special brand of post-war American conservatism. He stood side by side with the likes of Ronald Reagan as the Grand Old Party of Abraham Lincoln was reborn, or in today's parlance, ''rebooted.''

But in the mid-'60s, Jim Edwards was a young oral surgeon, married to Ann Darlington, the love of his life, and they had a very young family. Personal and professional sacrifice defined his entry into what he once called ''patriot politics.'' He was determined, he said, to square America's political compass with ''the values and principles that make America America.''

In 1974, he was a Charleston-area state senator encouraged to run in the Republican primary for governor—against William Westmoreland, the retired four-star commanding general of U.S. forces in Vietnam. At the time it seemed to many—and perhaps to Dr. Edwards himself—that he was merely the sacrificial political lamb for Gen. Westmoreland's homecoming reach for the governor's office.

Four decades later, we might reckon it was a package of mysterious and fortuitous political providence at work, confecting a dramatic turning point for South Carolina's politics and for Jim Edwards' leadership career. Dr. Edwards was a natural born campaigner, so genuine and sincere. Truth is, Gen. Westmoreland really never had much of a chance to win that primary.

But then Jim Edwards didn't have much chance, either, to prevail in his general election campaign against Democrat Charles ''Pug'' Ravenel, the Charleston-born Wall Street whiz-kid investment banker. Ah, but providence often is a persistent force in the chancy processes of politics. Mr. Ravenel ran afoul of a five-year residential requirement. He might still have had Lowcountry pluff-mud in his toes, but the S.C. Supreme Court nullified his candidacy. Jim Edwards had performed well on the primary campaign trail, and some big-name folks with big bank accounts were lining up to respond to his call for a march back toward ''conservatism.''

U.S. Rep. William Jennings Bryan Dorn, D-Greenwood, with his late start and his party well off balance, had only a puncher's chance as Ravenel's replacement. On Nov. 5, 1974, James Burrows Edwards became the first Republican governor of South Carolina since Reconstruction. In his affable and witty manner, he declared. ''A lot of Democrats will say I'm the first mistake South Carolina has made in a hundred years.''

Dr. Edwards, in his inaugural speech, emphasized an often-neglected value of elected governance—results over partisanship. ''I begin not with any partisan goals or debts to any special interests, but rather as the recipient of a public trust from 2.8 million great people; people who are hungry for leadership that is not concerned with politics, but dedicated to building responsive and effective government. Let us all reach across political barriers and work together to improve our state . . .''

The politics of election and then governance are different, and for Gov. Edwards, ''non-partisanship'' equaled political smartness. With only a handful of Republicans in the Legislature, he worked proactively to calibrate agendas with Speaker of the House Sol Blatt, and Senate leaders Marion Gressette and Rembert Dennis.

''The agenda is important,'' he once told Sens. Gressette and Dennis. ''But we have to work, too, on how best to work together.''

A few years ago, he lamented with that warming smile, ''Sometimes, it feels like the biggest problem with Republicans is that we've forgotten how to get along with each other.''

Everyone, it seemed, got along with Jim Edwards. His gubernatorial record showed steady improvements fiscally and in public education, a nice package of organizational and management reforms and a new emphasis on marketing South Carolina for industrial and commercial growth. Against the very strong opposition of his Mount Pleasant neighbors, Gov. Edwards approved the S.C. State Ports Authority,s Wando container terminal project.

And folks always appreciated Jim Edwards' ''style'' of friendship and loyalty.

As President Reagan's energy secretary, he fronted Reagan's agenda to terminate the Department of Energy. Editorialists were merciless. ''It was a joyless ride of misinformed 'establishment' ridicule,'' Dr. Edwards once said, laughing. ''But President Reagan felt very strongly about this and my job was to try to get it done.''

The U.S. Department of Energy still stands, of course, but respect and admiration for Jim Edwards were ascending even as he left Washington in 1982 to assume the presidency of the Medical University of South Carolina. His tenure there was exceptional, especially in growing the school's foundation endowments, something very related to his standing in industry and politics.

Every elected leader should consider Jim Edwards' point about working first to get along with each other. Every American might consider the grid of patriotic and good governance principles that guided his personal, professional and political lives. But for those who knew this good man for a moment—or for 50 years—we will rejoice that we crossed paths with him.

A year ago, after Dr. Edwards had suffered a stroke, I asked him about his ''legacy.'' He answered softly, ''That can be so subjective; it's in the eyes of the beholder.''

I told him I wanted an answer, that I might be writing commentary one day about his ''legacy.''

He paused for a moment and then added, ''I hope someone will say I loved my family and my country, and that they noticed I always tried to do my best.''

Let us not be confused by such natural humility; Jim Edwards truly was a great man.

GUAM WORLD WAR II LOYALTY RECOGNITION ACT

HON. MADELEINE Z. BORDALLO

OF GUAM

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Ms. BORDALLO. Mr. Speaker, today I have introduced the Guam World War II Loyalty Recognition Act, a bill that would implement the findings of the Guam War Claims Review Commission. Since being elected to the House of Representatives ten years ago, I have introduced a version of this legislation in each Congress. Over the last several Congresses, H.R. 44 passed the House on five separate occasions.

This bill would implement the recommendations of the Guam War Claims Review Commission, which was appointed by Secretary of

the Interior Gale Norton and established by an Act of the 107th Congress (Public Law 107–333). The Review Commission, in a unanimous report to Congress in June 2004, found that there were significant disparities in the treatment of war claims for the people of Guam as compared with war claims for other Americans. The Review Commission also found that the occupation of Guam was especially brutal due to the unfailing loyalty of the people of Guam to the United States of America. The people of Guam were subjected to forced labor, forced marches, internment, beatings, rapes and executions, including public beheadings. The Review Commission recommended that Congress remedy this injustice through the enactment of legislation to authorize payment of claims in amounts specified. Specifically, the bill would authorize discretionary spending to pay claims consistent with the recommendations of the commission.

It is important to note that the Review Commission found that the United States Government seized Japanese assets during the war and that the record shows that settlement of claims was meant to be paid from these forfeitures. Furthermore, the United States signed a Treaty of Peace with Japan on September 8, 1951, which precludes Americans from making claims against Japan for war reparations. The treaty closed any legal mechanism for seeking redress from the Government of Japan, and the United States Government has settled claims for U.S. citizens and other nationals through various claims programs authorized by Congress.

The text that I introduce in this Congress addresses concerns that have been raised about the legislation. First, the text reflects a compromise that was reached with the Senate when they considered the legislation as a provision of the National Defense Authorization Act for Fiscal Year 2011. That compromise removes payment of claims to heirs of survivors who suffered personal injury during the enemy occupation. The bill continues to provide payment of claims to survivors of the occupation as well as to heirs of citizens of Guam who died during the occupation. The compromise continues to uphold the intent of recognizing the people of Guam for their loyalty to the United States during World War II.

Further, the bill that I introduce today contains an offset for the estimated cost of the bill. I understood the concerns express by some of my colleagues in a July 14, 2011 hearing on this legislation. My colleagues expressed concern that there was no offset to pay for the cost of the bill. Guam war claims has a very simple offset that will pay for the cost of the legislation over time. The bill would be paid by section 30 funding remitted to Guam through the U.S. Department of Interior at any level above section 30 funds that were remitted to Guam in fiscal year 2012. With the impending relocation of Marines from Okinawa to Guam as well as additional Navy and Air Force personnel relocating to Guam it is expected that Guam will receive additional section 30 funds. Claims would then be paid out over time based off the additional amounts that were made available in any given year. Not only does this offset address payment of claims but it only impacts my jurisdiction and is a credible source of funding that will ensure that claims will be paid. Moreover, the Congressional Budget Office (CBO) indicates in Senate report 113–146 that accompanied S. 1237, the Omnibus Territories Act of 2012, that the offset ensures the bill would not cost the federal government additional funds. Specifically it states, ''any such future payments due to Guam that exceed the amount paid in 2012 would instead be paid to a new U.S. Treasury fund that would be available to make compensation payments. CB0 estimates that the collection and spending of those funds would have no significant net impact on direct spending over the 2015–2024 period.'' Congressional passage of this bill has a direct impact on the future success of the military buildup. The need for Guam War Claims was brought about because of mishandling of war claims immediately following World War II by the Department of the Navy. The long-standing inequity with how Guam was treated for war reparations lingers today. If we do not bring this matter to a close I believe that support for the military build-up will erode and impact the readiness of our forces and the bilateral relationship with Japan.

Mr Speaker, resolving this issue is a matter of justice. This carefully crafted compromise legislation addresses the concerns of the Senate and fiscal conservatives in the House of Representatives. This bill represents a unique opportunity to right a wrong because many of the survivors of the occupation are nearing the end of their lives. It is important that the Congress act on the recommendations of the Guam War Claims Review Commission to finally resolve this longstanding injustice for the people of Guam.

PROTECTING EMPLOYEES AND RETIREES IN MUNICIPAL BANKRUPTCIES ACT OF 2015

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, I submit the following.

SUMMARY

When a municipality files for bankruptcy, its employees and retirees who have devoted their lives to public service—such as police officers, firefighters, sanitation workers and office personnel—risk having their hard-earned wages, pensions and health benefits cut or even eliminated.

This is why I am introducing the ''Protecting Employees and Retirees in Municipal Bankruptcies Act of 2015.'' This legislation strengthens protections for employees and retirees under chapter 9 municipality bankruptcy cases by: (1) clarifying the criteria that a municipality must meet before it can obtain chapter 9 bankruptcy relief; (2) ensuring that the interests of employees and retirees are represented in the chapter 9 case; and (3) imposing heightened standards that a municipality must meet before it may modify any collective bargaining agreement or retiree benefit.

While many municipalities often work to limit the impact of budget cuts on their employees and retirees, as demonstrated in the chapter 9 plan of adjustment approved by Detroit's public employees and retirees, other municipalities could try to use current bankruptcy law to set aside collective bargaining agreements and retiree protections.

My legislation addresses this risk by requiring the municipality to engage in meaningful good faith negotiations with its employees and retirees *before* the municipality can apply for chapter 9 bankruptcy relief. This measure would also expedite the appellate review process of whether a municipality has complied with this and other requirements. And, the bill ensures employees and retirees have a say in any plan that would modify their benefits.

SECTION-BY-SECTION EXPLANATION

Sec. 1. Short Title. Section 1 of the bill sets forth the short title of the bill as the ''Protecting Employees and Retirees in Municipal Bankruptcies Act of 2015.''

Sec. 2. Determination of Municipality Eligibility To Be a Debtor Under Chapter 9 of Title 11 of the United States Code. A municipality can petition to be a debtor under chapter 9, a specialized form of bankruptcy relief, only if a bankruptcy court finds by a preponderance of the evidence that the municipality satisfies certain criteria specified in Bankruptcy Code section 109. In the absence of obtaining the consent of a majority of its creditors, section 109 requires the municipality, in pertinent part, to have negotiated in good faith with its creditors or prove that it is unable to negotiate with its creditors because such negotiation is impracticable.

Section 2(a) of the bill amends Bankruptcy Code section 109 in three respects. First, it provides clear guidance to the bankruptcy court that the term ''good faith'' is intended to have the same meaning as it has under the National Labor Relations Act at least with respect to creditors who are employees or retirees of the debtor. Second, section 2(a) revises the standard for futility of negotiation from ''impracticable'' to ''impossible.'' This change ensures that before a municipality may avail itself of chapter 9 bankruptcy relief it must prove that there was no possible way it could have engaged in negotiation in lieu of seeking such relief. Third, the amendment clarifies that the standard of proof that the municipality must meet is ''clear and convincing'' rather than a preponderance of the evidence. These revisions to section 109 will provide greater guidance to the bankruptcy court in assessing whether a municipality has satisfied the Bankruptcy Code's eligibility requirements for being granted relief under chapter 9.

Bankruptcy Code section 921(e), in relevant part, prohibits a bankruptcy court from ordering a stay of any proceeding arising in a chapter 9 case on account of an appeal from an order granting a municipality's petition to be a debtor under chapter 9. Section 2(b) strikes this prohibition thereby allowing a court to issue a stay of any proceeding during the pendency of such an appeal. This ensures that the status quo can be maintained until there is a final appellate determination of whether a municipality is legally eligible to be a chapter 9 debtor.

Typically, an appeal of a bankruptcy court decision is heard by a district or bankruptcy appellate panel court. Under limited circumstances, however, a direct appeal from a bankruptcy court decision may be heard by a court of appeals. Until a final determination is made as to whether a municipality is eligible to be a debtor under chapter 9 of the Bankruptcy Code, the rights and responsibilities of numerous stakeholders are unclear. To expedite the appellate process and promote greater certainty to all stakeholders in the case, section 2(c) of the bill allows an appeal of a bankruptcy court order granting a municipality's petition to be a chapter 9 debtor to be filed directly with the court of appeals. In addition, section 2(c) requires the court of appeals to hear such appeal *de novo* on the merits as well as to determine it on an expedited basis. Finally, section 2(c) specifies that the doctrine of equitable mootness does not apply to such an appeal.

Sec. 3. Protecting Employees and Retirees. The chapter 9 debtor must file a plan for the adjustment of the municipality's debts that then must be confirmed by the bankruptcy court if it satisfies certain criteria specified in Bankruptcy Code section 943. Section 3 of the bill makes several amendments to current law intended to ensure that interests of municipal employees and retirees are better protected. With respect to plan confirmation requirements, section 3 amends Bankruptcy Code section 943 to require consent from such employees and retirees to any plan that impairs—in a manner prohibited by nonbankruptcy law—a collective bargaining agreement, a retiree benefit, including an accrued pension, retiree health, or other retirement benefit protected by state or municipal law or as defined in Bankruptcy Code section 1114(a).

Such consent would be conveyed to the court by the authorized representative of such individuals. Subject to certain exceptions, section 3 specifies that the authorized representative of individuals receiving any retirement benefits pursuant to a collective bargaining agreement is the labor organization that signed such agreement unless such organization no longer represents active employees. Where the organization no longer represents active employees of the municipality, the labor organization that currently represents active employees in that bargaining unit is the authorized representative of such individuals.

Section 3 provides that the exceptions apply if: (1) the labor organization chooses not to serve as the authorized representative; or (2) the court determines, after a motion by a party in interest and after notice and a hearing, that different representation is appropriate. Under either circumstance, the court, upon motion by any party in interest and after notice and a hearing, must order the United States Trustee to appoint a committee of retired employees if the debtor seeks to modify or not pay the retiree benefits or if the court otherwise determines that it is appropriate for that committee be comprised of such individuals to serve as the authorized representative.

With respect to retired employees not covered by a collective bargaining agreement, the court, on motion by a party in interest after notice and a hearing, must order the United States Trustee to appoint a committee of retired employees if the debtor seeks to modify or not pay retiree benefits, or if the court otherwise determines that it is appropriate to serve as the authorized representative of such employees. Section 3 provides that the party requesting the appointment of a committee has the burden of proof.

Where the court grants a motion for the appointment of a retiree committee, section 3 requires the United States Trustee to choose individuals to serve on the committee on a proportional basis per capita based on organization membership from among members of the organizations that represent the individuals with respect to whom such order is entered. This requirement ensures that the committee, in a case where there are multiple labor organizations, fairly represents the interests of the members of those various organizations on a proportional basis.

Finally, section 3 of the bill imposes a significant threshold that must be met before retiree benefits can be reduced or eliminated. Current law has no such requirement. In a case where the municipality proposes in its plan to impair any right to a retiree benefit, section 3 permits the committee to support such impairment only if at least two-thirds of its members vote in favor of doing so.

OUR UNCONSCIONABLE NATIONAL DEBT

HON. MIKE COFFMAN

OF COLORADO

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. COFFMAN. Mr. Speaker, on January 20, 2009, the day President Obama took office, the national debt was $10,626,877,048,913.08.

Today, it is $18,080,402,933,324.23. We've added $7,453,735,606,331.18 to our debt in 5 years. This is over $7.4 trillion in debt our nation, our economy, and our children could have avoided with a balanced budget amendment.

HONORING MICK FOUNTS, ED.D., SAN JOAQUIN COUNTY SUPERINTENDENT OF EDUCATION

HON. JEFF DENHAM

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. DENHAM. Mr. Speaker, I rise today to acknowledge and honor Mick Founts, Ed.D., San Joaquin County Superintendent of Education, who is retiring after many years of outstanding service to our community.

In 1976, Mick Founts graduated from Humboldt State University with a B.A. in English. Four years later, he obtained his Master's Degree in Education and two credentials: Administrative and Pupil Personnel Services. Mick was awarded his Doctor of Education degree from University of the Pacific in 1995. During his 38 year career in education he has been an English classroom teacher, high school and college football coach, assistant principal for a continuation school, assistant principal for a comprehensive high school, a Coordinator of Child Welfare and Attendance, a Director of Alternative Programs, an Assistant Superintendent of Alternative Education Programs and Charters, an Associate Superintendent of County Operated Schools and Programs, Deputy Superintendent of San Joaquin County Office of Education Student Programs and Services, and in 2010 was elected as San Joaquin County Superintendent of Schools. As Superintendent of Schools, Founts is charged with the ultimate responsibility for all activities of San Joaquin County Office of Education.

In 1991 Mick began the San Joaquin County Office of Education Community School Program. The ''one.Program'' includes Court School as well as Community School and is recognized throughout the State as an innovative alternative education program. It now serves more than 1,500 at-risk students working to overcome obstacles leading to a high school diploma. Mick was the Juvenile Court, Community, and Alternative School Administrators of California President elect (1996–97), President (1997–1998), and Past President (1998–1999).

Superintendent Founts has either authorized or developed some of the most unique public charter schools in California. These include agricultural academies, technology sites, fine and performing arts high schools, collegiate sports academies, career and technical education academies, and many more . . . all within San Joaquin County. Dr. Founts currently served as a Commissioner on the California State Board of Education Advisory Commission on Charter Schools. His commitment to Career and Technical Education, Agriculture, Migrant Education, Technology, and Outdoor Education is constant, as is his commitment to Teachers College of San Joaquin; the first college operated by a County Office of education. This commitment extends to the many events that SJCOE sponsors for students throughout the County: Academic Decathlon, Science Olympiad, Math Olympiad, Mock Trial, as well as the local and State Spelling Bee, to name just a few.

In 2013, he was one of twenty Superintendents to work with Governor Brown to support the reform effort aimed at bringing more money to children in our schools. In addition, he championed a variety of programs to fill the void in operations and support programs created from budget cuts in sports, technology, and art clinics, as well as helped fundraise to send more than 200 students to Outdoor Education by way of fundraising.

Also during his term as San Joaquin County Office of Education Superintendent, Mick served as an environmental steward for schools by designing a cutting edge Solar Parking Lot linked to the SJCOE Clean Transportation Technologies Academy and New Energy Academy funded by a partnership between PG&E, SJCOE, and California Department of Education. Its curriculum is devoted to renewable energy and green technology topics with the goal of giving students a foundation for college and jobs in the clean tech industry.

Superintendent Founts was instrumental in the formation of the County's career academy concept that will prepare kids for work and college. His vision created a state-of-the-art career and technical education facility along with regional occupational programs and centers such as Career Academy of Cosmetology. In addition, through SJ Building Futures Academy and SJ Regional Conservation Corps, he helped give young adults viable work skills as well as keeping them off the street by providing a second chance at a high school diploma.

Like his taste for variety in education, Mick also enjoys an array of hobbies. In addition to his career in education, he is a ranch owner and farmer for his family's South African Boer Goat business Biggy Farms and regularly competes in National livestock shows. Mick played and coached both high school and college football and continues to enjoy sports. He can often be found at a local football or basketball game. Mick was raised in a musical family and played in bands during his younger years. He continues to play the guitar for his own enjoyment and has an appreciation for many different musical styles. He also has a love for Victorian homes and he and his family have enjoyed restoring one on their own property.

Mick's impact on students covers many years and it is not unusual to hear grown men refer to him as ''coach'' to this day. Previous students often call his office or stop by to share that they would not be where they are today had it not been for his influence. When Mick retires at the end of his term, he leaves a legacy that spans many generations.

Mr. Speaker, please join me in honoring and commending the outstanding contributions made to education and the San Joaquin community by Superintendent Mick Founts and

hereby wish him continued success in his retirement.

INTRODUCTION OF TWO CORPORATE CRIME BILLS

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, today, I am introducing two bills to help hold accountable corporations who market dangerous products and who violate the law. We rely on corporations to provide necessary goods and services to consumers and to provide jobs for our citizens. Unfortunately, sometimes corporations engage in acts that may harm us or that otherwise run afoul of the law. That is why I am introducing these measures.

The Dangerous Products Warning Act concerns businesses who learn that products they are marketing are dangerous but who do not inform the appropriate federal agency or warn the public.

It amends the federal criminal code to impose a fine and/or prison term of up to 5 years on any business entity or product supervisor with respect to a product or business practice who knows of a serious danger associated with such product or business practice and knowingly fails within 15 days after discovering such danger to inform an appropriate federal agency in writing, warn affected employees in writing, and inform other affected individuals. The bill imposes a fine and/or prison term of up to 1 year on any individual who intentionally discriminates against an employee who informs a federal agency or warns employees of a serious danger associated with a product or business practice.

The Corporate Crime Database Act deals with the concern that the public has inadequate means of learning about the degree to which companies are engaging in acts in violation of the law, and sets up a mechanism to track such violations and make the information available to the public.

The bill directs the Attorney General to: (1) acquire data, for each calendar year, regarding all administrative, civil, and criminal judicial proceedings against any corporation or corporate official involving a felony or misdemeanor or civil charge where potential fines may be $1,000 or more; (2) establish and maintain a publicly available website on improper conduct by all corporations with annual revenues of more than $1 billion; and (3) prepare an annual report to Congress detailing the number of civil, administrative, and criminal enforcement actions brought against any corporation or corporate official and the final dispositions of such actions.

With the enactment of these two bills, we would take important steps toward protecting our citizens from harm and empowering them to know which corporations are violating our laws.

TRIBUTE TO MAJOR JACOB ''JAKE'' A. WHITESIDE FOR EXCEPTIONAL SERVICE TO THE UNITED STATES ARMY

HON. PETER J. VISCLOSKY

OF INDIANA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. VISCLOSKY. Mr. Speaker, I rise to pay tribute to Major Jacob ''Jake'' A. Whiteside for his dedication to duty and service as a Defense Legislative Fellow. Major Whiteside will be transitioning from his present assignment with my office to serve as the Executive Officer for the 12th Aviation Battalion, United States Army.

A native of Memphis, Tennessee, Major Whiteside was accepted into the Carson-Newman University Reserve Officer Training Corps program in 1999, where he earned a Bachelor of Arts Degree in English Literature and graduated as a Distinguished Military Graduate with the class of 2003. Upon graduation, Jake was commissioned as an Army Aviation Branch Officer. He has subsequently earned a Master's degree in Legislative Affairs from the George Washington University.

Prior to entering the Army Congressional Fellowship Program, Jake served in numerous tactical leadership and staff assignments as an Army Aviation Branch Officer, and Scout/Attack OH–58 helicopter Pilot. Major Whiteside's assignments include Flight School Student, United States Army Aviation Center of Excellence, Fort Rucker; Flight Platoon Leader, 1st Battalion (Attack), 82nd Combat Aviation Brigade, Fort Bragg; Future Operations and Current Operations Officer, 1st Squadron, 17th CAV, Fort Bragg; Headquarters Troop Commander, 1st Squadron, 17th CAV, Fort Bragg; Student, Army Aviation Captain's Career Course, Army Aviation Center of Excellence, Fort Rucker; and most recently Aviation Branch Representative, United States Military Academy, West Point. Additionally, Major Whiteside was deployed in direct support of combat operations in Mosul, Iraq, in 2006–2007, and Regional Command—South, Afghanistan, in 2009–2010. While deployed, Jake accumulated over 500 hours of combat flight time in direct support of soldiers in the fight.

Throughout his career, Major Whiteside has positively impacted his soldiers, peers, and superiors. Our country has been enriched by his extraordinary leadership, thoughtful judgment, and exemplary work.

As a personal matter, in his role as Defense Legislative Fellow, Jake provided me with candid advice and became a trusted source of counsel to me, my personal staff, and committee staff. Blessed with a sterling intellect and nimble mind, he vigorously and effectively addressed any challenging task placed before him. Further, his incomparable work ethic, poise under pressure, and generosity will be sorely missed. To put it simply, Major Whiteside's performance has set a standard on which I will evaluate all future Congressional Fellows.

Mr. Speaker, it has been a genuine pleasure to have worked with Major Jake Whiteside over the last year. On behalf of a grateful nation, I join my colleagues today in recognizing and commending Jake for his service to his country and we wish him, his wife Marci, and boys, Bryce and Gavin, all the best as they continue their journey in the United States Army.

IN RECOGNITION OF THE 100TH BIRTHDAY OF MERCY HIGH SCHOOL BURLINGAME'S KOHL MANSION

HON. JACKIE SPEIER

OF CALIFORNIA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Ms. SPEIER. Mr. Speaker, I rise to honor the Centennial of Mercy High School Burlingame's Kohl Mansion, an historic and beautiful building with deep meaning for the community and for me personally. As an alumna of Mercy High and the mother of a daughter who also graduated from this outstanding school, this institution has shaped my life.

Today, Mercy High School Burlingame, a Catholic college preparatory high school, educates 400 young women a year, with the majority coming from San Mateo County. About three quarters of the students are Roman Catholic and 90 percent of the students are engaged in at least one extra-curricular activity. Mercy encourages students to discover themselves and explore their dreams; they receive an education of mind, body and spirit. This recipe and small class sizes prove to be highly successful. In the class of 2014, 87 percent matriculated to four year colleges and 13 percent matriculated to community colleges.

Mercy education finds its origins in Ireland in the ministry of Catherine McAuley, the foundress of the Sisters of Mercy. Their work is marked by a special concern for the needs of the poor, in particular women and children. This tradition continues to this day.

The Kohl Mansion was originally built from 1912 to 1914 by Charles Frederick ''Freddie'' Kohl for his wife Bessie. Kohl, born in San Jose in 1863, grew up in a mansion on an estate in San Mateo, now known as Central Park. His father had made a fortune as the founder of Alaska Commercial Company and so Kohl Junior was used to an opulent lifestyle. Freddie and Bessie's travels to Europe further inspired them to build the lavish four-story Tudor named ''The Oaks.''

In 1924, the Sisters of Mercy bought the house and turned it into a chapel. When the sisters moved down the hill to a new building, Principal Sister Mary Lorenzo Murphy and seven other nuns opened Mercy High School in the mansion in 1931, admitting 36 freshmen and sophomores.

The old Kohl Mansion has embraced technology and modern facilities. Mercy launched its website in 1999. Over the decades, a state-of-the art athletic center with an Olympic size pool, a commercial kitchen, a new cafeteria and a multi-media center were built, among the many improvements. At every step of the way, the focus of the school was to provide its students with the best education and learning environment possible.

Mr. Speaker, I ask the House of Representatives to rise with me to honor one of the finest high schools in the country, Mercy High School Burlingame on the occasion of the Kohl Mansion's 100th birthday. May this historic building remain the home of education and learning for centuries to come.

INTRODUCTION OF THE ''SHIELD OUR STREETS ACT OF 2015''

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, today, I am introducing an important bill to respond to the crisis that some jurisdictions are facing with respect to hiring police officers and funding programs to enhance public safety. This bill would establish two public safety grant programs.

Section 2 establishes Shield Police Hiring Grants, to be implemented by the Attorney General, to provide grants to law enforcement agencies that operate in Elevated Need Localities. An ''Elevated Need Locality'' is a county (or unit of local government which is not part of a county) which (1) has a crime rate above the national average, and (2) has had budget reductions during the most recent 5-year period. These law enforcement agencies could apply to the Attorney General to receive funds to hire law enforcement officers, or to rehire officers who have been laid off due to budget reductions.

Grants would last for three years and may be extended by two years at the discretion of the Attorney General. $100 million for each fiscal year 2016 through 2021 are authorized to be appropriated for this program.

Section 3 establishes Shield Public Safety Enhancement Grants, to be implemented by the Attorney General, to provide grants to units of local government that has jurisdiction over all or part of an Elevated Need Locality. Local governments could apply to the Attorney General to receive funds to enhance public safety in a number of ways, such as purchasing public safety equipment, finding public safety programs, making infrastructure improvements for the purpose of enhancing public safety, purchasing and installing street lights to deter crime, funding activities related to crime labs, and funding public defender programs. Non-profit organizations operating in Elevated Need Localities may also apply for grants under this program to fund initiatives designed to reduce crime in these jurisdictions.

Grants would be for one year but may be extended at the discretion of the Attorney General. $100 million for each fiscal year 2016 through 2021 are authorized to be appropriated for this program.

These programs will help enhance public safety in jurisdictions facing high crime rates and particularly acute budget issues. The programs would be available to fund the hiring of police officers and the operation of initiatives to address public safety and crime. Programs that enhance public safety will prevent crime, which will decrease the victimization of our citizens and reduce the financial costs associated with crime. That is why this legislation is necessary.

IN MEMORY OF GOVERNOR JAMES BURROWS EDWARDS

HON. JOE WILSON

OF SOUTH CAROLINA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. WILSON of South Carolina. Mr. Speaker, during Christmas week the people of South Carolina lost a true patriot with the death of Doctor James B. Edwards of Mount Pleasant. The following obituary highlights his love and affection for his devoted family and community.

JAMES BURROWS EDWARDS

OBITUARY

James Burrows Edwards Mt. Pleasant—James Burrows Edwards, DMD, 87, of Mount Pleasant, South Carolina, died Friday, December 26, 2014. Jim was born June 24, 1927, in Hawthorne, Florida to the late O.M. and Bertie Ray Edwards. Both parents were school teachers, careers which led them to St. Andrews, South Carolina, in 1935 and Mt. Pleasant in 1937.

As a boy in Mt. Pleasant, Jim spent his spare time at Ft. Moultrie, home of the 263rd Coast Artillery, and acquired a lifelong love of the military and life at sea. Jim graduated from Moultrie High School in June 1944, and took a job with the Army Transportation Corps as a deck hand on an L–78 tug boat. Though only 17 years old, he joined the Merchant Marines in December 1944. Jim was assigned to the Dogwood, a Liberty Ship converted to a hospital ship transporting wounded servicemen home from Europe. Eventually he also served on the U.S.A.T. Bridgeport, the George Washington, and the Larkspur. Jim worked his way through the ranks from ordinary seaman to an officer by age 19, licensed to pilot ships transporting ''any tonnage on any water in the world.''

In 1947, Jim began studies at the College of Charleston, while also working as a night officer on ships as a member of the Master, Mates and Pilots Association. During summers, he remained active in seafaring trade, delivering coal to France and England, granite for the Santee Cooper Dam, and general cargo to ports throughout the Caribbean and South America.

Jim graduated from the College of Charleston in 1951, married Ann Darlington, his childhood sweetheart, and entered dental school at the University of Louisville. Upon graduation, he served two years on active duty with the U.S. Navy in Chincoteague, Virginia, as a general dentist. He would remain active in the United States Naval Reserve until 1967, retiring as a lieutenant commander.

After completing graduate medical training at the University of Pennsylvania in 1958 and a residency at Henry Ford Hospital in Detroit, Michigan, in 1959, Jim pursued his dream to return to Charleston, establishing his practice in Oral and Maxillofacial surgery in 1960.

While building a thriving practice, Jim entered the political arena, serving six years as the Charleston County Republican Party chairman. An unsuccessful bid for the United States Congress in 1971 was soon followed by his election to the South Carolina State Senate in 1972. Two years later, Jim was elected Governor of South Carolina—the state's first Republican Governor since reconstruction. Jim served as governor from 1975 to 1979, returning briefly to his oral surgery practice in Charleston.

In 1981, President Ronald Reagan appointed Jim as Secretary of the United States Department of Energy, a position he held until November 1982, when he was called as president of the Medical University of South Carolina. Jim served as president of MUSC for 17 years, retiring in 2000. As president emeritus, Jim actively continued fundraising for the MUSC Health Sciences Foundation until 2014.

Among numerous civic and academic honors, Jim was granted the Order of the Palmetto for his public service to the State of South Carolina, and is an inductee into the South Carolina Hall of Fame. He served on the Board of Directors of the Harry Frank Guggenheim Foundation, the Gaylord and Dorothy Donnelly Foundation, SCANA, South Carolina National Bank, Encyclopedia Brittanica, Waste Management, Chemical Waste Management, J. P. Stevens, Brendles, IMO Delaval, Inc., Philips Petroleum, National Data Corporation, Burris Chemical Co., the W. M. Benton Foundation, the MUSC Health Sciences Foundation, and the Communications Satellite Corporation (COMSAT).

Jim is survived by his beloved wife of 63 years, Ann; his son, James B. Edwards, Jr. and his wife, Jenny, of Columbia; his daughter, Catharine E. Wingate, and her husband, Ken, of Columbia; grandchildren, Miriam Wingate Ashworth, K. Bryan Wingate, Jr., Ansley Darlington Edwards, James B. Edwards, III, Catharine Paxson Wingate, and Hellen Tucker Edwards; one great-grandchild, Eliza Ann Wingate, and numerous nephews and nieces. In addition to his parents, Jim was preceded in death by his sister, Josephine E. Pinckney, his brother, Dr. Morton Thomas Edwards, his sisters, Ada Frances E. Melchers and Jane Ann E. Varn.

Visitation will be from 5:30 until 7:30 p.m. on Sunday, December 28, 2014 at St. Luke's Chapel, on the Campus of the Medical University of South Carolina. The funeral service will be conducted at St. Philip's Church at 1:00 p.m. on Monday, December 29, 2014 by The Rt. Rev'd. Dr. C. FitzSimons Allison. Interment will follow in the churchyard of Christ Church, Mt. Pleasant, after which the family will receive visitors in the parish hall of Christ Church.

The family requests, in lieu of flowers, that memorials be made to the MUSC Foundation for the College of Nursing or for the College of Dental Medicine. (MUSC Foundation, 18 Bee Street, Charleston, SC 29425).

Arrangements by J. Henry Stuhr Inc., Mount Pleasant Chapel. A memorial message may be sent to the family by visiting our website at www.jhenrystuhr.com. Visit our guestbook at www.legacy.com/obituaries/charleston.

The Lexington County Chronicle published an inspiring tribute which reflects the extraordinary impact of Lexington County voters in 1974 where the county's victory margin of 10,433 was a large majority of the statewide victory margin of 17,477.

As an indication of the family's appreciation of Lexington County, its Member of Congress, JOE WILSON, was selected to be an Honorary Pall Bearer.

FORMER S.C. GOV. JAMES EDWARDS SUCCUMBS TO STROKE

(By Hal Millard)

James B. Edwards, the state's first GOP governor since Reconstruction, has died.

He was 87.

Edwards, a dentist by trade who in 1974 became the first Republican governor in South Carolina since 1876, died Dec. 26 at his Mount Pleasant home from complications caused by a stroke.

Politicians throughout the state mourned his passing.

Expressing her sympathy, Gov. Nikki Haley wrote on Facebook that Edwards ''appreciated the opportunities and challenges of this office.''

''Governor Edwards always offered kind words of support and encouragement—and we are forever grateful for his friendship,'' Haley wrote. ''Michael and I are deeply saddened by the passing of Governor Edwards, whose love for South Carolina inspired him to serve until his last day . . .''

GOP Congressman Joe Wilson of Springdale echoed those sentiments and added, ''I am grateful to have had a lifetime of working with Dr. Jim Edwards, and the honor of knowing his wife Anne, daughter Cathy, and son Jim. Dr. Edwards was a tireless stalwart for conservative limited government to expand freedom.

''In high school, I would visit his dental office for Goldwater materials, in his capacity as Charleston County Republican Chairman,'' Wilson continued. ''In 1974, he courageously ran and was elected as South Carolina's first Republican governor. At that time, I worked with him on the State Development Board, where he recruited Michelin Tire Corporation to produce job opportunities for our citizens. I was honored to serve him in the visionary Reagan Administration as Deputy General Counsel as he achieved success in deregulation as Secretary of Energy.

Wilson also hailed Edwards' 17-year tenure as president of the Medical University of South Carolina.

''His return to Charleston as president of the Medical University of South Carolina resulted in MUSC becoming recognized for world-class universities,'' Wilson said. ''South Carolina has lost a Southern Gentleman, devoted dad and grandfather, who has made a difference as a key architect for a political revolution.''

Wilson noted that Edwards' groundbreaking win in 1974 was a precursor to the current Republican dominance in the Deep South.

''Dr Edwards' vision of an inclusive Republican Party came to fulfillment [in December] with the U.S. Senate victory in Louisiana, from his start with no elected statewide Republican officials in the five-state Deep South, and now all statewide officials are Republicans,'' Wilson said.

Edwards became governor amid the turmoil of the Watergate years and was one of the few GOP bright spots in an election year in which Democrats dominated. A long-shot candidate who had previously served two years as a state senator from Charleston County, Edwards defeated Gen. William Westmoreland in the GOP primary, then upset long-time Democratic Congressman William Jennings Bryan Dorn in the general election.

Edwards served in an era when governors were prohibited from serving consecutive terms. Following his term as governor, Edwards was nominated as President Ronald Reagan's Energy Secretary; serving two years in that role before resigning to become president of MUSC.

PROTECTING EMPLOYEES AND RETIREES IN BUSINESS BANKRUPTCIES ACT OF 2015

HON. JOHN CONYERS, JR.

OF MICHIGAN

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. CONYERS. Mr. Speaker, I submit the following.

SUMMARY

Throughout our Nation's history, hard-working American men and women have labored to make our businesses become the most productive and dynamic in the world. Unfortunately, when some of these businesses encounter financial difficulties and seek to reorganize their debts under Chapter 11 of the Bankruptcy Code, these very same workers and retirees are often asked to make major sacrifices through lost job protections, lower wages, and the elimination of hard-won pension and health benefits, while the executives and managers of these business are not required to make comparable sacrifices.

We must do more to ensure that America's most important resource—workers and retirees—are treated more fairly when these business seek to reorganize their financial affairs under the protection of our bankruptcy laws. The Protecting Employees and Retirees in Business Bankruptcies Act of 2015 accomplishes this goal by amending the Bankruptcy Code in several respects. First, it improves recoveries for employees and retirees by: (1) increasing the amount of worker claims entitled to priority payment for unpaid wages and contributions to employee benefit plans up to $20,000; (2) eliminating the difficult to prove restriction in current law that wage and benefit claims must be earned within 180 days of the bankruptcy filing in order to be entitled to priority payment; (3) allowing employees to assert claims for losses in certain defined contribution plans when such losses result from employer fraud or breach of fiduciary duty; (4) establishing a new priority administrative expense for workers' severance pay; and (5) clarifying that back pay awards for WARN Act damages are entitled to the same priority as back pay for other legal violations.

Second, the legislation reduces employees' and retirees' losses by: (1) restricting the conditions under which collective bargaining agreements and commitments to fund retiree pensions and health benefits may be eliminated or adversely affected; (2) preventing companies from singling out non-management retirees for concessions; (3) requiring a court to consider the impact a bidder's offer to purchase a company's assets would have on maintaining existing jobs and preserving retiree pension and health benefits; and (4) clarifying that the principal purpose of Chapter 11 bankruptcy is the preservation of jobs to the maximum extent possible

Third, the bill restricts excessive executive compensation programs by: (1) requiring full disclosure and court approval of executive compensation packages; (2) restricting the payment of bonuses and other forms of incentive compensation to senior officers and others; and (3) ensuring that insiders cannot receive retiree benefits if workers have lost their retirement or health benefits.

This legislation is identical to H.R. 100, introduced in the 113th Congress, and H.R. 6117, introduced in the 112th Congress. It is supported by the AFL-CIO and many of its largest affiliates, and the United Steelworkers.

SECTION-BY-SECTION EXPLANATION OF THE BILL

Sec. 1. Short Title. Section 1 sets forth the short title of the bill as the ''Protecting Employees and Retirees in Business Bankruptcies Act of 2015.'' It also includes a table of contents for the bill.

Sec. 2. Findings. Section 2 sets forth various findings in support of this bill.

TITLE I—IMPROVING RECOVERIES FOR EMPLOYEES AND RETIREES

Sec. 101. Increased Wage Priority. Bankruptcy Code section 507 accords priority in payment status for certain types of claims, i.e., these priority claims must be paid in full in the order of priority before general unsecured claims may be paid. Section 507(a)(4) accords a fourth level priority to an unsecured claim up to $10,000 owed to an individual for wages, salaries, or commissions (including vacation, severance, and sick leave pay) earned within the 180-day period preceding the filing of the bankruptcy case or the date on which the debtor's business ceased, whichever occurs first. Section 101 amends section 507(a)(4) to increase the amount of the priority to $20,000 and eliminate the 180–day reachback limitation.

Bankruptcy Code section 507(a)(5) accords a fifth level priority for unsecured claims for contributions to an employee benefit plan arising from services rendered within the 180-day period preceding the filing of the bankruptcy case or the date on which the debtor's business ceased (whichever occurs first). The amount of the claim is based on the number of employees covered by the plan multiplied by $10,000, less the aggregate amount paid to such employees pursuant to section 507(a)(4) and the aggregate amount paid by the estate on behalf of such employees to any other employee benefit plan. Section 101 amends Bankruptcy Code section 507(a)(5) to: (1) increase the priority amount to $20,000; (2) eliminate the offset requirements; and (3) eliminate the 180-day limitation.

Sec. 102. Claim for Stock Value Losses in Defined Contribution Plans. Section 102 amends the Bankruptcy Code's definition of a claim to include a right or interest in equity securities of the debtor (or an affiliate of the debtor) held in a defined contribution plan for the benefit of an individual who is not an insider, senior executive officer or one of the 20 next most highly compensated employees of the debtor (if one or more are not insiders), providing: (1) such securities were attributable to employer contributions by the debtor (or an affiliate of the debtor), or by elective deferrals, together with any earnings thereon; and (2) the employer or plan sponsor who commenced the bankruptcy case either committed fraud with respect to such plan or otherwise breached a duty to the participant that proximately caused the loss of value.

Sec. 103. Priority for Severance Pay. Bankruptcy Code section 503(b) establishes an administrative expense payment priority for certain types of unsecured claims. Among all types of unsecured claims, administrative expenses are accorded the highest payment priority, i.e., they must be paid in full before priority and general unsecured claims may be paid. Section 103 amends section 503(b) to accord administrative expense priority for severance pay owed to the debtor's employees (other than an insider, other senior management, or a consultant retained to provide services to the debtor) under a plan, program or policy generally applicable to the debtor's employees (but not under an individual contract of employment) or owed pursuant to a collective bargaining agreement for termination or layoff on or after the date the bankruptcy case was filed. Such pay is deemed earned in full upon such termination or layoff.

Sec. 104. Financial Returns for Employees and Retirees. Bankruptcy Code section 1129(a) specifies various criteria that must be satisfied before a chapter 11 plan of reorganization may be confirmed. Section 104 amends section 1129(a) to add a further requirement. The plan must provide for the recovery of damages for the rejection of a collective bargaining agreement or for other financial returns as negotiated by the debtor and the authorized representative under section 1113 to the extent such returns are paid under, rather than outside of a plan.

Section 104 also replaces Bankruptcy Code section 1129(a)(13), which pertains to the payment of retiree benefits under section 1114. As revised, section 1129(a)(13) requires a plan to provide for the continuation after the plan's effective date of the payment of all retiree benefits at the level established under

either section 1114(e)(1)(B) or (g) at any time prior to confirmation of the plan, for the duration of the period for which the debtor has obligated itself to provide such benefits. If no modifications are made prior to confirmation of the plan, the plan must provide for the continuation of all retiree benefits maintained or established in whole or in part by the debtor prior to the petition filing date. In addition, the plan must provide for recovery of claims arising from the modification of retiree benefits and other financial returns as negotiated by the debtor and the authorized representative to the extent such returns are paid under, rather than outside of, a plan.

Sec. 105. Priority for WARN Act Damages. Section 105 amends Bankruptcy Code section 503(b)(1)(A)(ii) to provide administrative expense status to wages and benefits awarded pursuant to a judicial or National Labor Relations Board proceeding as back pay or damages attributable to any period of time occurring after the commencement of the bankruptcy case. This provision applies where the award was made as a result of the debtor's violation of federal or state law, without regard to the time of the occurrence of unlawful conduct on which the award is based or to whether any services were rendered on or after the commencement of the bankruptcy case. It includes an award by a court under section 2901 of title 29 of the United States Code of up to 60 days' pay and benefits following a layoff that occurred or commenced at a time when such award period includes a period on or after the commencement of the case, if the court determines that payment of wages and benefits by reason of the operation of this clause will not substantially increase the probability of layoff or termination of current employees or of nonpayment of domestic support obligations during the case under this title.

TITLE II—REDUCING EMPLOYEES' AND RETIREES' LOSSES

Sec. 201. Rejection of Collective Bargaining Agreements. Bankruptcy Code section 1113 sets forth the requirements by which a collective bargaining agreement may be assumed or rejected. Section 201 amends section 1113 in several respects. First, it amends section 1113(a) to clarify that a chapter 11 debtor may reject a collective bargaining agreement only in accordance with section 1113.

Second, it amends Bankruptcy Code section 1113(b) to clarify that no provision in title II of the United States Code may be construed to permit a trustee to unilaterally terminate or alter the terms of a collective bargaining agreement absent compliance with section 1113. The provision further specifies that the trustee must timely pay all monetary obligations arising under such agreement and that any payment required to be made pre-confirmation has the status of an allowed administrative expense under Code section 503.

Third, it amends Bankruptcy Code section 1113(c) to require a trustee, when seeking to modify a collective bargaining agreement, to provide notice of such proposed modification to the labor organization representing the employees covered by the agreement. The trustee must also promptly provide an initial proposal for modification. In addition, the trustee must confer in good faith with the labor organization, at reasonable times and for a reasonable period, given the complexity of the case, in an effort to reach a mutually acceptable modification of the agreement. Each modification proposal must be based on a business plan for the reorganization of the debtor and reflect the most complete and reliable information. As amended, section 1113(c) requires the trustee to provide to the labor organization all information relevant for negotiations. If such disclosure could compromise the debtor's position with respect to its competitors in the industry, the provision authorizes the court to issue a protective order, subject to the needs of the labor organization to evaluate the trustee's proposal and any application to reject the collective bargaining agreement or for interim relief under section 1113.

In consideration of federal policy encouraging the practice and process of collective bargaining and in recognition of the bargained-for expectations of the employees covered by the agreement, any modification proposed by the trustee must: (1) only be proposed as part of a program of workforce and nonworkforce cost savings devised for the debtor's reorganization, including savings in management personnel costs; (2) be limited to modifications designed to achieve a specified aggregate financial contribution for employees covered by the agreement, taking into consideration any labor cost savings negotiated within the 12-month period prior to the filing of the bankruptcy case; (3) be no more than the minimum savings essential to permit the debtor to exit bankruptcy, such that confirmation is not likely to be followed by the liquidation or the need for further financial reorganization of the debtor; and (4) not be disproportionate or overly burden the employees covered by the agreement, either in the amount of the cost savings sought from such employees or the nature of the modifications.

Fourth, it amends Bankruptcy Code section 1113(d) to provide that if the trustee and the labor organization (after a period of negotiations) do not reach an agreement over mutually satisfactory modifications and further negotiations are not likely to produce mutually satisfactory modifications, the trustee may file a motion seeking rejection of the collective bargaining agreement after notice and a hearing. Absent agreement by the parties, the hearing may not be held earlier than 21 days from when notice of the hearing is provided. Only the debtor and the labor organization may appear and be heard at the hearing. An application for rejection must seek rejection effective upon the entry of an order granting such relief.

In consideration of federal policy encouraging the practice and process of collective bargaining and in recognition of the bargained-for expectations of the employees covered by the agreement, section 1113(d) (as amended) provides that the court may grant a motion seeking rejection of such agreement only if the court: (1) finds that the trustee has complied with the requirements of section 1113(c); (2) has considered alternative proposals by the labor organization and concluded that such proposals do not meet the requirements of section 1113(c)(3)(B); (3) finds that further negotiations regarding the trustee's proposal or an alternative proposal by the labor organization are not likely to produce an agreement; (4) finds that implementation of the trustee's proposal will not: (a) cause a material diminution in the purchasing power of the employees covered by the agreement, (b) adversely affect the debtor's ability to retain an experienced and qualified workforce; or (c) impair the debtor's labor relations such that the ability to achieve a feasible reorganization will be compromised; and (5) concludes, based on clear and convincing evidence, that rejection of the agreement and immediate implementation of the trustee's proposal is essential to permit the debtor's exit from bankruptcy such that confirmation is not likely to be followed by the liquidation or the need for further financial reorganization of the debtor in the short term. If the trustee has implemented a program of incentive pay, bonuses or other financial returns for insiders, senior executive officers, or the 20 next most highly compensated employees or consultants (or such a program was implemented within 180 days before the bankruptcy case was filed), the court must presume that the debtor has failed to satisfy the requirements of section 1113(c)(3)(C).

Subsection (d), as amended, prohibits the court from entering an order rejecting a collective bargaining agreement that would result in modifications to a level lower than that proposed by the trustee in the proposal found by the court to have complied with the requirements of section 1113.

At any time after an order rejecting a collective bargaining agreement is entered (or mutually satisfactory agreement between the trustee and the labor organization is entered into), the labor organization may apply to the court for an order seeking an increase in the level of wages or benefits or relief from working conditions based on changed circumstances. The court must grant such relief only if the increase or other relief is not inconsistent with the standard set forth in section 1113(d)(2)(E).

Fifth, section 201 amends Bankruptcy Code section 1113(e) to provide that during the period in which a collective bargaining agreement at issue under this section continues in effect and if either essential to the continuation of the debtor's business or in order to avoid irreparable damage to the estate, the court, after notice and a hearing, may authorize the trustee to implement interim changes in the terms, conditions, wages, benefits, or work rules provided by the collective bargaining agreement. Any hearing under this provision must be scheduled in accordance of the trustee's needs. The implementation of such interim changes will not render the application for rejection moot.

Sixth, section 201 amends Bankruptcy Code section 1113(f) to provide that the rejection of a collective bargaining agreement constitutes a breach of such agreement and is effective no earlier than the entry of an order granting such relief. Solely for the purpose of determining and allowing a claim arising from rejection of a collective bargaining agreement, such rejection must be treated as a rejection of an executory contract under Bankruptcy Code section 365(g) and shall be allowed or disallowed in accordance with section 502(g)(1). Subsection (f), as amended, further provides that no claim for rejection damages may be limited by section 502(b)(7). In addition, the provision permits economic self-help by a labor organization upon a court order granting rejection of a collective bargaining agreement under either subsection (d) or (e) of section 1113. It further provides that neither title 11 of the United States Code nor other provisions of State or Federal law may be construed to the contrary.

Seventh, section 201 adds new subsection (g) to require the trustee to provide for the reasonable fees and costs incurred by a labor organization under section 1113, upon request and after notice and a hearing.

Eighth, section 201 adds new subsection (h) to require the assumption of a collective bargaining agreement to be done in accordance with section 365.

Sec. 202. Payment of Insurance Benefits to Retired Employees. Bankruptcy Code section 1114 sets out criteria pursuant to which a debtor may modify retiree benefits, among other matters. Retiree benefits include payments to retired employees, their spouses, and dependents for medical, surgical, and hospital care benefits. It also includes benefits in the event of sickness, accident, disability, or death under any plan, fund or program.

Section 202 amends section 1114 in several respects. First, it amends the provision's definition of ''retiree benefits'' to specify that

it applies whether or not the debtor asserts a right to unilaterally modify such benefits under such plan, fund or program.

Second, it amends Bankruptcy Code section 1114(b)(2), which specifies the rights, powers and duties of a committee of retired employees appointed by the court. As amended, the provision would apply to a labor organization serving as the authorized representative under section 1114(c)(1).

Third, section 202 replaces Bankruptcy Code section 1114(f), which requires a trustee to make a proposal to the authorized representative before seeking modification of retiree benefits. As amended, section 1114(f)(1) specifies that if a trustee seeks to modify retiree benefits, the trustee must provide notice of such proposed modification to the authorized representative as well as promptly provide the initial proposal. In addition, the trustee must thereafter confer in good faith with the labor organization, at reasonable times and for a reasonable period, given the complexity of the case, in attempting to reach a mutually satisfactory modification. Each modification must be based on a business plan for the reorganization of the debtor and reflect the most complete and reliable information available. The trustee must provide the authorized representative all information relevant for the negotiations. If such disclosure could compromise the debtor's position with respect to its competitors in the industry, the court may issue a protective order, subject to the needs of the authorized representative to evaluate the trustee's proposal and an application pursuant to subsection (g) or (h).

Modifications proposed by the trustee must: (1) only be proposed as part of a program of workforce and nonworkforce cost savings devised for the reorganization of the debtor, including savings in management personnel costs; (2) be limited to modifications designed to achieve a specified aggregate financial contribution for the retiree group represented by the authorized representative (taking into consideration any labor cost savings negotiated within the 12-month period prior to the filing of the bankruptcy case with respect to the retiree group); (3) be no more than the minimum savings essential to permit the debtor to exit bankruptcy, such that confirmation is not likely to be followed by the liquidation or the need for further financial reorganization of the debtor; and (4) not be disproportionate or overly burden the retiree group, either in the amount of the cost savings sought from such group or the nature of the modifications.

Fourth, section 202 amends Bankruptcy Code section 1113(g) to provide that if the trustee and the authorized representative do not reach a mutually satisfactory agreement (after a period of negotiations) and further negotiations are not likely to produce mutually satisfactory modifications, the trustee may file a motion seeking to modify the payment of retiree benefits after notice and a hearing. Absent agreement of the parties, the hearing may not be held earlier than 21 days from when notice of the hearing is provided. Only the debtor and the authorized representative may appear and be heard at the hearing.

The court may grant a motion to modify the payment of retiree benefits only if the court: (1) finds that the trustee complied with the requirements of section 1114(f); (2) considered any of the authorized representative's alternative proposals and determined that such proposals do not meet the requirements of section 1114(f)(3)(B); (3) finds that further negotiations are not likely to produce a mutually satisfactory agreement; (4) finds that implementation of the trustee's proposal will not cause irreparable harm to the affected retirees; and (5) concludes that, based on clear and convincing evidence, an order granting the trustee's proposal and its immediate implementation is essential to permit the debtor's exit from bankruptcy such that confirmation is not likely to be followed by the liquidation or the need for further financial reorganization of the debtor in the short term.

If the trustee has implemented a program of incentive pay, bonuses, or other financial returns for insiders, senior executive officers, or the 20 next most highly compensated employees or consultants (or such program was implemented within 180 days before the bankruptcy case was filed), the court must presume that the debtor failed to satisfy the requirements of section 1114(f)(3)(C).

Fifth, section 202 strikes subsection (k) and makes conforming revisions.

Sec. 203 Protection of Employee Benefits in a Sale of Assets. Section 203 amends Bankruptcy Code section 363(b), which authorizes a debtor to sell or use property of the estate other than in the ordinary course of business (under certain circumstances), to add a new requirement. New section 365(b)(3) requires the court, in approving a sale, to consider the extent to which a bidder's offer: (1) maintains existing jobs; (2) preserves terms and conditions of employment, and (3) assumes or matches pension and retiree benefit obligations in determining whether such offer constitutes the highest or best offer for the property.

Sec. 204. Claim for Pension Losses. Section 204 adds a new subsection to Bankruptcy Code section 502, which pertains to the allowance of claims and interests. New subsection (1) requires the court to allow a claim by an active or retired participant (or by a labor organization representing such participants) in a defined benefit pension plan terminated under section 4041 or 4042 of the Employee Retirement Income Security Act of 1974 (ERISA) for any shortfall in pension benefits accrued as of the effective date of the pension plan's termination as a result of such termination and limitations upon the payment of benefits imposed pursuant to section 4042 of such Act, notwithstanding any claim asserted and collected by the Pension Benefit Guaranty Corporation with respect to such termination.

In addition, section 204 adds subsection (m) to Bankruptcy Code section 502 to require a court to allow a claim described in Bankruptcy Code section 101(5)(C) (as amended by this legislation) by an active or retired participant (or a labor union representing such participant) in a defined contribution plan (within the meaning of section 3(34) of ERISA). The amount of such claim must be measured by the market value of the stock at the time of contribution to, or purchase by, the plan and the value as of the commencement of the case.

Sec. 205. Payments by Secured Lender. Bankruptcy Code section 506(c) authorizes the debtor to recover from property securing an allowed secured claim the reasonable and necessary expenses incurred to preserve or dispose of such property to the extent the secured creditor benefits from such expenditures. Section 205 amends section 506(c) to add a new provision. As amended, section 506(c) deems unpaid wages, accrued vacation, severance or other benefits owed under the debtor's policies and practices or owed pursuant to a collective bargaining agreement, for services rendered on and after commencement of the case to be necessary costs and expenses of preserving or disposing of property securing an allowed secured claim. Such obligations must be recovered even if the trustee has otherwise waived the provisions of section 506(c) pursuant to an agreement with the allowed secured claimant or a successor or predecessor in interest.

Sec. 206. Preservation of Jobs and Benefits. Section 206 adds a statement of purpose to chapter 11 of the Bankruptcy Code specifying that a chapter 11 debtor must have as its principal purpose the reorganization of its business to preserve going concern value to the maximum extent possible through the productive use of its assets and the preservation of jobs that will sustain productive economic activity.

In addition, section 206 amends Bankruptcy Code section 1129(a), which sets out the criteria for confirming a plan, to add a new requirement. New section 1129(a)(17) requires the debtor to demonstrate that the reorganization preserves going concern value to the maximum extent possible through the productive use of the debtor's assets and preserves jobs that sustain productive economic activity.

Section 206 also amends Bankruptcy Code section 1129(c), which requires the court to consider the preferences of creditors and equity security holders in determining which plan to confirm. Section 1129(c), as amended, instead requires the court to consider the extent to which each plan would preserve going concern value through the productive use of the debtor's assets and the preservation of jobs that sustain productive economic activity. The court must confirm the plan that better serves such interests. It further provides that a plan that incorporates the terms of a settlement with a labor organization shall presumptively constitute the plan that satisfies this provision.

Sec. 207. Termination of Exclusivity. Bankruptcy Code section 1121, in pertinent part, gives a debtor the exclusive authority to file a plan and obtain acceptances of such plan for stated periods of time, under certain circumstances. Section 207 amends section 1121 to specify that cause for shortening these exclusive periods includes: (1) the filing of a motion pursuant to section 1113 seeking rejection of a collective bargaining agreement, if a plan based upon an alternative proposal by the labor organization is reasonably likely to be confirmed within a reasonable time; or (2) the proposed filing of a plan by a proponent other than the debtor, which incorporates the terms of a settlement with a labor organization, if such plan is reasonably likely to be confirmed within a reasonable time.

TITLE III—RESTRICTING EXECUTIVE COMPENSATION PROGRAMS

Sec. 301. Executive Compensation Upon Exit From Bankruptcy. Bankruptcy Code section 1129 specifies the criteria for confirmation of a chapter 11 plan. Section 1129(a)(4), for example, requires that certain services, costs and expenses in connection with the case (or in connection with the plan and incident to the case) to have either been approved by the court (or subject to approval by the court) as reasonable. Section 301 amends section 1129(a)(4) to add a requirement that payments or other distributions under the plan to or for the benefit of insiders, senior executive officers, and any of the 20 next most highly compensated employees or consultants providing services to the debtor may not be approved unless: (1) such compensation is subject to review under section 1129(a)(5), or (2) such compensation is included as part of a program of payments or distributions generally applicable to the debtor's employees and only to the extent that the court determines that such payments are not excessive or disproportionate as compared to distributions to the debtor's nonmanagement workforce.

In addition, section 301 amends section 1129(a)(5), which requires the plan proponent to disclose the identity and affiliations of the debtor's officers and others, such as the

identity of any insider who will be employed or retained by the reorganized debtor and such insider's compensation. Section 301 amends section 1129(a)(5) to add a requirement that such compensation must be approved (or subject to approval) by the court in accordance with the following criteria: (1) the compensation is reasonable when compared to that paid to individuals holding comparable positions at comparable companies in the same industry; and (2) the compensation is not disproportionate in light of economic concessions by the debtor's nonmanagement workforce during the case.

Sec. 302. Limitations on Executive Compensation Enhancements. In general, Bankruptcy Code Section 503(c) prohibits a debtor from making certain payments to an insider, absent certain findings by the court. Section 302 amends section 503(c)(1), which prohibits such payments when they are intended to induce the insider to remain with the debtor's business, in several respects. First, it expands the provision so that it applies a debtor's senior executive officer and any of the debtor's 20 next most highly compensated employees or consultants. Second, it clarifies that the provision prohibits the payment of performance or incentive compensation, a bonus of any kind, and other financial returns designed to replace or enhance incentive, stock, or other compensation in effect prior to the commencement of the case. And, third, it specifies that the court's findings must be based on clear and convincing evidence in the record.

In addition, section 302 also amends Bankruptcy Code section 503(c)(3), which prohibits other transfers made or obligations incurred outside of the debtor's ordinary course of business and not justified by the facts and circumstances of the case, including transfers made and obligations incurred for the benefit of the debtor's officers, managers or consultants hired postpetition. Section 302 replaces section 503(c)(3) with a provision prohibiting other transfers or obligations incurred to or for the benefit of insiders, senior executive officers, managers or consultants providing services to the debtor unless they meet certain criteria. First, the court must find, based on clear and convincing evidence (without deference to the debtor's request for authorization to make such payments), that such payments are essential to the survival of the debtor's business or, in the case of a liquidation, essential to the orderly liquidation of the debtor's business and maximization of the value of the debtor's assets. Second, the services for which compensation is sought must be essential in nature. Third, such payments must be reasonable compared to individuals holding comparable positions at comparable companies in the same industry and not disproportionate in light of economic concessions made by the debtor's nonmanagement workforce during the case.

Sec. 303. Assumption of Executive Retirement Plans. Section 303 amends Bankruptcy Code section 365, which sets forth the criteria pursuant to which executory contracts and unexpired leases may be assumed and rejected, to add two provisions. New subsection (q) provides that no deferred compensation arrangement for the benefit of a debtor's insiders, senior executive officers, or any of the 20 next most highly compensated employees may be assumed if a defined benefit pension plan for the debtor's employees has been terminated pursuant to section 4041 or 4042 of ERISA on or after the commencement of the case or within 180 days prior to the commencement of the case.

New subsection (r) provides that no plan, fund, program, or contract to provide retiree benefits for insiders, senior executive officers, or any of the 20 next most highly compensated employees of the debtor may be assumed if the debtor: (1) has obtained relief under subsection (g) or (h) of section 1114 to impose reductions in retiree benefits; (2) has obtained relief under subsection (d) or (e) of section 1113 to impose reductions in the health benefits of the debtor's active employees; or (3) or reduced or eliminated active employee or retiree benefits within 180 days prior to the commencement of the case.

Sec. 304. Recovery of Executive Compensation. Section 304 adds a new provision to the Bankruptcy Code. New section 563(a) provides that if a debtor reduces its contractual obligations under a collective bargaining agreement pursuant to section 1113(d), or retiree benefits pursuant to section 1114(g), then the court, as part of the order granting such relief, must make certain determinations. The court must determine the percentage of diminution in the value of the obligations as a result of such relief. In making this determination, the court must include any reduction in benefits as a result of the termination pursuant to section 4041 or 4042 of ERISA of a defined benefit plan administered by the debtor, or for which the debtor is a contributing employer, effective at any time within 180 days prior to the commencement of the case. The court may not take into consideration pension benefits paid or payable under title IV of ERISA as a result of such termination.

If a defined benefit pension plan administered by the debtor, or for which the debtor is a contributing employer, is terminated pursuant to section 4041 or 4042 of ERISA, effective at any time within 180 days prior to the commencement of the case, and the debtor has not obtained relief under section 1113(d), or section 1114(g), new section 563(b) requires the court, on motion of a party in interest, to determine the percentage in diminution in the value of benefit obligations when compared to the total benefit liabilities prior to such termination. The court may not take into account pension benefits paid or payable pursuant to title IV of ERISA as a result of such termination.

After such percentage diminution in value is determined, new section 563(c) provides that the estate has a claim for the return of the same percentage of the compensation paid, directly or indirectly (including any transfer to a self-settled trust or similar device, or to a nonqualified deferred compensation plan under section 409A(d)(1) of the Internal Revenue Code of 1986) to certain individuals. These individuals include: (1) any officer of the debtor serving as a member of the debtor's board of directors within the year before the filing of the case; and (2) any individual serving as chairman or as lead director of the board of directors at the time when relief under section 1113 or section 1114 is granted, or if no such relief has been granted, then the termination of the defined benefit plan.

New section 563(d) provides that a trustee or committee appointed pursuant to section 1102 may commence an action to recover such claims. If neither commences such action by the first date set for the confirmation hearing, any party in interest may apply to the court for authority to recover such claims for the benefit of the estate. The costs of recovery must be borne by the estate.

New section 563(e) prohibits the court from awarding postpetition compensation under section 503(c) or otherwise to any person subject to the provisions of section 563(c) if there is a reasonable likelihood that such compensation is intended to reimburse or replace compensation recovered by the estate pursuant to section 563.

Sec. 305. Preferential Compensation Transfer. Bankruptcy Code section 547 authorizes preferential transfers to be avoided. Section 305 adds a new subsection to section 547 to permit the avoidance of a transfer to or for the benefit of an insider (including an obligation incurred for the benefit of an insider under an employment contract) made in anticipation of bankruptcy. The provision also permits the avoidance of a transfer made in anticipation of a bankruptcy to a consultant who is formerly an insider and who is retained to provide services to an entity that becomes a debtor (including an obligation under a contract to provide services to such entity or to a debtor) made or incurred within one year before the filing of the bankruptcy case. In addition, new section 547(j) provides that no provision of section 547(c) (specifying certain exceptions to section 547) may be utilized as a defense. Further, section 547(j) permits the trustee or a committee to commence such avoidance action. If neither do so as of the date of the commencement of the confirmation hearing, any party in interest may apply to the court for authority to recover the claims for the benefit of the estate. The costs of recovery must be borne by the estate.

TITLE IV—OTHER PROVISIONS

Sec. 401. Union Proof of Claim. Section 401 amends Bankruptcy Code section 501(a) to permit a labor organization (in addition to a creditor or indenture trustee) to file a proof of claim.

Sec. 402. Exception from Automatic Stay. Section 402 amends Bankruptcy Code section 362(b) to create an additional exception to the automatic stay with respect to the commencement or continuation of a grievance, arbitration or similar dispute resolution proceeding established by a collective bargaining agreement that was or could have been commenced against the debtor before the filing of the bankruptcy case. The exception also applies to the payment or enforcement of awards or settlements of such proceeding.

CONGRATULATIONS TO WAYZATA HIGH SCHOOL SWIMMING AND DIVING

HON. ERIK PAULSEN

OF MINNESOTA

IN THE HOUSE OF REPRESENTATIVES

Tuesday, January 6, 2015

Mr. PAULSEN. Mr. Speaker, today I rise to commend the Wayzata High School Girls' Swimming and Diving Team for winning the Minnesota State Championship.

The title was clinched at the University of Minnesota Aquatic Center with a well-rounded team effort that saw eight top-four finishes by the Elizabeth Hansen-coached Trojans.

Madison Priess led the way with an individual State Championship in the 200-yard Individual Medley. Wayzata also won the title in the 200 medley relay thanks to strong swims from Carly Quast, Alexis Schaaf, Colleen Donlin, and Madison—coming just short of setting a state record.

The title was Wayzata's second in a row and was due to the hard work these athletes put in everyday. Swimming takes a tremendous effort and practice in order to reach the goals that the Trojans accomplished this season. In addition to the hard work in the pool, these student-athletes have to balance their studies, family responsibilities, and social commitments as well. The Wayzata team took all that was asked of them in stride to reach the top of their sport. Family, friends, and fans should all be proud of their effort.

It is my pleasure to honor and congratulate the Wayzata Girls' Swimming and Diving team on bringing home another state title!

CORRECTION

Daily Digest

HIGHLIGHTS

First Session of the One Hundred and Fourteenth Congress convened as prescribed by the Constitution of the United States.

Senate agreed to S. Res. 3, Electing Senator Orrin G. Hatch, of Utah, to be President pro tempore of the Senate of the United States.

Senate

Chamber Action

Routine Proceedings, pages S1–S26

Measures Introduced: Twenty-eight bills and twenty-two resolutions were introduced, as follows: S. 1, 11–37, S.J. Res. 1–2, and S. Res. 1–20.

Pages S10–12

Measures Passed:

Notification to the President: Senate agreed to S. Res. 1, informing the President of the United States that a quorum of each House is assembled. **Page S6**

Notification to the House of Representatives: Senate agreed to S. Res. 2, informing the House of Representatives that a quorum of the Senate is assembled. **Page S6**

Electing the President Pro Tempore: Senate agreed to S. Res. 3, to elect Orrin G. Hatch, a Senator from the State of Utah, to be President pro tempore of the Senate of the United States. **Page S6**

Notification to the President: Senate agreed to S. Res. 4, notifying the President of the United States of the election of a President pro tempore. **Page S6**

Notification to the House of Representatives: Senate agreed to S. Res. 5, notifying the House of Representatives of the election of a President pro tempore. **Page S6**

Thanking Senator Leahy: Senate agreed to S. Res. 6, expressing the thanks of the Senate to the Honorable Patrick J. Leahy for his service as President Pro Tempore of the United States Senate and to designate Senator Leahy as President Pro Tempore Emeritus of the United States Senate. **Pages S6–7**

Fixing the Hour of Daily Meeting: Senate agreed to S. Res. 7, fixing the hour of daily meeting of the Senate. **Page S7**

Electing the Secretary of the Senate: Senate agreed to S. Res. 8, electing Julie Adams as Secretary of the Senate. **Page S7**

Notification to the President: Senate agreed to S. Res. 9, notifying the President of the United States of the election of the Secretary of the Senate. **Page S7**

Notification to the House of Representatives: Senate agreed to S. Res. 10, notifying the House of Representatives of the election of the Secretary of the Senate. **Page S7**

Electing the Sergeant At Arms: Senate agreed to S. Res. 11, electing Frank Larkin as Sergeant at Arms and Doorkeeper of the Senate. **Page S7**

Notification to the President: Senate agreed to S. Res. 12, notifying the President of the United States of the election of a Sergeant at Arms and Doorkeeper of the Senate. **Page S7**

Notification to the House of Representatives: Senate agreed to S. Res. 13, notifying the House of Representatives of the election of a Sergeant at Arms and Doorkeeper of the Senate. **Pages S7–8**

Electing the Secretary for the Majority: Senate agreed to S. Res. 14, electing Laura C. Dove, of Virginia, as Secretary for the Majority of the Senate. **Page S8**

Electing the Secretary for the Minority: Senate agreed to S. Res. 15, electing Gary B. Myrick, of Virginia, as Secretary for the Minority of the Senate. **Page S8**

Appointment of Senate Legal Counsel: Senate agreed to S. Res. 16, to make effective appointment of Senate Legal Counsel. **Page S8**

Appointment of Deputy Senate Legal Counsel: Senate agreed to S. Res. 17, to make effective appointment of Deputy Senate Legal Counsel. **Page S8**

Death of Former Senator Edward W. Brooke, III: Senate agreed to S. Res. 19, relative to the death of Edward W. Brooke, III, former United States Senator for the Commonwealth of Massachusetts. **Page S23**

Appointments:

Senate Legal Counsel: The President pro tempore, pursuant to Public Law 95–521, appointed Patricia Mack Bryan as Senate legal counsel for a term of service to expire at the end of the 115th Congress. **Page S8**

Deputy Senate Legal Counsel: The President pro tempore, pursuant to Public Law 95–521, appointed Morgan J. Frankel as deputy Senate legal counsel for a term of service to expire at the end of the 115th Congress. **Page S8**

Administration of Oath of Office: The Senators-elect were administered the oath of office by the Vice President. **Pages S4–5**

Authority for Select Committee on Ethics: A unanimous-consent agreement was reached providing that for the duration of the 114th Congress, the Ethics Committee be authorized to meet during the session of the Senate. **Page S8**

Time for Roll Call Votes: A unanimous-consent agreement was reached providing that for the duration of the 114th Congress, there be a limitation of 15 minutes each upon any roll call vote, with the warning signal to be sounded at the midway point, beginning at the last 7½ minutes, and when roll call votes are of 10-minute duration, the warning signal be sounded at the beginning of the last 7½ minutes. **Page S8**

Authority to Receive Reports: A unanimous-consent agreement was reached providing that during the 114th Congress, it be in order for the Secretary of the Senate to receive reports at the desk when presented by a Senator at any time during the day of the session of the Senate. **Page S8**

Recognition of Leadership: A unanimous-consent agreement was reached providing that the Majority and Minority Leaders may daily have up to 10 minutes each on each calendar day following the prayer and disposition of the reading of, or the approval of, the Journal. **Page S8**

Printing of Conference Reports: A unanimous-consent agreement was reached providing that notwithstanding the provisions of rule XXVIII, conference reports and statements accompanying them not be printed as Senate reports when such conference reports and statements have been printed as a House report unless specific request is made in the Senate in each instance to have such a report printed. **Page S8**

Authority for Appropriations Committee: A unanimous-consent agreement was reached providing that the Committee on Appropriations be authorized during the 114th Congress to file reports during the adjournments or recesses of the Senate on appropriations bills, including joint resolutions, together with any accompanying notices of motions to suspend rule XVI, pursuant to rule V, for the purpose of offering certain amendments to such bills or joint resolutions, which proposed amendments shall be printed. **Page S8**

Authority for Corrections in Engrossment: A unanimous-consent agreement was reached providing that, for the duration of the 114th Congress, the Secretary of the Senate be authorized to make technical and clerical corrections in the engrossments of all Senate-passed bills and joint resolutions, Senate amendments to House bills and resolutions, Senate amendments to House amendments to Senate bills and resolutions, and Senate amendments to House amendments to House bills or resolutions. **Page S8**

Authority to Receive Messages and Sign Enrolled Measures: A unanimous-consent agreement was reached providing that, for the duration of the 114th Congress, when the Senate is in recess or adjournment, the Secretary of the Senate is authorized to receive messages from the President of the United States, and—with the exception of House bills, joint resolutions and concurrent resolutions—messages from the House of Representatives; and that they be appropriately referred; and that the President of the Senate, the President pro tempore, and the Acting President pro tempore be authorized to sign duly enrolled bills and joint resolutions. **Pages S8–9**

Privileges of the Floor: A unanimous-consent agreement was reached providing that, for the duration of the 114th Congress, Senators be allowed to leave at the desk with the Journal Clerk the names of two staff members who will be granted the privilege of the floor during the consideration of the specific matter noted, and that the Sergeant-at-Arms be instructed to rotate such staff members as space allows. **Page S9**

Referral of Treaties and Nominations: A unanimous-consent agreement was reached providing that, for the duration of the 114th Congress, it be in order to refer treaties and nominations on the day when they are received from the President, even when the Senate has no executive session that day. **Page S9**

Authority to Introduce Measures: A unanimous-consent agreement was reached providing that, for the duration of the 114th Congress, Senators may be allowed to bring to the desk, bills, joint resolutions, concurrent resolutions, and simple resolutions, for referral to appropriate committees. **Page S9**

Messages from the House: **Page S10**

Measures Read the First Time: **Pages S10, S23**

Measures Held Over/Under Rule: **Page S10, S22, S23**

Enrolled Bills Presented: **Page S10**

Statements on Introduced Bills/Resolutions: **Pages S12–22**

Quorum Calls: One quorum call was taken today. (Total—1) **Page S5**

Adjournment: Senate convened at 12:08 p.m. and adjourned, as a further mark of respect to the memory of the late former Senator Edward W. Brooke, III, of Massachusetts, in accordance with S. Res. 19, at 1:40 p.m., until 9:30 a.m. on Wednesday, January 7, 2015. (For Senate's program, see the remarks of the Majority Leader in today's Record on page S23.)

Committee Meetings

(Committees not listed did not meet)

No committee meetings were held.

House of Representatives

Chamber Action

Public Bills and Resolutions Introduced: 161 public bills, H.R. 3, 21–180; and 33 resolutions, H.J. Res. 1–9; H. Con. Res. 1–4; and H. Res. 1–17 were introduced. **Pages H35–43**

Additional Cosponsors:

Reports Filed: There were no reports filed today.

Certificate of Election: The Clerk announced that Certificates of Election covering 435 seats in the One Hundred Fourteenth Congress had been received and the names of those persons whose credentials show that they were regularly elected as Representatives in accordance with the laws of their respective States would be called. Without objection, the Representatives-elect were directed to record their presence by electronic device in order to determine whether a quorum was present. **Page H1**

Call of the States: On the Call of the States, 401 Members reported their presence, Roll No. 1. **Pages H1–2**

Election Credentials for the Resident Commissioner and Delegates: The Clerk announced that credentials have been received showing the elections of the following: Honorable Pedro R. Pierluisi, Resident Commissioner from the Commonwealth of Puerto Rico; Honorable Eleanor Holmes Norton, Delegate from the District of Columbia; Honorable Madeleine Z. Bordallo, Delegate from Guam; Honorable Stacey E. Plaskett, Delegate from the Virgin Islands; Honorable Amata Coleman Radewagen, Delegate from American Samoa; and Honorable Gregorio Sablan, Delegate from the Commonwealth of the Northern Mariana Islands. **Page H2**

Member Resignation: The Clerk announced that she was in receipt of the letter from the Honorable Michael G. Grimm of New York indicating that he will not serve in the House in the 114th Congress. Without objection, the letter will be placed in the Congressional Record. **Page H2**

Election of Speaker: The Honorable John A. Boehner of Ohio was elected Speaker of the House of Representatives and received 216 votes. The Honorable Nancy Pelosi received 164 votes, The Honorable Daniel Webster (FL) received 12 votes, The Honorable Louie Gohmert received 3 votes, The Honorable Ted S. Yoho received 2 votes, The Honorable Jim Jordan received 2 votes, The Honorable Jim Cooper received 1 vote, The Honorable Peter A. DeFazio received 1 vote, The Honorable Jeff Duncan (SC) received 1 vote, The Honorable Trey Gowdy received 1 vote, The Honorable John Lewis received 1 vote, The Honorable Kevin McCarthy received 1 vote, The Honorable Rand Paul received 1 vote, The Honorable Jeff Sessions (AL) received 1 vote, and The Honorable Colin Powell received 1 vote. Earlier, the Clerk appointed Representatives-elect Miller (MI), Brady (PA), Kaptur, and Ros-Lehtinen to act as Tellers. **Pages H2–4**

Escort Committee: The Clerk appointed the following committee to escort the Speaker-elect to the Chair: Representatives-elect McCarthy, Pelosi, Scalise, McMorris Rodgers, Clyburn, Walden, Becerra,

Messer, Israel, Jenkins (KS), DeLauro, Foxx, Edwards, Mimi Walters (CA), Van Hollen, Sessions, Ben Ray Lujan (NM), McHenry, and Adams; and the members of the Ohio delegation: Representatives-elect Kaptur, Chabot, Tiberi, Ryan, Turner, Jordan, Latta, Fudge, Gibbs, Johnson, Renacci, Stivers, Beatty, Joyce, and Wenstrup. **Page H4**

Administration of the Oath of Office to Members of the 114th Congress: The Dean of the House, the Honorable John Conyers, Jr., administered the oath of office to the Speaker. The Speaker then administered the oath to the Members, Resident Commissioner, and Delegates. **Page H6**

Election of Majority and Minority Leaders: The Chairman of the Republican Conference, Representative McMorris Rodgers, announced the election of Representative McCarthy as the Majority Leader. The Chairman of the Democratic Caucus, Representative Becerra, announced the election of Representative Pelosi as the Minority Leader. **Page H6**

Election of Majority and Minority Whips: The Chairman of the Republican Conference, Representative McMorris Rodgers, announced that election of Representative Scalise as the Majority Whip. The Chairman of the Democratic Caucus, Representative Becerra, announced the election of Representative Hoyer as the Minority Whip and Representative Clyburn as Assistant Democratic Leader. **Page H6**

Electing Officers of the House of Representatives: The House agreed to H. Res. 1, electing the following officers for the House of Representatives: Karen L. Haas, Clerk; Paul D. Irving, Sergeant-at-Arms; Ed Cassidy, Chief Administrative Officer; and Father Patrick J. Conroy, Chaplain. **Page H6**

Agreed that the question be divided on the adoption of the resolution so as to have a separate vote on the election of the Chaplain. Agreed to the first portion of the resolution by voice vote. Agreed to the remainder of the resolution by voice vote. **Page H6**

Rejected the Becerra amendment to H. Res. 1 by voice vote. **Page H6**

Notify the Senate that a Quorum Has Assembled: The House agreed to H. Res. 2, to inform the Senate that a quorum of the House has assembled and of the election of the Speaker and the Clerk. **Pages H6–7**

Notify the President of the Assembly of the 114th Congress: The House agreed to H. Res. 3, authorizing the Speaker to appoint Members of the House to a joint committee to notify the President of the assembly of the Congress. Subsequently, the Speaker appointed Representatives McCarthy and Pelosi to the committee. Later, Representative McCarthy announced that the Committee had notified the President that a quorum of each House had assembled and was ready to receive any communication he may be pleased to make. **Page H7**

Notify the President of the Election of the Speaker and the Clerk: The House agreed to H. Res. 4, instructing the Clerk to inform the President of the election of the Speaker and the Clerk. **Page H7**

Adopting Rules for the One Hundred Fourteenth Congress: The House agreed to H. Res. 5, adopting rules for the One Hundred Fourteenth Congress, by a yea-and-nay vote of 234 yeas to 172 nays with one answering "present", Roll No. 6, after the previous question was ordered by a yea-and-nay vote of 239 yeas to 168 nays, Roll No. 4. **Pages H7–28**

Representative Norton moved to refer H. Res. 5 to a select committee of five members, to be appointed by the Speaker. Subsequently, Representative McCarthy moved to table the Norton motion and by a yea-and-nay vote of 230 yeas to 160 nays, Roll No. 3, the McCarthy motion was agreed to. **Page H11**

Rejected the Van Hollen motion to commit H. Res. 5 to a select committee composed of the Majority Leader and Minority Leader with instructions to report it back to the House forthwith with an amendment, by a yea-and-nay vote of to 168 yeas to 243 nays, Roll No. 5. **Pages H25–26**

Administration of the Oath of Office: Representatives-elect Cicilline, Cooper, Gowdy, Price (NC), and Welch presented themselves in the well of the House and were administered the oath of office by the Speaker. **Page H25**

Election of Members to Certain Standing Committees: The House agreed to H. Res. 6, electing Members to certain standing committees of the House of Representatives. **Page H28**

Election of Members to Certain Standing Committees: The House agreed to H. Res. 7, electing Members to certain standing committees of the House of Representatives. **Page H28**

Designation of Minority Employees: The House agreed to H. Res. 8, providing for the designation of certain minority employees. **Page H28**

Daily Hour of Meeting: The House agreed to H. Res. 9, fixing the daily hour of meeting of the First Session of the One Hundred Fourteenth Congress. **Pages H28–29**

Suspensions: The House agreed to suspend the rules and pass the following measure:

Hire More Heroes Act of 2015: H.R. 22, to amend the Internal Revenue Code of 1986 to exempt employees with health coverage under TRICARE or the Veterans Administration from being taken into account for purposes of determining the employers to which the employer mandate applies under the Patient Protection and Affordable Care Act, by a ⅔ yea-and-nay vote of 412 yeas with none voting "nay" , Roll No. 7. **Pages H29–32**

Assembly outside of the District of Columbia: The House agreed to H. Con. Res. 1, regarding consent to assemble outside the seat of government. **Page H32**

Appointment Authority: Agreed that during the One Hundred Fourteenth Congress, the Speaker, Majority Leader, and Minority Leader be authorized to accept resignations and to make appointments authorized by law or by the House. **Page H32**

Extension of Remarks: Agreed that during the One Hundred Fourteenth Congress, all Members be permitted to extend their remarks and to include extraneous material within the permitted limit in that section of the Congressional Record entitled "Extension of Remarks". **Page H32**

Morning-Hour Debate: Agreed to the procedures regarding the format for morning-hour debate for the first session of the One Hundred Fourteenth Congress. **Pages H32–33**

Policies of the Chair: The Chair announced her policies with respect to particular aspects of the legislative process dealing with (1) privileges of the floor; (2) introduction of bills and resolutions; (3) unanimous-consent requests for the consideration of legislation; (4) recognition for one-minute speeches; (5) recognition for special-order speeches; (6) decorum in debate; (7) conduct of votes by electronic device; (8) use of handouts on the House floor; (9) use of electronic equipment on the House floor; and (10) use of the Chamber. These announcements, where appropriate, will reiterate the origins of the stated policies. The Chair intends to continue in the 114th Congress the policies reflected in these statements. The policy announced in the 102nd Congress with respect to jurisdictional concepts related to clause 5(a) of rule 21, tax and tariff measures, will continue to govern but need not be reiterated, as it is adequately documented in the House Rules and Manual. Agreed without objection that the announcements will be placed in the Congressional Record. **Pages H33–35**

House Office Building Commission—Appointment: The Chair announced that Representatives McCarthy and Pelosi will serve as members of the House Office Building Commission with the Speaker. **Page H35**

Permanent Select Committee on Intelligence—Appointment: The Chair announced the Speaker's appointment of the following Member of the House to the Permanent Select Committee on Intelligence: Representative Nunes, Chairman. **Page H35**

Select Committee on the Events Surrounding the 2012 Terrorist Attack in Benghazi—Appointment: The Chair announced the Speaker's appointment of the following Member of the House to the Select Committee on the Events Surrounding the 2012 Terrorist Attack in Benghazi: Representative Gowdy, Chairman. **Page H35**

Succession of the Speaker of the House: Read a letter from the Speaker wherein he designated Representative McCarthy to act jointly with the Majority Leader of the Senate, or his designee, in the event of the death or inability of the Speaker, to notify Members of the House and Senate, respectively, of any reassembly. **Page H35**

Speaker Pro Tempore: Read a letter from the Speaker wherein he appointed Representative Denham, Representative Thornberry, Representative Upton, Representative Harris, Representative Comstock, and Representative Messer to act as Speaker pro tempore to sign enrolled bills and joint resolutions through the remainder of the One Hundred Fourteenth Congress. **Page H35**

Whole Number of the House: Under clause 5(d) of Rule 20, the Chair announced to the House that the whole number of the House is 416. **Page H35**

Senate Message: Message received from the Senate today appears on page H28.

Quorum Calls—Votes: Five yea-and-nay votes developed during the proceedings of today and appear on pages H11, H25, H26–27, H27, H32. There was one quorum call, Roll No. 1, which appears on page H1.

Adjournment: The House met at 12 noon and adjourned at 6:42 p.m.

Committee Meetings

No hearings were held.

Joint Meetings

No joint committee meetings were held.

COMMITTEE MEETINGS FOR WEDNESDAY, JANUARY 7, 2015

(Committee meetings are open unless otherwise indicated)

Senate

No meetings/hearings scheduled.

House

Committee on Rules, Full Committee, organizational meeting for the 114th Congress; hearing on H.R. 3, the "Keystone XL Pipeline Act"; and H.R. 30, the "Save American Workers Act of 2015", 10:30 a.m., H–313 Capitol.

CONGRESSIONAL PROGRAM AHEAD

Week of January 7 through January 9, 2015

Senate Chamber

During the balance of the week, Senate may consider any cleared legislative and executive business.

Senate Committees

(Committee meetings are open unless otherwise indicated)

Committee on Energy and Natural Resources: January 8, Full Committee, business meeting consider an original bill to approve the Keystone XL Pipeline, 10 a.m., SD–366.

Select Committee on Intelligence: January 8, to hold a closed roundtable briefing on certain intelligence matters, 9:15 a.m., SH–219.

House Committees

No hearings are scheduled.

Next Meeting of the **SENATE**

9:30 a.m., Wednesday, January 7

Senate Chamber

Program for Wednesday: Senate will be in a period of morning business.

(Senate will recess from 12:30 p.m. until 2:15 p.m. for their respective party conferences.)

Next Meeting of the **HOUSE OF REPRESENTATIVES**

10 a.m., Wednesday, January 7

House Chamber

Program for Wednesday: The House is expected to consider bills under suspension of the Rules.

Extensions of Remarks, as inserted in this issue

HOUSE

Boehner, John A., Ohio, E1
Bordallo, Madeleine Z., Guam, E10
Bustos, Cheri, Ill., E1, E3, E5, E8
Coffman, Mike, Colo., E12
Conyers, John, Jr., Mich., E2, E4, E6, E9, E11, E13, E14, E15
Denham, Jeff, Calif., E4, E8, E12
Goodlatte, Bob, Va., E1
Luján, Ben Ray, N.M., E8
Paulsen, Erik, Minn., E18
Quigley, Mike, Ill., E8
Speier, Jackie, Calif.,E4, E5, E13
Visclosky, Peter J., Ind., E13
Wilson, Joe, S.C., E2, E5, E9, E14

Congressional Record

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